

Medical Device GMP Regulations

- 의료기기 GMP 규정집 -

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Ministry of Food and
Drug Safety



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ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT



[Enforcement Date: October 31, 2025]

[Ordinance of the Prime Minister No. 2060; October 31, 2025]

Ministry of Food and Drug Safety (Medical Device Policy Division)

Article 1 (Purpose) The purpose of this Rule is to prescribe the matters mandated by the Medical Devices Act and the Enforcement Decree of that Act and matters necessary for the enforcement of said Act and Decree.

Article 2 (Standards for Classification and Designation of Classes) The standards and procedures for the classification and designation of the class of each medical device under Article 3 (2) of the Medical Devices Act (hereinafter the “Act”) shall be as specified in Annex 1.

Article 3 (Procedures for Application for Manufacturing Business Approval) (1) A person who intends to obtain manufacturing business approval for medical devices under the text of Article 6 (1) of the Act shall submit an application in Form 1 (including an application in electronic form) to the Commissioner of the Regional Office of Food and Drug Safety who has jurisdiction over the location of a manufacturing site, along with the following documents (including electronic documents). In such cases, where there exist at least two manufacturing sites in different locations, such person may submit the application to the Commissioner of the Regional Office of Food and Drug Safety with jurisdiction over either of such locations. <amended on Jan. 16, 2024; Apr. 01, 2025>

1. A medical certificate for which 6 months have not elapsed since the issuance date and which is issued by a medical doctor evidencing that he or she does not fall under the text of Article 6 (1) 1 of the Act or by a medical specialist evidencing that he or she falls under the proviso of that subparagraph (a corporation shall not submit such medical certificate);
 2. A medical certificate for which 6 months have not elapsed since the issuance date and which is issued by a medical doctor evidencing that he or she does not fall under Article 6 (1) 3 of the Act (a corporation shall not submit such medical certificate);
 3. Documents concerning the quality manager (hereinafter referred to as the “quality manager”), whose qualifications shall be verified pursuant to Article 6 (7) of the Act, as follows:
 - (a) Documents verifying the qualifications under Article 11 (2). Provided, however, that submission of such documents shall be exempted if the qualification of the quality manager has previously been verified through the integrated medical device information system pursuant to Article 31-3 (1) of the Act;
 - (b) Documents verifying employment status, such as a certificate of employment.
- (2) Upon receipt of an application under Paragraph (1), the Commissioner of the Regional Office of Food and Drug Safety shall verify an applicant’s corporation registration certificate (limited to a corporation) through administrative data matching under Article 36 (1) of the Electronic Government Act.

- (3) When an application for approval under Paragraph (1) meets the standards, the Commissioner of the Regional Office of Food and Drug Safety shall issue the license in Form 2 to the applicant and state the following matters in the manufacturing business license register: [<Amended on Oct. 22, 2019>](#)
1. Approval number and approval date;
 2. The name and resident registration number of the manufacturer (in case of a corporation, the name and resident registration number of its representative);
 3. The name and location of the manufacturing site;
 4. The name, resident registration number, and classification of qualifications of the quality manager.

Article 4 (Medical Devices Subject to Manufacturing Approval, Manufacturing Certification, or Manufacturing Notification) (1) Medical devices subject to manufacturing certification or manufacturing notification by item category under Article 6 (2) 1 of the Act shall be classified as follows:

1. Manufacturing certification by item category: Medical devices determined and publicly notified by the Minister of Food and Drug Safety, among Class II medical devices, the class of which is designated following Article 2 (hereinafter “class”);
 2. Manufacturing notification by item category: Medical devices determined and publicly notified by the Minister of Food and Drug Safety, among Class I medical devices.
- (2) Medical devices subject to manufacturing approval, manufacturing certification, or manufacturing notification by item under Article 6 (2) 2 of the Act shall be classified as follows: [<amended on Mar. 8, 2024; Aug. 7, 2024>](#)
1. Manufacturing approval by item: The following medical devices:
 - (a) Class III and Class IV medical devices;
 - (b) Medical devices excluding those under Paragraph (1) 1, Item (c) of this Subparagraph, and Subparagraph 2 of this Paragraph, among Class II medical devices;
 - (c) Medical devices that are essentially different from those already approved, certified, or notified in terms of structure, mode of action, performance, intended uses, utilization methods, etc. among Class II medical devices (medical devices for export shall be excluded);
 2. Manufacturing certification by item: Medical devices determined and publicly notified by the Minister of Food and Drug Safety excluding those under Subparagraph 1 of Paragraph (1), among Class II medical devices;
 3. Manufacturing notification by item: Medical devices excluding those under Subparagraph 2 of Paragraph (1), among Class I medical devices.

Article 5 (Procedures for Manufacturing Approval) (1) A person who intends to obtain approval for medical device manufacturing under Article 6 (2) of the Act shall submit an application in Form 3 (including an application in electronic form) to the Minister of Food and Drug Safety, along with the following documents (including electronic documents):

1. Documents evidencing that he or she secures facilities and manufacturing and quality management systems under Article 6 (4) of the Act;
 2. Technical documents, clinical investigation data, etc. (hereinafter “technical documents, etc.”) or a notice of the review result of technical documents, etc. under Article 9 (4) for which 2 years have not elapsed since the issuance date. Provided, that in cases falling under the proviso of Article 9 (1), a notice of the review result of technical documents, etc. shall be submitted;
 3. A copy of a concluded contract for entrusting manufacturing processes or testing for quality management.
- (2) When a product of which an application for a manufacturing approval is filed under Paragraph (1) is deemed to meet the standards, the Minister of Food and Drug Safety shall issue the applicant with a manufacturing license in Form 4 and enter the following matters in the manufacturing approval register:
1. Approval number and approval date
 2. The names (the product name, item name, and model name).
- (3) The Minister of Food and Drug Safety shall determine and publicly notify the guidelines for preparing the supporting documents required for the application for manufacturing business approval of medical devices under Article 3 (including conditional manufacturing business approval and approval for change thereof) and documents required for the application for manufacturing approval under Paragraph (1) (including conditional manufacturing approval and approval for change thereof), requirements for each document, the scope of exemption, and other details.
- (4) If, while receiving an application for a manufacturing approval under Paragraph (1), the Minister of Food and Drug Safety receives an application for a new health technology assessment under Article 3-2 (2) of the New Health Technology Assessment Rules, or an application, etc. for verification of eligibility for health care benefit or non-benefit, etc. under Article 9-2 (2) of the Rules on Standards for Health Care Benefits Covered by National Health Insurance, or a written objection under Article 9-2 (4) of the Rules on Standards for Health Care Benefits Covered by National Health Insurance, he or she shall, without delay, forward the relevant application, etc. to the Minister of Health and Welfare and the President of the Health Insurance Review and Assessment Service. In such cases, the Minister of Food and Drug Safety may mutually share data related to the relevant application for a manufacturing approval with the Minister of Health and Welfare or the President of the Health Insurance Review and Assessment Service; present opinions on the new health technology assessment and whether the manufacturing falls under medical care benefit items or non-benefit items; and refer to the data forwarded under Paragraph (5) when granting manufacturing approval. <Newly Inserted on Jul. 29, 2016; Apr. 13, 2020>

- (5) When the Minister of Food and Drug Safety receives the results of the new health technology assessment, the results of the verification of whether the manufacturing falls under the health care benefit items or non-benefit items by the Minister of Health and Welfare and the President of the Health Insurance Review and Assessment Service following Article 4 (2) of the New Health Technology Assessment Rules or the main text of Article 9-2 (3) and Paragraph (4) thereof of the Rules on Standards for Health Care Benefits Covered by National Health Insurance, he or she shall immediately notify the relevant applicant of such results, etc. [<Newly inserted on Jul. 29, 2016>](#)
- (6) The matters prescribed in Paragraphs (4) and (5) shall also apply to the cases of conditional manufacturing approval granted under Article 7 (1) of the Act or approval for change granted under Article 12 (1) of the Act. [<Newly Inserted on Jul. 29, 2016>](#)
- (7) Except as provided in Paragraphs (4) through (6), details necessary for data and opinion provision, etc. among institutions shall be determined and publicly notified by the Minister of Food and Drug Safety. [<Newly Inserted on Jul. 29, 2016>](#)

Article 6 (Procedures for Manufacturing Certification) (1) A person who intends to obtain manufacturing certification of medical devices under Article 6 (2) of the Act shall submit an application in Form 5 (including an application in electronic form) to the head of the National Institute of Medical Device Safety Information established under Article 42 of the Act (hereinafter the “NIDS”) entrusted with the affairs concerning certification under Article 44 (2) of the Act, along with the documents referred to in the subparagraphs of Article 5 (1) (including electronic documents). [<Amended on Jun. 14, 2018>](#)

- (2) When medical devices of which an application for manufacturing is filed under Paragraph (1) are deemed to meet the standards, the head of the NIDS shall issue the manufacturing certificate in Form 6 to the applicant and shall enter the following matters in the manufacturing certification register: [<Amended on Jun. 14, 2018>](#)
 1. Certification number and certification date;
 2. The names (the product name, item name, and model name);
- (3) The Minister of Food and Drug Safety shall determine and publicly notify the guidelines for preparing the supporting documents required for the application for manufacturing certification under Paragraph (1) (including conditional manufacturing certification and certification of change thereof), requirements for each document, the scope of exemption, and other details.

Article 7 (Procedures for Manufacturing Notification) (1) A person who intends to file a manufacturing notification of medical devices under Article 6 (2) of the Act shall submit the notification in Form 7 (including a notification in electronic form) to the head of the NIDS entrusted with the affairs concerning notification under Article 44 (2) of the Act, along with the documents listed in Article 5 (1) 3. [<Amended on Jun 14, 2018>](#)

- (2) When the head of the NIDS accepts a manufacturing notification filed pursuant to paragraph (1), he or she shall issue to the applicant a Certificate of Manufacturing Notification prescribed in Form 7-2, and shall enter the following matters in the Manufacturing Notification Register:

<Amended on Jun. 14, 2018; Aug. 7, 2024>

1. Notification number and notification date;
 2. The names (the product name, item name, and model name).
- (3) The Minister of Food and Drug Safety shall determine and publicly notify the guidelines for preparing supporting documents required to file a manufacturing notification under Paragraph (1) (including a conditional manufacturing notification and notification of change thereof), requirements for each document, the scope of exemption, and other details.

Article 8 (Standards for Facilities and Manufacturing and Quality Management System) (1) Standards for facilities and manufacturing and quality management systems to be secured by a person who intends to obtain a manufacturing business approval, manufacturing approval, or manufacturing certification or file a manufacturing notification under the main text of Article 6 (4) of the Act shall be as specified in Annex 2.

- (2) “Cases prescribed by Ordinance of the Prime Minister, such as those of entrusting testing for quality management or manufacturing processes” in the proviso of Article 6 (4) of the Act refers to cases where a person who intends to obtain a manufacturing business approval, manufacturing approval, or manufacturing certification or file a manufacturing notification entrusts manufacturing processes or quality management testing to a medical device testing and inspection institution under Article 6 (2) 4 of the Act on Testing and Inspection in the Food and Drug Industry (hereinafter “medical device testing and inspection institution”), an institution conducting non-clinical studies under Article 10-2 (1) of the Act (hereinafter “institution conducting non-clinical studies”), or a manufacturer whose compliance is certified under subparagraph 2 (f) of Annex 2. In such cases, the person who intends to obtain manufacturing business approval, manufacturing approval, or manufacturing certification or file a manufacturing notification may not secure the facilities of a manufacturing site specified in Subparagraph 1 (a) of Annex 2 according to the following classifications: <Amended on May 1, 2017>

1. When manufacturing processes are entrusted: Manufacturing facilities and instruments related to the entrusted processes;
2. When quality management testing is entrusted to a medical device testing and inspection institution, an institution conducting non-clinical studies, or a manufacturer whose compliance is certified under Subparagraph 2 (f) of Annex 2: Laboratories for quality management, and facilities and instruments related to testing.

Article 9 (Review of Technical Documents) (1) A person who intends to obtain manufacturing approval or manufacturing certification may undergo a review in advance by the Minister of Food and Drug Safety regarding the compliance of technical documents, etc., which shall be submitted under Article 6 (5) of the Act. Provided, that in the cases of the medical devices that are essentially equivalent to those already approved, certified, or notified in terms of structure, mode of action, performance, intended uses, utilization methods, etc. and fall under the items determined by the Minister of Food and Drug and Safety, the technical documents, etc. shall be reviewed by a technical documentation review body under Article 6-4 (1) of the Act (hereinafter “technical

documentation review body”). [<Amended on May 1, 2017>](#)

- (2) For medical devices (in vitro diagnostic medical devices shall be excluded), a person who intends to have technical documents, etc. reviewed under Paragraph (1) shall submit a written request for review in Form 8 (including a written request for review in electronic form) to the Minister of Food and Drug Safety or the head of an technical documentation review body, along with the following data (including data in electronic form): Provided, That in the cases of the medical devices that are essentially equivalent to those already approved in terms of structure, mode of action, performance, intended uses, utilization methods, etc. except for the medical devices determined and publicly notified by the Minister of Food and Drug Safety for which submission of data regarding clinical investigations is deemed necessary, the data referred to in Subparagraphs 5 through 7 may not be submitted. [<Amended Jun. 12, 2019; Dec 31, 2020; Jun. 24, 2021; Jan. 16, 2024>](#)

1. Data regarding comparison between the medical devices and products already approved;
2. Data regarding intended uses;
3. Data regarding modes of action;
4. The following data regarding test specifications, grounds for establishing such specifications, and actual measured values for the verification of the performance and safety of products: Provided, That when neither domestic nor international test specifications exist, data regarding test specifications established by the person who intends to have technical documents, etc. reviewed to verify the performance and safety of products, grounds for establishing such specifications, and actual measured values:
 - (a) Data regarding electrical and mechanical safety;
 - (b) Data regarding biological safety;
 - (c) Data regarding radiation safety;
 - (d) Data regarding safety of electromagnetic waves;
 - (e) Data regarding performance;
 - (f) Data regarding physical and chemical properties;
 - (g) Data regarding stability;
5. Data regarding origins, discovery, and reasons for development;
6. Data regarding clinical investigations;
7. Data regarding the current status of use, etc. in foreign countries.

- (3) A person who intends to have technical documents, etc. reviewed regarding in vitro diagnostic medical devices pursuant to Paragraph (1) shall submit a written request for review in Form 8 (including a written request for review in electronic form) to the Minister of Food and Drug Safety or the head of an institution reviewing technical documents, along with the following data (including data in electronic form): [<Amended on Jan. 4, 2017; Jun. 24, 2021; Jan. 16, 2024>](#)

1. Data regarding reasons for development, measurement principles and methods, and the current status of domestic and international use;

2. Data regarding raw materials and manufacturing methods;
 3. Data regarding intended uses;
 4. Data regarding storage methods and the period of use or expiration date;
 5. The following data to verify the performance of the products:
 - (a) Data regarding analytical performance tests;
 - (b) Data regarding clinical performance tests;
 - (c) Data regarding quality management tests;
 - (d) Data regarding reference materials, specimen storage, etc.
 6. Data regarding the safety of the handlers of in vitro diagnostic medical devices;
 7. Data regarding the comparison between the medical devices and products already approved or certified.
- (4) Notwithstanding paragraphs (2) and (3), where a person who has undergone a preliminary review of manufacturing approval or notification pursuant to Article 11 of the Act submits a preliminary review result notice pursuant to Article 25 (3), such person may omit the submission of the data among the items under each subparagraph of paragraph (2) or paragraph (3) for which a determination of conformity has been made as a result of the preliminary review. [<Newly Inserted on Jan. 16, 2024>](#)
- (5) Upon receipt of a request for review under Paragraphs (2) and (3), the Minister of Food and Drug Safety or the head of a technical documentation review body shall review the relevant technical documents, etc. and notify the applicant of the results as prepared in Form 9. [<Amended on Jan. 16, 2024>](#)
- (6) The Minister of Food and Drug Safety shall determine and publicly notify the guidelines for preparing the supporting documents necessary to review technical documents, etc.; requirements for each supporting document and procedures for and scope of exemption thereof; scope of, standards and procedures for review; management standards for clinical performance tests; and other details. [<Amended on Jan. 4, 2017; Jan. 16, 2024>](#)

Article 10 (Exemption from Manufacturing Business Approval for Medical Devices) The following medical devices may be manufactured without manufacturing business approval under Article 6 (1) of the Act or without manufacturing approval, manufacturing certification, or manufacturing notification under Paragraph (2) of that Article: [<Amended on Jun. 15, 2016; Jun. 14, 2018; Dec. 31, 2018>](#)

1. A medical device subject to clinical investigations for which approval of a clinical investigation plan is granted under the main text of Article 10 (1) of the Act;
2. A separate medical device required for clinical investigations for which approval of a clinical investigation plan may not be granted under the proviso of Article 10 (1) of the Act;
3. A separate medical device required for clinical investigations regarding drugs, etc. for which approval of a clinical investigation plan shall be granted under Article 34 of the

Pharmaceutical Affairs Act;

4. A medical device manufactured to obtain manufacturing approval or manufacturing certification for medical devices or file a manufacturing notification for medical devices;
5. A medical device used for research purposes, such as product development;
6. A medical device determined and publicly notified by the Minister of Food and Drug Safety, such as a medical device for self-use or for relief operations, etc.;
7. Deleted. <Dec. 31, 2018>
8. A medical device determined and publicly notified by the Minister of Food and Drug Safety which is used in clinical laboratories and is deemed suitable by the Minister based on the evaluations of quality management systems, inspection performance, competence, etc. (referring to places where the diagnosis, inspection, etc. of diseases are conducted; hereinafter the same shall apply).

Article 11 (Qualifications for Quality Managers) (1) A person who intends to obtain manufacturing business approval under Article 6 (1) of the Act shall assign at least one quality manager to each manufacturing site.

(2) The affairs of a quality manager may be performed by a person with any of the following qualifications: <Amended on Jun. 15, 2016; Apr. 13, 2020; Dec. 19, 2022>

1. A person with a license classified as follows under the Medical Service Technologists Act:
 - (a) When manufacturing or importing eyeglass lenses or contact lenses: Opticians;
 - (b) When manufacturing or importing materials used in dental clinics: Dental technicians or dental hygienists;
 - (c) When manufacturing or importing radiation-generating devices: Radiological technologists;
 - (d) Deleted. <May 1, 2020>
 - (e) When manufacturing or importing medical devices required for physical therapy or rehabilitation training: Physical therapists.
2. A person with qualifications as a biomedical engineer or quality management engineer under the National Technical Qualifications Act;

2-2. A person with qualifications as a regulatory affairs (RA) specialist of medical devices accredited by the Minister of Food and Drug Safety under Article 19 (1) of the Framework Act On Qualifications;
3. A person who has earned a bachelor's degree (including a person deemed to have an educational attainment equal to or higher than such degree under statutes or regulations; hereinafter, in this Article, the same shall apply) from a school under the subparagraphs of Article 2 of the Higher Education Act (excluding a junior college under Subparagraph 4 of that Article; hereinafter, in this Article, "university, college, etc.") and who has majored in the field of natural science, engineering, or medicine under Article 2 (9) of the Regulations on the Establishment and Operation of Universities and Colleges (hereinafter,

in this Article, “medical-device-related field”);

4. A person who has earned a bachelor’s degree from a university, college, etc. in a field not related to medical devices and who has earned a master’s degree or higher from a graduate school under Article 29 of the Higher Education Act in a medical-device-related field;
 5. A person who has obtained a bachelor's degree in a field other than a medical-device-related field at a university or equivalent institution, and who has at least one year of experience (including the acquisition of a degree or experience prior to the recognition of academic credentials) engaged in quality management duties at a medical device manufacturing or import company;
 6. A person who has graduated from a junior college as defined in subparagraph 4 of Article 2 of the Higher Education Act (including a person deemed to have an educational attainment equal to or higher than such college under statutes or regulations; hereinafter, in this Article, the same shall apply), who majored in a medical-device-related field, and who has at least one year of experience (including graduation or experience prior to the recognition of academic credentials) engaged in quality management duties at a medical device manufacturing or import company;
 7. A person who has graduated from a junior college as defined in subparagraph 4 of Article 2 of the Higher Education Act, who majored in a field other than a medical-device-related field, and who has at least three years of experience (including graduation or experience prior to the recognition of academic credentials) engaged in quality management duties at a medical device manufacturing or import company (or two years, in the case of a graduate of a junior college with a three-year course of study pursuant to Article 48 (1) of the Higher Education Act);
 8. A person who has graduated from a high school or high technical school under Subparagraph 3 of Article 2 of the Elementary and Secondary Education Act (including a person deemed to have an educational attainment equal to or higher than such school under statutes or regulations, but excluding a person falling under Subparagraph 9) who has engaged in quality management work for at least 5 years in a company that manufactures or imports medical devices;
 9. A person who has graduated from a high school tailored to industry demands in a medical-device-related field under Article 90 (1) 10 of the Enforcement Decree of the Elementary and Secondary Education Act who has engaged in quality management work for at least three years in a company that manufactures or imports medical devices;
 10. A person who has engaged in quality management work for at least six years in a company that manufactures or imports medical devices.
- (3) Where a manufacturer has 2 or more quality managers under Paragraph (1), the work shall be divided and the limits of the responsibilities of each quality manager shall be specified.

Article 12 (Scope of Duties of Quality Managers) (1) The scope of duties to be performed by quality managers under Article 6-2 (1) of the Act shall be as follows:

1. Inspecting the hygiene of employees thoroughly and providing them with the education and training necessary to produce and import medical devices with excellent quality;
 2. Supervising whether employees receive education and training under Subparagraph 1;
 3. Preparing a standard operating procedure (SOP) to manufacture medical devices in accordance with the standards for manufacturing and quality management systems specified in Subparagraph 2 of Annex 2 and requiring employees to manufacture medical devices according to such procedure;
 4. Thoroughly conducting the tests, inspections, or examinations required for the processes from the warehousing of raw materials to the release of finished products; preparing and keeping manufacturing management records and quality management records for each manufacturing unit; and retaining such records for 5 years from manufacturing dates (referring to a period corresponding to the life cycle of a product, where such life cycle exceeds 5 years);
 5. Evaluating the results of the quality management of manufacturing sites and determining whether to ship the products;
 6. Dealing with affairs related to the establishment, implementation, and maintenance of quality management systems in accordance with standards for manufacturing and quality management systems specified in Subparagraph 2 of Annex 2;
 7. Managing the facilities of manufacturing sites in a sanitary manner so as not to cause any harm to health and hygiene and preventing cross-contamination, contamination from the outside, etc.;
 8. Managing and supervising objects that are likely to cause any harm so that they are not placed in working places and preventing substances hazardous to public health from being generated in the working place;
 9. Handling other affairs determined and publicly notified by the Minister of Food and Drug Safety, which are related to manufacturing management, quality management, and safety management, among the matters to be observed by the manufacturers under Article 27 (1).
- (2) When a quality manager ceases to engage in quality management work in the relevant working places, he or she may submit a notification of his or her status of not working as a quality manager in Form 10 (including a notification in electronic form) to the Commissioner of the Regional Office of Food and Drug Safety.
- (3) No quality manager shall concurrently engage in affairs other than those referred to in Paragraph (1); Provided, that the same shall not apply in any of the following cases:
1. When he or she handles affairs not affecting the duties of a quality manager;
 2. When a manufacturer concurrently engages in import business and a quality manager of the manufacturing company handles the affairs of a quality manager of the import company.

Article 13 (Content and Hours of Education for Quality Managers) (1) The content of education under Article 6-2 (2) of the Act shall be as follows:

1. The latest standard specifications for medical devices;
 2. Statutes, regulations, systems, and technology necessary for safety management, such as ensuring the safety and effectiveness of medical devices;
 3. Statutes, regulations, systems, and technology necessary for the manufacture and quality management of medical devices;
 4. Other matters determined by the Minister of Food and Drug Safety for the manufacturing management, quality management, and safety management of medical devices.
- (2) At least 8 hours of education shall be provided per year.
- (3) A quality manager shall receive education conducted by an institution offering education for quality managers under Article 14 (1) within 6 months from the date of commencement of work: Provided, That this shall not apply when he or she completes the provided education in the pertinent year before working as a quality manager. [<Amended on Jun. 24, 2021>](#)

Article 14 (Designation of Institutions Offering Education for Quality Managers) (1) An institution that intends to be designated as an institution offering education for quality managers (hereinafter “institution offering education”) under Article 6-2 (5) of the Act shall satisfy the following requirements: [<Amended on Jan. 21, 2022>](#)

1. Being the NIDS or medical device-related institutions or organizations publicly announced by the Minister of Food and Drug Safety;
 2. Having specialists, such as an education manager who manages and supervises the overall operation of necessary education, personnel necessary for operating education, etc.;
 3. Having an educational facility and the equipment necessary for providing education.
- (2) A person who intends to apply for an institution’s designation under Article 6-2 (5) of the Act shall submit an application for designation as an institution offering education for quality managers of medical devices in Form 11 to the Minister of Food and Drug Safety, along with the following documents and data: [<Amended on Jan. 21, 2022>](#)
1. Data regarding the current status of the operational organization and personnel to provide education;
 2. Data regarding the current retention status of educational facilities and equipment;
 3. Evidentiary data regarding the calculation of tuition fees;
 4. Regulations on the implementation of education;
 5. Basic educational plans.
- (3) Upon receipt of an application under Paragraph (2), the Minister of Food and Drug Safety may conduct a fact-finding survey to evaluate whether the details of such application satisfy the requirements for designation under Paragraph (1). [<Amended on Jan. 21, 2022>](#)
- (4) When the Minister of Food and Drug Safety designates an institution offering education, he or she shall issue the applicant with a certificate of designation in Form 12. [<Amended on Jun. 14, 2018>](#)

- (5) When an institution offering education intends to modify its designated name, location, or representative under Paragraph (4), it shall submit to the Minister of Food and Drug Safety an application for the change of designation as an institution offering education for quality managers of medical devices in Form 11-2 within 30 days from the date reasons for such change occur, along with a certificate of designation as an institution offering education for quality managers of medical devices and documents verifying changed matters. <Newly inserted on Jun. 14. 2018, Jan. 21. 2022>
- (6) The Minister of Food and Drug Safety may modify the designation of an institution offering education after verifying an application, etc. prescribed in Paragraph (5). In such cases, he or she shall issue a certificate of designation as an institution offering education for quality managers of medical devices, stating the changed matters therein. <Newly inserted on Jun 14, 2018>
- (7) When the Minister of Food and Drug Safety designates an institution offering education under Paragraph (4) or modifies designation under Paragraph (6), he or she shall publicly announce the fact that such institution is designated or designation is modified, and the name and location of the institution and the name of its representative on the website, etc. of the Ministry of Food and Drug Safety. <Newly inserted on Jun. 14, 2018>
- (8) An institution offering education may receive tuition fees from educatees in consideration of the expenses incurred in education, such as expenses for educational materials or on-site training and stipends for instructors. In such cases, the head of the institution offering education shall determine tuition fees so as to not exceed actual expenses. <Amended on Jun. 14, 2018>
- (9) Except as provided in Paragraphs (1) through (8), details of qualifications for the designation as an institution offering education and other matters necessary for the designation, management, etc. of such institution shall be determined and publicly notified by the Minister of Food and Drug Safety. <Amended on Jun. 14. 2018, Jan. 21, 2022>

Article 15 (Compliance for Institutions Offering Education) An institution offering education shall comply with the following matters in accordance with Article 6-2 (6) of the Act:

1. To formulate an annual educational plan including educatees and educational content for the following year in accordance with the basic educational plan under Article 14 (2) 5 and to submit it to the Minister of Food and Drug Safety before the following business year commences;
 2. To provide education in accordance with the annual educational plan in Subparagraph 1;
 3. To develop educational materials and provide them to educatees;
 4. To issue a certificate with a person who completes the education, to record matters regarding the provision of education, such as a list of persons who have completed the education, and to retain such records for 2 years from the date such matters are recorded;
 5. To report records regarding the provision of education of the preceding year to the Minister of Food and Drug Safety by January 31 of the following year.
- (2) Required details regarding the establishment of an educational plan or methods of education

provision prescribed in each subparagraph of Article 1 shall be determined and publicly notified by The Minister of Food and Drug Safety.

[Wholly Amended on Jan. 21, 2022]

Article 15-2 (Designation of Institutions for Reviewing Technical Documents) (1) An institution that intends to be designated as a technical documentation review body under Article 6-4 (1) of the Act shall meet the standards for designation determined and publicly notified by the Minister of Food and Drug Safety, such as the organization and personnel necessary to review technical documents, etc. for each field and operational standards.

- (2) A person who intends to apply for the designation of an institution as a technical documentation review body shall submit to the Minister of Food and Drug Safety an application for the designation as a technical documentation review body on medical devices in Form 12-2 (including an application in electronic form), along with the following documents (including electronic documents):
1. Documents regarding the current status of organization and personnel (for the current status of personnel, including documents evidencing qualifications and work experience);
 2. Documents regarding operational standards;
 3. Documents regarding fields for reviewing technical documents, etc.;
 4. Documents determined and publicly notified by the Minister of Food and Drug Safety, which evidence financial capabilities to review technical documents, etc.
- (3) Upon receipt of an application under Paragraph (2), the Minister of Food and Drug Safety may conduct a fact-finding survey to evaluate whether the details of such application meet the standards for designation.
- (4) When the Minister of Food and Drug Safety designates a technical documentation review body, they shall issue the applicant with a certificate of designation as a technical documentation review body on medical devices in Form 12-3.
- (5) When a technical documentation review body intends to modify any of the following matters, it shall submit to the Minister of Food and Drug Safety an application for the change of designated matters of a technical documentation review body on medical devices in Form 12-4 (including an application in electronic form) within 30 days from the date reasons for such change occur, along with a certificate of designation as a technical documentation review body on medical devices and documents verifying changed matters (including electronic documents):
1. The representative of the technical documentation review body;
 2. The name and location of the technical documentation review body;
 3. Fields for reviewing technical documents, etc.
- (6) When the Minister of Food and Drug Safety modifies the designation of a technical documentation review body, he or she shall issue a certificate of designation as a technical documentation review body on medical devices, stating the changed matters therein.
- (7) When the Minister of Food and Drug Safety designates a technical documentation review body

or modifies designation thereof, he or she shall publicly announce the name, location, representative, etc. of the institution on the website, etc. of the Ministry of Food and Drug Safety.

- (8) Details regarding the scope of the documents to be submitted under Paragraph (2) shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly Inserted on May 1, 2017]

Article 15-3 (Compliance for Institutions for Reviewing Technical Documents) “Matters prescribed by Ordinance of the Prime Minister” in Article 6-4 (3) of the Act refer to the following:

1. The operational standards of institutions for reviewing technical documents determined and publicly notified by the Minister of Food and Drug Safety shall be observed;
2. The results of the review of technical documents shall be reported to the Minister of Food and Drug Safety, as determined and publicly notified by the Minister of Food and Drug Safety;
3. A copy of a notice of the review result of technical documents and records regarding the review of such documents shall be retained for 5 years from the date of notification of the technical document review’s results;
4. Other matters determined and publicly notified by the Minister of Food and Drug Safety regarding the preparation, issuance, etc. of a notice of the review result of technical documents shall be observed.

[Newly Inserted on May 1, 2017]

Article 16 (Application for Conditional Approval) (1) A person who intends to obtain conditional manufacturing business approval under Article 7 (1) of the Act shall submit an application in Form 1 to the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of a manufacturing site, along with the following documents. In such cases, the Commissioner of the Regional Office of Food and Drug Safety shall verify a corporation registration certificate (limited to a corporation), a certified copy of the land register, and a certified copy of the building register through administrative data matching under Article 36 (1) of the Electronic Government Act: <Amended on Jan. 21, 2022>

1. When manufacturing facilities are installed in newly constructed buildings, documents verifying the ownership of land (when the ownership can be verified with a certified copy of the land register, such verification shall be in lieu of the supporting documents) or a copy of a lease contract;
 2. When manufacturing facilities are installed in existing buildings, documents verifying the ownership of such buildings (when the ownership can be verified with a certified copy of the building register, such verification shall be in lieu of the supporting documents) or a copy of a lease contract;
 3. The documents listed in the subparagraphs of Article 3 (1).
- (2) A person who intends to obtain conditional manufacturing approval under Article 7 (1) of the

Act shall submit an application in Form 3 (including an application in electronic form) to the Minister of Food and Drug Safety, along with the documents listed in Article 5 (1) 2 (including electronic documents). [<Amended on Aug. 7, 2024>](#)

- (3) A person who intends to obtain conditional manufacturing certification under Article 7 (1) of the Act shall submit an application in Form 5 (including an application in electronic form) to the head of the NIDS, along with the documents listed in Article 5 (1) 2 (including electronic documents). [<Amended on Jun. 14, 2018; Aug. 7, 2024>](#)
- (4) A person who intends to file a conditional manufacturing notification under Article 7 (1) of the Act shall submit a notification in Form 7 (including a notification in electronic form) to the head of the NIDS. [<Amended on Jun. 14, 2018; Aug. 7, 2024>](#)
- (5) Upon granting conditional manufacturing business approval, conditional manufacturing approval, or conditional manufacturing certification or upon receipt of a conditional manufacturing notification, the Minister of Food and Drug Safety, the Commissioner of the Regional Office of Food and Drug Safety, or the head of the NIDS shall state the matters prescribed in Articles 3 (3), 5 (2), 6 (2), or 7 (2) and the conditions of approval, certification, or notification in the manufacturing business approval register, manufacturing approval register, manufacturing certification register, or manufacturing notification register; and shall issue a conditional license for manufacturing businesses in Form 13, a conditional license for manufacturing in Form 14, a conditional certificate of manufacturing in Form 15, or a conditional notification of manufacturing in Form 15-2. [<Amended on Jun. 14, 2018; Aug. 7, 2024>](#)

Article 17 (Notification and Verification of Compliance with Conditions) (1) When a person who has obtained conditional approval or certification or filed a conditional notification under Article 16 complies with the conditions of approval, certification, or notification, he or she shall submit documents evidencing such compliance to the Minister of Food and Drug Safety, Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of the manufacturing site, or head of the NIDS. [<Amended on Jun. 14, 2018>](#)

- (2) Upon receipt of the documents prescribed in Paragraph (1), the Minister of Food and Drug Safety, Commissioner of the Regional Office of Food and Drug Safety, or head of the NIDS shall verify whether the relevant conditions are complied with within 20 days from the date of submission of such documents; issue a manufacturing business license under Article 3 (3), a manufacturing license under Article 5 (2), a manufacturing certificate under Article 6 (2), or a manufacturing notification under Article 7 (2) instead of a conditional license for manufacturing business, a conditional license for manufacturing, a conditional certificate of manufacturing, or a conditional notification of manufacturing under Article 16 (5), respectively; and enter the date of compliance with the conditions in the notification register. [<Amended on Jun. 14, 2018>](#)

Article 18 (Medical Devices Exempt from Post-Marketing Surveillance) (1) When the Minister of Food and Drug Safety intends to require the applicant for manufacturing approval under Article 8 (1) of the Act to conduct surveillance on the safety and effectiveness of the relevant medical device (hereinafter “post-marketing surveillance”), he or she shall state the period of the post-marketing

surveillance on the manufacturing approval. <Amended on Jan. 21, 2022>

- (2) The Minister of Food and Drug Safety may exempt post-marketing surveillance of any of the following medical devices following the proviso of Article 8 (1), with the exception of its subparagraphs, of the Act, after deliberation by the Medical Devices Committee under Article 5 (1) (hereinafter the “Medical Devices Committee”): <Amended on Jan. 21, 2022>
1. Newly developed Class I and Class II medical devices;
 2. Newly developed medical devices that received approval, etc. in foreign countries of which the level of safety management is deemed by the Minister of Food and Drug Safety to be equal or higher than the safety management in the Republic of Korea and have been used in foreign countries following the standards publicly notified by the Minister of Food and Drug Safety;
- (3) Deleted. <Jan. 21, 2022>
- (4) Deleted. <Jan. 21, 2022>
- (5) Deleted. <Jan. 21, 2022>

[Title Amended on Jan. 21, 2022]

Article 18-2 (Approval of Post-Marketing Surveillance Protocol) (1) A person who intends to obtain approval for a post-marketing surveillance protocol following the former part of Article 8 (3) of the Act shall submit to the Minister of Food and Drug Safety, at least 30 days before the market launch of the medical device, an application for the approval of a medical device post-marketing surveillance protocol in Form 16, along with the post-marketing surveillance protocol which includes the purpose, period, method, and number of the subjects of the post-marketing surveillance and data on the institution that plans to conduct such surveillance.

- (2) A person who intends to obtain approval for the change of post-marketing surveillance following the latter part of Article 8
- (3) of the Act shall submit to the Minister of Food and Drug Safety an application for the approval of change of a medical device post-marketing surveillance protocol in Form 16, along with the following documents:
- (a) An amendment of the post-marketing surveillance protocol;
 - (b) Documents verifying changes.
- (3) When the Minister of Food and Drug Safety receives an application for the approval or change of a post-marketing surveillance protocol under Paragraph (1) or (2), he or she shall determine whether to issue the approval within 6 months from the date of application and shall notify the applicant of his or her decision.
- (4) When the Minister of Food and Drug Safety approves a post-marketing surveillance protocol under Paragraph (3), he or she shall issue the applicant with a medical device post-marketing surveillance approval certificate in Form 16-2 and include the changes in the changes and disposition, etc. section of the certificate.
- (5) Except as provided in Paragraphs (1) through (4), details regarding the guidelines for preparing

documents required for the application for the approval or amendment of a post-marketing surveillance protocol, etc. shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly Inserted on Jan. 21, 2022]

Article 18-3 (Methods and Procedures for Periodic Reports of Post-Marketing Surveillance)

(1) A person who intends to report the data collected during post-marketing surveillance, the status of the execution of the surveillance, etc. following Article 8 (4) of the Act shall submit to the Minister of Food and Drug Safety a periodic report on medical device post-marketing surveillance in Form 16-3 within the period prescribed in Paragraph (2), along with the following documents:

1. Primary data, including a record of observations on the subject of the post-marketing surveillance;
 2. Data regarding the result of analysis and assessment on the post-marketing surveillance;
 3. Data regarding the side effects of the medical device subject to post-marketing surveillance.
- (2) The report under Paragraph (1) shall be submitted every 6 months in the first year and every year from the second year, and the deadline for the report shall be 2 months from the end of the period covered by each report.
- (3) Notwithstanding Paragraph (2), the document submitted with the application for review under Article 8-2 (1) of the Act may be in lieu of the last report of the post-marketing surveillance period.
- (4) Details regarding the guidelines, etc. for preparing documents to be submitted with the report under Paragraphs (1) and (3) shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly Inserted on Jan. 21, 2022]

Article 18-4 (Submission of Post-Marketing Surveillance Results) (1) The “Data prescribed by Ordinance of the Prime Minister” in Article 8-2 (1) of the Act refers to data on the status of domestic and foreign sales and approval in foreign countries.

(2) A person who requests for review following Article 8-2 (1) of the Act shall submit an application for the review of post-marketing surveillance results in Form 16-4 to the Minister of Food and Drug Safety, along with the following documents:

1. Investigation data on the usage performance according to the post-marketing surveillance results regarding the safety and effectiveness of the medical device after its domestic market launch;
2. Data from the Republic of Korea and foreign countries on the side effects and safety of medical devices subject to post-marketing surveillance, which includes cases of the side effects of such devices;
3. Data on domestic and foreign sales and approval in foreign countries.

- (3) The Minister of Food and Drug Safety shall notify the applicant the result of the review conducted after deliberation by the Medical Devices Committee within 6 months from the date of application in the form of notification in Form 17, following Paragraph (2).
- (4) Details regarding the guidelines, etc. for preparing documents to be submitted with the report under Paragraph (2) shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly inserted on Jan. 21, 2022]

Article 18-5 (Measures Including Recall and Destruction after the Post-Marketing Surveillance Results) (1) When the Minister of Food and Drug Safety intends to order necessary measures, including sales suspension, recall, destruction, etc. following Article 8-2 (2) of the Act, he or she shall notify the manufacturer of the medical device subject to post-marketing surveillance of the following matters:

1. The name of the medical device;
 2. The content of and reason for the measure.
- (2) Upon receipt of the notification under Paragraph (1), the manufacturer of the medical device subject to post-marketing surveillance shall implement the relevant measure within 30 days from the date of the notification and notify the result of the implementation to the Minister of Food and Drug Safety.

[Newly inserted on Jan. 21, 2022]

Article 19 (Methods and Procedures for Re-evaluation) (1) When the Minister of Food and Drug Safety intends to re-evaluate medical devices following Article 9 of the Act, he or she shall determine items subject to re-evaluation after deliberation by the Medical Devices Committee and publicly announce the following matters on the website of the Ministry of Food and Drug Safety:

1. Items subject to re-evaluation;
 2. The period for applying for re-evaluation;
 3. The details of the data required for re-evaluation.
- (2) A manufacturer of medical devices falling under the items subject to re-evaluation shall submit an application for re-evaluation of medical devices in Form 18 (including an application in electronic form) to the Minister of Food and Drug Safety during the application period for re-evaluation under Paragraph (1) 2, along with the data mentioned in Paragraph (1) 3 (including data in electronic form).
- (3) Upon receipt of an application for re-evaluation under Paragraph (2), the Minister of Food and Drug Safety shall re-evaluate the relevant items, allow the perusal of the draft results of re-evaluation for at least 1 month so as to provide an opportunity for the manufacturer of the relevant items subject to re-evaluation to respond to such results, and publicly announce the results of re-evaluation on the website of the Ministry of Food and Drug Safety.

- (4) Details regarding the guidelines for preparing the data to be submitted, the requirements for each data and the scope of exemption, the scope of re-evaluation, and the standards for conducting re-evaluation, etc. under Paragraphs (2) and (3) shall be determined and publicly notified by the Minister of Food and Drug Safety.

Article 20 (Approval of Clinical Investigation Plan) (1) A person who intends to obtain approval for a clinical investigation plan following Article 10 (1) of the Act or a person who intends to modify the approved clinical investigation plan shall submit to the Minister of Food and Drug Safety an application for the approval of a clinical investigation plan in Form 19 (including an application in electronic form) or an application for the approval of the change of a clinical investigation plan in Form 20 (including an application in electronic form) and a written approval for a clinical investigation plan, respectively, along with the following documents (including electronic documents) and data (including data in electronic form): Provided, That when the person applies for the approval of change of the clinical investigation plan, he or she need not submit the data mentioned in Subparagraphs 2 and 3, as determined and publicly notified by the Minister of Food and Drug Safety: <Amended on Oct. 22, 2019, May 1, 2020>

1. A clinical investigation plan or a clinical investigation plan amendment;
 2. Data evidencing that medical devices subject to clinical investigations are manufactured in compliance with the standards for facilities and manufacturing and quality management systems under Annex 2;
 3. The data mentioned in Subparagraphs 2 through 5 of Article 9 (2).
- (2) A clinical investigation plan under Paragraph 1 (1) shall include the following matters: <Amend on Jan. 16, 2024; Aug. 7, 2024>
1. The title of clinical investigation;
 2. Name and location of the clinical investigation site [provided that, if there is any institution other than a clinical investigation site that conducts the clinical investigation pursuant to the proviso of Article 10(4)1 of the Act (hereinafter referred to as the ‘participating institution’), the reasons therefor, the name and location of such institution, and the matters concerning the management and supervision of the institution shall be included];
 3. The names and positions of clinical investigation principal investigators, subinvestigators, and joint researchers;
 4. The name and position of the person who manages medical devices for clinical investigation;
 5. The name and address of the person who intends to conduct a clinical investigation;
 6. The objectives and background of clinical investigation;
 7. The outlines of the medical devices subject to a clinical investigation (including the intended uses, target diseases, or indications);
 8. The inclusion and exclusion criteria for the persons who participate in the clinical investigation (hereinafter “subjects”), number of subjects, and justification therefor;
 9. The periods for clinical investigation;

10. The methods for clinical investigations (including intended use, methods for use, shelf life, combination therapy, etc.);
 11. Items for observation, items for clinical tests, and methods for observational tests;
 12. Expected side effects and precautions for use;
 13. The standards for suspension and elimination;
 14. The standards and methods of evaluating effectiveness and the methods for interpreting effectiveness (based on the methods for statistical analysis);
 15. The standards and methods for evaluating the safety, including side effects, and the reporting methods;
 16. The informed consent form;
 17. The agreement on compensation for victims;
 18. Matters regarding the treatment of the subjects after conducting a clinical investigation;
 19. Measures to protect the safety of subjects;
 20. Other matters necessary to conduct a clinical investigation safely and scientifically.
- (3) Notwithstanding paragraph (1), where a person who has undergone a preliminary review for manufacturing authorization or notification pursuant to Article 11 of the Act submits a notice of preliminary review results pursuant to Article 25(3), such person may omit the submission of the data under each subparagraph of paragraph (1) that pertain to the matters deemed compliant as a result of the preliminary review. [<Newly Inserted on Jan. 16, 2024>](#)
- (4) Any of the following cases of following subparagraph shall be excluded from the requirement for approval by the Minister of Food and Drug Safety pursuant to the proviso of Article 10(1) of the Act. [<Amended on Jan. 16, 2024; Aug. 7, 2024>](#)
1. Clinical investigations that fall under any of the following items and that use medical devices already placed on the market
 - (a) A investigation for observing clinical effects and investigating adverse events regarding the approved matters of medical devices on the market;
 - (b) A investigation for collecting data about safety and effectiveness regarding the approved performance and intended uses, etc. of medical devices on the market;
 - (c) Any other investigations using medical devices on the market which are determined by the Minister of Food and Drug Safety as there is no direct correlation with safety or it is not likely to cause ethical problems.
 2. Any clinical investigation that falls under one of the following subparagraphs and is considered to pose minimal risk of harm to clinical investigation subjects:
 - (a) A clinical investigation conducted in accordance with the clinical investigation methods prescribed in the standard specifications pursuant to Article 19 of the Act;
 - (b) A clinical investigation of a medical device that measures and displays biosignals, etc. in vitro or on the body surface;
 - (c) A clinical investigation independently conducted by an investigator without a

sponsor, which the Minister of Food and Drug Safety deems to pose minimal risk of harm to the subjects.

- (5) When an application for approval of a clinical investigation plan submitted under Paragraph (1) is deemed appropriate following the review thereof, the Minister of Food and Drug Safety shall issue a written approval of a clinical investigation plan in Form 21 to the applicant, and when the Minister approves the amendment of the clinical investigation plan, he or she shall state the changed matters in the columns for amendment and disposition in the written approval. <Amended on Jan. 16, 2024>
- (6) Details regarding the guidelines for preparing the data to be submitted with the application for the approval of a clinical investigation plan or approval of amendment thereof, the scope of data to be exempt, the requirements, standards, and procedures for approval, etc. under Paragraphs (1) through (5) shall be determined and publicly notified by the Minister of Food and Drug Safety. <Amended on Jan. 16, 2024>

Article 21 (Standards and Procedures for Designating Clinical Investigation Sites) (1) A clinical investigation site under Article 10 (3) of the Act (hereinafter “clinical investigation site”) shall be any of the following medical institutions: <Amended on Apr. 13, 2020>

1. A general hospital under Article 3 (2) 3 (e) of the Medical Service Act;
 2. A training hospital, training dental clinic, or oriental medical hospital under the Regulations on the Training and Recognition, etc. of Qualifications of Medical Specialists, the Regulations on the Training and Recognition, etc. of Qualifications of Dentists, or the Regulations on the Training and Recognition, etc. of Qualifications of Oriental Medical Doctors;
 3. A specialized hospital designated following Article 3-5 of the Medical Service Act;
 4. A hospital with personnel, facilities, etc. meeting the standards for the designation of a training hospital or training dental clinic for a single specialization under Article 4 (2) 1 (a) of the Enforcement Decree of the Act on the Improvement of Training Conditions and Status of Medical Residents, or Article 7 (2) 2 of the Regulations on the Training and Recognition, etc. of Qualifications of Dentists;
 5. A clinical investigation center in a high-tech medical complex designated following the Special Act on the Designation and Support of High-Tech Medical Complexes.
- (2) A person who intends to apply for the designation of a clinical investigation site shall submit an application for the designation as a clinical investigation site for medical devices in Form 22 (including an application in electronic form) to the Minister of Food and Drug Safety along with the following documents (including electronic documents):
1. Deleted. <Dec. 31, 2018>
 2. Regulations on administrative procedures, etc. necessary for clinical investigations;
 3. Regulations on the operation of an institutional review board for clinical investigations under Subparagraph 6 of Annex 3 and documents regarding the organization thereof (if the review has been entrusted to an outside designated institutional review board under item (e) of that subparagraph, a contract for the entrustment shall be attached thereto);

4. Regulations on entrusted review, when the person intends to operate a designated institutional review board following Subparagraph 6 (e) of Annex 3 to be entrusted with review of clinical investigations conducted by another clinical investigation site;
 5. Documents evidencing that the person falls under any of the subparagraphs of Paragraph (1).
- (3) Upon receipt of an application under Paragraph (2), the public official in charge shall verify a corporation registration certificate (limited to a corporation) and a license for opening a medical institution through administrative data matching under Article 36 (1) of the Electronic Government Act: Provided, That when an applicant does not consent to the verification of the license for opening a medical institution, the public official shall ensure that such applicant attaches a copy thereof. [<Amended on Dec. 31, 2018>](#)
- (4) Upon receipt of an application under Paragraph (2), the Minister of Food and Drug Safety may conduct a fact-finding survey to evaluate whether the details of such application meet the standards for designation.
- (5) When the Minister of Food and Drug Safety designates a clinical investigation site, he or she shall issue a certificate of designation as a clinical investigation site for medical devices in Form 23 to the applicant.
- (6) When a clinical investigation site intends to modify designated matters, it shall submit an application for change of the designation as a clinical investigation site for medical devices in Form 24 to the Minister of Food and Drug Safety within 30 days from the date reasons for such change occur, along with a certificate of designation as a clinical investigation site for medical devices and documents verifying changed matters. Provided, however, that if the reason for the change is a change of the head of the medical institution or the founder, or a change in location due to administrative district reorganization, only documents verifying the changes may be submitted. [<Amended on Jul. 8, 2024>](#)
- (7) When the Minister of Food and Drug Safety modifies the designation of a clinical investigation site, he or she shall state the changed matters in a certificate of designation as a clinical investigation site for medical devices.
- (8) When the Minister of Food and Drug Safety designates a clinical investigation site or modifies designation thereof following Paragraph (5) or (7), he or she shall publicly announce the name, location, representative, etc. of the clinical investigation site on the website, etc.
- (9) Details necessary for the designation, operation, management, etc. of a clinical investigation site shall be determined and publicly notified by the Minister of Food and Drug Safety.

Article 21-2 (Clinical Investigations Conducted at Institutions Other Than Clinical Investigation Sites) A clinical investigation for which participation of an institution other than a clinical investigation site is required due to the nature of the clinical investigation pursuant to the proviso to Article 10 (4) 1 of the Act means any clinical investigation falling under one of the following subparagraphs:

1. A clinical investigation of a medical device that is fixedly installed in a building or facility and cannot be moved;

2. A clinical investigation in which subjects may be recruited only from institutions falling under one of the following items:
 - (a) Infectious disease control institutions designated pursuant to Article 36 (1) and (2) of the Infectious Disease Control and Prevention Act;
 - (b) Medical institutions, isolation facilities, sanatoria, or clinics designated, established, or operated as infectious disease control institutions pursuant to the subparagraphs of Article 37 (1) of the Infectious Disease Control and Prevention Act.

[Newly Inserted on August 7, 2024]

Article 22 (Collective Facilities) A “Collective facility prescribed by Ordinance of the Prime Minister, such as a social welfare facility” in the text of Article 10 (4) 2 of the Act refers to any of the following facilities: *<Amended on Jun. 12, 2019>*

1. Child welfare facilities under Article 52 (1) 1, 2, 3, and 5 of the Child Welfare Act;
2. Residential homes for persons with disabilities under Article 58 (1) 1 of the Act on Welfare of Persons with Disabilities;
3. Mental health improvement facilities under Subparagraph 4 of Article 3 of the Act on the Improvement of Mental Health and the Support for Welfare Services for Mental Patients (limited to those with protection rooms, in cases of mental medical institutions);
4. Residential welfare institutions for senior citizens (excluding welfare houses for senior citizens) and medical and welfare institutions for senior citizens (excluding geriatric hospitals) established following Article 34 of the Social Welfare Services Act;
5. Welfare institutions for senior citizens under Article 32 (1) 1 and 2 of the Welfare of Senior Citizens Act and Article 34 (1) 1 and 2 of that Act;
6. Mother-and-child family welfare facilities (support for basic living and self-support living), father-and-child family welfare facilities (support for basic living and self-support living), unmarried mother-and-child family welfare facilities (support for basic living), and temporary support welfare facilities under Article 19 of the Single-Parent Family Support Act;
7. Support facilities for victims, etc. of commercial sex acts under Article 9 (1) 1 and 2 of the Act on the Prevention of Commercial Sex Acts and Protection, etc. of Victims;
8. Protection facilities for victims of sexual violence under Article 12 of the Sexual Violence Prevention and Victims Protection Act;
9. Shelters for victims of domestic violence under Article 7 of the Act on the Prevention of Domestic Violence and Protection, etc. of Victims;
10. Facilities established by a person who obtains approval for a rehabilitation service following Article 67 of the Act on Probation, etc. (limited to those with committal facilities);

11. Correctional facilities under the Administration and Treatment of Correctional Institution Inmates Act and the Act on the Execution of Criminal Penalties in the Armed Forces and the Treatment of the Military Inmates;
12. Juvenile reformatories and Juvenile Classification Review Boards under the Act on the Treatment of Protected Juveniles, etc.;
13. Detention facilities under Article 52 (2) of the Immigration Act.

Article 23 Deleted. <Jun. 15, 2016>

Article 24 (Standards for Conducting Clinical Investigations) (1) Pursuant to Article 10 (5) and (7) of the Act, clinical investigations shall be conducted according to the following standards and the Good Clinical Practice for Medical Devices specified in Annex 3: <Amended Jan. 16, 2024; Aug. 7, 2024>

1. Clinical investigations shall be conducted safely and scientifically according to a clinical investigation plan;
2. Clinical investigations shall be conducted at a clinical investigation site designated by the Minister of Food and Drug Safety or at a clinical investigation participation institution pursuant to Article 20 (2) 2. Where the clinical investigation is conducted at a clinical investigation participation institution, the clinical investigation site shall supervise and oversee the institution.
3. Clinical investigation principal investigators shall be selected from among those with expertise, ethical discipline, and considerable experience in conducting clinical investigations of the relevant medical devices;
4. An explanation shall be provided to subjects of clinical investigations regarding clinical investigation details and the details of and procedures for compensation for potential harm that could affect the health of the subjects during the clinical investigations and other relevant matters, and informed consent (Including non-face-to-face consent provided through an electronic document bearing an electronic signature pursuant to the Electronic Signature Act; the same shall apply hereinafter in this Article.) thereto shall be obtained from the subjects: Provided, That when it is impracticable to obtain consent from a subject because of his or her lack of comprehension and communication ability or other reasons, consent shall be obtained from a person with parental authority, guardian, etc.;
5. Safety measures for subjects of clinical investigations shall be prepared;
6. Medical devices for clinical investigations shall not be used for purposes other than clinical investigations: Provided, that the same shall not apply to cases prescribed by the Minister of Food and Drug Safety, such as when the medical devices are used for patients with life-threatening and critical illnesses, including terminal cancer;
7. Clinical investigations shall commence within 2 years from the date the approval of a clinical investigation plan or approval of modification thereof was obtained;
8. Clinical investigation investigators shall be provided with clinical investigation data

books before conducting the clinical investigations, as determined by the Minister of Food and Drug Safety;

9. When new data, information, etc. on safety and effectiveness is obtained, clinical investigation investigators shall be informed thereof without delay and it shall be examined whether or not to reflect this new data, etc.;
 10. Medical devices for clinical investigations that are appropriately manufactured according to the standards for facilities and manufacturing and quality management systems under Annex 2 shall be used;
 11. When adverse events occur while using a medical device, a person who has obtained approval of a clinical investigation plan shall report them to the Minister of Food and Drug Safety according to the Good Clinical Practices for Medical Devices specified in Annex 3;
 12. In the case of a clinical investigation under Article 20 (4) 2 that has not been approved pursuant to the proviso to Article 10 (1) of the Act, the performance and safety of the product shall be verified, prior to conducting the clinical investigation, through the data specified in each item of Article 9 (2) 4;
 13. Other matters determined by the Minister of Food and Drug Safety for the proper conduct of a clinical investigation shall be observed.
- (2) Regarding the status of a clinical investigation, a person who has obtained approval for a clinical investigation plan shall submit a report on the status of clinical investigation execution in Form 25 (including a report in electronic form) to the Minister of Food and Drug Safety by the end of February each year, along with summarized data related to the safety evaluation of medical devices for clinical investigations under Subparagraph 8 (q) (i) of Annex 3; and when the clinical investigation is completed, he or she shall submit a report in Form 26 (including a report in electronic form) to the Minister of Food and Drug Safety within 20 days from the date of completion. [<Amended on Oct. 22, 2019>](#)
 - (3) A clinical investigation sponsor or the head of a clinical investigation site shall retain the clinical investigation plan and the records and data regarding the clinical investigation execution (including electronic documents) for the periods classified as follows:
 1. Data related to clinical investigations for manufacturing or import approval, or approval for modification thereof: 3 years from the approval date;
 2. Other data related to clinical investigations: 3 years from the date of the completion of clinical investigations.
 - (4) Notwithstanding the text of Paragraph (1) 4, in the case of a clinical investigation that uses data such as patients' medical records, where the personal information of the patients has been processed as pseudonymized information pursuant to Article 28-2 of the Personal Information Protection Act, the clinical investigation may be conducted without obtaining the subjects' consent, upon approval of the Institutional Review Board in accordance with Subparagraph 6 of Annex 3. In such cases, the processing of pseudonymized information shall be governed by the Personal Information Protection Act. [<Amended on Jan. 16, 2024>](#)
 - (5) Details regarding the standards, etc. for designating clinical investigation sites under Paragraph

(1) shall be determined and publicly notified by the Minister of Food and Drug Safety.

Article 24-2 (Designation of Institutions Conducting Non-Clinical Studies) (1) A person who intends to apply for the designation of an institution as an institution conducting non-clinical studies following Article 10-2 (1) of the Act shall satisfy the standards for the designation determined and publicly notified by the Minister of Food and Drug Safety, such as specialized personnel, facilities, and instruments necessary for each area of non-clinical study.

- (2) A person who intends to apply for the designation of an institution as an institution conducting non-clinical studies shall submit an application for designation as an institution conducting non-clinical studies of medical devices in Form 26-2 (including an application in electronic form) to the Minister of Food and Drug Safety, along with the following documents (including electronic documents):
1. Documents regarding the current status of the organization and personnel (for the current status of personnel, including documents evidencing qualifications and work experience);
 2. Documents regarding the current status of equipment, instruments, and facilities;
 3. Documents evidencing that non-clinical studies have been conducted as determined and publicly notified by the Minister of Food and Drug Safety to evidence that the person is capable of conducting non-clinical studies.
- (3) Upon receipt of an application under Paragraph (2), the Minister of Food and Drug Safety may conduct a fact-finding survey to evaluate whether the details of such application meet the standards for designation.
- (4) When the Minister of Food and Drug Safety designates an institution conducting non-clinical studies, he or she shall issue the applicant with a certificate of designation as an institution conducting non-clinical studies of medical devices in Form 26-3.
- (5) When an institution conducting non-clinical studies intends to modify any of the following matters, it shall submit an application for the modification of designated matters of an institution conducting non-clinical studies of medical devices in Form 26-4 (including an application in electronic form) to the Minister of Food and Drug Safety within 30 days from the date reasons for such modification occur, along with a certificate of designation as an institution conducting non-clinical studies of medical devices and documents verifying the changed matters (including electronic documents):
1. The representative and operating officers of the institution conducting non-clinical studies;
 2. The name and location of the institution conducting non-clinical studies;
 3. Areas of non-clinical studies.
- (6) When the Minister of Food and Drug Safety modifies designation of an institution conducting non-clinical studies, he or she shall state the changed matters in a certificate of designation as an institution conducting non-clinical studies of medical devices and issue such certificate.
- (7) When the Minister of Food and Drug Safety designates an institution conducting non-clinical studies or modifies such designation, he or she shall publicly announce the name, location, representative, etc. of the institution conducting non-clinical studies on the website, etc. of

the Ministry of Food and Drug Safety.

- (8) Details regarding the scope of documents to be submitted under Paragraph (2) shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly inserted on May 1, 2017]

Article 24-3 (Compliance for Institutions Conducting Non-Clinical Studies) “Matters prescribed by Ordinance of the Prime Minister” in Article 10-2 (3) of the Act refers to the following matters:

1. Preparing a non-clinical study protocol and conducting non-clinical studies according to such protocol;
2. Requiring a person unassociated with the relevant non-clinical study to conduct an inspection or audit in order to ensure the credibility of non-clinical studies;
3. Evidencing that a non-clinical study has been conducted in compliance with the Good Clinical Practice for Non-Clinical Studies determined and publicly notified by the Minister of Food and Drug Safety;
4. Retaining data and records related to non-clinical studies for the periods classified as follows:
 - (a) Studies for approval of medical devices or approval for modification thereof, or studies for certification of medical devices or certification of modification thereof: 5 years from the date of issuance of a non-clinical study report;
 - (b) Studies for other purposes: 3 years from the date of issuance of a non-clinical study report.

[Newly inserted on May 1, 2017]

Article 25 (Subject Matters of Preliminary Reviews) (1) Subject of a preliminary review under Article 11 (1) of the Act shall be as follows:

1. Matters regarding technical documents, etc. of newly developed medical devices or orphan medical devices under the subparagraphs of Article 8 (1) of the Act;
2. Medical devices or in vitro diagnostic medical devices for which submission of data related to clinical investigations or clinical performance studies pursuant to Article 9 (2) 6 or item (b) of subparagraph 5 of Article 9 (3) is required;
3. Medical devices designated as innovative medical devices pursuant to Article 21 of the Act on Promoting the Medical Device Industry and Supporting Innovative Medical Devices (excluding cases where such designation has been canceled);
4. Medical devices for clinical investigation or in vitro diagnostic medical devices for clinical performance studies pursuant to Article 7 of the Act on In Vitro Diagnostic Medical Devices;
5. Other medical devices or in vitro diagnostic medical devices that the Minister of Food and Drug Safety deems to require preliminary review.

- (2) The scope of preliminary review under Article 11 (1) of the Act shall be as follows: <Newly Inserted on Jan. 16, 2024>
1. Matters related to technical documentation, data on clinical investigations, and data on clinical performance studies falling under Article 9 (2) and (3);
 2. Matters related to clinical investigation plans and clinical performance study plans falling under Article 20 (1) 1 and 3, and Article 20 (2), and Article 13 (1) 1 and 3 and Article 13 (2) of the Enforcement Rule of the Act on In Vitro Diagnostic Medical Devices.
- (3) A person who intends to request a preliminary review following Article 11 of the Act shall submit an application for a preliminary review of medical devices in Form 27 (including an application in electronic form) to the Minister of Food and Drug Safety or the head of the NIDS according to the following classifications: <Amended on Jun. 14, 2018; Jan. 16, 2024>
1. A person who intends to obtain manufacturing approval for medical devices following Article 6 (2) of the Act or undergo a clinical investigation following Article 10 of the Act: The Minister of Food and Drug Safety;
 2. A person who intends to obtain manufacturing certification or to file a manufacturing notification: The head of the NIDS.
- (4) The Minister of Food and Drug Safety or the head of the NIDS shall inform the applicant of the results of a preliminary review as prepared in the notice of the results of a preliminary review of medical devices in Form 28. <Amended on Jun. 14, 2018; Jan. 16, 2024>
- (5) Except as provided in Paragraphs (1) through (3), the details necessary for the procedures, methods, etc. for preliminary reviews shall be determined and publicly notified by the Minister of Food and Drug Safety. <Amended on Jan. 16, 2024>

Article 26 (Application for Approval for Change of Approved Matters) (1) Following Article 12 (1) of the Act, when any change is made to matters for which manufacturing business approval is granted, a manufacturer shall submit an application for approval for change in Form 29 to the Commissioner of the Regional Office of Food and Drug Safety within 30 days from the date such change is made, along with the data classified as follows. <Amended on Jan. 21, 2022; Jan. 16, 2024; Apr. 1, 2025>

1. When the location of a manufacturing site is modified or another manufacturing site is added, a copy of a contract for entrustment (limited to when manufacturing processes or testing are entrusted) and data evidencing the compliance with the standards for facilities and manufacturing and quality management systems under Annex 2 [excluding the manufacturing sites of medical devices that are developed and manufactured merely in the form of software that has obtained approval or certification or for which notification is filed];
2. When the Quality Manager has been changed, the following documents regarding the newly appointed Quality Manager shall be submitted:
 - (a) Documents verifying the qualifications pursuant to Article 11 (2); provided, however, that submission may be exempted if the qualifications of the Quality Manager have already been verified through the UDI System.

- (b) Documents confirming current employment status, such as a Certificate of Employment.
- (2) Upon receipt of an application under Paragraph (1), the Commissioner of the Regional Office of Food and Drug Safety shall verify a corporation registration certificate (limited to a corporation) or business registration certificate through administrative data matching under Article 36 (1) of the Electronic Government Act. However, if the applicant does not consent to the verification of the business registration certificate, the applicant shall be required to submit the relevant document. <Amended on Apr. 1, 2025>
- (3) Pursuant to Article 12 (1) of the Act, when any change is made to matters regarding manufacturing approval or manufacturing certification granted or a manufacturing notification filed, a manufacturer shall submit an application for approval for change in Form 30 to the Minister of Food and Drug Safety and submit an application for certification of change in Form 31 or a notification in Form 7 to the head of the NIDS, respectively, along with the following documents: <Amended on Jun. 14, 2018; Jan. 21, 2022>
 - 1. Documents verifying changed matters (including electronic documents);
 - 2. Documents under Article 5 (1) 2, when change is made to any important matter that affects the safety or effectiveness of products, such as the design, materials, chemical components, energy sources, and manufacturing processes of medical devices;
 - 3. A copy of the contract for entrustment (limited to when manufacturing processes or testing are entrusted) and data evidencing the compliance with the standards for facilities and manufacturing and quality management systems under Annex 2, when the location of a manufacturing site of the relevant item is modified or another manufacturing site is added (excluding manufacturing sites of medical devices in the form of software).
- (4) When a person to whom the relevant manufacturing facilities, methods, etc. are transferred as a consequence of the division, merger, etc. of a company obtains approval for or certification of the change of the manufactured item or files a notification of change thereof following Paragraph (3), he or she shall submit the relevant application or notification to the Minister of Food and Drug Safety or the head of the NIDS, along with a transfer or acquisition contract regarding the manufacturing facilities, methods, etc. of the relevant item. In such cases, when approval for or certification of change of the relevant item is granted, conditions equivalent to those on the approval or certification for a transferor may be attached. <Amended on Jun. 14, 2018>
- (5) When matters modified following Paragraph (3) pertain to the external appearance, packaging materials, packaging units, etc. of a manufactured item and are minor matters determined and publicly notified by the Minister of Food and Drug Safety, documents stating the details of the change (including electronic documents) shall be submitted to the Minister of Food and Drug Safety or the head of the NIDS, notwithstanding that Paragraph. In such cases, approval for or certification of change or a notification of change under Article 12 of the Act shall be deemed obtained or filed. <Amended on Jun. 14, 2018>
- (6) In any of the following cases where any change is made to matters approved, certified, or notified, approval for or certification of change or a notification of the change under Article 12

of the Act shall be deemed obtained or filed: Provided, That in cases falling under Subparagraph 3, 4, or 6, the same shall apply only when any change is made after an order of change is issued by a certain time limit following Article 36 (2) of the Act: [<Amended on Jan. 21, 2022>](#)

1. Change of the standards for the classification and designation of classes under Article 3 of the Act;
 2. Change of technical documents or clinical investigation data under Article 6 (5) of the Act;
 3. Follow -up measures according to a review of post-marketing surveillance of newly-developed medical devices, etc. under Article 8-2 (2) of the Act;
 4. Re-evaluation under Article 9 of the Act;
 5. Change of standard specifications under Article 19 of the Act;
 6. Measures taken following a report on side effects under Article 31 of the Act.
- (7) When the Minister of Food and Drug Safety, the Commissioner of the Regional Office of Food and Drug Safety, or the head of the NIDS grants approval for or the certification of change or accepts a notification of change following Paragraphs (1) through (6), he or she shall enter the changed matters in the relevant register. [<Amended on Jun. 14, 2018>](#)
- (8) Details regarding the standards and procedures for the approval, certification, or notification of change, the requirements for, scope of exemption of, and management of data, and other matters under Paragraphs (1) through (7) shall be determined and publicly notified by the Minister of Food and Drug Safety.

Article 27 (Compliance for Manufacturers) (1) Matters to be observed by Compliance obligations for medical device manufacturers following Article 13 (1) of the Act shall be as follows: [<Amended on Dec. 4, 2020, Jan. 21, 2022>](#)

1. Manufacturers shall manage the facilities of sites in a sanitary manner so as to not cause any harm to health and hygiene, and shall prevent cross-contamination or contamination, etc. from the outside;
2. Manufacturers shall not place objects likely to cause harm in working places, and shall prevent substances hazardous to public health from being discharged or released from working places;
3. Manufacturers shall prepare and keep documents about warehousing and release of raw materials and finished products, manufacturing processes, and quality management (including testing standards and methods, etc.) and shall thoroughly conduct manufacturing and quality inspections based on such documents;
4. Manufacturers shall prepare and keep the records of manufacturing and quality inspections under Subparagraph 3 by manufacturing unit and the records of handling customers' complaints, and shall retain such records for 5 years from the date of manufacturing (referring to a period corresponding to the product life cycle, where such life cycle exceeds 5 years);
5. When the safety and effectiveness of released medical devices are undermined or the

- quality thereof is poor, manufacturers shall take corrective measures, such as recall, without delay;
6. Manufacturers shall release sterile products after verifying that they have been packaged and sterilized in new containers;
 7. Manufacturers shall release electronic or mechanical products after ensuring their electronic, mechanical, and electromagnetic safety;
 8. Manufacturers shall release products to come in direct or indirect contact with the human body after ensuring their biological safety;
 9. When manufacturers become aware of new data or information on the safety and effectiveness of approved, certified, or notified medical devices (including cases of side effects following the use of the devices), they shall report it and take necessary safety measures as determined by the Minister of Food and Drug Safety;
 10. Manufacturers shall maintain the standards for facilities and manufacturing and quality management systems under Annex 2;
 11. Manufacturers shall distribute medical devices manufactured in compliance with the standards under Subparagraph 2 of Annex 2. In such cases, medical devices manufactured for the purpose of the recognition of compliance following Subparagraph 2 (f) of Annex 2 and recognized as compliant following that item shall be deemed manufactured after being recognized as compliant following that item;
 12. Manufacturers shall conduct manufacturing and quality management or production management by applying the latest standard specifications determined by the Minister of Food and Drug Safety following Article 19 of the Act;
 13. Manufacturers shall thoroughly inspect the hygiene of employees and provide them with the education and training necessary for the production of medical devices with excellent quality;
 14. Manufacturers shall thoroughly conduct the affairs of post-marketing safety management, such as post-marketing surveillance, re-evaluation, management of medical devices subject to tracking management, and management of information regarding safety (including the management of reports on side effects);
 15. When manufacturers purchase medical devices manufactured by their company from medical institutions, they shall observe the following:
 - (a) They shall inspect whether such medical devices are in compliance with the standards for manufacturing and quality management systems for medical devices under Subparagraph 2 of Annex 2 and release them with certificates of inspection attached thereto only if they comply with such standards;
 - (b) They shall prepare and keep the records of the content and results of inspections under item (a), the dates of issued certificates of inspection, etc., and shall retain such records for 2 years from the relevant date of release.
 16. When manufacturers are requested to conduct inspections by medical device distributors or lessors following Subparagraph 1 (a) of Article 39, they shall observe the following:

- (a) They shall inspect whether medical devices are in compliance with the standards for manufacturing and quality management systems for medical devices under Subparagraph 2 of Annex 2 and issue certificates of inspection only if they comply with such standards;
 - (b) They shall observe the matters determined and publicly notified by the Minister of Food and Drug Safety regarding the procedures and methods for issuing certificates of inspection, the period of reply, instructions about distribution or lease, etc.
- (2) Manufacturers shall report the following matters to the Minister of Health and Welfare and the Minister of Food and Drug Safety following Article 13 (2) of the Act as determined and publicly notified by the Minister of Food and Drug Safety: [<Amended on Apr. 13, 2020>](#)
- 1. Results of producing and exporting medical devices for the pertinent year;
 - 2. Reasons for and the amount and schedule of suspension of medical devices (limited to cases involving the suspension of the production of medical devices that have grave effects on public health where such devices is are publicly notified by the Minister of Food and Drug Safety after consultation with the Minister of Health and Welfare).

Article 28 (Notification of Business Closure) (1) When a manufacturer intends to file a notification of business closure or business suspension following Article 14 of the Act, they shall submit a notification in Form 32 (including a notification in electronic form) to the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of a manufacturing site, along with the following documents; and when a person who has suspended his or her business intends to file a notification of business resumption, he or she shall submit a notification in Form 32 (including a notification in electronic form) to the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of the manufacturing site: [<Amended on Apr. 13, 2020>](#)

- 1. In case of business closure: A manufacturing business license and all the manufacturing licenses and certificates: Provided, That when the relevant licenses or certificates are lost, a written reason for the loss shall be submitted;
 - 2. In case of business suspension: A manufacturing business license
- (2) When a manufacturer intends to file a notification of business closure or business suspension following Article 14 of the Act along with a notification of business closure or business suspension following Article 8 (7) of the Value-Added Tax Act, he or she shall submit to the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of a manufacturing site a notification in Form 32 (including a notification in electronic form), along with the documents under the classifications of each subparagraph of Paragraph (1) and a notification of business suspension and business closure in Form 9 of the Enforcement Rule of the Value-Added Tax Act. In such cases, the Commissioner of the Regional Office of Food and Drug Safety shall forward (including via an information and communications network; hereinafter, in this Article, the same shall apply) to the head of a tax office having jurisdiction over the location of a manufacturing site a notification of business suspension and business closure in Form 9 of the Enforcement Rule of the Value-Added Tax Act. [<Newly inserted on Apr. 13, 2020>](#)

- (3) Upon receipt of a notification of business closure under Paragraphs (1) and (2), the Commissioner of the Regional Office of Food and Drug Safety shall enter such details in the manufacturing business approval register; and upon receipt of a notification of business suspension or resumption, they shall enter such details in the manufacturing business approval register and a manufacturing business license, respectively. <Amended on Apr. 13, 2020>
- (4) When the head of a tax office having jurisdiction over the location of a manufacturing site receives a notification of business closure or business suspension and forwards it to the head of the competent regional office of Food and Drug Safety following Article 13 of the Enforcement Decree of the Value-Added Tax Act, a notification of business closure or business suspension under Paragraph (1) shall be deemed submitted. <Amended on Apr. 13, 2020>

Article 29 (Application for Import Business Approval) (1) A person who intends to obtain import business approval for medical devices following Article 15 (1) of the Act shall submit the application in Form 1 (including an application in electronic form) to the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of an import business, along with the documents referred to in the subparagraphs of Article 3 (1) (including electronic documents).

- (2) Upon receipt of an application under Paragraph (1), the Commissioner of the Regional Office of Food and Drug Safety shall verify a corporation registration certificate (limited to a corporation) through administrative data matching under Article 36 (1) of the Electronic Government Act.

Article 30 (Application for Importing Approval) (1) A person who intends to obtain import approval for medical devices following Article 15 (2) of the Act shall submit an application in Form 3 (including an application in electronic form) to the Minister of Food and Drug Safety, along with the following documents (including electronic documents):

1. Documents referred to in Article 5 (1) 2: Provided, That such documents may be omitted when it is evidenced that medical devices to be imported are the same products with the same origin of manufacture (referring to the same country of manufacture, manufacturing company, and manufacturing site), as medical devices already approved, as determined by the Minister of Food and Drug Safety;
 2. Documents evidencing that a manufacturing site of medical devices to be imported has the Good Manufacturing Practices under Article 15 (4) of the Act.
- (2) A person who intends to obtain importing certification for medical devices following Article 15 (2) of the Act shall submit an application in Form 5 (including an application in electronic form) to the head of the NIDS, along with the documents referred to in the subparagraphs of Paragraph (1) (including electronic documents). In such cases, “approved” in the proviso of Paragraph (1) 1 shall be deemed “certified.” <Amended on Jun. 14, 2018>
 - (3) A person who intends to file an importing notification for medical devices following Article 15 (2) of the Act shall submit a notification in Form 7 (including a notification in electronic form) to the head of the NIDS. <Amended on Jun. 14, 2018>

Article 31 (Standards for Facilities and Manufacturing and Quality Management Systems for Quality Inspections) (1) A person who intends to obtain import business approval or who intends to obtain import approval or importing certification or file an importing notification following the main text of Article 15 (4) of the Act shall prepare the standards for the facilities and manufacturing and quality management systems as specified in Annex 4.

(2) “Cases prescribed by Ordinance of the Prime Minister, such as entrusting quality management testing” in the proviso of Article 15 (4) of the Act refers to when a person who intends to obtain import business approval, or who intends to obtain import approval or importing certification or file an importing notification entrusts quality management testing to any of the following persons. In such cases, such person need not be equipped with laboratories or testing facilities under Subparagraph 1 (c) of Annex 4: [<Amended on May 1, 2017>](#)

1. A medical device testing and inspection institution; 1-2. An institution conducting non-clinical studies;
2. A manufacturer whose compliance has been recognized following Subparagraph 2 (f) of Annex 2.

Article 32 (Exemption from Approval for Medical Device Import Businesses) (1) Medical devices that may be imported without obtaining import business approval, import approval, or importing certification or without filing an importing notification following Article 6 (10) of the Act applied *mutatis mutandis* according to Article 15 (6) of the Act shall be as follows. [<Amended on Jun. 15, 2016; Jun. 14, 2018; Dec. 31, 2018; Jan. 16, 2024>](#)

1. A medical device subject to clinical investigations for which approval of a clinical investigation plan is granted under the text of Article 10 (1) of the Act;
2. A separate medical device required for clinical investigations for which approval of a clinical investigation plan need not be granted under the proviso of Article 10 (1) of the Act;
3. A separate medical device required for clinical trials regarding pharmaceuticals, etc. for which approval of a clinical trial protocol shall be granted under Article 34 (1) of the Pharmaceutical Affairs Act;
- 3-2. Medical devices separately required for conducting clinical trials of pharmaceuticals, etc. for which approval of the clinical trial protocol is not required pursuant to Article 34 (2) of the Pharmaceutical Affairs Act.
4. A medical device imported to obtain import approval or certification of medical devices or to file an importing notification thereof;
5. A medical device used for the purpose of research, such as product development;
- 5-2. A medical device not for distribution, which is imported to help consumers purchase a product, such as checking the actual appearance of the product;
- 5-3. A medical device imported to conduct testing and inspections under Article 27 of the Act;
6. A medical device determined and publicly notified by the Minister of Food and Drug

Safety, such as a medical device for self-use or for relief operations, etc.;

7. Deleted. <Dec. 31, 2018>

8. A medical device determined and publicly notified by the Minister of Food and Drug Safety which is used in clinical laboratories and deemed suitable by the Minister based on the evaluations of quality management systems, inspection performance and competence, etc.

(2) Matters regarding the import procedures, subject matters, issuance of a certificate, etc. of medical devices excluded from those subject to import business approval and import approval, certification, or notification following Paragraph (1) shall be determined and publicly notified by the Minister of Food and Drug Safety.

Article 33 (Compliance for Importers) (1) Compliance obligations for a medical device importer under Article 13 (1) of the Act applied *mutatis mutandis* according to Article 15 (6) of the Act shall be as follows: <Amended on Dec. 4, 2020; Jan. 21, 2022; Oct. 31, 2025>

1. The importer shall manage the facilities of an import business in a sanitary manner so as to not cause any harm to health or hygiene and shall prevent cross-contamination or contamination, etc. from the outside;
2. The importer shall prepare and keep documents regarding the warehousing, release, and quality management of medical devices (including testing standards and methods, labeling, packaging, etc.) and management records on storage and shipment of accessories, and shall thoroughly conduct import and quality inspections based on such documents and records;
3. The importer shall prepare and keep the records of import and quality inspections under Subparagraph 2 by import unit and the records of handling customers' complaints, and shall retain such records for 5 years from the date of import (referring to a period corresponding to the product life cycle, where the product life cycle exceeds 5 years);
4. The importer shall release products only after verifying that the products have been sterilized;
5. The importer shall release electronic or mechanical products after ensuring their electronic, mechanical, and electromagnetic safety;
6. The importer shall release products to come in direct or indirect contact with the human body after ensuring their biological safety;
7. The importer shall prepare and keep product standards by item including the following matters:
 - (a) The name of a medical device (the product name, item name, and model name);
 - (b) The name of a manufacturing company of an imported medical device and the country of manufacture thereof;
 - (c) Self-quality-management-test specifications of the shapes, structures, and finished products;

- (d) Matters to be stated on the container, etc. of a medical device, as prescribed in Articles 20 through 23 of the Act;
 - (e) The method for and order of installation (limited to medical devices for which installation management is required);
 - (f) Matters regarding sterilization methods and standards, and assessment (limited to medical devices applied with sterile packaging);
 - (g) The presenter and presentation date of product standards (if revised, the reviser and date and cause of revision shall be stated);
8. The importer shall prepare and keep import management standards, including the following matters:
- (a) Matters regarding product management and testing and inspections;
 - (b) Matters regarding an assessment of the results of testing and inspections and the handling of rejected products;
 - (c) Matters regarding the management of testing and inspection facilities;
 - (d) Methods for contacting the manufacturer of an imported medical device;
 - (e) Matters regarding the conditions of manufacture and quality management by a manufacturer of an imported medical device;
 - (f) The presenter and presentation date of import management standards (if revised, the reviser and date and cause of revision shall be stated).
9. The importer shall check whether an imported medical device has proper and correct labeling and packaging and prepare the records thereon;
10. The importer shall inspect product storage facilities and prepare the records thereon;
11. The importer shall ensure that a quality manager implements the following matters;
- (a) When complaints against the quality of released medical devices are filed, the quality manager shall prepare and implement the relevant procedures to identify the causes thereof and take corrective measures and prepare and retain such records;
 - (b) The quality manager shall keep and use product standards and import management standards for proper quality management of imported medical devices;
 - (c) The quality manager shall prepare work instructions based on documents under item (b) and inspect and check whether they are properly operated in compliance with the standards;
12. The importer shall take corrective measures, such as recall, without delay when the safety and effectiveness of released medical devices are undermined or the quality thereof is poor;
13. The importer shall formulate education plans to enable his or her employees to ensure the quality of imported medical devices, hold regular education and training sessions based on the plans, and prepare and retain records thereon;
14. When the importer becomes aware of new data or information on the safety and

effectiveness of a medical device approved, certified, or notified (including cases of side effects related to the use of the medical device), he or she shall report it and prepare the necessary safety measures as determined by the Minister of Food and Drug Safety;

15. For a manufacturing site of imported medical devices, the importer shall import and distribute medical devices manufactured in compliance with the standards specified in Subparagraph 3 of Annex 4. In such cases, medical devices imported for the purpose of the recognition of compliance under Subparagraph 3 of Annex 4 and recognized as compliant under that subparagraph shall be deemed imported after being recognized as compliant under that subparagraph;
 16. The importer shall comply with the guidelines for export and import of medical devices publicly announced by the Minister of Trade, Industry and Energy under Article 12 of the Foreign Trade Act and regulations for management of imported medical devices determined by the Minister of Food and Drug Safety;
 17. The importer shall apply the latest standard specifications determined by the Minister of Food and Drug Safety following Article 19 of the Act to maintain facilities and manufacturing and quality management systems, to import medical devices, and to conduct quality management or import management;
 18. The importer shall thoroughly perform the affairs of post-marketing safety management, including post-marketing surveillance, re-evaluation, management of medical devices subject to tracking management, and management of safety information (including management of reports on side effects);
 19. When the importer imports secondhand medical devices or purchases medical devices imported by his or her company from a medical institution, he or she shall observe the following:
 - (a) He or she shall inspect whether the medical devices are in compliance with the test specifications referred to in Subparagraph 7 (c) and release them with certificates of inspection attached thereto only where they are in compliance with such specifications;
 - (b) He or she shall prepare and keep the records of the details and results of inspections under item (a), the date of issuing certificates of inspection, etc. and retain such records for 2 years from the date of release;
 20. Where the importer is requested to conduct an inspection by a medical device distributor or lessor under Subparagraph 1 of Article 39, he or she shall observe the following:
 - (a) He or she shall inspect whether the medical devices are in compliance with the standards specified in Subparagraph 2 of Annex 2 and issue certificates of inspection only where they are in compliance with such standards;
 - (b) He or she shall comply with the matters determined and publicly notified by the Minister of Food and Drug Safety regarding the procedures and methods for issuing certificates of inspection, period of reply, instructions on distribution or lease, etc.
- (2) An importer shall report to the Minister of Health and Welfare and the Minister of Food and Drug Safety the following matters as determined and publicly notified by the Minister of Food

and Drug Safety under Article 13 (2) of the Act applied *mutatis mutandis* according to Article 15 (6) of the Act: Provided, That such report on matters under Subparagraph 1 need not be filed when a standard customs clearance forecast report has been filed in an electronic trade document under the Electronic Trade Facilitation Act: [<Amended on Apr. 13, 2020>](#)

1. Results of importing medical devices for the pertinent year;
2. Reasons for and the amount and schedule of suspension of medical devices (limited to cases of suspension of the production of medical devices that have grave effects on public health where such devices are publicly notified by the Minister of Food and Drug Safety after consultation with the Minister of Health and Welfare).

Article 34 (Application *Mutatis Mutandis*) Articles 3 (3), Article 4, article 5 (2) through (7), Article 6 (2) and (3), Article 7 (2) and (3), Article 9, Article 11 through 13, Article 16 through 19, Article 25, Article 26 (excluding Article 26 (1) 1), Article 28, and Article 64 shall apply *mutatis mutandis* to importers and import items. In such cases, “manufacturing site” shall be construed as “import business facility,” “manufacturing” as “import,” “Paragraph (1)” in Article 5 (4) as “Article 30 (1),” “Article 27 (1)” in Article 12 (1) 9 as “Article 33 (1),” “import” in Article 12 (3) 2 as “manufacturing,” “Article 5 (1) 2” in Article 16 (2) as “Article 30 (1) 1,” and “Article 5 (1) 2” in Article 16 (3) as “Article 30 (1) 1”, respectively. [<Amended Jul. 29, 2016; May 1, 2017>](#)

Article 34-2 (Method for Supplying Orphan Medical Devices or Those in Urgent Need of Introduction) (1) When the Minister of Food and Drug Safety intends to supply orphan medical devices or those in urgent need of introduction under Article 15-2 (1), with the exception of its subparagraphs, of the Act (hereinafter “orphan medical devices or those in urgent need of introduction”), he or she shall conduct surveys on demand thereof from the relevant administrative agencies, medical institutions, health and medical service-related institutions, organizations and experts, patients, etc.

- (2) When the Minister of Food and Drug Safety conducts surveys on demand under Paragraph (1), they shall establish quarterly, semi-annual, and annual plans to supply orphan medical devices or those in urgent need of introduction, including the following matters:
 1. Matters regarding supply quantities;
 2. Matters regarding supply prices;
 3. Matters regarding supply targets;
 4. Other matters deemed necessary by the Minister of Food and Drug Safety to supply orphan medical devices or those in urgent need of introduction.
- (3) When the Minister of Food and Drug Safety intends to supply orphan medical devices or those in urgent need of introduction according to the supply plans under Paragraph (2), he or she shall conclude a supply contract with a supply target.
- (4) Except as provided in Paragraphs (1) through (3), details necessary for methods for supplying orphan medical devices or those in urgent need of introduction shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly inserted on Jun. 12, 2019]

Article 34-3 (Entrustment of the Supply of Orphan Medical Devices or Those in Urgent Need of Introduction) (1) The Minister of Food and Drug Safety shall entrust the affairs related to the supply of orphan medical devices or those in urgent need of introduction and the provision of relevant information to the NIDS under Article 15-2 (2) of the Act.

(2) The NIDS entrusted with the affairs of orphan medical devices or those in urgent need of introduction under Paragraph (1) shall submit to the Minister of Food and Drug Safety a business operation plan, a fund operation plan, an update on business progress, fund execution details, etc. regarding the entrusted affairs as determined by the Minister of Food and Drug Safety.

[Newly inserted on Jun. 12, 2019]

Article 35 (Notification of Repair Businesses) (1) A person who intends to engage in the business of repairing medical devices under Article 16 (1) of the Act shall submit a notification for repair businesses in Form 33 (including a notification in electronic form), along with the documents referred to in Article 3 (1) 1 and 2 (including electronic documents) to the Special Metropolitan City Mayor, a Metropolitan City Mayor, a *Do* Governor, or a Self-Governing Province Governor (hereinafter the “Mayor/*Do* Governor”) having jurisdiction over the location of a repair business. In such cases, the Mayor/*Do* Governor shall verify a corporation registration certificate (limited to a corporation) through the administrative data matching under Article 36 (1) of the Electronic Government Act. <Amended Apr. 13, 2020; Jun. 24, 2021>

(2) Upon acceptance of a repair business notification following Paragraph (1), the Mayor/*Do* Governor shall issue a certificate of notification in Form 34 to a person who files such notification, and enter the following information in the repair business notification register: <Amended on Jun. 24, 2021>

1. The notification acceptance number and acceptance date;
2. Types of medical devices to be repaired;
3. The name and resident registration number of the repairer (in cases of a corporation, the name and resident registration number of its representative);
4. The name and location of the repair business (in cases of a corporation, the location of its principal office).

(3) When a repairer intends to modify the notified matters, he or she shall submit a notification for change in Form 35 (including a notification in electronic form) to the Mayor/*Do* Governor having jurisdiction over the repair business place, along with reasons for such change, evidentiary documents therefor (including electronic documents), and the certificate of notification. In such cases, when the change of a location changes the competent notification-receiving authority, he or she shall submit the requirements to the Mayor/*Do* Governor having jurisdiction over the new location. <Amended on Jun. 24, 2021>

(4) Facilities and quality management systems to be secured by a person intending to file a notification of a repair business under the main text of Article 16 (2) of the Act shall be as

specified in Annex 5.

- (5) When a repairer closes or suspends his or her business under Article 14 of the Act applied *mutatis mutandis* according to Article 16 (4) of the Act, he or she shall submit a notification in Form 32 (including a notification in electronic form), along with the certificate of notification, to the Mayor/Do Governor having jurisdiction over the repair business place. When a person who has suspended their business files a notification for business resumption, he or she shall submit a notification in Form 32 (including a notification in electronic form) to the Mayor/Do Governor having jurisdiction over the repair business place. <Amended Apr. 13, 2020, Jun. 24, 2021>
- (6) Upon receipt of a notification under Paragraph (3) or (5), the Mayor/Do Governor shall enter the notification details in the relevant notification register and the certificate of notification, respectively. <Amended on Jun. 24, 2021>
- (7) Article 28 (2) and (4) shall apply *mutatis mutandis* to a notification of business closure or business suspension under Paragraph (5). In such cases, “the Commissioner of the Regional Office of Food and Drug Safety” shall be construed as “the Mayor/Do Governor.” <Amended on Apr. 13, 2020, Jun. 24, 2021>

Article 36 (Compliance for Repairers) Compliance obligations for repairers of medical devices under Article 13 of the Act applied *mutatis mutandis* according to Article 16 (4) of the Act shall be as follows: <Amended on Jun. 14, 2018>

1. They shall not repair a medical device by making alterations inconsistent with the details approved, certified, or notified. This shall not apply to a minor repair for change under Article 46-2;
2. They shall state the trade name and address on the container or wrapper of a medical device where such device is repaired;
3. They shall notify a person who requests the repair of a medical device of the repair details in writing (in cases of a minor repair for change under Article 46-2, the details of such repair for change shall be included);
4. They shall maintain facilities and quality management systems under Article 35 (4).

Article 37 (Notification of Distribution Business or Leasing Business) (1) A person who intends to engage in the business of distributing or leasing medical devices under Article 17 (1) of the Act shall submit a notification in Form 36 (including a notification in electronic form) to the Special Self-Governing Province Governor or the head of a *Si/Gun/Gu* (the head of a *Gu* refers to the head of an autonomous *Gu*; hereinafter the same shall apply) having jurisdiction over the distribution or leasing business place. In such cases, the Special Self-Governing Province Governor or the head of a *Si/Gun/Gu* shall verify a corporation registration certificate (limited to a corporation) through administrative data matching under Article 36 (1) of the Electronic Government Act. <Amended Apr. 13, 2020; Jun. 24., 2021>

- (2) A person who intends to engage in the business of selling medical devices pursuant to Article 17 (1) of the Act and intends to sell medical devices through electronic commerce or mail

order in accordance with the Act on the Consumer Protection in Electronic Commerce may use, as a place of business, a building for residential use under the Building Act or a business incubation center under Article 18-3 (1) of the Special Measures for the Promotion of Venture Businesses. <Newly Inserted on Jul. 8, 2024>

- (3) Upon acceptance of a notification of a medical device distribution or leasing business under Paragraph (1), the Special Self-Governing Province Governor or the head of a *Si/Gun/Gu* shall issue the certificate of notification in Form 37 and enter the following information in the distribution or leasing business notification register: <Amended on Apr. 13, 2020; Jul. 8, 2024>
 1. The notification number and notification date;
 2. The name and resident registration number of the medical device distributor or lessor (in cases of a corporation, the name and resident registration number of its representative);
 3. The name and location of the business place.
- (4) When a distributor or lessor modifies the matters notified following Paragraph (1), he or she shall submit a notification of change in Form 38 (including a notification in electronic form), along with the certificate of notification and documents verifying such change, to the Special Self-Governing Province Governor or the head of a *Si/Gun/Gu* having jurisdiction over the distribution or leasing business place. In such cases, when the change of a location changes the competent notification-receiving authority, he or she shall submit the requirements to the Mayor/Do Governor having jurisdiction over the new location. <Amended on Apr. 13, 2020; Jul. 8, 2024>
- (5) When a distributor or lessor intends to file a notification of business closure or business suspension, he or she shall submit a notification in Form 32 (including a notification in electronic form), along with the certificate of notification to the Special Self-Governing Province Governor or the head of a *Si/Gun/Gu* having jurisdiction over the distribution or leasing business place; and when a person who has suspended his or her business intends to file a notification of business resumption, he or she shall submit a notification in Form 32 (including a notification in electronic form) to the Special Self-Governing Province Governor or the head of a *Si/Gun/Gu* having jurisdiction over the distribution or leasing business place. <Amended on Apr. 13, 2020; Jul. 8, 2024>
- (6) Upon receipt of a notification under Paragraph (3) or (4), the Special Self-Governing Province Governor or the head of a *Si/Gun/Gu* shall enter the notification details in the relevant notification register and the certificate of notification, respectively. <Amended on Apr. 13, 2020; Jul. 8, 2024>
- (7) Article 28 (2) and (4) shall apply *mutatis mutandis* to a notification of business suspension or business closure under Paragraph (4). In such cases, the “Commissioner of the Regional Office of Food and Drug Safety” shall be construed as the “Special Self-Governing Province Governor or the head of a *Si/Gun/Gu*.” <Amended on Apr. 13, 2020; Jul. 8, 2024>

Article 38 (Exemption from Distribution Business Notifications) Any of the following medical devices may be distributed without filing a notification under Article 17 (2) 4 of the Act:

1. Condoms;
2. Mobile phones, household electric appliances, etc., which have blood a feature of glucose monitoring or blood glucose monitoring devices used in combination therewith;
3. Other medical devices publicly notified by the Minister of Food and Drug Safety considering the degree of harm and safety.

Article 39 (Method for Ensuring Quality of Medical Devices by Distributor or Lessor) The method for ensuring the quality of medical devices under Article 18 (1) of the Act and Subparagraph 1 of Article 10-2 of the Enforcement Decree of the Medical Devices Act (hereinafter the “Decree”) shall be as follows: [<Amended on Jun. 15, 2016>](#)

1. When a distributor or lessor purchases medical devices from a medical institution, he or she shall comply with the following matters:
 - (a) The distributor or lessor shall request the manufacturer or importer of the relevant medical devices for inspections or request a medical device testing and inspection institution for inspections;
 - (b) The distributor or lessor shall distribute or lease only the medical devices that have received certificates of inspection issued following Article 27 (1) 15 (a) or 33 (1) 19 (a) according to the results of the inspections under item (a);
 - (c) When the distributor or lessor receives any instructions regarding distribution or lease following Article 27 (1) 16 (b) or 33 (1) 20 (b) according to the results of the inspections under item (a), he or she shall comply with such instructions.
2. A distributor or lessor shall prepare the records of the details and results of an inspection under each item of Subparagraph 1, the issuer and issuance date of a certificate of inspection, instructions regarding distribution or lease, etc. and retain such records for 2 years from the date of distribution;
3. A distributor or lessor shall prepare and keep the records regarding the handling of defective medical devices and retain such records for 1 year from the date of the record;
4. A distributor or lessor shall comply with the standards for distribution quality management of medical devices specified in Annex 6: Provided, That this shall not apply when the business is exempted from distribution business notification requirements under Article 17 (2) of the Act.

Article 40 (Matters Regarding Maintenance of Order in Distribution by Distributor or Lessor) Matters regarding the maintenance of order in distribution in relation to the safety of medical devices, etc. under Article 18 (1) of the Act and Subparagraph 1 of Article 10-2 of the Decree shall be as follows:

1. A distributor or lessor shall not purchase medical devices from persons other than manufacturers, importers, and distributors: Provided, That purchases from a medical institution shall be excluded;
2. A distributor or lessor shall not use any of the following names or labels for the name, etc.

of a business place and shall not use them together with the label of the business place;

- (a) A name or label likely to be misunderstood as a business place of a manufacturer or an importer;
 - (b) The name of a medical institution under Article 3 of the Medical Service Act or any name similar thereto.
3. A distributor or lessor shall not distribute or lease any of the following medical devices and shall not store or display them for the purpose of distribution or lease:
- (a) Medical devices with no certificates of inspection attached under Subparagraph 1 (b) of Article 39;
 - (b) Medical devices contaminated or damaged or those subject to an order of collection or destruction issued by the Minister of Food and Drug Safety or the Commissioner of the Regional Office of Food and Drug Safety;
 - (c) Medical devices whose use-by dates or expiration dates passed.
4. A distributor or lessor shall not distribute medical devices for which approval or certification has not been obtained or a notification has not been filed and shall not store or display them for the purpose of distribution.

Article 41 (Exemption from Certificates of Inspection of Secondhand Medical Devices)

Medical devices determined and publicly notified by the Minister of Food and Drug Safety, such as medical devices with low potential risk, may be distributed with no certificate of inspection attached, notwithstanding Articles 27 (1) 15 and 33 (1) 19, Subparagraph 1 (b) of Article 39, and Subparagraph 3 (a) of Article 40.

Article 42 (Labeling on Container) The container or wrapper of a medical device need not be labeled following the proviso of Article 20, with the exception of its subparagraphs, of the Act, in any of the following cases: [<Amended on Jun. 15, 2016>](#)

- 1. When the area of the container or wrapper is too small, or the container or wrapper cannot contain all the matters referred to in the subparagraphs of Article 20 of the Act, and therefore, such matters are stated on an outside container, outside package, or package insert: Provided, That even in such cases, the model name or the trade name of a manufacturer or importer shall be stated on the container or wrapper of a medical device;
- 2. When a medical device for export has been labeled according to the standards of the export destination country.

Article 43 (Labeling on Package Inserts) (1) "Matters prescribed by Ordinance of the Prime Minister" in Article 22 (1) 4 of the Act refers to the following: [<Amended on Jan. 16, 2024>](#)

- 1. The matters prescribed in Subparagraphs 1 through 3 and 5 through 7 of Article 20 of the Act;
- 2. The intended use of a product;

3. Keeping or storage methods;
 4. The trade names and addresses of a person requesting manufacture (referring to the person who entrusts) and a manufacturer (referring to the person to whom it is entrusted) when a domestic manufacturer entrusts the entire manufacturing processes;
 5. A model name and the name of a manufacturing business labeled on a minimum unit package, for devices individually packaged for single use;
 6. Information regarding appropriate procedures for reuse, such as cleaning, disinfection, packaging, re-sterilization methods, and the limit on the number of times of reuse, in cases of medical devices reusable after sterilization;
 7. Matters regarding the characteristics, types, intensity, diffusion, etc. of radiation, in cases of medical devices emitting radiation for the purpose of medical treatment;
 8. The date of the preparation of package inserts;
 9. Contact for adverse event reporting (National Institute of Medical Device Safety Information, Contact Information)
 10. Other matters regarding technical information, such as characteristics of medical devices.
- (2) The following shall be stated in the package insert of a medical device for clinical investigations, notwithstanding Paragraph (1):
1. The label “For Clinical investigations”;
 2. The product name and model name;
 3. The manufacturing number and manufacturing date (which may be replaced with the use-by date, if any);
 4. Keeping and storage methods;
 5. The trade name of a manufacturer or an importer (in cases of entrusted manufacturing or import, including the origin of manufacture and country name);
 6. The label “Not Approved for Use for Purposes Other than Clinical Investigations”.
- (3) When the matters prescribed in Paragraph (1) 1 through 5 and 9 are stated on a container, wrapper, or package, the package insert may not include such labeling. [<Amended on Jan. 16, 2024>](#)

Article 44 (Labeling Methods) (1) Following Article 23 of the Act, the container, wrapper, outside container, package, or package insert of a medical device shall be labeled according to the following methods: [<Amended on Jun 24, 2021>](#)

1. A label shall be provided in Korean alphabet hangeul, and a label in Chinese characters or other foreign languages in the same font size as that of Hangeul may be added: Provided, That a label need not be provided in hangeul in the following cases:
 - (a) Providing a label on a medical device for export in the language of an export destination country;
 - (b) Stating the items which were written in foreign languages in the process of medical

device approval, certification, or notification in the same foreign language.

2. Font size, line height, and other labeling methods determined and publicly notified by the Minister of Food and Drug Safety shall be followed.
- (2) When the name of a product, the trade name of a manufacturer or importer, or other matters are stated on the container, outer package, or package of a medical device, braille may be used in conjunction with the labeling methods under Paragraph (1).

Article 44-2 (Provision of Information for Persons with Visual Impairments) Medical devices for which the Minister of Food and Drug Safety may recommend the acts prescribed in each subparagraph of Article 23-2 (1) of the Act shall be limited to self-use medical devices for the management of chronic diseases.

[\[Newly Inserted on Aug. 7, 2024\]](#)

Article 45 (Scope of Medical Device Advertisements) (1) The scope of advertisements prohibited under Article 24 (2) and (3) of the Act shall be any of the following advertisements specified in Annex 7:

1. Advertisements under Subparagraph 2 of Article 2 of the Act on Fair Labeling and Advertising;
2. Advertisements through methods such as solicitation of purchase and product presentation and demonstration by a medical device handler (including workers, etc. employed by the medical device handler).

[\[Wholly Amended on Jun. 24, 2021\]](#)

Article 45-2 (Objection to Results of Redeliberation by a Voluntary Deliberation Agency) A person who intends to file an objection to the results of the re-deliberation by a voluntary deliberation agency (referring to an institution or organization that has reported to the Minister of Food and Drug Safety following Article 25-2 (1); hereinafter the same shall apply) under Article 25 (5) of the Act and Article 10-4 (4) of the Decree shall submit an application for objection to the results of re-deliberation on medical device advertisements in Form 38-2 to the Minister of Food and Drug Safety, along with the following documents:

1. Purport and reasons for objection;
2. Content of an application for deliberation on the advertisement of medical devices;
3. A copy of the notice of the results of deliberation or re-deliberation on the advertisement of medical devices;
4. Other references verifying the factuality, etc. of an application for deliberation on the advertisement.

[\[Newly inserted on Jun. 24, 2021\]](#)

Article 45-3 (Notification and Monitoring of Voluntary Deliberation Agency) (1) A person who intends to notify deliberation on the advertisement of medical devices under Article 25-2 (1) of the Act and Article 10-5 (4) of the Decree shall submit an application for the notification of a voluntary deliberation agency for the advertisement of medical devices to the Minister of Food and Drug Safety, along with the following documents. In such cases, the Minister of Food and Drug Safety shall verify the corporation registration certificate (limited to a corporation) through administrative data matching under Article 36 (1) of the Electronic Government Act: [<Amended on Jan. 21, 2022>](#)

1. Status of a department and full-time workers that are exclusively responsible for relevant affairs under Article 10-5 (3) 1 of the Decree;
 2. Status of computerized equipment and an office under Article 10-5 (3) 2 of the Decree;
 3. A copy of the articles of association of the institution or organization;
 4. A copy of the registration of a consumer organization made with the Fair Trade Commission under Article 29 of the Framework Act On Consumers (limited to cases under Article 25-2 (1) 2).
- (2) A voluntary deliberation agency shall monitor whether an advertisement of medical devices that it has reviewed complies with Article 24 (2) or (3) under Article 25-4, and submit the results thereof to the Minister of Food and Drug Safety for each quarter within 30 days from the end of the pertinent quarter.

[\[Newly inserted on Jun. 24, 2021\]](#)

Article 45-4 (Medical Devices Subject to Sealing) (1) “Medical devices prescribed by Ordinance of the Prime Minister” in Article 25-5, with the exception of its subparagraphs, of the Act refers to any of the following medical devices:

1. Medical devices that are subject to tracking management are to be inserted into the human body for at least 1 year, and have sterile packaging;
 2. The following medical devices that are likely to be contaminated or spoiled when distributed while being open:
 - (a) Disposable syringes (limited to those with sterile packaging);
 - (b) Disposable needles (limited to those with sterile packaging);
 - (c) Sutures;
 - (d) Wound dressings (limited to those with sterile packaging);
 - (e) Contact lenses;
 - (f) Other medical devices with sterile packaging, which are publicly notified by the Minister of Food and Drug Safety that such devices need to be enveloped during distribution.
- (2) The seal under Article 25-5 shall ensure that a container or package cannot be opened without removing the seal thereon and is difficult to return to its original condition after being opened.

[\[Newly inserted on Jan. 21, 2022\]](#)

Article 46 (Approval for Display of Medical Devices for the Purpose of Exhibition) (1) A person who intends to display medical devices for the purpose of exhibition under the proviso of Article 26 (1) of the Act shall obtain approval therefor from the Commissioner of the Regional Office of Food and Drug Safety in advance.

- (2) A person who intends to display medical devices approved under Paragraph (1) shall not engage in acts other than those determined and publicly notified by the Minister of Food and Drug Safety, such as the simple operation of devices to explain the utilization methods, etc. and attachment or keeping of promotional materials regarding the notified details.
- (3) When medical devices approved under Paragraph (1) fall under any of the following cases, the Commissioner of the Regional Office of Food and Drug Safety shall revoke such approval, and may take measures including the enveloping or sealing of the relevant medical devices or the suspension of the display thereof:
 1. When medical devices are displayed or used differently from what have been approved;
 2. When acts other than those approved under Paragraph (2) are performed;
 3. When other acts likely to cause harm to public health are performed.
- (4) After the certified medical devices under Paragraph (1) are used following their certification, the relevant medical devices may be used as medical devices under Subparagraph 4 of Article 10, Article 32 (1) 5-2 and 5-3 as determined and publicly noticed by the Minister of Food and Drug Safety. <Newly inserted on Jun. 24, 2021>
- (5) Details regarding methods and procedures for filing an application for approval under Paragraph (1), approval standards, and other matters shall be determined and publicly notified by the Minister of Food and Drug Safety. <Amended on Jun. 24, 2021>

Article 46-2 (Minor Repair for Change of Medical Devices) A medical device repairer may make repairs to change any of the following appearances within the extent not to affect the safety and effectiveness of the medical devices under the proviso of Article 26 (3) of the Act:

1. Repairs to change the colors, materials, etc. of outer packages aimed at protecting the medical devices from external shock;
2. Repairs to change the shapes, structures, etc. of external appearances, such as holders, handles, or wheels, not directly related to the performance of medical devices.

[Newly inserted on Jun. 14, 2018]

Article 47 (Scope of Approval to Alter or Remodel Medical Devices) Medical devices that manufacturers and importers may alter or remodel under Article 26 (4) 1 of the Act shall be as follows. In such cases, such medical devices shall be altered or remodeled to the extent not to change the unique characteristics but to improve the performance thereof:

1. Radiation-generating devices for diagnosis under Article 37 of the Medical Service Act;
2. Special medical equipment under Article 38 of the Medical Service Act;

3. Other medical devices determined and publicly notified by the Minister of Food and Drug Safety, whose safety and effectiveness are not affected by alteration or remodeling.

Article 48 (Designation of Quality Management System Audit Organization) (1) A person who intends to apply for the designation of an institution as an audit organization under Article 28 (2) of the Act shall submit an application for the designation as an audit organization in Form 39 (including an application in electronic form) to the Minister of Food and Drug Safety, along with the following documents (including electronic documents):

1. The current status of an audit organization in terms of its organization and personnel (referring to documents evidencing personnel's qualifications and work experience);
 2. Documents regarding management and operational standards for quality review affairs;
 3. Documents regarding the scope of quality review affairs.
- (2) When an audit organization is designated based on the results of the examination of documents submitted under Paragraph (1) and the fact-finding surveys on quality review capabilities, the Minister of Food and Drug Safety shall issue a certificate of designation as an audit organization in Form 40.
- (3) In cases of change of any of the following matters, a quality management review institution designated under Paragraph (2) shall submit an application for change of the designated matters of an audit organization in Form 41 (including an application in electronic form), along with the certificate of designation as an audit organization and data verifying the changed matters (including electronic documents), to the Minister of Food and Drug Safety within 30 days from the date reasons for such change occur:
1. The representative of the audit organization;
 2. The name and location of the audit organization;
 3. The scope of quality review affairs.
- (4) Matters to be observed by an audit organization under Article 28 (4) of the Act shall be as follows:
1. The organization shall retain for 5 years the records on quality review, such as copies of compliance certificates and all review data regarding the issuance of compliance certificates;
 2. The organization shall report on the results of the quality review as determined by the Minister of Food and Drug Safety;
 3. The organization shall comply with the management and operational standards for audit organizations, which are determined and publicly notified by the Minister of Food and Drug Safety;
 4. The organization shall maintain the requirements for the designation as an audit organization under Article 28 (3) of the Act;
 5. The organization shall comply with other matters determined and publicly notified by the Minister of Food and Drug Safety, such as matters to be stated by an audit

organization when issuing compliance certificates.

- (5) The Minister of Food and Drug Safety may conduct a regular or occasional investigation into an audit organization.
- (6) Except as provided in Paragraphs (1) through (5), details necessary for the procedures and methods for designating an audit organization, operation thereof, etc. shall be determined and publicly notified by the Minister of Food and Drug Safety.

Article 49 (Standards for the Designation and Management of Medical Devices Subject to Tracking Management) (1) Medical devices subject to tracking management under the subparagraphs of Article 29 (1) of the Act shall be as follows:

- 1. The following medical devices to be inserted into the human body for at least 1 year:
 - (a) Implantable cardiac pacemakers;
 - (b) Implantable cardiac pacemaker electrodes;
 - (c) Composite artificial heart valves;
 - (d) Biological artificial heart valves;
 - (e) Non-biological artificial heart valves;
 - (f) Implantable cardioverter-defibrillators (ICDs);
 - (g) Electrically-powered implantable infusion pumps;
 - (h) Other medical devices determined and publicly notified by the Minister of Food and Drug Safety as necessary to track the locations of such devices.
 - 2. The following medical devices for life support used in any place other than a medical institution:
 - (a) Home care ventilators (limited to regular wearing);
 - (b) Other medical devices determined and publicly notified by the Minister of Food and Drug Safety as necessary to track the locations of such devices.
- (2) When the Minister of Food and Drug Safety permits the manufacture, import, etc. of medical devices subject to tracking management under Paragraph (1), he or she shall state in the license the phrase “Medical Device Subject to Tracking Management.”

Article 49-2 (Criteria for Designation of Medical Devices Subject to Long-term Follow-up) (1) The Minister of Food and Drug Safety may designate medical devices subject to long-term follow-up under Article 29 (2) of the Act (hereinafter referred to as “medical devices subject to long-term follow-up”) by comprehensively reviewing the following matters:

- 1. Whether adverse events associated with the use of the medical device occur at least once a year, thereby requiring continuous verification of the device’s safety;
- 2. Whether the device is likely to cause serious adverse effects, such as death or non-curable conditions, after being implanted in the human body;

3. Any other matters equivalent to those under subparagraphs 1 and 2, which the Minister of Food and Drug Safety deems necessary for reviewing the designation of medical devices subject to long-term follow-up .
- (2) When the Minister of Food and Drug Safety designates medical devices subject to long-term follow-up pursuant to paragraph (1), the Minister shall publicly announce such designation.

[Newly inserted on Aug. 1, 2025]

Article 50 (Matters regarding Records on Medical Devices Subject to Tracking Management)

(1) Manufacturers, importers, distributors, lessors, and repairers who handle medical devices under Article 30 (1) of the Act (hereinafter “handlers”) and the founders of medical institutions that handle medical devices subject to tracking management, and medical doctors, oriental medical doctors, dentists, etc. who work at medical institutions (hereinafter “users”) shall prepare records of the following matters: <Amended on Aug. 1, 2025>

1. Records of handlers:
 - (a) The quantity and date of manufacture or import (limited to manufacturers or importers) by product name (by item name, in the absence of the product name), by model name, and by manufacture unit;
 - (b) The quantity and date of distribution or lease; the trade name and address of a distributor or lessor or the founder of a medical institution (excluding repairers) by product name (by item name, in the absence of the product name), by model name, and by manufacture unit;
 - (c) The date of repair and the trade name and address of a requester (limited to repairers) by product name (by item name, in the absence of the product name), by model name, and by manufacture unit;
 - (d) Other matters necessary to prevent harm to health and hygiene;
2. Records of users:
 - (a) The name and resident registration number of a patient who uses a medical device subject to tracking management;
 - (b) The name and manufacturing number of a medical device subject to tracking management, and those in lieu thereof;
 - (c) The date of use of a medical device subject to tracking management;
 - (d) The name and location of a medical institution that uses a medical device subject to tracking management;
 - (e) Other matters necessary to prevent harm to health and hygiene.
- (2) Handlers or users of medical devices subject to tracking management shall submit records and data related to the medical devices subject to tracking management to the Minister of Food and Drug Safety according to the following classifications. In such cases, such handlers or users may submit such records and data using a computer program determined by the Minister of Food and Drug Safety: <Newly inserted on Jun. 15, 2016; Jun. 24, 2021; Aug. 1, 2025>

1. Handlers: Handlers shall prepare records and data related to medical devices subject to tracking management every month and submit such records and data by the end of the following month as determined and publicly notified by the Minister of Food and Drug Safety;
2. Users:
 - (a) In cases of business closure of a medical institution, users shall submit the entire record of use when filing a notification of business closure;
 - (b) In cases of medical devices subject to tracking management publicly notified by the Minister of Food and Drug Safety that may cause death or are gravely life-threatening, users shall submit data for each half year by the end of the following month of the end of the pertinent half year. Provided, however, that if data on real-world use information (referring to real-world use information under Article 30 (3) of the Act; hereinafter the same shall apply) have been submitted pursuant to Article 50-2 (2) and (3), the relevant data may be omitted from submission;
 - (c) Upon receipt of a request by the Minister of Food and Drug Safety to submit records and data related to medical devices subject to tracking management, users shall submit such records and data within 10 days from the date of receipt of such request.
- (3) When handlers and users of medical devices subject to tracking management prepare records under Paragraph (1), they shall maintain confidentiality.
- (4) Records of medical devices subject to tracking management under Paragraph (1) shall be retained until the time determined by the following subparagraphs:
 1. When a medical device subject to tracking management is no longer used because of the death, etc. of a patient who has used such medical device;
 2. When the reasons to retain the previous records of a non-single-use medical device subject to tracking management cease to exist as the information thereon under Paragraph (1) 2 (a) or (c) is newly recorded;
 3. When the reasons to retain the relevant records cease to exist, as tracking management is no longer necessary or any other reason occurs.
- (5) The Minister of Food and Drug Safety may create and operate unique device identification (UDI) codes to be attached to or labeled on the containers, outer packages, or packages of medical devices subject to tracking management for efficient management of medical devices subject to tracking management.
- (6) Details regarding records by handlers or users of medical devices subject to tracking management under Paragraphs (1) and (2) and the submission of such records shall be determined and publicly notified by the Minister of Food and Drug Safety. <Newly inserted on Jun. 24, 2021>

Article 50-2 (Methods and Procedures for the Collection, Analysis, and Evaluation of Real-World Use Information) (1) The head of the NIDS entrusted with the duties of collecting, analyzing, and evaluating real-world use information pursuant to Article 44 (2) of the Act may recruit users to participate in long-term follow-up (hereinafter referred to as “participants”) in order

to collect, analyze, and evaluate real-world use information pursuant to Article 30 (3) of the Act.

- (2) The data submitted by participants who respond to the recruitment under paragraph (1) to the head of the NIDS pursuant to Article 30 (3) of the Act shall consist of the following real-world use information generated in the process of using medical devices subject to long-term follow-up:
 1. The name and resident registration number of the patient using the medical device subject to long-term follow-up;
 2. The name and manufacturing number of the medical device subject to long-term follow-up, or information in lieu thereof;
 3. The date and time of use of the medical device subject to long-term follow-up, and the details of such use;
 4. The date and time of occurrence of any adverse event and its details;
 5. The name and location of the medical institution where the device is used;
 6. Other matters deemed necessary by the Minister of Food and Drug Safety for long-term follow-up and publicly notified by the Minister.
- (3) When submitting data on real-world use information under paragraph (2) to the head of the NIDS, participants may do so using a computerized program designated by the Minister of Food and Drug Safety.
- (4) The head of the NIDS shall analyze and evaluate the data on real-world use information submitted by participants pursuant to paragraphs (2) and (3) on a semiannual basis and report the results to the Minister of Food and Drug Safety by the end of the month following the end of each half-year. However, in any of the following cases, the results of the analysis and evaluation shall be reported without delay:
 1. Where the frequency of adverse events significantly differs from that in previously reported analysis and evaluation results;
 2. Where the details of the adverse event fall under any of the subparagraphs of Article 51 (1);
 3. Any other case equivalent to subparagraphs 1 and 2, where the Minister of Food and Drug Safety considers it necessary to analyze and evaluate the adverse event without delay and requests such analysis and evaluation.
- (5) In addition to the matters prescribed in paragraphs (1) through (4), detailed matters concerning the methods and procedures for the collection, analysis, and evaluation of real-world use information shall be prescribed and publicly notified by the Minister of Food and Drug Safety.

[Newly inserted on Aug. 1, 2025]

Article 51 (Reporting on Side Effects) (1) A person who intends to file a report on the side effects

of a medical device under Article 31 (1) of the Act shall do so as prescribed in the following subparagraphs and retain the relevant data for two years:

1. Within 7 days, when a medical device causes death or life-threatening side effects. In such cases, the details thereof shall be additionally reported within eight days from the date of the first report;
2. Within 15 days, when the following side effects are caused or adverse events occur:
 - (a) When admission to a hospital or the extension of an admission period is required;
 - (b) When recovery is impossible or a serious disability or impaired function occurs;
 - (c) When congenital malformations or abnormalities are caused.
- (2) The Minister of Food and Drug Safety shall notify the founder of a medical institution of the side effects, a recall plan, etc. under Article 31 (4) of the Act by means of visit, mail, telephone, email, fax, etc.
- (3) The founder of a medical institution who has notified patients of the side effects, recall plan, etc. under Article 31 (5) of the Act shall prepare a written confirmation of notice to the patients in Form 42 and submit it to the Minister of Food and Drug Safety. [<Amended on Jun. 14, 2018>](#)
- (4) Except as provided in Paragraphs (1) through (3), details regarding the reporting and management of side effects shall be determined and publicly notified by the Minister of Food and Drug Safety.

Article 52 (Standards and Procedures for the Recall of Harmful Medical Devices) (1) With respect to any medical device that has caused, or is likely to cause, harm to the human body among the medical devices repaired, distributed, or leased (hereinafter “medical device subject to recall”), the relevant medical device repairer, distributor, or lessor shall immediately cease repairing, distributing, or leasing such medical device following Article 31 (2) of the Act and notify such fact to the manufacturer or importer of such medical device (hereinafter “person responsible for recall”).

- (2) Following Article 31 (2) of the Act, with respect to medical devices that a person responsible for recall has distributed or leased after manufacturing or importing such devices, such person responsible for recall shall verify whether any medical device suspected to be subject to recall or any medical device notified under Paragraph (1) falls under any of the following:
 1. A medical device of which use causes grave irreversible side effects or death, or a medical device that is likely to cause such side effects or death;
 2. A medical device of which use causes reversible temporary or medical side effects, or a medical device that is likely to cause such side effects;
 3. A medical device which, when used, rarely causes side effects, but is problematic in terms of safety and effectiveness for failing to satisfy the standard specifications referred to in Article 19 of the Act.
- (3) With respect to any medical device found to be falling under any subparagraph of Paragraph (2) based on the results of verification under Paragraph (2), a person responsible for recall shall take measures, such as immediately ceasing the distribution of the relevant medical

device, and submit a recall plan in Form 43 (including a plan in electronic form) to the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of the person responsible for recall business within 5 days from the date of verification under Paragraph (2). In such cases, the person responsible for recall may submit a recall plan using a computer program determined by the Minister of Food and Drug Safety. [<Amended on Dec. 31, 2018; Dec. 23, 2019>](#)

1. Deleted. [<Dec. 31, 2018>](#)
2. Deleted. [<Dec. 31, 2018>](#)
- (4) Notwithstanding Paragraph (3), with respect to any medical device falling under Paragraph (2) 3, when a person responsible for recall finds it impracticable to submit a recall plan within 5 days, he or she may request the Commissioner of the Regional Office of Food and Drug Safety to extend the submission period by up to 10 days only once, specifying the reasons for such request. [<Newly inserted on Dec. 31, 2018>](#)
- (5) When a person responsible for recall submits a recall plan under Paragraph (3), he or she shall attach the following documents thereto (including documents in electronic form): [<Amended on Dec. 31, 2018; Jun. 12., 2019; Dec. 23, 2019>](#)
 1. A copy of the records on the manufacturing or import of the relevant item, the records on the distribution amount and date by distributor, the records on the lease amount and date by lessor, etc.;
 2. A notice of a recall plan to be notified under Article 53 (3);
 3. Deleted. [<Dec. 31, 2018>](#)
 4. When a medical device subject to recall falls under Paragraph (2) 1, the name and location of a medical institution that has used the relevant medical device and information on its founder including his or her name.
- (6) When a person responsible for recall prepares a recall plan under Paragraph (3), he or she shall determine the scheduled date for the completion of the recall according to the following classifications: Provided, That when it is deemed impracticable to perform the recall within such date, the period of recall may be determined in excess of the period classified as follows, stating the reasons therefor: [<Amended on Dec. 31, 2018>](#)
 1. A medical device falling under Paragraph (2) 1: Within 15 days from the start date of the recall;
 2. A medical device falling under Paragraph (2) 2 or 3: Within 30 days from the start date of the recall.
- (7) When any recall plan submitted under Paragraphs (3) through (5) is deemed insufficient, the Commissioner of the Regional Office of Food and Drug Safety may order the relevant person responsible for recall to supplement such recall plan. [<Amended on Dec. 31, 2018>](#)
- (8) Except as provided in Paragraphs (1) through (7), details regarding the evaluation of the degree of harm of medical devices, the preparation and supplement of recall plans, etc. shall be determined and publicly notified by the Minister of Food and Drug Safety. [<Newly inserted on Dec. 31, 2018>](#)

Article 53 (Publication of Recall Plans) (1) Upon receipt of an order to publish a recall plan from the Commissioner of the Regional Office of Food and Drug Safety following Article 31 (3) of the Act, a person responsible for recall shall publish such recall plan according to the following classifications:

1. Medical devices falling under Article 52 (2) 1: Public announcement of the recall plan through broadcasting defined in Subparagraph 1 of Article 2 of the Broadcasting Act; daily newspapers (referring to all the copies of the relevant newspapers printed and distributed for a day] that are distributed nationwide and registered under Article 9 (1) of the Act on the Promotion of Newspapers, Etc.; or mass media at least equivalent thereto (including such media as may be recognized by the Minister of Food and Drug Safety considering the intended uses, utilization methods, etc. of medical devices subject to recall);
 2. Medical devices falling under Article 52 (2) 2: Public announcement of the recall plan in medical journals or medical engineering journals or media at least equivalent thereto;
 3. Medical devices falling under Article 52 (2) 3: Public announcement of the recall plan on the website of a person responsible for recall or media at least equivalent thereto.
- (2) The Commissioner of the Regional Office of Food and Drug Safety may post the trade name of a person responsible for recall; the name, manufacturing number, date of manufacturing, use-by date, and expiration date of a product; and the reason for recall on the website of the regional office of food and drug safety.
- (3) A person responsible for recall shall notify a recall plan to a repairer, distributor, lessor, or founder of a medical institution that handles medical devices subject to recall (hereinafter “handler of medical devices subject to recall”) via visit, mail, telephone, telegram, email, fax, public announcement through media, etc. and retain data evidencing such notice for two years from the date of the completion of recall.
- (4) A handler of medical devices subject to recall notified of a recall plan under Paragraph (3) shall take measures, such as returning a medical device subject to recall, and prepare a written confirmation of recall in Form 44 and send it to the person responsible for the recall of such medical device subject to recall.
- (5) Deleted. <Jun. 14, 2018>
- (6) The Minister of Food and Drug Safety may establish and operate a computer program that provides information on medical devices subject to recall, etc. and recommend that a handler of medical devices subject to recall, etc. install such program.
- (7) Except as provided in Paragraphs (1) through (6), details regarding the method and period for the publication of recall plans, notice of such plans, etc. shall be determined and publicly notified by the Minister of Food and Drug Safety. <Newly inserted on Dec. 31, 2018>

[Paragraph (5) of this Article shall be effective until May 10, 2016, following Article 2 of the Addenda to the Ordinance of the Prime Minister No. 1181 promulgated on Jul. 29, 2015.]

Article 54 (Destruction of Medical Devices Subject to Recall) (1) A person responsible for recall

shall destroy a medical device that has been recalled or returned or take other measures to prevent harm, and prepare a recall evaluation report in Form 45 (including a report in electronic form) with respect thereto. [<Amended on Dec. 23, 2019>](#)

- (2) When a person responsible for recall destroys a medical device subject to recall following Paragraph (1), he or she shall submit an application for destruction in Form 46 (including an application in electronic form), along with the following documents (including documents in electronic form) to the competent Mayor/Do Governor; destroy the relevant medical device according to the environment-related statutes and regulations in the presence of the relevant public officials of the competent Special Metropolitan City, Metropolitan City, Do, and Special Self-Governing Province (hereinafter “City/Do”); and prepare the written confirmation of destruction in Form 47 (including a written confirmation in electronic form) and retain it for two years: [<Amended on Dec. 23, 2019; Apr. 13, 2020; Dec. 31, 2020; Jun. 24, 2021>](#)
 1. A copy of a recall plan in Form 43;
 2. A copy of written confirmation of recall in Form 44.
- (3) Upon completion of a recall, a person responsible for the recall shall submit the recall completion report in Form 48 (including a report in electronic form), along with the following documents (including documents in electronic form) to the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of the person responsible for recall. In such cases, the person responsible for recall may submit the relevant recall completion report using a computer program determined by the Minister of Food and Drug Safety [<Amended on Dec. 23, 2019>](#)
 1. A copy of written confirmation of recall in Form 44;
 2. A copy of a recall evaluation report in Form 45;
 3. A copy of a written confirmation of destruction in Form 47 (limited to where a medical device has been destroyed).
- (4) Upon receipt of a recall completion report under Paragraph (3), the Commissioner of the Regional Office of Food and Drug Safety shall take measures according to the following classifications:
 1. When it is deemed that the recall of a medical device subject has been properly conducted according to the recall plan, the completion of the recall shall be confirmed and notified in writing to the person responsible for recall;
 2. When it is deemed that the recall has not been effectively conducted, the person responsible for recall shall be ordered to take additional measures necessary for the recall.
- (5) When the destruction under Paragraph (2) is completed, the Mayor/Do Governor shall notify such fact to the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of the person responsible for recall. [<Amended on Jun. 24, 2021>](#)
- (6) Except as provided in Paragraphs (1) through (5), details regarding measures such as destruction, preparation of recall evaluation reports, reporting on completion of a recall, measures to be taken, etc. shall be determined and publicly notified by the Minister of Food and Drug Safety. [<Newly inserted on Dec. 31, 2018>](#)

Article 54-2 (Reporting of Medical Device Supply Records) (1) Pursuant to Article 31-2 (1) of the Act, the medical devices required to report supply records are as follows. <Newly Inserted on Jan. 16, 2024; Jul. 8, 2024>

1. Implantable medical devices under Article 12-5 (1) of the Enforcement Decree (limited to Class III and Class IV medical devices)
 2. Medical devices that fall under treatment materials eligible for National Health Insurance benefits pursuant to Article 8 (2) of the “Rule on the Standards for National Health Insurance Benefits” (limited to those supplied to medical institutions)
 3. Other medical devices determined by the Minister of Food and Drug Safety in consultation with the Minister of Health and Welfare.
- (2) A person who intends to report medical device supply records pursuant to Article 31-2 (1) of the Act shall submit the Medical Device Supply Record Report in Form 48-2 (including electronic documents) to the Minister of Food and Drug Safety through the UDI System by the end of the month following the month in which the medical device was supplied. <Amended on Jan. 16, 2024; Apr. 1, 2025>
- (3) Notwithstanding paragraphs (1) and (2), the Minister of Food and Drug Safety may exclude certain medical devices from the reporting requirement for supply records if deemed necessary to enhance public health or to achieve public-interest objectives. <Newly Inserted on Jan. 16, 2024>

[Newly inserted on Oct. 22, 2019]

[The previous Article 54-2 was renumbered as Article 54-3 on Oct. 22, 2019]

Article 54-3 (Operation of UDI System) (1) The information to be registered (including registration of changes; hereinafter the same shall apply) by medical device manufacturers and importers in the UDI System following Article 31-3 (2) of the Act (hereinafter “medical device information, etc.”) shall be as follows.

1. Information on UDI codes of medical devices;
 2. Information on medical device products (including information on medical device approval, certification, or notification);
 3. Information on medical device manufacturers and importers (including the foreign origins of manufacture).
- (2) The standards to be observed by medical device manufacturers and importers in registering and managing medical device information, etc. following Article 31-3 (3) of the Act (hereinafter “standards for management of integrated medical device information”) shall be as specified in Annex 7-2.
- (3) The Minister of Food and Drug Safety may require the head of the integrated medical device information center to conduct the following affairs:
1. Educating medical device manufacturers and importers regarding the registration of medical device information, etc. and the methods for using the UDI System, etc.;

2. Providing information on the approval, certification, and notification of medical devices, precautions for the use of medical devices, etc.
- (4) Details necessary for the operation and management of the UDI System, including the target and scope of medical device information, etc. under Paragraph (1) and the methods for providing medical device information, etc. shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly inserted on Dec. 31, 2018]

[Renumbered from the previous Article 54-2; the previous Article 54-3 has been renumbered as Article 54-4 on Oct. 22, 2019]

Article 54-4 (Standards, Targets, and Procedures for Reporting Foreign Substances) (1) The scope of foreign substances to be reported to the Minister of Food and Drug Safety by a medical device handler following Article 31-5 (1) of the Act (hereinafter “foreign substances”) shall be as follows:

1. A substance that is not a normal material used for medical devices, such as metal, plastic, or debris generated during manufacturing processes and that may cause direct or indirect harm or damage to the human body during the use of the medical devices;
2. A substance related to living things such as insects and their eggs, parasites and their eggs, and animal carcasses that may cause direct or indirect harm or damage to the human body during the use of medical devices;
3. Other substances determined and publicly notified by the Minister of Food and Drug Safety to prevent harm caused by the use of medical devices among the substances equivalent to those falling under Subparagraph 1 or 2.
- (2) Medical device handlers who intend to report the discovery of foreign substances following Article 31-5 (1) of the Act shall submit a foreign substance discovery report in Form 48-3 (including a report in electronic form), along with evidentiary data to the Minister of Food and Drug Safety. <Amended on Oct. 22, 2019>
- (3) Upon receipt of a report on the discovery of foreign substances following Paragraph (2), the Minister of Food and Drug Safety shall notify the details thereof to the Commissioner of the Regional Office of Food and Drug Safety without delay.
- (4) Upon receipt of notice under Paragraph (3), the Commissioner of the Regional Office of Food and Drug Safety shall conduct an investigation into the cause of inclusion of the foreign substances without delay following Article 31-5 (2) of the Act. In such cases, the Commissioner of the Regional Office of Food and Drug Safety may request necessary cooperation from the relevant central administrative agencies, local governments, public institutions, corporations, organizations, experts, etc. to investigate the cause of inclusion of the foreign substances.
- (5) Where the Commissioner of a Regional Office of Food and Drug Safety has completed an investigation into the cause of foreign substance contamination pursuant to paragraph (4), he or she shall report the investigation results and an action plan to the Minister of Food and Drug Safety, and, taking into comprehensive consideration the contents of the investigation results,

the safety of the medical device, and the necessity of preventing harm, shall, without delay, take the measures specified in each of the following subparagraphs. <Amended on Jan. 21, 2022; Mar. 8, 2024>

1. An order to conduct an inspection following Article 33 of the Act;
 2. An order of recall, destruction, or any other treatment or the publication thereof following Article 34 of the Act;
 3. An order of necessary measures such as suspension of use or repair following Article 35 of the Act.
- (6) Except as provided in Paragraphs (1) through (5), details necessary for the procedures and methods for reporting the discovery of foreign substances and for an investigation into the inclusion of foreign substances, and relevant measures shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly inserted on Jun. 12, 2019]

[Renumbered from the previous Article 54-3 on Oct. 22, 2019]

Article 54-5 (Public Announcement of Foreign Substance Findings, etc.) (1) Where any of the investigation results reported pursuant to Article 54-4 (5) falls under any of the following subparagraphs, the Minister of Food and Drug Safety may, pursuant to Article 31-5 (3) of the Act, publicly announce on the website of the Ministry of Food and Drug Safety the fact that foreign substances were found, the investigation results, and the action plan.

1. Where it is recognized that harm to public health has occurred or is likely to occur due to the use of medical devices contaminated with foreign substances
 2. Where foreign substances are found at a location where they may directly or indirectly come into contact with the human body, or where it is otherwise necessary to promptly notify the public of such findings to prevent harm to public health
- (2) In addition to the matters prescribed in paragraph (1), detailed matters necessary for the public announcement of foreign substance findings, etc. shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly Inserted on Mar. 8, 2024]

Article 55 (Collection) (1) When collecting medical devices following Article 32 (1) 2 of the Act, a certificate of collection in Form 49 shall be issued to a person subject to collection.

- (2) When a specialized inspection of any medical device collected under Paragraph (1) is required, a request for a specialized inspection may be made to a medical device testing and inspection institution or an institution conducting non-clinical studies. <Amended on May 1, 2017>

Article 56 (Medical Device Surveillance Officer Identification) An identification proving the identity of a relevant public official under Article 32 (2) of the Act (including cases applicable *mutatis mutandis* under the latter part of Article 34 (2) of the Act) shall be as prepared in Form 50.

Article 56-2 (Procedures for On-Site Inspections and Suspension of Import) (1) When the Minister of Food and Drug Safety intends to conduct an on-site inspection following Article 32-2 (1), with the exception of its subparagraphs, of the Act (hereinafter “on-site inspection”), he or she shall notify the details of the on-site inspection in writing (including electronic documents) to the medical device manufacturer, the medical device importer, the manager of an overseas manufacturing site, or the government of an exporting country 20 days prior to the execution of the on-site inspection.

- (2) Upon completion of an on-site inspection under Article 32-2 (2) of the Act (including where an on-site inspection is refused), the Minister of Food and Drug Safety shall notify the results of the inspection and provide opinions on the necessary measures to the Commissioner of the Regional Office of Food and Drug Safety within 30 days from the completion date of the on-site inspection.
- (3) The Commissioner of the Regional Office of Food and Drug Safety notified of the results of an on-site inspection under Paragraph (2) may take the following measures following Article 32-2 (2) of the Act. In such cases, with respect to the relevant measure taken, the Commissioner of the Regional Office of Food and Drug Safety shall notify the matters pertaining to the details of, reasons for, and date of such measure, etc. in writing (including electronic documents) to the medical device manufacturer, the medical device importer, the manager of an overseas manufacturing site, or the government of an exporting country:
<Amended on Jan. 21, 2022>
1. Suspension of import;
 2. An order of recall, destruction, or any other measure or the publication thereof following Article 34 of the Act;
 3. An order of necessary measures, such as suspension of use or repair, following Article 35 of the Act.
- (4) When any measure is canceled following Article 32-2 (3) of the Act, such as suspension of import, the Commissioner of the Regional Office of Food and Drug Safety shall notify the matters pertaining to the details of, reasons for, and date of the cancellation, etc. in writing (including electronic documents) to the medical device manufacturer, the medical device importer, the manager of an overseas manufacturing site, or the government of an exporting country.

[Newly inserted on Jun. 12, 2019]

Article 57 (Orders for Recall, Destruction, and Publication) (1) Following Article 34 (3) of the Act, upon verification as to whether a medical device under the subparagraphs of Article 34 (1) of the Act falls under any subparagraph of Article 52 (2), the Commissioner of the Regional Office of Food and Drug Safety, the Special Self-Governing Province Governor, or the head of a

Si/Gun/Gu may order a person responsible for recall to recall or destroy the relevant medical device or to perform other treatments, and to publish such fact. <Amended on Dec. 31, 2018; Apr. 13, 2020; Jan. 21, 2022>

- (2) Articles 52 (3) through (8), Article 53, and Article 54 shall apply *mutatis mutandis* to the methods for recall, destruction, or publication under Paragraph (1). <Amended on Dec. 31, 2018, Jan. 21, 2022>

[Title amended on Jan. 21, 2022]

Article 58 (Standards for Administrative Dispositions) (1) The standards for administrative dispositions under Article 36 of the Act shall be as specified in Annex 8.

- (2) The standards for administrative dispositions under Article 37 of the Act shall be as specified in Annex 9.

Article 59 (Qualifications and Scope of Duties of Medical Device Surveillance Officers) (1) Medical device surveillance officers under Article 40 of the Act shall be appointed by the Minister of Health and Welfare, the Minister of Food and Drug Safety, the Commissioner of the Regional Office of Food and Drug Safety, the Mayor/*Do* Governor, or the head of a *Si/Gun/Gu* from among any of the following public officials under the authority thereof: <Amended on Jun. 24, 2021>

1. A person who has graduated from a junior college or a university or college with a degree in medicine, pharmacy, dentistry, oriental medicine, veterinary medicine, medical engineering, or natural science or engineering or a person who has qualifications at least equivalent thereto;
 2. A person who has at least 1 year of work experience in health care administration.
- (2) The scope of duties of medical device surveillance officers shall be as follows: <Amended on May 1, 2017; Dec. 31, 2018; Jun. 24, 2021>
1. In cases of medical device surveillance officers belonging to the Ministry of Health and Welfare, the Ministry of Food and Drug Safety, or a regional office of food and drug safety, the following duties: Provided, That when it is necessary to conduct a national survey, systematic survey, etc., the duties referred to in Subparagraphs 2 and 3 may be performed:
 - (a) Follow-up surveillance of medical device manufacturers and importers and collection and inspection of medical devices;
 - (b) Follow -up surveillance of institutions reviewing technical documents, clinical investigation sites, institutions conducting non-clinical studies, audit organizations, and other places handling medical devices in the process of conducting business affairs; and collection and inspection of medical devices (limited to medical device surveillance officers belonging to the Ministry of Food and Drug Safety or a regional office of food and drug safety);
 2. Deleted. <Jun. 24, 2021>
 3. In cases of medical device surveillance officers belonging to a *Si/Gun/Gu*, follow-up

surveillance of medical device distributors and lessors, the founders of medical institutions under the Medical Service Act, and the founders of veterinary hospitals under the Veterinarians Act.

Article 59-2 (Qualifications of Customer Medical Device Surveillance Officers) (1) The Commissioner of the Regional Office of Food and Drug Safety, Special Metropolitan City Mayor, a Metropolitan City Mayor, a *Do* Governor, the Special Self-Governing Province Governor, the Special Self-Governing City Mayor, or the head of a *Si/Gun/Gu* may commission any of the following persons as a consumer medical device surveillance officer following Article 40-2 (1) of the Act: [<Amended on Apr. 13, 2020; Jun. 24, 2021>](#)

1. A person falling under any subparagraph of Article 59 (1);
 2. A person with at least 1 year of work experience at a company or institution related to medical devices;
 3. A person who has completed an education program determined and publicly notified by the Minister of Food and Drug Safety;
 4. From among the members or employees of associations or organizations related to medical devices, a person recommended by the head of the relevant association or organization;
 5. From among the executive officers and employees of consumer organizations registered under Article 29 of the Framework Act on Consumers, a person recommended by the head of the relevant organization.
- (2) A consumer medical device surveillance officer commissioned under Paragraph (1) (hereinafter “consumer medical device surveillance officer”) shall serve for two years and may be recommissioned for another term of two years.
- (3) “Matters prescribed by Ordinance of the Prime Minister” in Article 40-2 (2) 3 of the Act refers to the following:
1. Assisting relevant public officials in destroying, enveloping, or sealing goods following Article 34 (2) of the Act;
 2. Reporting and providing information on violators of statutes and regulations related to medical devices;
 3. Others affairs such as public campaigns for the safe management of medical devices.
- (4) Upon commission of a consumer medical device surveillance officer under Paragraph (1), the Commissioner of the Regional Office of Food and Drug Safety, the Special Metropolitan City Mayor, a Metropolitan City Mayor, a *Do* Governor, the Special Self-Governing Province Governor, the Special Self-Governing City Mayor, or head of a *Si/Gun/Gu* shall provide education on the statutes and regulations, etc. related to medical devices at least once a year to such commissioned consumer medical device surveillance officer following Article 40-2 (4) of the Act. [<Amended on Apr. 13, 2020; Jun. 24, 2021>](#)
- (5) A written approval for unaccompanied access to a distribution or leasing business place by a consumer medical device surveillance officer and an identification indicating his or her status

under Article 40-2 (7) of the Act shall be as prepared in Forms 50-2 and 50-3, respectively.

- (6) Except as provided in Paragraphs (1) through (5), details regarding the operation of consumer medical device surveillance officers shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly inserted on Jun. 15, 2016]

Article 59-3 (Designation of Medical Device Safety Information Monitoring Centers) (1) A person who intends to obtain designation as a monitoring center (hereinafter “monitoring center”) on medical device safety information under Article 43 (1) 7 (hereinafter “medical device safety information”) for an institution following Article 43 (3) shall submit an application for designation as a monitoring center in Form 50-4 (including an application in electronic form) to the Minister of Food and Drug Safety, along with documents (including electronic documents) regarding the following matters:

1. A business progress plan of a monitoring center;
 2. Budget for a business progress plan of a monitoring center;
 3. Facilities and personnel required for a business progress plan of a monitoring center;
 4. Performance regarding collection and analysis of medical device safety information within the last 3 years (only when applicable);
 5. Other matters similar to documents under Subparagraphs 1 through 4 which are deemed necessary by the Minister of Food and Drug Safety.
- (2) Upon receipt of an application under Paragraph (1), the Minister of Food and Drug Safety shall verify a license for opening a medical institution through administrative data matching under Article 36 (1) of the Electronic Government Act: Provided, That when an applicant does not consent to the verification of the license for opening a medical institution, such applicant shall attach a copy thereof.
 - (3) When deemed necessary for designation as a monitoring center under Article 43 (3) by the Minister of Food and Drug Safety, he or she may conduct a fact-finding survey on the facility and personnel of such center.
 - (4) When deemed necessary for effective operation of monitoring centers under Article 43 (3) by the Minister of Food and Drug Safety, he or she may designate monitoring centers by distributing them across regions or districts as determined by the Minister of Food and Drug Safety.
 - (5) When the Minister of Food and Drug Safety designates a monitoring center under Article 43 (3), he or she shall issue the applicant with a certificate of designation as a monitoring center in Form 50-5.
 - (6) Except as provided in Paragraphs (1) through (5), details necessary for procedures and methods for designation as a monitoring center shall be determined and publicly notified by the Minister of Food and Drug Safety.

[Newly inserted on Dec. 4, 2020]

Article 59-4 (Business Scope and Operation of Monitoring Centers) (1) The scope of business of a monitoring center shall be as follows:

1. Collection of side effects or safety information regarding medical devices;
 2. Analysis and research on side effects of medical devices;
 3. Exchange and cooperation with other medical institutions regarding medical device safety information;
 4. Education and campaigns regarding medical device safety information;
 5. Business similar to the matters under Subparagraphs 1 through 4 which is deemed necessary by the Minister of Food and Drug Safety.
- (2) A monitoring center shall report through the NIDS every year to the Minister of Food and Drug Safety on matters regarding a business operation plan, budget plan, results of business and budget execution, etc., as determined by the Minister of Food and Drug Safety.
- (3) A monitoring center shall notify the NIDS every month of matters on side effects or safety information as determined by the Minister of Food and Drug Safety for supporting medical device safety information businesses: Provided, That in cases of matters regarding information with grave effects on public health, etc., the monitoring center shall report such matters to the Minister of Food and Drug Safety and the NIDS without delay.
- (4) When deemed necessary for securement of appropriate business operations or budget operations of a monitoring center by the Minister of Food and Drug Safety, he or she may order relevant measures, including the complementation or improvement of the relevant monitoring center.
- (5) When deemed necessary for facilitation of the operation of a monitoring center by the Minister of Food and Drug Safety, he or she shall fully or partially support operational expenses of such center within a set budget.
- (6) Except as provided in Paragraphs (1) through (5), details necessary for the business, operation, and supervision of a monitoring center shall be determined and publicly notified by the Minister of Food and Drug Safety.

[\[Newly inserted on Dec. 4, 2020\]](#)

Article 60 (Procedures and Methods for Revoking Manufacturing Approval of Medical Devices) The procedures, methods, etc. for revocation under Article 43-2 of the Act shall be governed by the Administrative Procedures Act.

[\[Title amended on Jan. 21, 2022\]](#)

Article 61 (Guidance and Supervision for the NIDS) The Minister of Food and Drug Safety shall provide guidance and supervision to the NIDS on the following matters at least once a year following Article 43-3 (4) of the Act: [<Amended on Jun 14, 2018>](#)

1. Whether the affairs related to certification or notification entrusted to the NIDS

following Article 44 (2) of the Act have been appropriately performed;

2. Whether the operational budget has been appropriately compiled and executed;
3. Other matters deemed necessary by the Minister of Food and Drug Safety.

[Title amended on Jun. 14, 2018]

Article 61-2 (Qualifications, Scope of Duties, and Identifications of Investigators of Causal Relationship) (1) An investigator of causal relationship under Article 43-5 (1) of the Act (hereinafter “investigator of causal relationship”) shall be appointed or commissioned from among any of the following persons:

1. An employee of the NIDS responsible for investigating and identifying the causal relationship between medical devices and the side effects;
 2. A public health doctor defined in Article 2 of the Act on Special Measures for Health and Medical Services in Agricultural and Fishing Villages, Etc.;
 3. A medical doctor, dentist, oriental medical doctor, or nurse referred to in Article 2 (1) of the Medical Service Act;
 4. Other persons with abundant expertise and experience in fields related to medical devices.
- (2) The head of the NIDS may pay allowances and travel expenses to a commissioned investigator of causal relationship within a set budget.
- (3) An investigator of causal relationship may investigate and identify the causal relationship between medical devices and the side effects in any of the following cases:
1. When side effects falling under Article 51 (1) 1 or 2 have occurred or are suspected of having occurred during the use of medical devices;
 2. When unintended syndromes, symptoms, or diseases have occurred in large numbers to patients who have used the medical devices at a specific region or in a specific period of time;
 3. Other cases where the Minister of Food and Drug Safety deems it necessary to investigate and identify the causal relationship between medical devices and the side effects.
- (4) An identification indicating the authority of an investigator of causal relationship referred to in the latter part of Article 43-5 (3) of the Act shall be as prepared in Form 50-4.
- (5) “Relevant documents” in the latter part of Article 43-5 (3) of the Act refers to documents including the following matters:
1. The purpose, duration, scope, and contents of the investigation;
 2. The name and position of a person responsible for the investigation;
 3. The list of submitted data;
 4. The statutes and regulations serving as a legal basis for the investigation;
 5. The details of administrative dispositions, penalties, etc. for the refusal, obstruction, evasion, etc. of the investigation and statutes and regulations used as a legal basis therefor;

6. Except as provided in Subparagraphs 1 through 5, matters deemed necessary by the Minister of Food and Drug Safety for the relevant investigation.

[Newly inserted on Jun. 14, 2018]

Article 62 (Medical Devices Excluded from Validity Periods) The validity period of manufacturing approval, etc. under the main text of Article 49 (1) (hereinafter “manufacturing approval, etc.”) does not apply to any of the following medical devices following the proviso of Article 49 (1):

1. Medical devices for export produced or imported only for the export;
2. Medical devices that have obtained conditional manufacturing approval or for which a conditional manufacturing notification has been filed under Article 7 of the Act (including cases applicable *mutatis mutandis* under Article 15 (6) of the Act).

[Wholly amended on Dec. 4, 2020]

Article 62-2 (Renewal of Manufacturing Approval) Standards for manufacturing approval, etc. under Article 49 (3) of the Act shall be as follows:

1. Any serious problem shall not exist regarding safety or effectiveness of medical devices;
 2. Data necessary for renewal of manufacturing approval, etc. shall be faithfully submitted;
 3. Production or import performance data shall exist regarding the relevant medical device;
 4. Statutes and regulations related to medical devices shall be faithfully observed;
 5. Other standards similar to the ones under Subparagraphs 1 through 4 determined and publicly notified by the Minister of Food and Drug Safety shall be satisfied.
- (2) A person who intends to have manufacturing approval, etc. renewed under Article 49 (3) of the Act shall submit an application for the renewal of manufacturing (import) approval in Form 51, an application for renewal of manufacturing (import) certification in Form 51-2, or an application for notification of the renewal of manufacturing (import) notification in Form 51-3 (including an application in electronic form) to the Minister of Food and Drug Safety [limited to manufacturing (import) renewal; hereinafter the same shall apply] or to the NIDS [limited to manufacturing (import) certification or notification renewal; hereinafter the same shall apply], along with the following documents (including electronic documents):
1. Original copy of a manufacturing (import) license or manufacturing (import) certificate of the relevant medical device;
 2. Data evidencing that safety and effectiveness of the relevant medical device has been maintained over the previous validity period;
 3. Data regarding production or import performance of the relevant medical device for the previous validity period;
 4. Other cases similar to data under Subparagraphs 1 through 3, which are deemed necessary by the Minister of Food and Drug Safety for the renewal of manufacturing approval, etc.

- (3) When deemed necessary for renewal of a manufacturing approval, etc. under Article 49 (3) of the Act, the Minister of Food and Drug Safety or the NIDS may conduct a fact-finding survey on a manufacturer or importer or request a related institution, organization, specialist, etc. to provide data or opinion.
- (4) When the Minister of Food and Drug Safety or the NIDS renews manufacturing approval, etc. under Article 49 (3) of the Act, he or she shall issue a new manufacturing (import) license in Form 4 or a new manufacturing (import) certificate in Form 6 and notify the applicant of the renewal of manufacturing (import) notification in writing. In such cases, the validity period of the renewed manufacturing approval, etc. shall start from the day following the end of the previous validity period.
- (5) When deemed necessary for renewal of manufacturing approval, etc. under Article 49 (3) of the Act, the Minister of Food and Drug Safety or NIDS may notify in advance the manufacturer or importer of the fact that the manufacturing approval, etc. cannot be renewed after the expiration of the validity period and matters regarding renewal procedure.
- (6) “Unavoidable causes prescribed by Ordinance of the Prime Minister” under the proviso of Article 49 (6) of the Act refers to the following cases: [<Amended on Jan. 21, 2022>](#)
 1. When it is deemed impossible to proceed with normal manufacturing operations because raw materials for manufacturing of medical devices were not provided;
 2. When it is deemed impossible to proceed with normal import processes because of suspension of medical device export in the exporting country or political or economic situation thereof;
 3. When demand for orphan medical devices applied to a small number of patients, etc. is deemed non-existent;
 4. Other causes similar to those under Subparagraphs 1 through 3 which are determined and publicly notified by the Minister of Food and Drug Safety.
- (7) Except as provided in Paragraphs (1) through (6), details necessary for the procedures and methods for the renewal of manufacturing approval, etc. shall be determined and publicly notified by the Minister of Food and Drug Safety.

[\[Newly inserted on Dec. 4, 2020\]](#)

Article 63 (Re-Issuance of Licenses) (1) A medical device manufacturer, importer, repairer, distributor, or lessor who intends to be reissued a license, certificate, or certification of notification for reasons recognized by the Minister of Food and Drug Safety, including when the license, certificate, or certification of notification is lost, becomes unusable, or becomes subject to any change, such manufacturer, importer, repairer, distributor, or lessor shall submit an application in Form 52 (including an application in electronic form), along with the relevant license, certificate, or certification of notification (excluding when the license, certificate, or certificate of notification is lost) to a person according to the following classifications: [<Amended on Jun. 14, 2018, Jun. 24, 2021>](#)

1. For a medical device manufacturer or importer:
 - (a) The manufacturing or import business license: The Commissioner of the Regional

Office of Food and Drug Safety having jurisdiction over the location of the relevant manufacturing or import business place;

- (b) The manufacturing or import license: The Minister of Food and Drug Safety;
- (c) The manufacturing or import certificate and the certificate of manufacturing or import notification: The head of the NIDS;

2. Deleted. <Jun. 24, 2021>

3. For a medical device repairer, distributor, or lessor: The Special Self-Governing Province Governor or the head of a *Si/Gun/Gu* having jurisdiction over the location of the relevant repair, distribution, or leasing business place.

- (2) When reissuing a license, certificate, or certificate of notification following Paragraph (1), the Minister of Food and Drug Safety, Commissioner of the Regional Office of Food and Drug Safety, the head of the NIDS, the Mayor/Do Governor, or the head of a *Si/Gun/Gu* shall enter the reasons for re-issuance in the relevant register. <Amended on Jun. 14, 2018; Jun. 24, 2021>
- (3) Any person who intends to be confirmed or proved regarding matters approved, certified, or notified under Article 6 or 15 of the Act shall submit an application in Form 53 (including an application in electronic form; for a foreign-language application, the translation thereof) to the Minister of Food and Drug Safety, the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of the relevant manufacturing or import business place, or the head of the NIDS. <Amended on Jun. 14, 2018>

Article 64 (Cooperation in Provision of Data) Any person who has applied for manufacturing approval or manufacturing certification or has filed a manufacturing notification under Articles 5 through 7 may request that the Minister of Food and Drug Safety or the head of the NIDS provide specialized institutions or organizations entrusted with the relevant affairs under Article 55 of the Medical Service Act with documents including the relevant applications for manufacturing approval or notifications, and data stating the current status of the procedures for manufacturing licenses, etc. In such cases, the Minister of Food and Drug Safety or the head of the NIDS who receives such request may provide the relevant documents and data to such specialized institutions or organizations. <Amended on Jun. 14, 2018>

Article 65 (Fees) (1) Fees under Article 50 of the Act shall be as specified in Annex 10: Provided, That when any matter approved, certified, or notified is modified, a person who has filed an application or notification shall be exempted from fees if such person is not responsible for the change, including when the need for change arises due to the change of location following the reorganization of administrative districts, and where any of the following subparagraphs applies, the fees may be reduced by up to 50 percent. <Amended on Sep. 20, 2024; Apr. 1, 2025>

- 1. Where the person liable for payment of fees under subparagraph 1 or item 18 of Annex 10 is a micro-enterprise pursuant to Article 2 of the Framework Act on Micro Enterprises, and the Minister of Food and Drug Safety deems that a fee reduction is necessary to alleviate economic burden or support business stability;
- 2. Where the person liable for payment of fees under subparagraphs 3, 4, 5, 6, and

subparagraphs 8 through 10 of Annex 10 intends to manufacture or import medical devices that include a function to provide use information electronically—such as voice guidance or text enlargement—or where software, equipment, or other components for such function are provided together, pursuant to Article 23-2 (1) 2 of the Act;

3. Where the person liable for payment of fees under subparagraphs 3-2 and 19 of Annex 10 is a small or medium enterprise pursuant to Article 2 of the Framework Act on Small and Medium Enterprises, and the Minister of Food and Drug Safety deems that a fee reduction is necessary to alleviate economic burden or support business stability.
- (2) The fees under Paragraph (1) may be paid according to the following classifications:
<Amended on Jun. 15, 2016; Jun. 14, 2018>
 1. Payment to a State agency: Using electronic money, electronic payment, etc. via the information and communications network (hereafter, in this Paragraph, “electronic money, etc.”) or revenue stamps (in cases of business affairs under the authority of the Minister of Food and Drug Safety, cash or payment receipts verifying cash payment);
 2. Payment to a local government: Electronic money, etc. or revenue stamps of the relevant local government;
 3. Payment to the NIDS: Electronic money, etc.
- (3) When the person who has paid fees under Paragraphs (1) and (2) withdraws the application for approval, certification, etc. within the period determined and publicly notified by the Minister of Food and Drug Safety, the Minister of Food and Drug Safety may return the entire or part of such fees as determined and publicly notified by the Minister of Food and Drug Safety.

<Newly inserted on Apr. 13, 2020>

Article 66 (Re-Examination of Regulation) The Minister of Food and Drug Safety shall examine the appropriateness of the following matters every 3 years, counting from each base date specified in the following (referring to the period that ends on the day before the base date of every third year), and shall take measures, such as making improvements: <Amended on Jan. 16, 2024>

1. Compliance requirements for nonclinical study facilities under Article 24-3 of Article 35: January 1, 2024
2. Compliance requirements for manufacturers under Article 27: January 1, 2024
3. Compliance requirements for importers under Article 33: January 1, 2024
4. Filing of notifications, notifications of change, and notifications of closure or suspension for medical device repair businesses under Article 35 (excluding paragraph (4) thereof): January 1, 2014
5. Compliance requirements for medical device repair business operators under Article 35 (4): January 1, 2024
6. Filing of notifications, notifications of change, and notifications of closure or suspension for medical device sales or rental businesses under Article 37: January 1, 2014

ADDENDA <Act No. 1181, Jul. 29, 2015>

Article 1 (Enforcement Date) This Rule shall enter into force on July 29, 2015: Provided, That the amended provisions according to the following classifications shall enter into force on the dates specified in the relevant subparagraphs:

1. The amended provisions pertaining to the manufacturing and quality management systems in Articles 5, 6, 8, 16, 17, 26, 27, 30, 31, and 33, Annexes 2 through 4, and Forms 3, 5, and 29 through 31: January 29, 2016;
2. In the amended provisions of the proviso of Article 9 (2), the provisions providing for the exclusion of medical devices determined and publicly notified by the Minister of Food and Drug Safety as medical devices requiring the submission of data regarding clinical investigations: January 1, 2016;
3. The amended provisions of Subparagraph 2 of Annex 1: February 1, 2016;
4. Among the amended provisions of Article 9 (3), with the exception of its subparagraphs, the provisions providing for the submission to the head of a technical documentation review body: January 1, 2017.

Article 2 (Effective Period) The amended provisions of Articles 50 (2) and 53 (5) shall be effective until May 10, 2016.

Article 3 (Applicability of Cooperation in Provision of Data) The amended provisions of Article 64 (including cases applicable *mutatis mutandis* under Article 34) shall also apply to a person who applies for manufacturing or import approval or files a manufacturing or importing notification before this Rule enters into force.

Article 4 (Special Cases Concerning Manufacture of In Vitro Diagnostic Drugs and Recognition of Compliance with Quality Management Standards) With respect to in vitro diagnostic drugs under Article 6 of the Addenda to the Enforcement Rule of the Medical Devices Act (Ordinance of the Prime Minister No. 1081), any person who has obtained approval for manufacture, distribution, or import of items or has filed a notification for manufacture, distribution, or import of items following Article 4 or 5 of the Rule on Safety of Drugs, etc. as of the enforcement date specified in Subparagraph 1 of Article 1 of that Addenda, shall be deemed to have obtained recognition for compliance with standards under the amended provisions of Annex 2 by the dates according to the following classifications:

1. Class II in vitro diagnostic devices: November 10, 2016;
2. Class III and Class IV in vitro diagnostic devices: November 10, 2015.

Article 5 (General Transitional Measures) Any disposition, procedure, or other acts carried out under the previous provisions before this Rule enters into force shall be deemed carried out under the corresponding provisions of this Rule.

Article 6 (Transitional Measures Concerning Application of Standards for Administrative Dispositions) The previous provisions shall apply to administrative dispositions for violations committed before this Rule enters into force.

Article 7 (Transitional Measures Concerning Introduction of Standards for Distribution Quality Management) Any person who has filed a notification of a distribution or lease business as of the enforcement date specified in Subparagraph 2 of Article 1 of the Addenda to the Enforcement Rule of the Medical Devices Act (Ordinance of the Prime Minister No. 1081) shall comply with the standards prescribed in the amended provisions of Annex 6 by December 31, 2015.

Article 8 (Transitional Measures Concerning Forms) (1) Any manufacturer or importer under Article 3 of the Addenda to the Medical Devices Act (Act No. 12392) (hereafter in this Article “manufacturer or importer under the previous provisions”), at the time the Enforcement Rule of the Medical Devices Act (Ordinance of the Prime Minister No. 1093) enters into force, may continue to use a manufacturing or import business license issued under the previous provisions until they are reissued the relevant license under Paragraph (2).

(2) Any manufacturer or importer under the previous provisions shall be reissued a manufacturing or import business license following the amended provisions of Form 2 from the Commissioner of the Regional Office of Food and Drug Safety having jurisdiction over the location of the relevant manufacturing or import business place within 3 months from July 29, 2016.

Article 9 (Relationship with Other Statutes) (1) When any of the previous provisions of the Enforcement Rule of the Medical Devices Act is cited by other statutes and regulations at the time this Rule enters into force, and when this Rule includes a corresponding provision, such corresponding provision shall be deemed cited in lieu of the previous provision of this Rule.

(2) When any in vitro diagnostic reagent or in vitro diagnostic drug under the Rule on Safety of Drugs, Etc. is cited by other statutes and regulations at the time the Enforcement Rule of the Medical Devices Act (Ordinance of the Prime Minister No. 1081) enters into force, an in vitro diagnostic medical device referred to in this Rule shall be deemed cited in lieu thereof.

ADDENDA <Act No. 1284, Jun. 15, 2016>

This Rule shall enter into force on the date of its promulgation.

ADDENDA <Act No. 1307, Jul. 29, 2016>

This Rule shall enter into force on the date of its promulgation.

ADDENDA <Act No. 1354, Jan. 4, 2017>

This Rule shall enter into force on the date of its promulgation.

ADDENDA <Act No. 1389, May 1, 2017>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of promulgation.

Article 2 (Applicability to Amounts of Fees) Among the amended provisions of Annex 10 and Forms 3, 5, 7, 8, 30, and 31, the provisions pertaining to the amounts of fees shall begin to apply when an application, notification, or request for review is filed after this Rule enters into force.

Article 3 (Transitional Measures Concerning Designation as Institutions Conducting Non-Clinical Studies) A person conducting non-clinical studies under Article 27 of the Act among the institutions designated as medical device testing and inspection institutions referred to in Article 6 (2) 4 of the Act on Testing and Inspection in the Food and Drug Industry, at the time this Rule enters into force, shall be deemed designated as an institution conducting non-clinical studies under the amended provisions of Article 24-2: Provided, That such institution shall obtain designation as an institution conducting non-clinical studies under the amended provisions of Article 24-2 within 2 years from the date this Rule enters into force.

ADDENDA <Act No. 1469, Jun. 14, 2018>

Article 1 (Enforcement Date) This Rule shall enter into force on June 14, 2018: Provided, That the amended provisions of Articles 10, Article 14 (4) through (9), Articles 32, 51, and 53, Article 63 (1), with the exception of its subparagraphs, and Forms 11-2 and 12 shall enter into force on the date of its promulgation; and the amended provisions of Articles 36 and 46-2 shall enter into force on September 14, 2018.

Article 2 (Transitional Measures Concerning Minor Repair of Medical Devices) Notwithstanding the amended provisions of the proviso of Subparagraph 1 of Article 36, the previous provisions shall apply when a medical device repairer performs a minor repair of medical devices under the amended provisions of Article 46-2 before this Rule enters into force.

ADDENDA <Act No. 1512, Dec. 31, 2018>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation: Provided, That the amended provisions of Articles 52 through 54 and 57 shall enter into force 3 months after the date of its promulgation; and the amended provisions of Article 54-2 and Subparagraph 29-2 of II of Annex 8 shall enter into force on the date specified in Article 2 (1) 3 of the Addenda.

Article 2 (Enforcement Date of the Medical Devices Act) (1) The “date prescribed by Ordinance of the Prime Minister” in the main text of Article 1 of the Addenda to the Medical Devices Act (Act

No. 14330) refers to the dates according to the following classifications: <Amended on Oct. 22, 2019>

1. The amended provisions of the former part of Article 16 (4) and Article 31-4 of the Medical Devices Act (Act No. 14330): The date of promulgation;
 2. The amended provisions of Articles 2 (4), Article 36 (1) 9-2, and Article 3-2 of the Medical Devices Act (Act No. 14330): July 1, 2019;
 3. The amended provisions of Articles 20, Article 31-3, Article 36 (1) 17-3, and Article 56 (1) 2-3 of the Medical Devices Act (Act No. 14330):
 - (a) For Class IV medical devices: July 1, 2019;
 - (b) For Class III medical devices: July 1, 2020;
 - (c) For Class II medical devices: July 1, 2021;
 - (d) For Class I medical devices: July 1, 2022;
 4. The amended provisions of Articles 31-2, Article 36 (1) 17-2, and Article 56 (1) 2-2 of the Medical Devices Act (Act No. 14330): The dates according to the following classifications:
 - (a) Class IV medical devices: July 1, 2020;
 - (b) Class III medical devices: July 1, 2021;
 - (c) Class II medical devices: July 1, 2022;
 - (d) Class I medical devices: July 1, 2023.
- (2) Notwithstanding Paragraph (1) 3, the date the amended provisions of Subparagraph 9 of Article 20 and Article 22 of the Medical Devices Act (Act No. 15279) enter into force following the proviso of Article 1 of the Addenda to that Act shall be July 1, 2019.

Article 3 (Applicability to Recall Procedures of Harmful Medical Devices) The amended provisions of Articles 52 and 57 shall begin to apply when any medical device is verified as a medical device subject to recall under any Subparagraph of Article 52 (2) after this Rule enters into force.

Article 4 (Applicability to Registration of Integrated Medical Device Information) The amended provisions of Article 54-2 shall begin to apply when any medical device manufacturer or importer supplies medical devices after this Rule enters into force.

Article 5 (Transitional Measures Concerning Standards for Administrative Dispositions) Notwithstanding the amended provisions of Annex 8, the previous provisions shall apply to any violation committed before this Rule enters into force.

ADDENDA <Act No. 1542, Jun, 12, 2019>

This Rule shall enter into force on June 12, 2019: Provided, That the amended provisions of Article 9 (2) 4 and Subparagraph 3 of Article 22 shall enter into force on the date of its promulgation.

ADDENDA <Act No. 1567, Oct. 22, 2019>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation: Provided, That the amended provisions of Article 54-2, Subparagraph 29-2 of II. Individual Standards of Annex 8, and Form 48-2 shall enter into force on the dates according to the following classifications, and the amended provisions of Form 7 shall enter into force 1 year after the date of its promulgation.

1. Class IV medical devices: July 1, 2020;
2. Class III medical devices: July 1, 2021;
3. Class II medical devices: July 1, 2022;
4. Class I medical devices: July 1, 2023.

Article 2 (Applicability to Entering Resident Registration Numbers in Manufacturing Business Approval Register) The amended provisions of Article 3 (3) 4 (including cases applicable *mutatis mutandis* under Article 34) shall also apply to the approval register or notification register for persons who have obtained manufacturing business approval or have filed an import business notification before this Rule enters into force.

Article 3 (Applicability to Reporting Details of Supply of Medical Devices) The amended provisions of Article 54-2 shall begin to apply to medical devices supplied in the month following the 1 in which the amended provisions of the proviso of Article 1 of the Addenda enter into force.

Article 4 (Transitional Measures Concerning Application of Standards for Administrative Dispositions) Notwithstanding the amended provisions of Subparagraph 9 (g) of II. Individual Standards of Annex 8 and Subparagraph 12 (f) of the Individual Standards, the previous provisions shall apply when the standards for administrative dispositions against violations committed before this Rule enters into force are applied.

ADDENDA <Act No. 1580, Dec. 23, 2019>

This Rule shall enter into force on the date of its promulgation.

ADDENDA <Act No. 1607, Apr. 13, 2020>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation: Provided, That the amended provisions of Article 27 (2), Article 33 (2), and Subparagraph 9-2 of II. Individual Standards of Annex 8 shall enter into force 1 year and 6 months after the date of its promulgation, and the amended provisions of Article 65 (3) shall enter into force 6 months after the

date of its promulgation.

Article 2 (Applicability to Reports on Production or Import Suspension) The amended provisions of Article 27 (2) 2 and Article 33 (2) 2 shall begin to apply when the production or import of medical device is suspended after the relevant amended provisions enter into force following the proviso of Article 1 of the Addenda.

Article 3 (Applicability to the Return of Fees) The amended provisions of Article 65 (3) shall begin to apply to the fees paid after the relevant amended provisions enter into force following the proviso of Article 1 of the Addenda.

Article 4 (Transitional Measures Concerning Period for Handling Notification of Change of Medical Device Repair Businesses) Notwithstanding the amended provisions of Form 35, the previous provisions shall apply when the procedure of notification on change of medical device repair business is underway.

ADDENDA <Act No. 1614, May 1, 2020> (Enforcement Rule of the Act On In Vitro Diagnostic Medical Devices)

Article 1 (Enforcement Date) This Act shall enter into force on May 1, 2020.

Article 2 (Amendment of Other Statutes and Regulations) (1) Part of the Enforcement Rule of The Medical Devices Act shall be amended as follows:

Article 11 (2) 1 (d) is deleted.

The provisos to Article 20 (1) 3 and Paragraph (3) 3 of the same Article are deleted.

Subparagraphs 1 (c) and (d) in Annex 1 are deleted, and "according to Items (a)A through (d)" in the Item (e) shall be changed into "according to Items (a) and (b)."

The proviso to Subparagraph 3 in the box on supporting documents in Form 19 is deleted. The proviso to Subparagraph 3 in the box on supporting documents in Form 20 is deleted.

(2) Omitted

Article 3 omitted

ADDENDA <Act No. 1617, May 29, 2020> (Rules on Supporting and Managing Innovative Medical Devices)

Article 1 (Enforcement Date) This Rule shall enter into force on the date of promulgation.

Article 2 (Amendment of Other Statutes and Regulations) Part of the Enforcement Rule of The

Medical Devices Act shall be amended as follows.

Columns for supporting documents of the former part of Form 30 shall be as follows:

Supporting Documents	1. Medical device software designated as an innovative medical device (referring to independently developed and manufactured software) under Article 21 (2) of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices: The following documents under the subparagraphs of Article 11 of the Rules on Supporting and Managing Innovative Medical Devices: (a) Document verifying the changed matters; (b) Technical documents and clinical investigation data under Article 6 (5) of the Medical Devices Act (limited to changed matters determined and publicly notified by the Minister of Food and Drug Safety that affect the safety and effectiveness of medical device software designated as an innovative medical device); (c) Data evidencing the standards for facilities and manufacturing and quality management systems under Article 15 of the Enforcement Rule of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices are satisfied (limited to change of the manufacturing site or business facility determined and publicly notified by the Minister of Food and Drug Safety). 2. Medical devices not falling under Subparagraph 1: The following documents under the subparagraphs of Article 26 (3) of the Enforcement Rule of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices: (a) Document verifying the changed matters; (b) Documents under Article 5 (1) 2 of the Enforcement Rule of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices when a major matter that affects the safety or effectiveness of the medical device, such as the design, chemical components, energy source, manufacturing process, etc. is modified; (c) A copy of a contract for entrustment (limited to when the manufacturing processes or testing for quality management are entrusted; including electronic documents) and data evidencing the standards for the facilities and manufacturing and quality management systems under Form 2 of the Enforcement Rule of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices are satisfied, when the location of the manufacturing site of the relevant item is modified or other sites are added;
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Columns for supporting documents of the former part of Form 30 shall be as follows:

Supporting Documents	1. Medical device software designated as an innovative medical device (referring to independently developed and manufactured software) under Article 21 (2) of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices: The following documents under the subparagraphs of Article 11 of the Rules on Supporting and Managing Innovative Medical Devices: (a) Document verifying the changed matters; (b) Technical documents and clinical investigation data under Article 6 (5) of the Medical Devices Act (limited to changed matters determined and publicly notified by the Minister of Food and Drug Safety that affect the safety and effectiveness of medical device software designated as an innovative medical device); (c) Data evidencing the standards for facilities and manufacturing and quality management systems under Article 15 of the Enforcement Rule of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices are satisfied (limited to change of the manufacturing site or business facility determined and publicly notified by the Minister of Food and Drug Safety) 2. Medical devices not falling under Subparagraph 1: The following documents under the subparagraphs of Article 26 (3) of the Enforcement Rule of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices: (a) Document verifying the changed matters; (b) Documents under Article 5 (1) 2 of the Enforcement Rule of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices when a major matter that affects the safety or effectiveness of the medical device, such as the design, chemical components, energy source, manufacturing process, etc. is modified; (c) A copy of a contract for entrustment (limited to when the manufacturing processes or testing for quality management are entrusted; including electronic documents) and data evidencing the standards for the facilities and manufacturing and quality management systems under Form 2 of the Enforcement Rule of the Act on Nurturing Medical Device Industry and Supporting Innovative Medical Devices are satisfied, when the location of the manufacturing site of the relevant item is modified or other sites are added;
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ADDENDA <Act No. 1658, Dec. 4, 2020>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation: Provided, That the amended provisions of Article 27 (1) 9, Article 33 (1) 14, and Annex 8 shall enter into force 1 month after the date of its promulgation.

Article 2 (Applicability to Compliance for Manufacturers or Importers) The amended provisions of Article 27 (1) 9 and Article 33 (1) 14 shall begin to apply to the data or information (including cases of side effects following the use of the medical device) of which manufacturers or importers become aware after the relevant amended provisions enter into force following the proviso of Article 1 of the Addenda.

ADDENDA <Act No. 1662, Dec. 31, 2020>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of promulgation.

Article 2 (Transitional Measures Concerning Fees) Notwithstanding the amended provisions of Form 10, the previous provisions shall apply to the fees for the application for medical device manufacturing or import approval or change thereof, or the request for review of technical documents, etc. before this Rule enters into force.

Article 3 (Amendment of Other Statutes) Parts of the Enforcement Rule of the Act on In Vitro Diagnostic Medical Devices shall be amended as follows.

The fee column at the back of Form 3 shall be as follows:

Fee	
e-Government	Visit/Mail
1. Subject of the review of data regarding clinical performance studies: KRW 1,495,000;	1. Subject of the review of data regarding clinical performance studies: KRW 1,662,000;
2. Subject of the review of technical documents: KRW 719,000	2. Subject of the review of technical documents: KRW 799,000;
3. Other cases: KRW 158,000.	3. Other cases: KRW 176,000.

The fee column at the back of Form 5 shall be as follows:

Fee	
e-Government	Visit/Mail
130,000 KRW	145,000 KRW

The fee column at the back of Form 7 shall be as follows:

Fee	
e-Government	Visit/Mail
85,000 KRW	96,000 KRW

The fee column in front of Form 18 shall be as follows:

Fee	
e-Government	Visit/Mail
1. Change Approval - For reviewing clinical performance study: 1,009,000 KRW - For reviewing technical documents: 551,000 KRW - Others: 121,000 KRW 2. Change Certification: 82,000 KRW 3. Change notification: KRW 39,000.	1. Change Approval - Subject of the review of data regarding clinical performance studies: KRW 1,122,000; - For reviewing technical documents: 612,000 KRW - Others: 135,000 KRW 2. Change Certification: 93,000 KRW 3. Change notification: KRW 39,000.

Article 4 (Transitional Measures Concerning Amendment of Other Statutes and Regulations) Notwithstanding the amended provisions of Forms 3, 5, 7, and 18 of the Enforcement Rule of the Act On In Vitro Diagnostic Medical Devices, the previous provisions shall apply to the fees for an application for approval and certification or a notification of in vitro diagnostic medical device manufacture and import filed before this Rule enters into force.

ADDENDA <Act No. 1709, Jun. 24, 2021>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation: Provided, That the following amended provisions shall enter into force on the dates according to the following classification:

1. Amended provisions of Articles 45, 45-2, 45-3, Forms 38-2, 38-3, and Subparagraph 8 of Annex 8 I and Annex 10: June 24, 2021;
2. Amended provision of Article 50 (2) 2 (b): 1 year after promulgation.

Article 2 (Applicability to Medical Devices for the Purpose of Exhibition) The amended provisions of Article 46 (4) shall begin to apply to medical devices certified as medical devices for exhibition purposes before this Rule enters into force.

Article 3 (Applicability to Medical Devices Subject to Tracking Management) The amended provision of Article 50 (2) 2 (b) shall begin to apply when medical institutions use medical devices subject to tracking management determined and publicly notified by the Minister of Food and Drug Safety after the enforcement date following Subparagraph 2 of Article 1 of the Addenda.

ADDENDA <Act No. 1786, Jan. 21, 2022>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation: Provided, That the following amended provisions shall enter into force on the dates according to the following classifications:

1. Amended provisions of Articles 14, 15, 45-4, Subparagraphs 3-2, 3-3, 8 (d), 9 (g), 12 (f), 20-2, 26-2 of Annex 8 II, Subparagraph 5 of Annex 9 II, and Form 11: January 21, 2022;
2. Amended provisions of Articles 18, 18-2 through 18-5, 27, 33, 54-4, 56-2, 57, Subparagraph 5, Subparagraphs 5-2 through 5-8 of Annex 8 II, Subparagraph 7 of Annex 10, Form 16, Forms 16-2 through 16-4, and Form 17: February 18, 2022.

Article 2 (Applicability to Sealing of Medical Devices) The amended provision of Article 45-4 shall begin to apply to the medical devices manufactured or imported after the enforcement date following Subparagraph 1 of Article 1 of the Addenda.

ADDENDA <Act No. 1819, Jul. 20, 2022>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation: Provided, That the following amended provisions shall enter into force on the dates according to the following classifications:

1. Class II, III, IV medical devices: July 21, 2022;
2. Class I medical devices: July 1, 2023.

Article 2 (Applicability to Standards for Administrative Dispositions) The amended provisions of the latter part of Subparagraph 2 (a) of Annex 8 I and the latter part of Subparagraph 3 of Annex 9 I shall begin to apply to the first violation conducted after this Rule enters into force.

ADDENDA <Act No. 1841, Dec. 19, 2022> (Prime Ministerial Decree Partially Amending Three Statutes to Expand the Scope of Recognized Practical Experience Required for Qualification Acquisition, etc.)

This Rule shall enter into force on the date of its promulgation.

ADDENDA <Act No. 1936, Jan. 16, 2024>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation. Provided, however, that the amended provisions of Article 43 (1) shall enter into force on the date that is one year after its promulgation.

Article 2 (Application of Submission of Documents Related to the Quality Manager) The amended

provisions of Article 3 (1), Article 26 (1), Form 1, and Form 29 shall apply to cases where applications for approval or approval of changes for medical device manufacturing or import businesses are filed after the enforcement of this Rule.

Article 3 (Application of Provisions Concerning Matters to Be Stated in Supporting Documents) The amended provisions of Article 43 (1) shall apply to products shipped on or after the enforcement date prescribed in the proviso to Article 1 of this Addenda.

ADDENDA <Act No. 1946, Mar. 8, 2024>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation.

Article 2 (Transitional Measures for Item-Specific Manufacturing Approval Applications for Medical Devices for Export) Where an application for item-specific manufacturing approval has been filed prior to the enforcement of this Rule pursuant to former Article 4 (2) 1 (c), and the procedure is still in progress at the time of enforcement, such application shall be deemed to be in progress under the procedures for item-specific manufacturing certification or item-specific manufacturing notification pursuant to Article 4 (2) 2 or 3.

ADDENDA <Act No. 1971, Jul. 8, 2024> (Prime Ministerial Decree Partially Amending Five Statutes to Promote Public Livelihood and Economic Vitality through Temporary Regulatory Exemptions, etc.)

This Rule shall enter into force on the date of its promulgation.

ADDENDA <Act No. 1976, Aug. 7, 2024>

Article 1 (Enforcement Date) This Rule shall enter into force on August 7, 2024. Provided, however, that the amended provisions of Article 4 (2) 1 and 2, Article 44-2, Form 32, and Form 52 shall enter into force on the date of its promulgation.

Article 2 (Application Examples concerning Changes to Items Subject to Item-Specific Manufacturing Approval or Notification for Medical Devices) (1) The amended provisions of Article 4 (2) 1 (c) and subparagraph (3) of the same paragraph shall apply to cases where item-specific manufacturing approval or manufacturing notification is obtained after the enforcement of this Rule.

(2) Notwithstanding the amended provisions of Article 4 (2) 1 (c) and subparagraph (3) of the

same paragraph, Class I medical devices for which item-specific manufacturing approval was obtained under the previous provisions before the enforcement of this Rule shall remain subject to the previous provisions regarding item-specific manufacturing approval.

ADDENDA <Act No. 1982, Sep. 20, 2024>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation.

Article 2 (Application of Fee Reductions) The amended proviso to Article 65 (1) and the amended subparagraphs of the same paragraph shall apply to cases in which applications for approval, certification, or notifications are filed after the enforcement of this Rule.

ADDENDA <Act No. 2029, Apr. 1, 2025>

Article 1 (Enforcement Date) This Rule shall enter into force on the date of its promulgation. Provided, however, that the amended provisions of Article 3 (1) 3 (a) proviso, Article 26 (1) 2 (a) proviso, the back page of Form 1, and the front page of Form 29 shall enter into force on the date that is three months after its promulgation.

Article 2 (Application of Exemption from Submission of Documents Verifying the Qualifications of the Quality Manager) The amended provisions of Article 3 (1) 3 (a) proviso, Article 26 (1) 2 (a) proviso, the back page of Form 1, and the front page of Form 29 shall apply to cases where applications for approval or approval of changes for medical device manufacturing businesses are filed on or after the enforcement date prescribed in the proviso to Article 1 of this Addenda.

Article 3 (Application of Fee Reductions for Newly Developed Medical Devices, etc.) (1) The amended provisions of Article 65 (1) 3 (limited to the part related to subparagraph 19 of Annex 10) shall apply to cases where applications for prior review of technical documents, etc. for newly developed medical devices are filed after the enforcement of this Rule. (2) Notwithstanding the amended provisions of Article 65 (1) 3 (limited to the part related to subparagraph 3-2 of Annex 10), fee reductions for manufacturing or import approval of newly developed medical devices applied for prior to the enforcement of this Rule shall be governed by the previous provisions.

Article 4 (Transitional Measures concerning Prior Review Fees for Newly Developed Medical Devices) Notwithstanding the amended provisions of subparagraphs 3-2 and 19 of Annex 10 and the remarks column of the same Annex, fees for manufacturing or import approval of newly developed medical devices, or for preliminary review of technical documents, etc. for newly

developed medical devices, applied for prior to the enforcement of this Rule shall be governed by the previous provisions.

ADDENDA <Act No. 2039, Jul. 24, 2025>

This Rule shall enter into force on the date of its promulgation.

ADDENDA <Act No. 2044, Aug. 1, 2025>

Article 1 (Enforcement Date) This Rule shall enter into force on August 1, 2025.

Article 2 (Transitional Measures concerning Records of Medical Devices Subject to Tracking Management) Where a user submits to the Minister of Food and Drug Safety records prepared before the enforcement of this Rule pursuant to former Article 50 (1) 2 in accordance with Article 50 (2), such submission shall be governed by the previous provisions, notwithstanding the amended provisions of Article 50 (1) 2.

ADDENDA <Act No. 2060, Oct. 31, 2025> (Prime Ministerial Decree Partially Amending Six Statutes to Reflect Government Organization Restructuring)

This Rule shall enter into force on the date of its promulgation.

- ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 1]
<Amended on May 1, 2020>

Standards and Procedures for Medical Device Classification and Designation of Classes
(Related to Article 2)

1. Standards for the Classification of Medical Devices

- A. The Minister of Food and Drug Safety shall classify medical devices into any of the following four classes through deliberation by the Medical Device Committee according to the purpose of use and the degree of potential risk to human body. In such case, if a medical device falls under two or more of the following classes, it shall be classified into the class of the highest risk:
 - 1) Class I: Medical devices with little potential risk;
 - 2) Class II: Medical devices with low potential risk;
 - 3) Class III: Medical devices with moderate potential risk;
 - 4) Class IV: Medical devices with high risk.
- B. The standard for deciding the degree of potential risk of Item A are as follows:
 - 1) Duration of contact with human body;
 - 2) Degree of invasiveness;
 - 3) Whether a device delivers medicine or energy to the patient;
 - 4) Whether a device has biological impact on the patient.
- C. Deleted. <May 1, 2020>
- D. Deleted. <May 1, 2020>
- E. Detailed standards for the purpose and use and potential risk under Items A and B shall be determined and publicly notified by the Minister of Food and Drug Safety.

2. Procedures for Designation of Class

The Minister of Food and Drug Safety shall classify medical devices into Section, Division, or Group according to the classification of the following items. In such case, items classified as Section and Division shall be publicly notified, and items classified as Group shall be publicly notified by assigning classification to each item:

- A. Section: Classification of medical devices into each instrument/machine, device, or material;
- B. Division: Classification of each Section into product groups with similar raw material, manufacturing process, and quality control system;
- C. Group: Classification of each Division into each item where functions are demonstrated independently.

3. Application for Class Re-Designation and Designation Procedures
- A. The Minister of Food and Drug Safety may re-designate the class of each item through deliberation by the Medical Device Committee when there is an application for re-designation from the party concerned, etc., or when it is deemed there is a need for such re-designation.
 - B. In cases of re-designation, the degree of potential risk and validity of such re-designation under the following standards shall be examined:
 - 1) Whether the description of each item and purpose, use, principle, feature, function, etc. of the relevant medical device correspond to similar items;
 - 2) Whether safety and performance of each item are fully secured compared to the items already classified to be designated, and managed.
 - C. A person who intends to apply for class re-designation shall submit an application in Form 54 to the Minister of Food and Drug Safety, along with the following data:
 - 1) Data on technical document, etc.;
 - 2) Data on comparative analysis of technical characteristics including structure/operational principle, performance, purpose of use, methods of use, etc. with other devices that are similar to medical devices subject to class re-designation.
 - D. Upon receiving an application for class re-designation under the provisions of Item C, The Minister of Food and Drug Safety shall review and decide within 90 days and notify the applicant of the result, and notify the public thereof.

■ ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 2]

<Amended on Jan. 21, 2022>

Standards for Facilities and Manufacturing and Quality Management Systems

(Related to Article 8)

1. Facility Standards

A. Facility of Manufacturing Site

- 1) A person who intends to obtain a manufacturing approval for medical devices (excluding software medical devices) or a manufacturer shall prepare and maintain the following facilities and equipment at a manufacturing site and shall inspect them periodically to prevent any trouble in manufacturing and quality management of medical devices:
 - a) Production area where manufacturing processes are conducted;
 - b) Laboratory where the quality management of raw materials, materials, and products are conducted;
 - c) Storage area where raw materials, materials, and products are stored;
 - d) Facilities and equipment required for manufacturing and quality management.
- 2) A person who intends to obtain a manufacturing approval for software medical devices or a manufacturer shall prepare and maintain premises, facilities, and equipment for establishing and implementing a quality management system (QMS) under items 2 A and B at a manufacturing site and shall inspect them periodically to prevent any trouble in manufacturing and quality management of software medical devices.

B. Standards for Manufacturing Site Facility

A Production area and a storage area under items A 1) a) and b) shall satisfy the following standards:

- 1) Production area
 - a) A production area shall have facilities capable of preventing mice, harmful insects, dust, etc.
 - b) The ceiling of a production area where products requiring sterilization are manufactured shall be finished to prevent dust from falling, and its floor and walls shall be maintained smooth so that dust or dirt can be easily removed, and the surface of its ceiling, floor, and walls shall be made to be resistant to cleaning processes using disinfecting sprays.
 - c) A workbench shall be placed in a production area; In cases of manufacturing products requiring sterilization, sterilization facilities shall be placed.

- 2) A storage area shall be equipped so as to store raw materials, materials, and products hygienically and safely.

C. Entrustment of Manufacturing Process and Testing

A person who intends to obtain a manufacturing business approval or a manufacturer may entrust manufacturing processes of medical devices or testing for quality management to a medical device testing and inspection institution, a non-clinical trial institution, or a manufacturer that has obtained certification of conformity under subparagraph 2.

D. Management Responsibility of Manufacturer for Trustee Entrusted with Manufacturing Processes or Testing A manufacturer who has entrusted any manufacturing process or testing shall thoroughly manage and supervise the trustee according to the following items so that the manufacturing process or testing may be performed appropriately:

- 1) Shall prepare a device master record for quality management, provide it to the trustee, and have the trustee record matters concerning manufacturing process and quality management for each product based on the device master record;
- 2) Shall have the trustee submit records on the manufacturing process and quality management of each product under item A, and retain them until one year from the expiration date of the product; Provided, That in cases of a product with no expiration date established, such records shall be preserved for a period corresponding to the life span of the product.

2. Standards for Manufacturing and Quality Management System

A. Quality Management System

A manufacturer shall establish a quality management system (QMS) to efficiently manage the organization, responsibilities, procedures, processes, resources, etc. for the manufacturing and quality management and prepare documents related to the system in writing in forms of a quality manual, etc.

B. Documentation and Implementation of QMS

A manufacturer shall document the details of a QMS, such as procedures and methods for the following matters, and implement the QMS accordingly:

- 1) Quality policy;
- 2) Contract review;
- 3) Design management;
- 4) Document and data management;
- 5) Purchase management;
- 6) Product identification and tracking management;
- 7) Manufacturing process management;

- 8) Testing and inspection of purchases and products;
- 9) Management of non-conforming products;
- 10) Management of measuring equipment;
- 11) Corrective and preventive actions;
- 12) Matters concerning product handling, storage, packaging, preservation, and delivery;
- 13) Education and training;
- 14) Other matters necessary for manufacturing and quality management, such as product validation, etc.

C. Responsibilities and Authorities

A manufacturer shall define and document the responsibilities and authorities of each person, and relationship among these persons who may affect the quality of products.

D. Management of Quality Records

- 1) A manufacturer shall document and manage the procedures for identification, collection, indexing, perusal, storage, maintenance, and disposal of various records necessary for manufacturing and quality management.
- 2) All quality records shall be stored in a facility where any damage, loss, or deterioration can be prevented in a manner that enables quick searching for necessary data.

E. Quality Inspection, Etc.

1) Internal Quality Inspection

A manufacturer shall, to conform with these standards, document the procedures for planning and conducting internal quality inspections, conduct such inspections periodically, and use the results for manufacturing and quality management.

2) External Quality Inspection

According to Article 27 (1) 11 of the Rule, a manufacturer shall receive a periodical external inspection on conformity with these good manufacturing practices every three years as prescribed and publicly notified by the Minister of Food and Drug Safety.

F. Certification of Conformity

- 1) A person who intends to obtain certification for conformity with these standards or receive a periodic inspection shall apply to the head of a quality management examination agency under Article 28 of the Act as prescribed by the Minister of Ministry of Food and Drug Safety.
- 2) Upon receipt of an application under 1), the head of a quality management examination agency shall conduct a document review and a fact-finding survey of the manufacturing site of the applicant as prescribed and publicly notified

by the Minister of Food and Drug Safety: Provided, That this fact-finding survey may not be required if approved by the Minister of Food and Drug Safety.

- 3) Where, as a result of the document review and on-site inspection under subparagraph 2, it is deemed to conform to the Medical Device Good Manufacturing Practices (GMP) prescribed by the Minister of Food and Drug Safety, the head of a quality management examination agency shall issue a Certificate of Conformity with the Medical Device Good Manufacturing Practices and shall notify the results to the Minister of Food and Drug Safety or the Commissioner of the Regional Office of Food and Drug Safety
- 4) The Minister of Food and Drug Safety or the Commissioner of the Regional Office of Food and Drug Safety shall take administrative measures following relevant regulations according to the inspection results reported by the quality management examination agency.
- 5) A person who intends to obtain a certification for conformity with the Standards or receive a periodic inspection on such compliance shall pay all or part of the expenses incurred for the process.

G. Detailed Standards

Details of manufacturing and quality management processes and matters not specified in the Standards shall be determined and publicly notified by the Minister of Food and Drug Safety.

- ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 3]
<Amended on Jun. 24, 2021>

Good Clinical Practice for Medical Devices

(Related to Article 24 (1))

1. Purpose

The purpose of this Good Clinical Practice (GCP) is to obtain accurate and reliable data and results and ensure that the protection of the rights and interests of the subjects and the guarantee of confidentiality are appropriately achieved during any clinical trial, by specifying standards for planning, implementing, monitoring, inspecting, data recording and analysis, preparing the clinical study report necessary for conducting such a clinical trial, etc.

2. Definitions

The terms used in this GCP are defined as follows:

- a. The term “clinical trial/study” refers to a test or research on human subjects to evidence the safety and effectiveness of a medical device used in clinical trials.
- b. The term “multicenter trial” refers to a clinical trial conducted at 2 or more clinical trial institutions under 1 clinical trial protocol.
- c. The term “non-clinical study” refers to a biomedical study not performed on human subjects.
- d. The term “clinical trial protocol (hereinafter, “protocol“)” refers to a document describing the purpose, subject, test (research) method, statistical considerations, relevant organizations, etc. of a clinical trial to provide the background or grounds for the relevant clinical trial.
- e. The term “protocol amendment” refers to a document stating changes in the content of a clinical trial protocol or clearly restating the ambiguous parts of the initial clinical trial protocol.
- f. The term “case report form” (CRF) refers to a document printed or electronically stored for recording information requested in a clinical trial protocol for each subject and delivering it to the sponsor of the clinical trial (hereinafter, “sponsor”).
- g. The term “clinical trial/study report (hereinafter, “CSR“)” refers to a document that describes the results obtained from a clinical trial which are integrated in clinical and statistical aspects.
- h. The term “interim clinical trial/study report” (hereinafter, “interim report”) refers to a document reporting interim results based on analyses conducted during a clinical trial.

- i. The term “investigational device” refers to a study device and comparator used in a clinical trial.
- j. The term “study device” refers to a medical device excluding comparator among investigational devices.
- k. The term “comparator” refers to a mock product or a medical device under development or on the market, which is used in a clinical trial for being compared with a study device.
- l. The term “adverse event (AE)” refers to any unintended sign (including abnormal laboratory test results, etc.), symptom, or disease that occurs in a subject during a clinical trial, which does not necessarily has a causal relationship with the relevant investigational device.
- m. The term “adverse device effect (ADE)” refers to any harmful and unintended reactions arising out of use of an investigational device, where the causal relationship between these reactions and the device cannot be denied.
- n. The term “serious AE/ADE” refers to any of the following cases among adverse events or adverse device effects resulting from the medical device used in a clinical trial:
 - 1) Resulting in death or is life-threatening;
 - 2) Causing a subject to be hospitalized or extending the hospitalization of a subject;
 - 3) Resulting in a permanent or significant disability or decrease in function;
 - 4) Resulting deformity or abnormality in a fetus.
- o. The term “unexpected adverse device effect” refers to deviation from the aspect of adverse device effects or the degree of harm considering the available medical-device-related information such as investigators’ brochure or medical device package inserts.
- p. The term “subject/trial subject” (hereinafter, “subject”) refers to a person who participates in a clinical trial by being subject to the application of investigational devices or being included in a control group.
- q. The term “vulnerable subjects” refer to subjects whose voluntary decision to participate in a clinical trial may be affected by their expectation of benefits related to their participation, or their fear of disadvantages from their superiors in the organizational hierarchy in cases of refusing to participate (e.g. students at medical colleges, oriental medicine colleges, pharmaceutical colleges, dental colleges, and nursing colleges; workers at medical institutions and research institutes; employees at manufacturing companies; military personnel; prisoners, etc.), patients suffering from incurable diseases, people housed in any of group facilities under Article 22, the unemployed, the poor, patients faced with emergencies, racial minorities, vagrants, the homeless, refugees, minors, or other subjects unable to give consent of their free will.
- r. The term “well-being of the trial subjects” refers to physical and mental well-being of subjects participating in a clinical trial.
- s. The term “subject identification code” refers to a unique identifier assigned to

each subject by the principal investigator to protect the identity of the subject, which is used instead of the name of the subject when the principal investigator reports adverse events or other data related to the clinical trial.

- t. The term “investigators” collectively refer to a principal investigator, a subinvestigator or a coordinating investigator of a clinical trial.
- u. The term “coordinating committee” refers to a committee organized by the sponsor to coordinate the implementation of a multicenter trial.
- v. The term “coordinating investigator” refers to a principal investigator from each clinical trial institution with the authority and duty to coordinate opinions among investigators participating in a multicenter trial.
- w. The term “subject information sheet” refers to a document provided to subjects by a principal investigator that includes any information related to a clinical trial in order to obtain consent of the subjects on their participation in the trial.
- x. The term “subject’s representative” refers to a person with parental authority, spouse, or guardian of a subject, who can make a decision regarding the subject’s participation in a clinical trial on behalf of the subject.
- y. The term “source data” refers to any information contained in an original document or an official copy of an original document stating relevant clinical findings, observations, other actions, etc. necessary to reproduce or evaluate a clinical trial.
- z. The term “source document” refers to any document (including electronic documents), data, and records that contain source data, such as hospital records, medical records, subject records, notes, pathology test results, subjects’ diaries, evaluation checklists, medical device dispensing records, data recorded on automated test equipment, test certificates and official copies thereof, microfiches (pieces of film containing microphotographs of each page of a book), microfilm, radiological test data, magnetic tapes, pathology laboratory records, etc.
- aa. The term “essential document” refers to any document (including electronic documents) used for the individual or general evaluation of the implementation of a clinical trial and the quality of data obtained therefrom.
- bb. The term “standard operating procedure” (SOP) refers to a document that describes in detail the relevant procedures and methods of implementing a specific task for consistent implementation of such a task according to a standardized method.
- cc. The term “investigator’s brochure” refers to a compilation of clinical and non-clinical data related to investigational devices, which is provided to subjects of a clinical trial.
- dd. The term “quality assurance for clinical trial (hereinafter, “quality assurance”)” refers to a systematic confirmation conducted according to a plan prepared in advance to ensure whether all matters related to a clinical trial, data collection, recording and document preparation, reporting, etc. comply with this GCP, Article 24 of the Enforcement Rule of the Medical Devices Act, and other related statues and regulations.
- ee. The term “quality control for clinical trial data (hereinafter, “quality control“)” refers

to an action or a technique thereof of verifying in detail that all actions or activities related to a clinical trial are being implemented at an appropriate level according to a quality assurance system.

- ff. The term “blinding/masking” refers to a procedure that prevents a person or a department participating in a clinical trial from finding out about the assigned treatment method.
- gg. The term “randomization” refers to assignment of subjects of a clinical trial to each treatment group according to the principle of probability in order to reduce bias that may occur during the trial.

3. Basic Principles of Clinical Trial

- a. Clinical trials shall be conducted according to the ethical principles under the Declaration of Helsinki, this GCP, Article 24, and other related statutes and regulations.
- b. Clinical trials shall be conducted only where the benefits that can be obtained from the trial for subjects themselves and the society exceed the risk, or the risk can be justified, in full consideration of the risks and inconveniences expected from the clinical trial.
- c. Rights, safety, and welfare of subjects shall be prioritized over the interests of science and the society.
- d. Clinical and non-clinical information on investigational devices shall be adequate for a clinical trial to be conducted.
- e. Clinical trials shall be scientifically appropriate, and protocols shall be prepared clearly and minutely.
- f. Clinical trials shall be conducted under a clinical trial protocol approved by the Minister of Food and Drug Safety.
- g. Medical procedure or decision to be performed on subjects shall be made under responsibility of a physician, a dentist, or a doctor of oriental medicine.
- h. All people participating in a clinical trial shall receive appropriate education and training for their duties and have relevant experiences.
- i. Voluntary consent to participation to a clinical trial shall be obtained before such participation.
- j. All information related to a clinical trial shall be recorded, handled, and restored so as to be accurately reported, interpreted, and checked.
- k. All records related to the identity of subjects shall be handled under related statutes and regulations to ensure confidentiality.
- l. Investigational devices shall be managed according to the standards for facilities and manufacturing and quality management systems in Annex 2 and used according to a clinical trial protocol approved by the Ministry of Food and Drug Safety.
- m. Clinical trials shall be conducted under a system where quality assurance may be achieved.

4. Scope of Application

This GCP shall apply to clinical trials on medical devices conducted under Article 10 of the Act.

5. Clinical Trial Contracts and Clinical Trial Institutions

a. Clinical trial contracts

- 1) A sponsor shall conclude a clinical trial contract with the head of a clinical trial institution in writing, and if he/she intends to conduct a multicenter clinical trial, the sponsor may collectively conclude the contract with the head of 1 institution.
- 2) A clinical trial contract shall include matters concerning finances of a clinical trial, such as the scale and payment method of research expenses, return of unused research expenses for premature discontinuation and suspension of the trial; matters concerning the delegation and division of duties; and matters concerning obligations of the sponsor and the head of the clinical trial institution.

b. Head of clinical trial institutions

- 1) The head of clinical trial institutions shall establish an institutional review board (hereinafter “IRB”) according to subparagraph 6 in the clinical trial institution for reviewing the implementation of clinical trials, etc.; appoint members of the IRB; and establish regulations on administrative procedures, etc. necessary for the implementation of the clinical trial.
- 2) The head of the institution shall ensure that the IRB may be operated independently.
- 3) The head of the institution shall prepare a standard operating procedure (hereinafter, “SOP of the institution”) that outlines the following matters for the implementation of the IRB’s duties:
 - a) Matters concerning the composition of the IRB such as the list of the names and qualifications of its members;
 - b) Authority of the IRB;
 - c) Methods of convening, scheduling, and conducting meetings;
 - d) Methods of reviewing clinical trials and review deadline;
 - e) Matters concerning determination of a review cycle under the latter part of subparagraph 6 (a) 4);
 - f) Approval on expedited review under subparagraph 6 (a) 10) and minor changes of a clinical trial protocol under subparagraph 6 (a) 10) d);
 - g) Prohibition of subjects’ participation in a clinical trial prior to the approval of the protocol and the protocol amendment;
 - h) Prohibition of implementation of a clinical trial prior to the approval of the protocol amendment, where any change has been made in the original

- clinical trial protocol; Provided, That the cases where it is required to eliminate immediate risk factors occurred to subjects or where the changes in the clinical trial protocol are minor under subparagraph 6 (a) 10) d) shall be excluded;
- i) Reporting procedures and handling method on the matters falling under any of the following that a principal investigator shall promptly report to the IRB:
 - (1) Matters concerning a clinical trial conducted differently from the protocol to eliminate immediate risk factors occurred to subjects under the proviso of item h);
 - (2) Matters concerning changes that may increase the risk for subjects or may have significant impact on the implementation of the relevant clinical trial;
 - (3) Matters concerning an unexpected serious adverse device effect;
 - (4) Matters concerning new information that may adversely affect the safety of subjects or the implementation of clinical trials.
 - j) Matters concerning any of the following that the IRB shall promptly notify the principal investigator in writing:
 - (1) Decisions and opinions on the relevant trial and the grounds for such decisions and opinions, and notification procedures;
 - (2) Procedures for filing an objection against the decisions of the IRB.
 - k) Qualifications of the principal investigator, subinvestigator, and coordinating investigator;
 - l) Matters necessary for the composition and operation of the IRB other than the matters prescribed in items a) through k).
- 4) The head of the institution shall secure clinical laboratories, facilities, and specialized personnel required for conducting a clinical trial, along with the facilities and personnel to take necessary measures in case of an emergency.
 - 5) The head of the institution shall require the IRB to provide active cooperation where the sponsor of the relevant clinical trial or the Minister of Food and Drug Safety requests a perusal of the SOP of the institution concerning the operation of the IRB or submission of the list of IRB members and documents on their qualifications.
 - 6) Upon receipt of a notification of monitoring under subparagraph 8 (e-2), a notification of inspection under Subparagraph 8 (f-2), or a request for any perusal under Subparagraph 7 (i) 7), the head of the institution shall require the relevant principal investigators and departments to provide active cooperation.
 - 7) The head of the institution shall designate a manager among the personnel of the institution for proper management of investigational devices, and in cases of a multicenter clinical trial, each clinical trial institution concerned shall designate

a manager: Provided, That upon the request of the principal investigator depending on the characteristics of the relevant clinical trial, the head may have the principal investigator or subinvestigators manage investigational devices through consultations with the IRB.

- 8) The head of the institution shall designate a person in charge of retaining records and data transferred from the IRB and the principal investigator according to subparagraph 6 (a) 12) and subparagraph 7 (i)
- 6) in order to store such records and data: Provided, That if there are other statutes and regulations regarding the storage of records and data, the relevant statutes and regulations shall be applied.
- 9) Where the IRB has decided on the premature discontinuation or suspension of a clinical trial, the head of the institution shall immediately notify the Minister of Food and Drug Safety of the decision and submit a detailed statement of reasons for the premature discontinuation or suspension.
- 10) The head of the institution shall submit clinical trial management data, including data concerning the IRB, personnel related to clinical trials, clinical trial implementation status, etc. by the end of February every year as decided by the Minister of Food and Drug Safety.

6. Institutional Review Board (IRB)

a. Duties of the IRB

- 1) The IRB shall protect the rights, safety, and welfare of subjects and review whether it is justifiable to have vulnerable subjects participate in a clinical trial.
- 2) The IRB shall review the documents submitted related to the clinical trial by the principal investigator under subparagraph 7 (d) 3) within a deadline specified in the SOP of the institution, and shall record and store the title of the clinical trial, reviewed documents, review date, and opinions of reviewers according to the following classification, and shall notify the principal investigator of the review results:
 - a) Approved or approved with correction required;
 - b) Supplementation required;
 - c) Disapproved;
 - d) Discontinuance or suspension of clinical trial.
- 3) The IRB shall review whether the principal investigator has appropriate experience and qualifications to conduct the relevant clinical trial based on his/her career and other experiences.
- 4) The IRB shall conduct a review of ongoing clinical trials at least once a year. In such cases, the frequency of such review is determined by the IRB in consideration of the degree of risk that may be posed to the subjects.

- 5) The IRB may request the head of the institution or the principal investigator to suspend an ongoing clinical trial if it is conducted differently from the IRB's requirements or decisions, or when an unexpected serious risk is posed to the subjects.
- 6) If it is deemed necessary to protect the rights, safety, and welfare of subjects, the IRB may request the sponsor to provide additional information in addition to the information under subparagraph 7 (h) 10) to the subjects.
- 7) Where a clinical trial is identified in its protocol as one that prior consent from the subjects or their representatives is unobtainable, such as a trial conducted on emergency patients, the IRB shall review whether the submitted protocol and other related documents, etc. take full account of the ethical aspects of the clinical trial.
- 8) If a monetary reward is provided to subjects for participating in a clinical trial, the IRB shall review the amount of the reward and payment methods, and whether it has an unreasonable influence on the subjects' participation in the clinical trial. In such cases, the IRB shall review whether it is appropriate to offer the reward concerning the subjects' degree and period of participation in the clinical trial and whether the reward is provided under the condition that the subjects participate in the clinical trial until it is completed.
- 9) If a monetary reward is provided to subjects for participating in a clinical trial, the IRB shall confirm whether information of the reward such as the method, amount, and schedule of payment, etc. is clearly stated in the subject information sheet or other documents provided to the subject. In such cases, the IRB shall examine whether there is a measure for providing a reward to the subjects who failed to complete the clinical trial.
- 10) The IRB shall conduct an expedited review in any of the following cases:
 - a) Measures against adverse events reported under subparagraph 8 (d);
 - b) Processing regarding reports on the completion of clinical trials under Article 24 (2);
 - c) Processing regarding corrections of a clinical trial protocol (including an amendment protocol) approved by the Minister of Food and Drug Safety;
 - d) Approval of minor changes in a clinical trial protocol such as changes in administrative procedures including change of monitors, subinvestigators, emergency contact numbers, etc., or additions and deletions of test items that do not affect the efficacy and safety of the clinical trial;
 - e) Review of a clinical trial protocol supplemented and submitted according to the results of the review by the IRB;
 - f) Processing of other matters deemed as requiring an expedited review regarding the implementation of the clinical trial as specified in the SOP of the institution.

- 11) If there is any request from a sponsor or the Minister of Food and Drug Safety for a perusal of the SOP of the institution or the submission of the list of IRB members and documents on their qualifications, the IRB shall accept such a request.
 - 12) The IRB shall retain the list of its members, review records, and other related data or documents: Provided, That upon receiving a report on the completion of a clinical trial (including a premature discontinuation report) from the principal investigator under subparagraph 7 (m), the IRB shall transfer the relevant data and documents to the person in charge of keeping them under subparagraph 5 (b) 8).
- b. Composition, function, and operation of the IRB
- 1) The IRB shall consist of 5 or more members with experience and qualifications suitable for reviewing and evaluating the ethical, scientific, and medical aspects of a clinical trial, who are appointed by the head of the clinical trial institution. In such cases, the members shall include at least 1 person who has not majored in medicine, dentistry, oriental medicine, pharmacy, nursing, or biomedical engineering, and at least 1 person who has no personal stake in the relevant clinical trial institution.
 - 2) The chairman of the IRB shall be elected from among its members, and anyone who has relation with the investigator and sponsor of the clinical trial shall not be allowed to participate in the decision-making process or present their opinions for the clinical trial.
 - 3) The IRB shall establish and retain the list of its members and documents regarding their qualifications.
 - 4) The IRB shall perform all its duties according to the SOP of the institution, prepare and keep minute records of all its activities and meetings, and comply with this GCP, Article 24, and other related statutes and regulations.
 - 5) All decisions of the IRB shall be made at a previously notified meeting which satisfies the quorum for voting as specified in the SOP of the institution, and the chairperson shall inform the members of the meeting agenda, meeting date, etc. in advance.
 - 6) Only members who have participated in the review process for a clinical trial shall be entitled to participate in the decision-making process or present their opinions for the trial.
 - 7) The principal investigator may provide information to the IRB on all matters of the relevant clinical trial, but shall not exert influence on the IRB members or participate in the decision-making process of matters related to the clinical trial.
 - 8) The IRB may seek advice from a person with expertise in the relevant field to facilitate the review process.

c. Operation of the IRB

IRBs shall comply with the SOP of the institution for operation of the IRB.

d. IRB in multicenter clinical trials

- 1) Where a clinical trial is conducted by multiple clinical trial institutions, a meeting of the IRBs shall be jointly held (hereinafter, “joint IRB”) through the agreement between the heads of the clinical trial institutions for conducting a review or decision, or the IRBs of the individual institutions shall approve the results of review or decision by the IRB of another institution by making a decision.
- 2) Items a through c shall apply mutatis mutandis to the duties, organization, and operation of a joint IRB.
- 3) Matters reviewed and decided by a joint IRB or matters reviewed and decided by the IRB of another clinical trial institution and approved by the IRBs of the individual institutions shall be deemed to have been reviewed and decided by the IRBs of the individual clinical trial institutions.

e. Entrustment of review

- 1) Where the relevant clinical trial institution does not have an IRB or it is deemed necessary by the IRB established in the institution, the head of the institution may entrust a review of a clinical trial protocol, etc. to an IRB of another clinical institution under Article 21 (1) 1 or 2 which is designated by the Minister of Food and Drug Safety (hereinafter, “designated IRB”).
- 2) Items a through c and item f shall apply mutatis mutandis to the duties, organization, and operation of a designated IRB.
- 3) Matters determined by a designated IRB shall be deemed to have been determined by the clinical trial institution that entrusted the review to the IRB.

f. Records

The IRB shall retain the records related to a clinical trial such as records on the implement of the trial, list of names, occupations, and affiliations of persons involved in the trial, documents submitted to the IRB, minutes of meetings, letters, etc. for the period specified in Article 24 (3), and the investigator and sponsor of the trial, and the Minister of Food and Drug Safety may request the IRB to submit such clinical trial implementation records and the list of persons involved in the trial.

7. Investigator

a. Qualifications, etc. for investigators

- 1) Investigators shall satisfy education, training, and experience requirements for conducting clinical trials according to the SOP of a clinical trial institution for the proper implementation of a clinical trial.
- 2) Investigators shall have detailed knowledge of proper use investigational devices specified in clinical trial protocols, investigators’ brochures, and other medical-

device-related information provided by a sponsor.

- 3) Investigators shall be fully aware of and comply with this GCP, Article 24, and other related statutes and regulations.
- 4) The principal investigator of a clinical trial and the head of the clinical trial institution shall comply with the monitoring under Item s of subparagraph 8 and inspection under Item u of the said subparagraph at the request of the sponsor.
- 5) Where an important task related to a clinical trial is entrusted to subinvestigators, the principal investigator shall secure and maintain a list of such subinvestigators.

b. Securing of resources required for clinical trials

- 1) A principal investigator shall properly evidence that subjects necessary for a clinical trial can be enrolled within the subject enrollment period agreed with the sponsor based on past medical records, etc., and shall provide the relevant evidencing data upon request from the sponsor.
- 2) A principal investigator shall assign sufficient time to each subject to properly conduct and complete a clinical trial during the period agreed with the sponsor.
- 3) A principal investigator shall secure an adequate number of subinvestigators, equipment, and facilities required to conduct a clinical trial properly and safely during the clinical trial period.
- 4) A principal investigator shall ensure that the subinvestigators have detailed knowledge of the clinical trial protocol, information on investigational devices, and duties and tasks related to the clinical trial.

c. Investigators' duty to protect the subjects

- 1) All medical decisions related to a clinical trial on subjects shall be made by the principal investigator or subinvestigators qualified as physicians, dentists, or doctors of oriental medicine.
- 2) During or after a clinical trial, the principal investigator shall ensure that the subjects receive appropriate medical treatment for all adverse events that may occur in the clinical trial (including clinically significant abnormalities in laboratory test results), and shall inform the subject if the medical treatment is required for the subject's intercurrent disease that the principal investigator becomes aware of.
- 3) If a subject has a family doctor, the principal investigator may notify such family doctor of the subject's participation in the clinical trial under the consent of the subject.
- 4) A subject does not have to disclose the reason for his/her withdrawal from a clinical trial before its completion, but the principal investigator shall make efforts to ascertain the reason within the scope where the subject's rights are not infringed.

d. Information exchange between the IRBs and principal investigators

- 1) Before conducting a clinical trial, the principal investigator shall have the IRB review various information provided to the subjects in writing such as a clinical trial protocol, a consent form (including an amended one), documents on methods for recruiting subjects (including advertisements, etc.), and a subject information sheet, and where the implementation of the clinical trial is approved by the IRB (including approvals with changes or deferred approval), the principal investigator shall report the content of the review notice to the head of the institution and provide it to the sponsor after obtaining confirmation in writing from the head of the institution.
 - 2) Where a principal investigator intends to obtain the IRB's approval for a clinical trial protocol, he or she shall submit a copy of the latest investigator's brochure to the IRB. If the investigator's brochure is amended during the clinical trial, the principal investigator shall submit a copy thereof to the IRB.
 - 3) A principal investigator shall submit the following documents to the IRB before conducting a clinical trial and shall have the IRB review such documents:
 - a) Clinical trial protocol (including a protocol amendment);
 - b) Informed consent form;
 - c) Information provided to subjects in writing (including a subject information sheet);
 - d) Procedure for recruiting subjects (including advertisements, etc.);
 - e) Investigator's brochure;
 - f) Safety information;
 - g) Information on the rewards to be provided to subjects;
 - h) Principal investigator's career and experience.
 - 4) The principal investigator shall promptly report to the IRB on the matters specified in Subparagraph 5 (b) 3) i (1) through (4).
 - 5) The IRB shall promptly notify the principal investigator in writing of the matters specified in Subparagraph 5 (b) 3) j (1) and (2).
- e. Compliance with clinical trial protocols
- 1) The investigator shall conduct a clinical trial in compliance with the clinical trial protocol agreed upon by the sponsor in writing and approved by the IRB and the Minister of Food and Drug Safety.
 - 2) The principal investigator shall not conduct a clinical trial differently from the protocol before obtaining prior consent from the sponsor and approval of change from the IRB and the Minister of Food and Drug Safety: Provided, That the foregoing shall not apply to the cases that fall under the proviso of subparagraph 5 (b) 3) h.
 - 3) The principal investigator or subinvestigator shall record all matters conducted differently from the approved clinical trial protocol and the reasons therefor.

- 4) With respect to the changes made by the principal investigator to eliminate an immediate risk factor to subjects under the proviso of 2) before the prior approval of a protocol amendment, the principal investigator shall submit documents on such changes of the clinical trial protocol, the reasons therefor, and the protocol amendment to the sponsor and IRB, and Minister of Food and Drug Safety and obtain their consent and approval, respectively, as soon as possible.
- f. Management of investigational devices
- 1) The responsibility for the management of investigational devices shall be borne by the principal investigator and manager of a relevant clinical trial institution.
 - 2) The manager or the principal investigator or subinvestigator (hereinafter, “manager, etc.”) who is responsible for managing the investigational devices under the proviso of subparagraph 5 (b) 7) shall perform tasks such as accepting investigational devices, managing their inventory, administering such devices to each subject, returning such devices, etc., shall prepare records on the relevant matters, and shall report to the principal investigator on such matters periodically.
 - 3) The records under 2) shall be prepared for each subject, including the application period of medical devices, manufacturing number or serial number, use-by date or expiration date (only if applicable), identification code of the devices, and the subject’s identification code.
 - 4) Manager, etc. shall maintain medical records from which it can be confirmed that investigational devices are used on each subject according to the methods of use described in the clinical trial protocol and shall check confirm whether the inventory of investigational devices matches the use records.
 - 5) Investigational devices shall be stored according to the conditions specified by the sponsor and related statutes and regulations.
 - 6) The principal investigator shall confirm whether investigational devices are used and managed according to the clinical trial protocol.
 - 7) The principal investigator, subinvestigator, or manager shall provide each subject with accurate instructions for the use of investigational devices and confirm whether the subjects are properly following the instructions.
- g. Randomization and unblinding
- 1) If a randomization procedure is established in a clinical trial protocol, the principal investigator shall comply with such a procedure, and unblinding shall be conducted only according to the procedure specified in the protocol.
 - 2) Where unblinding is conducted accidentally or due to a serious adverse event during a binding clinical trial, the principal investigator shall record such fact and promptly inform the sponsor thereof.
- h. Subjects’ consent
- 1) Subjects’ consent shall be obtained according to Article 24 (1) 4, the ethical principles under the Declaration of Helsinki, and this GCP, and the principal investigator shall obtain the IRB’s approval on documented information

provided to the subjects, including a consent form, a subject's information sheet, etc, prior to the initiation of the clinical trial.

- 2) If new information regarding the clinical trial that may affect the subject's consent is obtained, a consent form, a subject information sheet, and other documented information shall be modified accordingly and obtain approval from the IRB before being provided to the subjects. In such case, the principal investigator shall notify the subjects or their representatives promptly of such information and record the recipients, the corresponding date and time, and details of the notification.
- 3) The principal investigator or the subinvestigator shall not coerce nor unduly influence a subject to participate in a clinical trial.
- 4) A consent form and oral or written information regarding a clinical trial shall not include descriptions that restrict the rights of the subjects or their representatives, imply such restriction, or exempt the investigators, clinical trial institution, sponsor, or his/her representative from any responsibilities.
- 5) The principal investigator or the person designated by the principal investigator shall fully inform the subjects of information on all aspects of the clinical trial including written information approved by the IRB. In such cases, if the subject is unable to give consent, his or representative shall be notified of such information.
- 6) Terms used in a consent form and oral or written information regarding a clinical trial shall be simple and easy for subjects, their representatives, or witnesses to understand.
- 7) Before obtaining a subject's consent, the principal investigator or a physician, a dentist, or a doctor of oriental medicine designated by the principal investigator shall provide the subject or his/her representative with sufficient time and opportunity for asking questions about the details of the clinical trial, deciding on the participation, and shall sincerely answer all questions asked by the subject or his/her representative concerning the clinical trial.
- 8) Before a subject participates in the clinical trial, a consent form shall be signed by the subject or his/her representative, the principal investigator who has obtained his/her consent, or a physician, a dentist, or a doctor of oriental medicine designated by the principal investigator, with the date of the signature written in their own handwriting.
- 9) Where a subject or his/her representative is unable to read a consent form, a subject information sheet, or other documented information, the entire process of obtaining the subject's consent shall be implemented in the presence of a witness. In such cases, the principal investigator or the person designated by the principal investigator shall read the consent form, the subject information sheet, and other documented information and explain the details of such documents to the subject or his/her representative, who then shall verbally consent to participation in the clinical trial, and if possible, shall sign and date the consent form in his/her own handwriting and the witness shall sign and date the consent form in his/her own handwriting as well, and ensure whether the details of the consent

form, subject information sheet, and other documented information have been accurately explained to the subject or his/her representative before signing and dating it; whether he/she has understood them correctly; and whether the process of obtaining his/her consent has been implemented following his/her own will.

- 10) The information, consent form, subject information sheet, and other documented information provided to a subject or his/her representative in the process of obtaining consent shall include the following:
 - a) The fact that the clinical trial is conducted for research purposes;
 - b) Purpose of the clinical trial;
 - c) Information regarding investigational devices and probability of being randomized into a test or control group;
 - d) Various tests or procedures to which subjects will be subjected during the clinical trial, including invasive procedures;
 - e) Matters that subjects shall comply with;
 - f) The fact that the clinical trial has not yet been validated;
 - g) Risks or inconveniences expected to be incurred in subjects (including fetuses if subjects are pregnant, and infants if they are nursing women);
 - h) The presence or absence of an expected benefit to the subjects;
 - i) Other treatment methods or types that can be chosen by the subjects and potential risks and benefits of such treatments;
 - j) Compensation or treatments to be given to subjects in case of damage related to the clinical trial incurred in the subjects;
 - k) If there is monetary compensation to be provided to the subjects for participating in the clinical trial, the expected amount, and the fact that the amount will be adjusted according to the degree or period of participation in the clinical trial;
 - l) Expected expenses to be borne by subjects by participating in the clinical trial;
 - m) The fact that the subject's decision to participate in the clinical trial shall be voluntary, and that he/she can refuse to participate or withdraw from participation at any time during the trial without losing the benefits to which he or she is entitled;
 - n) The fact that a monitor under Subparagraph 8 (e-2), a person conducting inspections under Item 8 (Item 8), the IRB, and the Minister of Food and Drug Safety may be granted access to medical records of subjects to verify the quality of the clinical trial implementation procedure and data according to relevant statutes and regulations within the scope where the subject's confidentiality is not infringed, and the fact that the subjects' or their representatives' signature on the consent form indicates their consent to such access to the data.

- o) The fact that any record that can identify subjects shall be kept confidential, and that their identity will also be kept confidential in publications related to results of the clinical trial;
 - p) The fact that subjects or their representatives will be promptly notified of newly obtained information that may affect the subject's continued participation;
 - q) Persons to be contacted when additional information is desired to be obtained regarding the clinical trial and the rights and interests of subjects or in case of damage related to the clinical trial;
 - r) Cases where subject participation in the clinical trial is suspended during the trial and the reasons therefor;
 - s) Expected participation period of subjects in the clinical trial;
 - t) The approximate number of subjects participating in the clinical trial.
- 11) The principal investigator and the subinvestigator shall give the subjects or their representatives a copy of the consent form and other documented information provided to them before they participate in the clinical trial, and if the consent form is modified during the clinical trial or if there is any change in the documented information, a copy of the modified consent form and the changed documents shall be given to them, respectively.
 - 12) In a clinical trial where subjects can participate only with the consent of a person with parental authority over them or their guardian, etc., because of the subjects' lack of comprehension and expression ability under the proviso of Article 24 (1) 4, the principal investigator and subinvestigator shall provide the subjects with information regarding the clinical trial to the extent that they can understand, and if possible, have them sign and date the consent form in their own handwriting.
 - 13) In an emergency where it is impossible to obtain consent from a subject in advance, the consent of the subject's representative shall be obtained, and if the subject's representative is absent, written approval shall be obtained from the IRB. In such cases, the principal investigator and the subinvestigators shall notify the subject or the subject's representative of the clinical trial as soon as possible and shall obtain consent to continuous participation in the trial.
- i. Records and reports
 - 1) The principal investigator shall ensure that any data included in the case report form or any other reports submitted to the sponsor are accurate, complete, easy to read, and timely.
 - 2) Data described in the case report form originating from the source document shall match the source document, and explanations shall be provided regarding any mismatching contents.
 - 3) The sponsor shall provide the principal investigator or the person designated by the principal investigator with guidelines on change or correction of the content in the

case report form, and a monitor or other persons designated by the sponsor shall establish guidelines on the cases where the case report form shall be modified or corrected, methods of recording such changes, and the procedure for receiving confirmation from the principal investigator after such change or correction.

- 4) Any person who modifies or corrects the content of the documented or digitalized case report form shall revise it in such a manner that the original content therein are identifiable according to the change guidelines prepared by the sponsor, and provide the change date and reasons for such change with his/her signature.
 - 5) The principal investigator shall keep records on any change or correction under 3).
 - 6) The principal investigator shall keep essential documents and other documents regarding the clinical trial (including electronic documents) prepared according to this GCP, Article 24, and other related statues and regulations following Article 9, Article 24, and other related statues and regulations. However, after the completion of the trial report, these documents shall be transferred to the person in charge of storage under subparagraph 5 (b) 8).
 - 7) The principal investigator or the head of the institution shall actively cooperate with a request for access to documents related to the clinical trial (including electronic documents) by a monitor under subparagraph 8 s), a person conducting inspections under subparagraph 8 t), the IRB, or the Minister of Food and Drug Safety.
- j. Reporting on progress
- 1) The principal investigator shall submit a summary of the clinical trial progress in writing to the IRB at least once a year and when there is a request by the IRB.
 - 2) The principal investigator shall promptly report in writing to the sponsor and the IRB when there is an increase in risks to the subjects or any change or modification that has a significant impact on the implementation of the clinical trial.
- k. Reporting related to safety of clinical trials
- 1) The principal investigator shall submit an expedited adverse device effect report in the attached Form 55 to the sponsor for every serious adverse event (excluding those not required to be reported immediately in the clinical trial protocol or investigator's brochure) within the period specified in the clinical trial protocol. In such cases, the principal investigator shall use subject identification codes instead of the subjects' personal information including their name, resident registration number, and address, to keep their identity confidential, and if there are guidelines for reporting adverse events, the principal investigator shall follow such guidelines.
 - 2) The principal investigator shall report adverse events or abnormal laboratory test results, which are separately specified concerning safety evaluation in the clinical trial protocol, to the sponsor according to the reporting methods and within the period specified in the clinical trial protocol.

- 3) In cases of reporting death cases, the principal investigator shall submit additional data such as an autopsy report (limited to cases where an autopsy is performed), a death certificate, etc. to the sponsor and the IRB.

l. Premature discontinuation or suspension of clinical trials

- 1) If the principal investigator decides on the premature discontinuation or suspension of the clinical trial without prior agreement with the sponsor, he/she shall promptly notify the sponsor and the IRB and submit a detailed statement of the reasons for such premature discontinuation or suspension.
- 2) If the sponsor decides on the premature discontinuation or suspension of the clinical trial, the principal investigator shall promptly notify the IRB and submit a detailed statement of the reasons for such premature discontinuation or suspension.
- 3) If the IRB decides on the premature discontinuation or suspension of the clinical trial, the principal investigator shall promptly notify the sponsor and submit a detailed statement of the reasons for such premature discontinuation or suspension.
- 4) For premature discontinuation or suspension of the clinical trial, as specified in the provisions of 1) to 3), the principal investigator shall notify the subjects of such fact and ensure that appropriate measures and follow-ups are carried out.

m. Reporting on clinical trial completion

When a clinical trial is completed (including premature discontinuation), the principal investigator shall report the completion of the trial to the IRB with the summary of the results of the clinical trial.

8. Clinical trial sponsor

a. Quality assurance of clinical trial and quality management of clinical trial data

- 1) A sponsor shall establish an SOP regarding quality assurance of a clinical trial and quality management of clinical trial data (hereinafter, “SOP of sponsor”) so that data regarding clinical trial may be generated, recorded, and reported according to the clinical trial protocol, this GCP, and Article 24.
- 2) A sponsor shall conduct quality management for clinical trial data in all stages of data processing to ensure the reliability and accuracy of such data.
- 3) A sponsor shall obtain prior consent from persons involved in the clinical trial for clinical trial site visits and access to source data, source documents, and reports, with the clinical trial protocol or in a separate form of a written consent so that the monitoring under item s and inspections under item t can be conducted.

b. Contract research organizations

- 1) A sponsor may entrust all or part of his/her tasks related to the clinical trial to a contract research organization (CRO), but the sponsor shall take responsibility for

managing the quality and accuracy of the clinical trial data.

- 2) A contract research organization shall perform quality assurance and management of clinical trial data for the entrusted clinical trial.
- 3) The entrustment under 1) shall be made in a written form that includes the details of the specific tasks to be entrusted.
- 4) A contract research organization shall implement the entrusted tasks according to this GCP and as prescribed in Article 24 regarding the sponsor's duties and tasks.

c. Medical advice

A sponsor may designate experts with medical knowledge and experience to seek advice on medical problems or inquiries related to clinical trials.

d. Advice from relevant experts

A sponsor may seek advice from relevant experts including a biostatistician, a medical device expert, a physician, or experts in other fields regarding any procedure of a clinical trial such as designing a clinical trial protocol and a case report form, establishing an analysis plan, analyzing collected data, and preparing an interim report and a trial report.

e. Management of clinical trial

- 1) A sponsor shall have a person with knowledge and experience in clinical trials supervise the overall implementation of the clinical trial and perform the tasks of data processing and verification, statistical analyses, and trial report preparation.
- 2) A sponsor may establish a data monitoring committee for periodical evaluation of the progress of the clinical trial including safety-related data and important efficacy outcome variables and for advice on whether to proceed, modify, or discontinue the clinical trial, and the data monitoring committee shall establish an SOP necessary for the performance of its duties and prepare and keep the minutes of the meeting.
- 3) Where a clinical development of investigational devices is discontinued, the sponsor shall report to the investigators, the clinical trial institution, and the Minister of Food and Drug Safety.

f. Data processing

- 1) A sponsor who intends to electronically process clinical trial data or use a remote computing system shall comply with the following:
 - a) Verify whether the integrity, accuracy, reliability, and consistency of the system to electronically process clinical trial data and the remote computer system meet the requirements set by the sponsor and record details of such confirmation;
 - b) Prescribe the methods of use, etc. of the system to electronically process clinical trial data and the remote computer system in the SOP of sponsor;

- c) Ensure that the data change method of the system to electronically process clinical trial data and the remote computer system is designed to record the process of data change is recorded and not delete previously entered data, and verify whether the systems meet these requirements;
 - d) Prepare a security system able to prevent access to data from an unauthorized person;
 - e) Prepare and maintain a list of persons authorized to modify data;
 - f) Prepare and maintain backups of data;
 - g) Maintain blinding/masking status throughout data input and processing processes if blinding/masking is required in a clinical trial.
- 2) Where the form of data is changed in the data processing process, comparison between the original and modified data shall be enabled at all times.
- 3) The sponsor shall use subject identification codes to identify data on each subject.
- g. Record keeping
 - 1) A sponsor shall keep essential documents and other data under Article 9 and other related laws: Provided, That the storage period shall be extended if ordered by the Minister of Food and Drug Safety or deemed necessary by the sponsor.
 - 2) A sponsor shall notify the investigators and the head of the institution in writing regarding the necessity and period of data storage; If the sponsor determines that data storage is no longer necessary, he or she shall inform the principal investigator and the head of the institution of such fact in writing.
- h. Selection of principal investigator
 - 1) A sponsor shall select, as the principal investigator of the trial, a person who meets the education and experience requirements for the clinical trial and has facilities and human resources for conducting the trial, and may establish a coordinating committee and select a coordinating investigator for the proper implementation of a multicenter clinical trial.
 - 2) Before concluding a contract with the head of a clinical trial institution regarding the implement of a clinical trial, the sponsor shall provide the principal investigator with the clinical trial protocol and the up-to-date investigator's brochure, and secure sufficient time for the principal investigator to review the protocol and other information related to the trial received from the sponsor.
 - 3) A sponsor shall reach an agreement with the principal investigator and the head of the institution on the following matters, include such agreed matters in the clinical trial protocol or clinical trial contract, and have the principal investigator and the head of the institution sign the documents:
 - a) A clinical trial shall be conducted according to this GCP, Article 24, other related statues and regulations, the clinical trial protocol, and matters approved by the IRB;

- b) Procedures for recording and reporting data shall be observed;
 - c) Monitoring and inspections under items s and t shall be followed;
 - d) Essential documents and other data related to the clinical trial shall be kept until the sponsor notifies in writing that the keeping is no longer needed.
- i. Assignment of duties

Before conducting a clinical trial, the sponsor shall define all duties and roles related to the clinical trial and assign them appropriately to the persons involved in the trial.
- j. Compensation for subjects, etc.
 - 1) A sponsor shall establish a compensation procedure for damages incurred concerning clinical trials.
 - 2) Compensation for subjects shall be appropriately made according to the contents and methods of compensation prescribed in Subparagraph 7 (h) 10) j) and related statutes and regulations.
- k. Approval of clinical trial protocols by the Minister of Food and Drug Safety

Before conducting a clinical trial, a sponsor shall obtain approval of the clinical trial protocol from the Minister of Food and Drug Safety according to Article 10 of the Act.
- l. Confirmation of matters reviewed by the IRB

A sponsor shall have the principal investigator submit the following documents to confirm the matters reviewed by the IRB:

 - 1) A list of IRM members and documents on their qualifications;
 - 2) Documents confirming that the IRB has been properly organized and operated according to this GCP;
 - 3) A notice of review from the IRB that the principal investigator has received according to subparagraph 6 (a) 2);
 - 4) Request for discontinuation of the clinical trial from the IRB under subparagraph 6 (a) 5);
 - 5) A certificate of confirmation from the head of the clinical trial institution under subparagraph 7 (d) 1).
- m. Providing information regarding investigational devices
 - 1) When planning a clinical trial, the sponsor shall secure information evidencing the safety and effectiveness of the clinical trial from the testing results of non-clinical trials or other clinical trials.
 - 2) Based on the information obtained according to 1), the sponsor shall prepare an investigator's brochure containing information on risks or adverse events expected in the clinical trial, information necessary for special examinations and observations, and other precautions, and provide it to the investigators.

- 3) If a sponsor has newly obtained important information on safety and effectiveness, the investigator's brochure shall be amended accordingly.
- n. Manufacturing, packaging, labeling, and coding of investigational devices
- 1) A sponsor shall identify electrical, mechanical, biological, and physicochemical properties of investigational devices in the development stage thereof, manufacture them according to the facility and manufacturing and quality management standards in the Annex 2, and label or code them to maintain blinding.
 - 2) A sponsor shall decide proper use methods, application periods, and validity periods (if applicable) of investigational devices and notify all persons involved in the clinical trial thereof.
 - 3) A sponsor shall pack investigational devices to prevent them from being damaged, contaminated, or deteriorated during transportation, keeping, or storage.
 - 4) Even in cases of coding investigational devices in order to conduct blinding tests, the sponsor shall ensure that their types can be easily identified in an emergency and the fact of unblinding can be immediately revealed.
 - 5) If there is any significant change in the design of medical devices being used a clinical trial, the sponsor shall secure additional research results to determine whether such change will bring significant changes to the safety and effectiveness of the medical devices.
- o. Supply and handling of investigational devices
- 1) A sponsor shall supply investigational devices to the manager, etc.
 - 2) A sponsor shall not supply investigational devices to the manager, etc. before obtaining approval (including approval with changes or deferred approval) of the clinical trial protocol from the Minister of Food and Drug Safety and the IRB.
 - 3) A sponsor shall prepare guidelines on how to receive, handle, and store investigational devices, collect unused investigational devices from the subjects, and return them to the sponsor, and provide such guidelines to the principal investigator, manager, etc.
 - 4) A sponsor shall supply investigational devices promptly and prepare and keep records on the supply, receipt, return, and destruction of such investigational devices.
 - 5) A sponsor shall establish a procedure for cases where investigational devices shall be withdrawn due to problems such as failure of investigational devices, completion of the clinical trial (including premature discontinuation), and the expiration of use or validity periods of investigational devices, and shall record the details of such withdrawal of investigational devices.
 - 6) Where a sponsor intends to repackage unused medical devices and use them for the relevant clinical trial or other clinical trials, he or she shall prepare procedures for repackaging and use shall be prepared and record details of repackaging and use of unused medical devices.

- 7) A sponsor shall ensure the stability of investigational devices within the use or validity periods and keep related records.
 - 8) Matters not prescribed in this GCP shall be in accordance with the provisions on the manufacturing and management of medical devices in the relevant statutes and regulations.
- p. Access to data regarding clinical trial
- 1) A sponsor shall specify matters regarding access to clinical-trial-related data in the clinical trial protocol or other agreement documents.
 - 2) A sponsor shall confirm whether the subjects have consented to access the data related to the clinical trial.
- q. Matters related to the safety of investigational devices
- 1) A sponsor shall constantly conduct evaluation on the safety of investigational devices.
 - 2) If a sponsor obtains information on the safety of investigational devices that threatens the safety of the subjects, affects the decision whether to conduct a clinical trial, or changes the decision of the IRB, he/she shall promptly report to the investigators and the Minister of Food and Drug Safety of such fact.
- r. Reporting on adverse device effects (ADEs)
- 1) A sponsor shall report all serious and unexpected ADEs to the investigators, the IRB (limited to cases where the principal investigator has not reported them to the IRB or there is any need to change in the reported matters), and the Minister of Food and Drug Safety within the periods classified as follows:
 - a) ADEs likely to cause death or threaten life: Within 7 days from the date the sponsor is notified or becomes aware of the ADE. In such case, the sponsor shall additionally report detailed information on the ADE within 8 days from the date of the initial report.
 - b) Other serious and unexpected adverse device effects: Within 15 days from the date the sponsor is notified or becomes aware of the ADE.
 - 2) If there is additional information on the ADE reported according to 1), the sponsor shall report it until the ADE is resolved (meaning that the ADE disappears or follow-ups become infeasible).
 - 3) If a sponsor intends to report an ADE to the Minister of Food and Drug Safety according to 1), he or she shall submit an ADE report in Attached Form 56, along with the expedited ADE report submitted by the principal investigator according to subparagraph 7 (l) 1) in the attached Form 55.
- s. Monitoring
- 1) The purposes of monitoring are as follows:
 - a) To protect the rights and welfare of subjects;
 - b) To confirm accuracy, completeness, and verifiability of data through

- comparison of source documents with data related to the clinical trial provided by the principal investigator;
- c) To confirm whether the clinical trial is conducted according to the clinical trial protocol approved by the Minister of Food and Drug Safety and the IRB, this GCP, and Article 24.
- 2) Standards for selecting monitoring personnel and their qualifications are as follows:
- a) Monitors shall be selected by the sponsor;
 - b) Monitors shall have scientific or clinical knowledge necessary for monitoring the relevant clinical trial and shall receive the training necessary for conducting monitoring, and the sponsor shall prepare a list of monitors and documents on their qualifications.
 - c) Monitors shall have adequate knowledge of the relevant investigational devices, clinical trial protocol, consent forms, subject information sheet, and other written information provided to the subjects, SOP of sponsor, SOP of the institution, this GCP, Article 24, and other related statutes and regulations.
- 3) Sponsors shall determine the scope and type of monitoring in consideration of the purpose, implementation plan, complexity, blinding, number of subjects, outcome variables, etc. of the clinical trial and shall ensure that the monitoring is performed properly.
- 4) Monitors shall confirm whether the clinical trial is properly conducted and whether relevant matters are recorded by performing the following tasks at the request of the sponsor:
- a) Delivering information between the sponsors and investigators;
 - b) Confirming qualifications of the principal investigator and whether an appropriate number of subinvestigators, equipment, and facilities that meet the qualifications specified in the SOP of the clinical trial institution are secured;
 - c) Confirming the following matters regarding investigational devices;
 - (1) Whether the storage conditions, use-by date, and expiration date of investigational devices under guidelines in item o (3) are observed, and whether the number of investigational devices is sufficient to conduct the clinical trial;
 - (2) Whether investigational devices are being used only for the subjects who satisfy the selection standards, according to the application period and operation or use methods specified in the clinical trial protocol;
 - (3) Whether the subjects are properly provided with information on the use, keeping, and return of investigational devices;
 - (4) Whether the clinical trial institution properly manages the receipt, use, and return of investigational devices and records the details thereof.

- d) Confirming whether the investigator complies with the approved clinical trial protocol or protocol amendment;
- e) Confirming whether the subjects gave prior informed consent;
- f) Confirming whether the investigator has received other items including the up-to-date investigator's brochure, related data, and investigational devices;
- g) Confirming whether the investigator has full knowledge of all aspects of the clinical trial;
- h) Confirming whether related functions of a certain clinical trial are commissioned or entrusted to an unauthorized person;
- i) Confirming whether the principal investigator allow only the subjects who meet the selection standards to participate in the clinical trial;
- j) Reporting of the enrollment rate of subjects;
- k) Confirming whether source documents and other records related to the clinical trial are accurate and complete, and whether they reflect up-to-date information related to the clinical trial;
- l) Confirming whether the investigators is providing reports, notifications, applications, etc. to persons involved in the clinical trial according to the clinical trial protocol, this GCP, Article 24, and other related statues and regulations; whether the documents are specific to the clinical trial; whether the documents are accurate, complete, and readable; and whether the documents are prepared in a timely manner and are dated;
- m) Confirming whether the case report form, source documents, and other documents related to the clinical trial (including electronic documents) are accurate, complete, and consistent, and confirming the following matters:
 - (1) Whether the clinical trial data required in the clinical trial protocol are accurately recorded in the case report form and whether the data in the case report form match those in the source document;
 - (2) Whether changes in matters such as application periods and operation or use methods for each subject are properly recorded;
 - (3) Whether adverse events, combined therapy, and intercurrent diseases are recorded on the case report form according to the clinical trial protocol;
 - (4) Whether the details of clinical trial tests that were omitted for each subject (referring to the non-visit of the subject and the non-conduct of the test or examination on the subject) are clearly recorded in the case report form;
 - (5) Whether the details of and reasons for the suspension of medication or subjects' withdrawal are recorded in the case report form;
- n) Confirming whether notification to the investigators related to errors, omissions, and unreadable parts of the case report form or corrections thereof or additions thereto are made properly. In such cases, it shall be confirmed whether

the causes of such errors, the signature of the person having the authority to change the information (referring to the principal investigator or the subinvestigator who has the authority to change the information on the case report form), and the date of change are properly provided.

- o) Confirming whether all adverse events have been reported according to this GCP, Article 24, clinical trial protocol, reporting standards set by the IRB, and other related statutes and regulations;
 - p) Confirming whether the principal investigator keeps essential documents according to subparagraph 7 (i) 6) and subparagraph 9;
 - q) Confirming whether the principal investigator has been informed of all violations of the clinical trial protocol, SOP of sponsor, SOP of the clinical trial institution, this GCP, and Article 24, and whether appropriate measures to prevent the recurrence of such violations have been taken.
- 5) Monitors shall conduct monitoring according to the SOP of sponsor and as determined by the sponsor concerning the clinical trial procedure.
- 6) Reporting of monitoring shall be performed as follows:
- a) Where a monitor visits the clinical trial institution or contacts a person related to the clinical trial via telephone, fax, or e-mail, he or she shall report the details of such visits or contacts to the sponsor in writing.
 - b) The monitoring report shall include the following information:
 - (1) Date and place of monitoring;
 - (2) Name of the monitor and the name of the investigator or the contacted person;
 - (3) Summary of matters confirmed by the monitor;
 - (4) Clinically significant discovery or events;
 - (5) Violations of the clinical trial protocol, SOP of sponsor, SOP of the clinical trial institution, this GCP, and Article 24, or problems in the clinical trial;
 - (6) Conclusion;
 - (7) Measures taken to prevent the recurrence of violations of the clinical trial protocol, SOP of sponsor, SOP of the clinical trial institution, this GCP, and Article 24, and matters requiring such measures.
 - c) A sponsor shall record the result of monitoring report reviews and follow-up measures.

t. Audit

- 1) A sponsor shall conduct an audit to confirm whether the clinical trial is conducted in compliance with the protocol, the SOP of sponsor, the SOP of the clinical trial institution, these criteria, Article 24, and other relevant statutes and regulations according to their purposes. In such cases, the sponsor's audit shall be performed

separately from ordinary monitoring or quality management.

- 2) Selection standards and qualifications of an auditor are as follows:
 - a) The sponsor shall designate a person who has no personal stake in the clinical trial as an auditor;
 - b) The auditor shall have the necessary knowledge, receive the training required for performing an audit for the study, and the sponsor shall prepare and keep a list of auditors and documents related to their qualifications.
- 3) The procedures for audit are as follows:
 - a) The sponsor shall establish guidelines for the audit on the subject, method, and frequency of audit, the form of audit report, details to be specified in the audit report, etc.;
 - b) The sponsor shall establish an audit plan and audit procedures in consideration of the issues already confirmed concerning the significance of the clinical trial, subject number, type and complexity of the clinical trial, potential risks to subjects, and implementation of the study;
 - c) The sponsor shall document and keep the audit results;
 - d) The Minister of Food and Drug Safety shall request to the sponsor for submission of the audit report only if there is evidence that the clinical trial has seriously violated Article 24 and this GCP, or if there is a legal dispute regarding the trial, in order to ensure the independent and autonomous implementation of the audit;
 - e) The Minister of Food and Drug Safety may request to the sponsor for submission of an audit certificate.

u. Actions against violations

- 1) If the investigator, the sponsor, the monitor, or the auditor is found to violate the clinical trial protocol, the SOP of sponsor, the SOP of the clinical trial institution, this GCP, Article 24, and other relevant statutes and regulations, the sponsor shall promptly take corrective and preventive action.
- 2) If the investigator's continued violation or serious violation is confirmed through monitoring or audit, the sponsor shall suspend the participation in the clinical trial by the relevant clinical trial institution and inform the Minister of Food and Drug Safety of such fact.

v. Report on premature discontinuation or suspension of the study

In cases of the premature discontinuation or suspension of the clinical trial, the sponsor shall promptly report such fact and reasons therefor in written form to the principal investigator and the Minister of Food and Drug Safety; if the clinical trial has been designed as a multicenter study, such fact and reasons therefor shall be notified in writing to the principal investigators of other clinical trial institutions as well.

w. Matters to be confirmed for a multicenter study

In cases of a multicenter trial, the sponsor shall confirm the following:

- 1) Whether all principal investigators are conducting the clinical trial in compliance with the protocol agreed by the sponsor and approved by the IRB and the Minister of Food and Drug Safety;
- 2) Whether the case report form is designed to collect all the data to be collected by each institution. In such cases, the principal investigator who intends to collect additional data shall be provided with a case report form with an addition of the relevant content;
- 3) Whether the obligations of the investigators are documented before starting the clinical trial;
- 4) Whether all principal investigators have complied with the clinical trial protocol and the evaluation standards for clinical and laboratory tests and have received a guideline for the recording of the case report form;
- 5) Whether communications between the investigators are amicable;

9. Essential documents storage, access, etc.

- a. In order to terminate a clinical trial, the monitor shall review the essential documents of the investigator and sponsor and confirm the status of storage thereof.
- b. If there is a request for an audit from the sponsor under subparagraph 8 (t), the investigator shall allow the sponsor or the auditor to access the essential documents.
- c. In addition to the matters prescribed in this GCP, specific types of essential documents, the storage methods therefor for each clinical phase, and keeping managers per each document shall be determined and publicly notified by the Minister of Food and Drug Safety.

- ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 4]
<Amended on March 8, 2024>

**Standards for Facilities and Manufacturing and Quality Management Systems
of Import Businesses** (Related to Article 31 (1))

1. Facilities of Import Business

A person who intends to obtain an import business license, or an importer shall hold and keep the facilities and equipment under the following items, and check them periodically to avoid causing any trouble in import and quality management of medical devices

- A. Place of business where import business is conducted
- B. Warehouse where products are stored. Provided, however, that this shall not apply where only software medical devices are imported.
- C. Laboratory if testing for quality management is required, or testing facilities necessary for the test. Provided, however, that this shall not apply where only software medical devices are imported.

2. Criteria for Facilities of Import Business

The facilities of import business shall comply with the standards set forth in each of the following items. Provided, however, that this shall not apply where only software medical devices are imported.

- A. Facilities capable of maintaining the conditions at the time of importing the product
- B. Cold storage or facilities for shielding light (only for the products that require cold storage or the products that may have trouble with functions if exposed to the light)
- C. In case of handling the product item in which the storage method is specified, the facilities capable of maintaining such condition.

3. Conformity Accreditation of Manufacturing and Quality Management System on Manufacturing Site of Imported Medical Devices

- A. An importer shall secure conformity of manufacturing and quality management system on the manufacturing site of imported medical devices.
- B. An importer of class II/class III/class IV medical devices shall receive periodic inspection every three years on whether manufacturing and quality management system on the manufacturing site conforms to the criteria of Annex 2 subparagraph 2.
- C. Annex 2 subparagraph 2 F shall apply mutatis mutandis for the standards and procedures of conformity accreditation or periodic inspection pursuant to item A and item B.
- D. Detailed matters of manufacturing and quality management system that are not prescribed in the Standards shall be set forth and notified by the Minister of Food and Drug Safety.

- ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 5]
<Amended on May. 1, 2017>

Standards for Facilities and Quality Management Systems of Repair Businesses

(Related to Article 35 (4))

1. Facility Management

A repairer shall secure facilities and equipment necessary for repairing and testing medical devices.

2. Repair Management Record

A repairer shall prepare a repair management record for each item, and such record shall include the following:

- a. Item name and model name of the relevant medical device;
- b. Manufacturer (importer) name and country of manufacture of the relevant medical device;
- c. Date of manufacture and date of repair;
- d. Report of inspection and confirmation;
- e. Description of major repairs undertaken;
- f. Records on the management of repair facilities.

3. Appointment of Chief Engineer

A repairer shall appoint a chief engineer who has proper qualifications in the field of medical devices to be repaired who is in charge of managing repair duties.

4. Duties of Chief Engineer

- a. Preparation, maintenance, and utilization of repair management records;
- b. Examination and confirmation on whether the medical device is properly repaired after the repair;
- c. Inspection and verification of repair results for quality assurance and documentation and maintenance of such results.

5. Corrective Measures

When there is a complaint on the quality of a repaired medical device, the repairer shall establish a procedure that allows the chief engineer to identify the causes and take corrective measures, and implement such a procedure.

6. Records

The following records shall be prepared and maintained:

- a. Records regarding repair and maintenance work;
- b. Records regarding repair facilities including testing and inspection equipment;
- c. Records regarding corrective measures taken;
- d. Other records regarding conducting duties according to these standards.

7. Training

To improve the qualification of the chief engineer and repair workers, a repairer shall establish a company training plan that includes the following topics and provide the employees with such training at least once per quarter, for a total of 12 hours a year:

- a. Responsibilities regarding medical device repair and related statutes and regulations;
- b. Content and specifications of the medical devices to be repaired;
- c. Matters regarding the quality management of medical device repair.

- ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 6]
<Amended on Jan. 21, 2022>

Distribution Quality Management Standards for Medical Devices

(Related to Article 39 (4))

1. Definitions

The terms used in the Standards are defined as follows:

- a. The term “separation” refers to a condition of being in different buildings or in spaces separated by walls within the same building.
- b. The term “partitioning” refers to a condition of being divided by partitions, etc., so as to manage medical devices to prevent contamination or mix-ups thereof.
- c. The term “division” refers to a condition of different medical devices distinguished from each other by drawing lines or placing spaces among them so as to manage such medical devices to prevent confusion thereamong.
- d. The term “distribution quality management standards” refer to detailed standards that a person who may distribute or lease medical devices shall observe concerning distribution of such medical devices.
- e. The term “medical device mail-order distributor” refers to a person who conducts only a mail order business under Article 2 (2) of the Act on the Consumer Protection in Electronic Commerce among those who filed a distribution business notification under Article 17 of the Act.

2. Facilities and equipment

The place where medical devices are stored in the process of distribution or lease (hereinafter “storage area”) shall meet the following standards:

- a. The building where medical devices are stored shall be separated from dirty areas, and the storage site shall have sufficient area and space;
- b. A storage area shall not be used for any purpose other than the distribution or lease of medical devices: Provided, That products, etc. other than medical devices may also be stored in the space if divided or partitioned from medical devices within the extent of not damaging supply and quality management of the medical devices;
- c. Medical devices shall not come in direct contact with the floor;
- d. A storage area shall have adequate lighting for handling medical devices and shall be well-ventilated;
- e. A storage area shall be equipped with facilities that maintain proper temperature and humidity to prevent the deterioration of medical devices and shall have air conditioning facilities if necessary; in cases of storing medical devices that need to be kept at a fixed temperature, separate freezing or refrigerating equipment with automatic

temperature recording devices shall be installed;

- f. When using automatic equipment such as freezing or refrigerating equipment, such equipment shall be periodically inspected and maintained to ensure that the equipment functions properly all the time, and records of such inspection and maintenance shall be preserved for one year;
- g. A storage area shall be equipped with facilities for preventing harmful insects and mice and with a fire extinguishing system.

3. Chief manager

For the stable supply and quality control of medical devices, a chief manager shall be appointed to check and confirm the compliance of the implement of tasks with the Standards. In such cases, the representative may concurrently hold the post of chief manager.

4. Quality management and environment and hygiene management

- a. When warehousing medical devices, information on each transaction statement and the supplier, model name, quantity, specifications, etc., of the warehoused products shall be confirmed and checked, and the exterior of the devices shall be inspected for damage, contamination, etc.
- b. Medical devices that need to be divided according to storage temperature shall be stored by being divided in a refrigerated or frozen area.
- c. Returned medical devices and defective medical devices shall be stored separately.
- d. When shipping medical devices, a worker shall be present to perform exterior inspection and confirm the supplier, model name, quantity, specifications, shelf life (expiry date), etc., of the devices before shipping; when supplying medical devices to a medical institution, or medical device distributor or lessor, details of such supply including the customer, model name, quantity, and specifications, etc., of the devices shall be recorded.
- e. Medical devices that need to be divided according to storage temperature shall be stored at an appropriate temperature which is maintained during transport.
- f. A storage area and related machinery, apparatus, and equipment shall be kept clean.
- g. When any complaint is raised about the distribution process of medical devices, a prompt investigation shall be implemented to take appropriate measures, and the details of such investigation and measures shall be recorded.
- h. If a lessor intends to lease medical devices contacting with the human body which require contamination management, he or she shall remove contamination by methods such as cleaning, disinfection etc. and record and maintain the records of such contamination management.

5. Record keeping and management

- a. The following ledgers necessary for proper supply and safety management of medical

devices shall be prepared and placed:

- 1) Facility and equipment ledger: Facility and equipment inspection results under subparagraph 2;
 - 2) Shipment ledger: Details of medical device supply under the latter part of subparagraph 4 d;
 - 3) Complaint handling ledger: Receipt of complaints and measures taken under subparagraph 4 g.
- b. Except for the records specified in the relevant statutes and regulations, records related to handling duties including various ledgers shall be preserved for two years.

6. Training

In order to improve the capability of workers, a company training plan shall be established on the following topics, and such training shall be provided at least once per quarter, for a total of 12 hours a year:

- a. Responsibilities related to handling medical devices;
- b. Details and specifications of medical devices;
- c. Handling and quality management of medical devices.
- d. Laws and regulations on medical devices;
- e. Other matters necessary to efficiently implement the Standards.

7. Subparagraph 2, subparagraph 4 b, c, e and f, and subparagraph 5 (a) 1) shall not apply to a person who does not have a storage area as a mail-order distributor of medical devices.

■ ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 7]

Scope of Prohibited Advertisements

(Related to Article 45 (1))

1. Falsified or exaggerated advertisement related to name/manufacturing method/performance or efficacy and effect of medical devices or their modes
2. Advertisements on name/manufacturing method/performance or efficacy and effect of medical devices that are not approved, certified or notified for pursuant to Article 6 (2) or Article 15 (2) of the Act
3. Advertisements with expressions to entirely deny the adverse effects of medical devices or with expressions to unreasonably emphasize safety
4. Advertisements that have falsely cited medical clinical results, clinical study report, related papers or academic data, or falsely indicated as if obtaining patent or certification concerning efficacy or effect of the medical devices that have obtained license or certification, or filed a report for
5. Advertisement that have used articles that might be misinterpreted as guaranteeing performance or efficacy and effect of medical device by doctor, dentist, doctor of oriental medicine, veterinarian or other persons
6. Advertisement containing details such as designating/certifying/recommending/instructing or using the medical device by doctor, dentist, doctor of oriental medicine, veterinarian or other persons. However, advertisement containing details of being used by designating for the purposes of national health by government, local government or other public organizations shall be excluded.
7. Advertisement that might misinterpret foreign products and domestic products or domestic products as foreign products
8. Advertisements using letter of appreciation or personal experience of the user, or using expressions such as purchases/orders are pouring in or other similar expressions
9. Advertisements containing details such as “definitely guarantee this” when advertising efficacy/effect, or advertisement using absolute expressions such as “top” or “best”
10. Advertisements that might make people misinterpret that the medical device is not a medical device
11. Advertisements that suggest as if being recommended by medical institution, etc. by pointing out the name of specific medical institution, department and contact info, etc.
12. Advertisements using articles, photographs, designs or other suggestive methods to suggest performance or efficacy and effect of the medical device
13. Advertisements that indicate or suggest the result of use with the comparison before and after using when advertising efficacy or performance

14. Advertisements that slander or that are suspected as slandering other products regardless of whether it is true or not
15. Advertisements that suggest abortion related to medical devices, or using obscene documents or designs
16. Advertisements that indicate disease symptoms or surgery scenes related to efficacy/effect or purpose of use of medical devices in a threatening way
17. Advertisements that are not reviewed pursuant to Article 25 (1) of the Act or advertisement containing different contents from the reviewed contents
18. Advertisements that have received re-review request as the result of the review pursuant to Article 25 (1) of the Act

- ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 7-2]
<Amended on Oct. 22, 2019>

UDI (Unique Device Identification) Management Standards

(Related to Article 54-3 (2))

1. Registration of Medical Device Information, etc.
 - (a) Manufacturers or importers shall register medical device information, etc. for each model name in the UDI System in order to efficiently record and manage integrated information on medical devices from approval through manufacturing, import, distribution, and use.
 - (b) Manufacturers or importers shall register medical device information, etc. in the UDI System after obtaining approval, certification, or completing notification of the medical device, and before releasing the medical device from their facilities.
 - (c) Where registered medical device information, etc. is changed, the manufacturer or importer shall register such changes within ten days from the date of the change.
 - (d) Where changes to medical device information, etc. specified by the Minister of Food and Drug Safety—such as the instructions for use or precautions—necessitate assignment of a new unique identification code, the manufacturer or importer shall register the changed medical device information, etc. in the UDI System and shall also register the newly assigned identification code.
 - (e) Where the head of the National Institute of Medical Device Safety Information finds that the registered medical device information, etc. is inaccurate or does not comply with the requirements prescribed by the Minister of Food and Drug Safety, he or she may request the manufacturer or importer to correct or amend such information. In such cases, the manufacturer or importer shall take necessary measures—such as registering accurate information or submitting supplementary documents—within twenty days from the date of the request.
 - (f) Where the manufacturer or importer fails to take the necessary measures under item (e), or where it is evident that the registered information is inconsistent with the facts, the head of the National Institute of Medical Device Safety Information (NIDS) may delete or amend the relevant information. In such cases, the head of the NIDS shall notify the manufacturer or importer concerned without delay.
 - (g) Manufacturers or importers shall not falsely register medical device information, etc. (including false registration of changes).
2. Management of Medical Device Information, etc.
 - (a) Manufacturers or importers shall keep the medical device information, etc. registered in the UDI System up to date.

- (b) Manufacturers or importers shall retain and manage records related to the medical device information, etc. registered in the UDI System.
- (c) Where the marketing of a medical device is discontinued due to withdrawal or revocation of its approval, certification, or notification, or for any other reason, the manufacturer or importer shall retain the records related to the medical device information, etc. for three years from the date on which the marketing was discontinued.
- (d) Manufacturers or importers shall provide education and training to employees and other personnel to enhance their competency regarding the registration of UDI and the use of the UDI System.
- (e) Manufacturers or importers shall comply with the detailed standards prescribed and publicly notified by the Minister of Food and Drug Safety, including the methods and procedures for registration (including registration of changes) in the UDI System.

3. UDI Management Officer

Manufacturers or importers shall appoint a management officer in order to efficiently and systematically manage UDI, including medical device information, etc. In this case, the quality manager may concurrently serve as the management officer, and the management officer shall inspect and verify whether employees and other personnel are performing their duties in accordance with the UDI Management Standards.

- ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 8]
<Amended on Oct. 31, 2025>

Standards for Administrative Dispositions

(Related to Article 58 (1))

I. General Standards

1. Standards for Administrative Disposition for 2 or More violations
 - a. In cases of 2 or more violations, the standard for the severest administrative disposition shall be followed: Provided, That if all the disposition standards correspond to business suspension or suspension of a product or product category (hereinafter “product”), disposition may be imposed by adding or weighting up to 1/2 of each the period of such suspension shall be aggravated by summing up the suspension period following the respective less severe standards to the suspension period following the severest criteria. In such cases, the maximum suspension period shall not exceed 12 months: Provided, That when two or more individual standards are applicable to the violation for the same case in the causal relation (insufficient test equipment and failure to conduct testing, etc.), only the severest standards shall apply without adding up or weighting disposition.
 - b. In cases of 2 or more types of violations of which disposition corresponds to business suspension and product suspension, each suspension period shall be calculated according to the criteria standards in item a, and if the business suspension period is longer than or equal to the product suspension period, only the disposition of business suspension shall be ordered; if the business period is shorter than the product suspension period, disposition of both business suspension and product suspension for the period that exceeds the business period shall be concurrently imposed.
2. Standards for Administrative Dispositions for Cumulative Violations
 - a. Standards for administrative dispositions for cumulative violations shall apply when administrative disposition is imposed for cumulative violations prescribed in “II. Criteria by Case” within a year (within 2 years for quality non-conformity [including cases applicable mutatis mutandis under Article 15 (6) of the Act] or within 5 years for a violation of Article 18 (2) of the Act) from the date of the latest disposition. In addition, when issuing a warning pursuant to the standards by case, the competent authority shall notify the party concerned to make improvements within a specified period, and if the violation is not remedied within that period, the case shall be regarded as a second violation. In such cases, the period to which the standards apply shall be calculated based on the date when a disposition was imposed on the preceding violation (in case of imposing a fine in lieu of a business suspension disposition, the date when the fine was imposed) and date when the same violation was detected after the

imposition of the disposition: Provided, That the foregoing does not apply for violations involving different products.

- b. If an additional aggravated disposition is ordered following item a, such a disposition shall be given an ordinal number subsequent to that of the disposition imposed right before the violation for which it is issued (in cases of 2 or more dispositions ordered within the period under item a, the disposition with the highest ordinal number).
 - c. When the same violation is detected during the period wherein the procedure for a previously received administrative disposition is in progress, 1/2 of the period of the dispositions set by the standards for each of the newly detected violations shall be added to the disposition period. In such cases, when the maximum period of business suspension or product suspension exceeds 12 months, the relevant manufacturing or import business approval or the approval or certification of the relevant product shall be revoked, or the relevant repair shop or business place shall be closed.
 - d. When a business suspension period or a product suspension period is calculated to decimal places, such decimal places shall be rounded off.
 3. When the same violation is repeated three3 times or more, the case shall be excluded from the subject of imposition of a fine, and if the violation is repeated 5 times or more, the disposition standards for the 4th violation shall be applied.
 4. When, among the standards for administrative dispositions, a violation involves an individual product that has already been permitted, certified, or notified, the administrative disposition for the violation shall be imposed in relation to the approval, certification, or notification of the product or relevant business activities; when a violation involves all products that have been permitted, certified, or notified, the administrative disposition shall be imposed in relation to the approval, certification, or notification of the products or relevant business activities.
 5. When a violation involving a permitted, certified, or notified product is a violation on an individual factory, the administrative disposition for the violation shall be imposed on the items manufactured by the factory.
 6. When an administrative disposition has been enforced for a violation, the same violations committed before the disposition shall be deemed as having been punished by the disposition so that the disposition shall not be imposed again: Provided, That when the same violation has been committed in relation to a different product, or when it is in violation of 2 of II. Standards by Cases, the foregoing shall not apply.
 7. If any of the following reasons apply to a violation of which standard for disposition corresponds to business suspension or product suspension, the period of such suspension may be reduced to the extent of 1/2 (2/3 in cases of falling under item (f)); in cases of

a violation of which standard for disposition corresponds to the revocation of manufacturing or import business approval, revocation of approval or certification of the relevant product, prohibition of manufacturing or import of the relevant product, or the closure of the repair shop or business place, the disposition may be mitigated to 3 months of business suspension or product suspension:

- a. If the disposition is deemed necessary for public health or supply and demand, and for public interest;
- b. If a medical device fails to meet the standards for performance, safety, etc., according to a result of quality inspection thereof, and the non-conformity is so minor that it is deemed not harmful to the human body;
- c. If a medical device it has been manufactured or imported and repaired but not in circulation;
- d. If the device manufacturer or importer receives the disposition of suspension of indictment from the prosecutor or suspension of sentence from the court for the relevant violation;
- e. If the device manufacturer or importer reports a recall plan according to the provisions in Articles 52 through 54, sincerely conducts the recall accordingly in good faith, and notifies the result of the recall;
- f. If a person who has provided economic benefits, etc., in violation of Article 13 (3) of the Act (including cases where such provision applies *mutatis mutandis* under Article 15 (6) of the Act) or Article 18 (2) of the Act voluntarily reports the violation to an investigation agency or supervisory office before the violation is detected, and gives statements or testimonies or relevant data in a related investigation, lawsuit, etc.

8. Notwithstanding subparagraphs 1 through 6, an exemption from any administrative disposition may be permitted if the medical device recalled by the device manufacturer or importer under Articles 52 through 54 is found to have no adverse effect on public health, or there is no reason attributable to the device manufacturer or importer.

II. Standards by Case

Violation	Relevant Provisions	Standards for Administrative Dispositions			
		1st Violation	2nd Violation	3rd Violation	4th Violation or More
1. If a manufacturer or importer falls under any subparagraph of Article 6 (1) of the Act (including cases applied mutatis mutandis under Article 15 (6) of the Act)	Article 36 (1) 1 of the Act	Revocation of manufacturing/import business license			
1-2. If a manufacturer or an importer obtains approval, approval of change, certification, certification of change, or files a notification or notification of change pursuant to Article 6 (1) or (2), Article 12 (1) (including cases applied mutatis mutandis under Article 15 (6)), or Article 15 (1) or (2) of the Act by fraudulent or other improper means	Article 36 (1) 1-2 of the Act	Revocation of approval, certification, or notification, or closure of the business			
1-3. If approval or approval of change under Article 10 (1) of the Act has been obtained by fraudulent or other improper means	Article 36 (1) 1-3 of the Act	Revocation of approval			
1-4. If a manufacturer or an importer obtains renewal under Article 49 (3) of the Act by fraudulent or other improper means	Article 36 (1) 1-4 of the Act	Revocation of approval, certification, or notification			
2. If a manufacturer or importer manufactures or imports a medical device without obtaining approval or certification, or filing a notification, in violation of Article 6 (2) or 15 (2) of the Act	Article 36 (1) 2 of the Act	6-month suspension of all manufacturing/import activities	Revocation of manufacturing/import business license		
3. If a manufacturer, etc., fails to be equipped with facilities in compliance with the standards in Annex 2 in violation of	Article 36 (1) 3 of the Act				

Article 6 (4) and Article 13 (4) of the Act					
a. If all or part of the facilities and equipment necessary for the manufacturing or testing of the relevant product are absent or unavailable even if they are in place;		5-month suspension of manufacturing activities of the relevant product	10-month suspension of manufacturing activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product or prohibition of manufacture of the product	
b. If no work space required for the type of product, manufacturing method, and manufacturing facility is in place		1-month suspension of manufacturing activities of the relevant product	3-month suspension of manufacturing activities of the relevant product	6-month suspension of manufacturing activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product or prohibition of manufacture of the product
c. Other cases of violating the facility management standards		15-day suspension of manufacturing activities of the relevant product	1-month suspension of manufacturing activities of the relevant product	3-month suspension of manufacturing activities of the relevant product	6-month suspension of manufacturing activities of the relevant product
d. If testing is entrusted to a contractor who is not authorized for such entrustment		3-month suspension of manufacturing activities of the relevant product	6-month suspension of manufacturing activities of the relevant product	Nine-month suspension of manufacturing activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product or prohibition of manufacture of the product
e. When a manufacturer or importer entrusts the manufacturing process or testing to a contractor and fails to fulfill the responsibility for managing the contractor		3-month suspension of manufacturing activities of the relevant product	6-month suspension of manufacturing activities of the relevant product	nine-month suspension of manufacturing activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product or prohibition of manufacture of the product
3-2. When a manufacturer or importer fails to appoint a quality manager in violation of Article 6 (7) of the Act (including	Article 36 (1) 3-2 of the Act	1-month suspension of all manufacturing/ import activities	3-month suspension of all manufacturing/ import activities	6-month of suspension of all manufacturing/ import activities	Revocation of manufacturing /import business license

cases applied mutatis mutandis under Article 15 (6) of the Act)					
3-3. When a person who has not received necessary training is appointed as a quality manager in violation of Article 6-2 (4) of the Act (including cases applied mutatis mutandis under Article 15 (6) of the Act)	Article 36 (1) 3-3 of the Act	15-day suspension of all manufacturing/import activities	1-month suspension of all manufacturing/import activities	3-month suspension of all manufacturing/import activities	6-month of suspension of all manufacturing/import activities
4. When a manufacturer or importer fails to fulfill the conditions under Article 7 (1) of the Act (including cases applied mutatis mutandis under Article 15 (6) of the Act)	Article 36 (1) 4 of the Act				
a. Conditional manufacturing/import business license		Revocation of manufacturing/import business license			
b. Conditional manufacturing/import approval		Revocation of manufacturing/import approval of the relevant product			
c. Conditional manufacturing/import certification		Revocation of manufacturing/import certification for the relevant product			
d. Conditional manufacturing/import notification		Prohibition of manufacture/import of the relevant product			
5. If a manufacturer or importer fails to conduct post-marketing surveillance in violation of Article 8 of the Act	Article 36 (1) 5 of the Act	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	9-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval of the relevant product
5-2. If a manufacturer or importer fails to obtain approval or approval for modification or fails to comply with a	Article 36 (1) 5-2 of the Act	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval of the relevant product

surveillance plan granted approval or approval of modification in violation of Article 8 (3) of the Act			product		product
5-3. If a manufacturer or importer fails to file a periodic report or submits a report by fraud or other improper means in violation of Article 8 (4) of the Act	Article 36 (1) 5-3 of the Act				
a. If a periodic report on the post-marketing surveillance results has not been submitted within the set deadline		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval of the relevant product
b. If the report is submitted by fraud or other improper means		Revocation of manufacturing/ import approval of the relevant product			
5-4. If a manufacturer or importer fail to obey an order to take measures under Article 8 (5) of the Act	Article 36 (1) 5-4 of the Act	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	5-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval for the relevant product
5-5. If a manufacturer or importer is found to have failed to secure the safety or efficacy of a medical device as a result of examination under Article 8-2 of the Act	Article 36 (1) 5-5 of the Act	Revocation of manufacturing/ import approval of the relevant product			
5-6. If a manufacturer or importer fails to submit data within a set deadline or submits data by fraud or other improper means	Article 36 (1) 5-6 of the Act				
a. If post-marketing surveillance data is not submitted within a set deadline		6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval of the relevant product		
b. If the data is submitted by fraud or other		Revocation of manufacturing/			

improper means		import approval of the relevant product			
5-7. If a manufacturer or importer fails to obey an order to take measures under Article 8-2 (2) of the Act	Article 36 (1) 5-7 of the Act	2-month suspension of distribution activities of the relevant product	4-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval of the relevant product
5-8. If a manufacturer or importer fails to meet the requirements on data preservation in violation of Article 8-2 (3) of the Act	Article 36 (1) 5-8 of the Act	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval of the relevant product
6. If a manufacturer or importer fails to undergo re-evaluation, fails to take measures based on the results of re-evaluation, or is found to have failed to secure the safety or efficacy of a medical device according to a result of re-evaluation in violation of Article 9 of the Act (including cases applied mutatis mutandis under Article 15 (6) of the Act)	Article 36 (1) 6 of the Act				
a. Failure to undergo re-evaluation		2-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import	
b. Failure to take measures (excluding measures of labeling, writing, collection, and disposal) based on the results of re-evaluation		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	5-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import
c. Failure to secure the safety or efficacy of a medical device according to a result of re-		Revocation of manufacturing/ import approval/ certification or			

evaluation		prohibition of manufacture/ import			
7. If a manufacturer or importer manufactures a medical device at a facility that does not meet the relevant standards or imports a medical device manufactured at such a facility in violation of Article 10 (2) of the Act	Article 36 (1) 7 of the Act	6-month suspension of manufacturing /import activities of the relevant product	Revocation of manufacturing/ import approval/ certification of the relevant product		
8. If a manufacturer or importer fails to obtain approval or certification for modification or report modification in violation of Article 12 (1) of the Act (including cases applied mutatis mutandis under Article 15 (6) of the Act)	Article 36 (1) 8 of the Act				
a. Modification of the address of a manufacturing/import business place (including the addition of a factory)		1-month suspension of all manufacturing /import activities	3-month suspension of all manufacturing/ import activities	6-month of suspension of all manufacturing/ import activities	Revocation of manufacturing/ import business license
b. Modification of the representative or name of a manufacturing/import business		Warning	15-day suspension of all manufacturing/ import activities	1-month suspension of all manufacturing/ import activities	3-month suspension of all manufacturing/ import activities
c. Modification of the form, specification, or material of some of the components of a medical device		3-month suspension of manufacturing /import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import	
d. Replacement of a quality manager		Warning	7-day suspension of all manufacturing/ import activities	15-day suspension of all manufacturing/ import activities	1-month suspension of all manufacturing/ import activities
e. If a manufacturer or		1-month	3-month	6-month	Revocation of

importer fails to submit documents describing minor changes in the appearance, packaging materials, packaging units, etc. of a medical device		suspension of manufacturing /import activities of the relevant product	suspension of manufacturing /import activities of the relevant product	suspension of manufacturing /import activities of the relevant product	manufacturing/ import approval/ certification or prohibition of manufacture/ import
f. If a medical device is manufactured/imported and distributed somewhere other than an approved manufacturing/import business' facility		6-month of suspension of all manufacturing/ import activities	Revocation of manufacturing/ import business license		
9. If a manufacturer fails to comply with the matters to be observed for manufacturing and quality management or production management under Article 27 (1) in violation of Article 13 (1) of the Act	Article 36 (1) 9 of the Act				
a. If a factory is not sanitarily managed or contamination therein is not prevented in violation of Article 27 (1) 1		1-month suspension of all manufacturing activities or manufacturing activities of the relevant product	3-month suspension of all manufacturing activities or manufacturing activities of the relevant product	6-month suspension of all manufacturing activities or manufacturing activities of the relevant product	Revocation of manufacturing business license, revocation of manufacturing approval/ certification of the relevant product, or prohibition of manufacture of the relevant product
b. If an object that may cause harm is placed or the leak or release of harmful substances is not prevented in the work place in violation of Article 27 (1) 2		2-month suspension of manufacturing activities of the relevant product	4-month suspension of manufacturing activities of the relevant product	6-month suspension of manufacturing activities of the relevant product	Revocation of manufacturing business license, revocation of manufacturing approval/ certification of the relevant product, or prohibition of manufacture of the relevant product
c. If a quality manual under		3-month	6-month	Revocation of	

subparagraph 2 of Annex 2 has not been prepared and kept in violation of Article 27 (1) 10 or 11		suspension of all manufacturing activities	suspension of all manufacturing activities	manufacturing approval	
d. If documents on the warehousing and release of raw materials and finished products, manufacturing process, and quality management are not prepared and kept in violation of Article 27 (1) 3 and documents on the quality management system under subparagraph 2 of Annex 2 have not been prepared and kept in violation of Article 27 (1) 10 or 11		2-month suspension of all manufacturing activities or manufacturing activities of the relevant product	4-month suspension of all manufacturing activities or manufacturing activities of the relevant product	6-month suspension of all manufacturing activities or manufacturing activities of the relevant product	Revocation of manufacturing business license or revocation of manufacturing approval/certification of the relevant product
e. In cases of any non-compliance with the content of the quality management system document under subparagraph 2 of Annex 2 in violation of Article 27 (1) 4 through 8 or 13 or subparagraph 10 or 11 of the same paragraph					
1) Any violation of 4 Article 27 (1) 4 through 8 or any non-compliance with the content of the document regarding production management (manufacturing processes), testing and inspection, design management (including validation), and corrective and preventive measures (including customer complaint handling records) under subparagraph 2 of Annex 2 in violation of Article 27 (1) 10 or 11		1-month suspension of all manufacturing activities or manufacturing activities of the relevant product	3-month suspension of all manufacturing activities or manufacturing activities of the relevant product	6-month suspension of all manufacturing activities or manufacturing activities of the relevant product	Revocation of manufacturing business license or revocation of manufacturing approval/certification of the relevant product
2) Any non-compliance with the content of the document regarding purchase management,		15-day suspension of all manufacturing activities or	1-month suspension of all manufacturing	3-month suspension of all manufacturing	6-month suspension of all manufacturing

non-conforming product management, measuring equipment management, document/record management, and internal quality audit under subparagraph 2 of Annex 2 in violation of Article 27 (1) 10 or 11		manufacturing activities of the relevant product	activities or manufacturing activities of the relevant product	activities or manufacturing activities of the relevant product	activities or manufacturing activities of the relevant product
3) Any violation of Article 27 (1) 13 or any non-compliance with the content of the document on other matters under subparagraph 2 of Annex 2 in violation of Article 27 (1) 10 or 11		Warning	Seven-day suspension of all manufacturing activities or manufacturing activities of the relevant product	15-day suspension of all manufacturing activities or manufacturing activities of the relevant product	1-month suspension of all manufacturing activities or manufacturing activities of the relevant product
f. If manufacturing and quality inspection records per batch are created falsely in violation of Article 27 (1) 4 or manufacturing records or testing and inspection records under subparagraph 2 of Annex 2 are created falsely in violation of Article 27 (1) 10 or 11		6-month suspension of manufacturing activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product		
g. Deleted. <Jan 21, 2022>					
h. If necessary safety measures are not taken in violation of Article 27 (1) 9		1-month suspension of all manufacturing activities or manufacturing activities of the relevant product	3-month suspension of all manufacturing activities or manufacturing activities of the relevant product	6-month suspension of all manufacturing activities or manufacturing activities of the relevant product	Revocation of manufacturing business license, revocation of manufacturing approval/ certification of the relevant product, or prohibition of manufacture of the relevant product
i. If a medical device is distributed without obtaining the recognition of conformity under subparagraph 2 of Annex		6-month suspension of manufacturing activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant		

2 in violation of Article 27 (1) 10 or 11			product		
j. If a manufacturer fails to undergo a periodical inspection on conformity with the quality management standards under subparagraph 2 of Annex 2 in violation of Article 27 (1) 10 or 11		3-month suspension of manufacturing activities of the relevant product	6-month suspension of manufacturing activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product or prohibition of manufacture of the relevant product	
k. If a manufacturer fails to maintain facility and quality management systems or perform manufacturing and quality management or production management in compliance with the latest standards in violation of Article 27 (1) 12		15-day suspension of all manufacturing activities or manufacturing activities of the relevant product	1-month suspension of all manufacturing activities or manufacturing activities of the relevant product	3-month suspension of all manufacturing activities or manufacturing activities of the relevant product	6-month suspension of all manufacturing activities or manufacturing activities of the relevant product
l. If a manufacturer fails to comply with the matters to be observed when purchasing medical devices manufactured by their company from a medical institution in violation of Article 27 (1) 15					
1) If the relevant device is not inspected or no inspection certificate has been attached thereto in violation of Article 27 (1) 15 (a)		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product or prohibition of manufacture of the relevant product
2) In case of failure to prepare, keep, or preserve records in violation of Article 27 (1) 15 (b)		15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product
m. If a manufacturer fails to comply with the matters					

to be observed when an inspection is requested from a distributor or lessor in violation of Article 27 (1) 16					
1) In case of issuing an inspection certificate without carrying out an inspection according to the medical device manufacturing and quality management standards in violation of Article 27 (1) 16 (a)		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product or prohibition of manufacture of the relevant product
2) In case of non-compliance with the matters prescribed and publicly notified by the Minister of Food and Drug Safety in violation of Article 27 (1) 16 (b)		15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product
9-2. If a manufacturer fails to report the production and import performance of medical devices in violation of Article 13 (2) of the Act (including cases applied mutatis mutandis under Article 15 (6))	Article 36 (1) 9-2 of the Act				
a. In case of failure to report matters under each subparagraph of Article 27 (2) and each subparagraph of Article 33 (2) or in case of false report		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product or prohibition of manufacture/ import of the relevant product
b. In case of making a report on matters under Article 27 (2) 2 and Article 33 (2) 2 in violation of the procedures or methods prescribed and publicly		7-day suspension of distribution activities of the relevant product	15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant item	3-month suspension of distribution activities of the relevant product

notified by the Minister of Food and Drug Safety					
10. If a manufacturer or importer provides economic benefits, etc. in violation of Article 13 (3) of the Act (including cases applied mutatis mutandis under Article 15 (6) of the Act)	Article 36 (1) 10 of the Act	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing approval/ certification of the relevant product or prohibition of manufacture/ import of the relevant product	
11. If an importer fails to meet the facility standards under Annex 4 in violation of Article 15 (4) of the Act	Article 36 (1) 3 of the Act				
a. In case of failure to secure a business facility or warehouse		6-month suspension of all import activities	Revocation of import business license		
b. In case of failure to secure a storage facility necessary for handling the relevant medical devices in the warehouse		1-month suspension of all import activities	3-month suspension of all import activities	6-month suspension of all import activities	Revocation of import business license
c. If some of the facilities required of the relevant product are either absent or unavailable		3-month suspension of import activities of the relevant product	6-month suspension of import activities of the relevant product	1-year suspension of import activities of the relevant product	3-month suspension of all import activities
d. In case of noncompliance with other facility management standards		15-day suspension of import activities of the relevant product	1-month suspension of import activities of the relevant product	3-month suspension of import activities of the relevant product	6-month suspension of import activities of the relevant product
12. If an importer fails to comply with the matters to be observed for import and quality control or import management in violation of Article 13 (1) of the Act, which applies mutatis mutandis under Article 15 (6) of the Act	Article 36 (1) 9 of the Act				
a. If an importing business facility is not sanitarily managed or contamination therein is not prevented in		1-month suspension of all import activities or import	3-month suspension of all import activities or	6-month suspension of all import activities or	Revocation of import business license, revocation of

violation of Article 33 (1) 1		activities of the relevant product	import activities of the relevant product	import activities of the relevant product	the import approval/ certification of the relevant product, or prohibition of import of the relevant product
b. If an importer fails to prepare and keep documents in storage, warehousing and release, and quality management of imported medical devices and their accessories, or device master records and written import management standards under Article 33 (1) 7 and 8 subparagraph 2		3-month suspension of all import activities or import activities of the relevant product	6-month suspension of all import activities or import activities of the relevant product	Revocation of the import business permit or prohibition of import	
c. If an importer fails to prepare and keep documents on quality management tasks other than those prescribed in Article 33 (1) 7 and 8		2-month suspension of all import activities or import activities of the relevant product	Four-month suspension of all import activities or import activities of the relevant product	6-month suspension of all import activities or import activities of the relevant product	Revocation of import business license, revocation of the import approval/ certification of the relevant product, or prohibition of import of the relevant product
d. If any provision among Article 33(1) 3 through 6 or 10 through 13 is violated, or the content of the related documents are not observed					
1) In case of violating any of Article 33 (1) 3 through 6 or 12 or not observing the content of the documents prepared on the corrective and preventive measures (including customer complaint handling		1-month suspension of all import activities or import activities of the relevant product	3-month suspension of all import activities or import activities of the relevant product	6-month suspension of all import activities or import activities of the relevant product	Revocation of import business license, revocation of the import approval/certification of the relevant product, or

records), testing and inspection, and examination of the manufacturing and quality management status of the foreign manufacturer in violation of Article 33 (1) 11					prohibition of import of the relevant product
2) In case of disobeying the content of the documents prepared on the storage and release of medical devices, storage facilities, and testing facility management in violation of Article 33 (1) 2 and 10		15-day suspension of all import activities or import activities of the relevant product	1-month suspension of all import activities or import activities of the relevant product	3-month suspension of all import activities or import activities of the relevant product	6-month suspension of all import activities or import activities of the relevant product
3) In case of violating Article 33(1) 13 or not observing the content of the documents prepared on other matters		Warning	7-day suspension of all import activities or import activities of the relevant product	15-day suspension of all import activities or import activities of the relevant product	1-month suspension of all import activities or import activities of the relevant product
e. If an importer falsely creates import and quality management records per import unit in violation of Article 33 (1) 3 or falsely creates testing and inspection records under subparagraphs 7 and 8 of the same Article		6-month suspension of import activities of the relevant product	Revocation of import approval/ certification of the relevant product or prohibition of import of the relevant product		
f. Deleted. <Jan 21, 2022>					
g. If an importer fails to take necessary safety measures in violation of Article 33 (1) 14		1-month suspension of all manufacturing activities or manufacturing activities for the relevant item	3-month suspension of all manufacturing activities or manufacturing activities for the relevant item	6-month suspension of all manufacturing activities or manufacturing activities for the relevant item	Revocation of import business license, revocation of the import approval/ certification of the relevant product, or prohibition of import of the relevant product

h.	If a medical device is distributed without being recognized for conformity under subparagraph 3 of Annex 4 in violation of Article 33 (1) 15		6-month suspension of import activities of the relevant product	Revocation of the importing permit/ certification of the relevant product		
i.	If an imported medical device factory fails to undergo a periodical inspection under subparagraph 3 of Annex 4 in violation of Article 33 (1) 15		3-month suspension of import activities of the relevant product	6-month suspension of import activities of the relevant product	Revocation of the importing permit/ certification of the relevant product	
j.	If an importer fails to observe the import and export guidelines for medical devices publicly notified by the Minister of Trade, Industry and Resources and the regulations on the management of imported medical devices prescribed by the Minister of Food and Drug Safety in violation of Article 33 (1) 16		1-month suspension of all import activities or import activities of the relevant product	3-month suspension of all import activities or import activities of the relevant product	6-month suspension of all import activities or import activities of the relevant product	Revocation of import business license, revocation of the import approval/ certification of the relevant product, or prohibition of import of the relevant product
k.	If an importer fails to comply with the matters to be observed when importing used medical devices or purchasing medical devices imported by their company from a medical institution in violation of Article 33 (1) 19					
1)	In case of failure to inspect imported medical devices or when releasing them without attaching inspection certificates thereto in violation of Article 33 (1) 19 (a)		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of import approval/ certification of the relevant product or prohibition of import of the relevant item
2)	In case of failure to prepare, keep, or preserve records in violation of Article 33 (1) 19 (b)		15-day suspension of distribution activities of the	1-month suspension of distribution activities of	3-month suspension of distribution activities of the	6-month suspension of distribution activities of

		relevant product	the relevant product	relevant product	the relevant product
l. If an importer fails to comply with the matters to be observed when requested to conduct an inspection by a distributor or lessor in violation of Article 33 (1) 20					
1) In case of issuing an inspection certificate without conducting an inspection following the medical device manufacturing and quality management standards in violation of Article 33 (1) 20 (a)		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of import approval/ certification of the relevant product or prohibition of import of the relevant item
2) In case of non-compliance with the matters prescribed and publicly notified by the Minister of Food and Drug Safety in violation of Article 33 (1) 20 (b)		15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product
m. If an importer fails to maintain facilities and quality management systems or conduct manufacture and quality management or import management following the latest standards in violation of Article 33 (1) 17		15-day suspension of all import activities or import activities of the relevant product	1-month suspension of all import activities or import activities of the relevant product	3-month suspension of all import activities or import activities of the relevant product	6-month suspension of all import activities or import activities of the relevant product
13. If a repairer falls under any of the subparagraphs of Article 6 (1) of the Act, which applies mutatis mutandis under Article 16 (4) of the Act	Article 36 (1) 1 of the Act	Closure of the repair shop			
13-2. If a repairer files a notification under Article 16 (1) of the Act, or a notification of change under Article 12 (1), which applies mutatis mutandis under Article 16 (4) of the Act, by fraudulent or other	Article 36 (1) 1-2 of the Act	Closure of the business			

improper means					
14. If a repairer fails to meet the facility and quality management system standards in Annex 5 in violation of Article 16 (2) of the Act	Article 36 (1) 3 of the Act	2-month suspension of all repair activities	5-month suspension of all repair activities	8-month suspension of all repair activities	Closure of the repair shop
15. If a repairer fails to make a notification of modification in violation of Article 12 (1) of the Act, which applies mutatis mutandis under Article 16 (4) of the Act	Article 36 (1) 8 of the Act				
a. Modification of the representative or name of the business		Warning	7-day suspension of all repair activities	15-day suspension of all repair activities	1-month suspension of all repair activities
b. Modification of other notified matters including the address of the business		1-month suspension of all repair activities	3-month suspension of all repair activities	6-month suspension of all repair activities	Closure of the repair shop
16. If a repairer fails to comply with the matters to be observed for repair management under Article 36 in violation of Article 13 (1) of the Act, which applies mutatis mutandis under Article 16 (4) of the Act	Article 36 (1) 9 of the Act				
a. In case of repairing a medical device by altering inconsistently the details permitted, certified, or notified in violation of Article 36 (1)		3-month suspension of all repair activities	6-month suspension of all repair activities	Closure of the repair shop	
b. If the trade name and address of the repairer is not stated on a container or outer package of a repaired medical device in violation of Article 36 (2)		1-month suspension of all repair activities	3-month suspension of all repair activities	6-month suspension of all repair activities	Closure of the repair shop
c. If the details of repair are not notified to the person who has requested such repair in violation of		1-month suspension of all repair activities	3-month suspension of all repair activities	6-month suspension of all repair activities	Closure of the repair shop

Article 36 (3)					
17. If a distributor or lessor falls under Article 6 (1) 2, 4, or 5 of the Act, which applies mutatis mutandis under Article 17 (3) of the Act	Article 36 (1) 1 of the Act	Closure of the business			
17-2. If a distributor or lessor files a notification under Article 17 (1) of the Act, or a notification of change under Article 12 (1), which applies mutatis mutandis under Article 17 (3) of the Act, by fraudulent or other improper means	Article 36 (1) 1-2 of the Act	Closure of the business			
18. If a distributor or lessor fails to file a notification of modification in violation of Article 12 (1) of the Act, which applies mutatis mutandis under Article 17 (3) of the Act	Article 36 (1) 8 of the Act				
a. Modification of the business address		1-month suspension of distribution/lease business activities	3-month suspension of distribution/lease business activities	6-month suspension of distribution/lease business activities	Closure of the business
b. Modification of the representative or business name		Warning	3-day suspension of distribution/lease business activities	7-day suspension of distribution/lease business activities	15-day suspension of distribution/lease business activities
19. If a distributor or a lessor fails to comply with the matters to be observed for the maintenance of distribution order under Articles 39 and 40 in violation of Article 18 (1) of the Act	Article 36 (1) 11 of the Act				
a. In case of violating Articles 39 and 40 (excluding subparagraph 4 of Article 39 and subparagraphs 3 (a) and 4 of Article 40)		15-day suspension of distribution/lease business activities	1-month suspension of distribution/lease business activities	3-month suspension of distribution/lease business activities	6-month suspension of distribution/lease business activities

b. In case of non-compliance with the medical device distribution quality management standards under Annex 6 in violation Article 39 (4)					
1) If refrigeration facilities are not secured or in an unusable state		1-month suspension of distribution/lease business activities	3-month suspension of distribution/lease business activities	6-month suspension of distribution/lease business activities	Closure of the business
2) If medical devices with set storage temperatures that are not stored in places with the proper temperatures under subparagraph 2 of Annex 6 are maintained or where the proper temperatures are not maintained		15-day suspension of distribution/lease business activities	1-month suspension of distribution/lease business activities	3-month suspension of distribution/lease business activities	6-month suspension of distribution/lease business activities
3) If the ledgers required for documentation have not been prepared or kept		7-day suspension of distribution/lease business activities	15-day suspension of distribution/lease business activities	1-month suspension of distribution/lease business activities	3-month suspension of distribution/lease business activities
4) In case of any other violation of the medical device distribution quality management standards		Warning	Three-day suspension of distribution/lease business activities	Seven-day suspension of distribution/lease business activities	15-day suspension of distribution/lease business activities
c. In case of violations of subparagraphs 3 (a) and 4 of Article 40		1-month suspension of distribution/lease business activities	3-month suspension of distribution/lease business activities	6-month suspension of distribution/lease business activities	Closure of the business
20. If a distributor or a lessor provides economic benefits, etc., in violation of Article 18 (2) of the Act	Article 36 (1) 10 of the Act	1-month suspension of distribution/lease business activities	3-month suspension of distribution/lease business activities	Closure of the business	
20-2. If a medical device sales representative falls under Article 6 (1) 2 (limited to persons under adult guardianship or limited guardianship), 4, 4-2, or 5 of the Act, which applies mutatis mutandis under	Article 36 (1) 1 of the Act	Closure of the business			

Article 18-2 (3) of the Act; provided, however, that this shall not apply where an heir transfers the status of the medical device sales representative within six months pursuant to Article 47 (2) of the Act					
20-3. If a medical device sales representative files a notification or a notification of change under Article 18-2 (1) of the Act by fraudulent or other improper means	Article 36 (1) 1-2 of the Act	Revocation notification or closure of the business			
20-4. If a medical device sales representative who has been entrusted by a manufacturer or an importer with the activities of promoting the sale of medical devices (including the representative, directors, and other persons engaged in such activities in the case of a corporation, and including persons engaged in such activities in the case of a non-corporate entity) provides economic benefits, etc. in violation of Article 13 (3) of the Act (including cases applied mutatis mutandis under Article 15 (6) of the Act)	Article 36 (1) 10 of the Act	1-month suspension of promotional activities	3-month suspension of promotional activities	Closure of the business	
20-5. If a medical device sales representative who has been entrusted by a distributor or a lessor with the activities of promoting the sale or lease of medical devices (including the representative, directors, and other persons engaged in such activities in the case of a corporation, and including persons engaged in such activities in the case of a non-corporate	Article 36 (1) 10 of the Act	1-month suspension of sales or lease promotional activities	3-month suspension of sales or lease promotional activities	Closure of the business	

entity) provides economic benefits, etc. in violation of Article 18 (2) of the Act					
20-6. If a medical device sales representative fails to meet the criteria for notification under Article 18-2 (1) of the Act	Article 36 (1) 11-2 of the Act	1-month suspension of sales or lease promotional activities	3-month suspension of sales or lease promotional activities	6-month suspension of sales or lease promotional activities	Closure of the business
20-7. If a medical device sales representative engages a person who has not completed the training required under Article 18-3 (1) of the Act to perform medical device promotional activities, in violation of the same paragraph	Article 36 (1) 11-3 of the Act	15-day suspension of sales or lease promotional activities	1-month suspension of sales or lease promotional activities	3-month suspension of sales or lease promotional activities	6-month suspension of sales or lease promotional activities
20-8. If a medical device sales representative fails to notify, in writing (including an electronic document under Article 2 (1) 1 of the Framework Act on Electronic Documents and Transactions), the manufacturer, importer, distributor, or lessor who entrusted the promotional activities for the sale or lease of medical devices of the fact that the representative has re-entrusted all or part of such activities, in violation of Article 18-4 (1) of the Act	Article 36 (1) 11-4 of the Act	3-day suspension of sales or lease promotional activities	7-day suspension of sales or lease promotional activities	15-day suspension of sales or lease promotional activities	1-month suspension of sales or lease promotional activities
20-9. If a manufacturer, importer, or distributor distributes a supposedly sealed medical device its container or package opened in violation of Article 18-5 of the Act	Article 36 (1) 11-5 of the Act	15-day suspension of distribution/lease business activities	1-month suspension of distribution/lease business activities	3-month suspension of distribution/lease business activities	6-month suspension of distribution/lease business activities
21. If a manufacturer or importer fails to label a container or outer package of a medical device with the descriptions under Article 20 of the Act in	Article 36 (1) 12 of the Act				

violation of the said Article					
a. In cases where all descriptions are omitted		3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval/certification for the relevant product or prohibition of the manufacture/import of the relevant product	
b. In cases where parts of the descriptions are omitted		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval/certification for the relevant product or prohibition of manufacture/import of the relevant product
22. If the descriptions under Article 20, written on a container or outer package of a medical device, are unreadable because they are covered by an outer container or another outer package and when a manufacturer or importer fails to write such descriptions on the outer container or the other outer package in violation of Article 21	Article 36 (1) 12 of the Act				
a. In cases where all descriptions are omitted		Two-month suspension of distribution activities of the relevant product	Four-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval/certification for the relevant product or prohibition of manufacture/import of the relevant

b.	In cases where parts of the descriptions are omitted		15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	product 6-month suspension of distribution activities of the relevant product
23.	If a manufacturer or importer fails to write the descriptions under Article 20 in a package insert of a medical device in violation of Article 22	Article 36 (1) 12 of the Act				
a.	In cases where all descriptions are omitted		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval/certification or prohibition of manufacture/import
b.	In cases where parts of the descriptions are omitted		7-day suspension of distribution activities of the relevant product	15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product
24.	If a manufacturer/importer fails to observe requirements for the labeling of a medical device with the descriptions under Article 20 in violation of Article 23 of the Act	Article 36 (1) 12 of the Act	Warning	15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product
25.	If any prohibited description is indicated or written on a container, package, or package insert of a medical device in violation of Article 24 (1) of the Act	Article 36 (1) 13 of the Act				
a.	If the descriptions under Article 43 (1) 1, 2 or 4 are indicated or written differently from the permitted or certified ones		3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval/certification or prohibition of manufacture/	

b.	If the descriptions under subparagraphs 1 or 2 of Article 22 of the Act or those under Article 43 (1) 3, 6, or 7 are indicated or written differently from the permitted or certified ones		2-month suspension of distribution activities of the relevant product	4-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval/certification or prohibition of manufacture/import of the relevant product
c.	If the descriptions under Article 43 (1) 8 are indicated or written differently from the permitted or certified ones		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval/certification or prohibition of manufacture/import of the relevant product
d.	If a false or misleading description under Article 24 (1) 1 of the Act is indicated or written		1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/import approval/certification or prohibition of manufacture/import of the relevant product
e.	If the other descriptions under Articles 20 through 22 of the Act and Article 43 are indicated or written differently from the permitted or certified ones		15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product
26.	If a person makes any of the advertisements falling under Article 45 (1) 1 and 2, which correspond the advertisements prescribed in Annex 7 in violation of Article 24 (2) of the Act	Article 36 (1) 14 of the Act				
a.	In case of an advertisement falling under subparagraphs 1, 2, 5, 12 or 15 of Annex 7					
1)	A manufacturer or an importer		1-month suspension of	3-month suspension of	6-month suspension of	Revocation of manufacturing/

		distribution activities of the relevant product	distribution activities of the relevant product	distribution activities of the relevant product	import approval/ certification or prohibition of manufacture/ import of the relevant product
2) A distributor or a lessor		15-day suspension of distribution/lease business activities	1-month suspension of distribution/ lease business activities	3-month suspension of distribution/ lease business activities	6-month suspension of distribution/ lease business activities
b. In case of an advertisement falling under any of subparagraphs 3, 4, 6 through 11, 13, 14, and 16 through 18 of Annex 7					
1) A manufacturer or an importer		15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product
2) A distributor or a lessor		7-day suspension of distribution/lease business activities	15-day suspension of distribution/lease business activities	1-month suspension of distribution/lease business activities	3-month suspension of distribution/lease business activities
26-2. If a manufacturer/importer distributes a medical device without sealing its container or package in violation of Article 25-5 of the Act	Article 36 (1) 14-2 of the Act	1-month suspension of manufacturing/ import activities of the relevant product	3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	9-month suspension of manufacturing/ import activities of the relevant product
27. In case of any violation of Article 30 of the Act	Article 36 (1) 14-4 and 15 of the Act				
a. If records on medical devices subject to tracking and control have not been created, kept, or submitted or such records have been falsely created, kept, or submitted in violation of Article 30 (1) of the Act	Article 36 (1) 14-4 of the Act				

1)	A manufacturer or an importer	Article 36 (1) 15 of the Act	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval or certification for the relevant product
2)	A repairer, a distributor, or a lessor		1-month suspension of repair/distribution / lease activities	3-month suspension of repair/ distribution/ lease activities	6-month suspension of repair/ distribution/ lease activities	1-year suspension of repair/ distribution/ lease activities
b.	If an order to submit data on medical devices subject to tracking and control, etc. is disobeyed without just causes in violation of Article 30 Paragraph 2 of the Act					
1)	A manufacturer or an importer	Article 36 (1) 16 of the Act	15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	2-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product
2)	A repairer, a distributor, or a lessor		15-day suspension of repair/distribution / lease activities	1-month suspension of repair/ distribution/ lease activities	2-month suspension of repair/ distribution/ lease activities	3-month suspension of repair/ distribution/ lease activities
28.	If a medical device handler fails to report adverse effects or keep relevant records in violation of Article 31 (1) of the Act					
a.	A manufacturer or an importer		1-month suspension of all manufacturing/ import activities or manufacturing/ import activities of the relevant product	3-month suspension of all manufacturing/ import activities or manufacturing/ import activities of the relevant product	6-month suspension of all manufacturing/ import activities or manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
b.	A repairer, a distributor, or a lessor		15-day suspension of	1-month suspension of	3-month suspension of	6-month suspension of

		repair/distribution / lease activities	repair/ distribution/ lease activities	repair/ distribution/ lease activities	repair/ distribution/ lease activities
29. If a medical device handler fails to recall a medical device or take measures necessary for the recall or report a recall plan in violation of Article 31 (2) of the Act or fails to obey the order to announce a recall plan in violation of paragraph (3) of said Article	Article 36 (1) 17 of the Act				
a. If a repairer, a distributor, or a lessor fails to suspend the repair, distribution, or lease of a medical device subject to recall in violation of Article 52 (1)		15-day suspension of repair/distribution / lease activities	1-month suspension of repair/ distribution/ lease activities	3-month suspension of repair/ distribution/ lease activities	6-month suspension of repair/ distribution/ lease activities
b. If a repairer, a distributor, or a lessor fails to issue a notice to a person responsible for recall in violation of Article 52 (1)		3-day suspension of repair/ distribution/ lease activities	7-day suspension of repair/ distribution/ lease activities	15-day suspension of repair/ distribution/ lease activities	1-month suspension of repair/ distribution/ lease activities
c. If a manufacturer or an importer fails to take measures, such as the suspension of distribution of a medical device subject to recall, in violation of Article 52 (3)		3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product	
d. If a manufacturer or an importer fails to submit a recall plan or submits one falsely in violation of Article 52 (3)		1-month suspension of all manufacturing/ import activities or manufacturing/ import activities of the relevant product	3-month suspension of all manufacturing/ import activities or manufacturing/ import activities of the relevant product	6-month suspension of all manufacturing/ import activities or manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
e. If a manufacturer or an importer disobeys an order to supplement a recall		1-month suspension of distribution	3-month suspension of distribution	6-month suspension of distribution	Revocation of manufacturing/ import

plan under Article 52 (6)		activities of the relevant product	activities of the relevant product	activities of the relevant product	approval/ certification or prohibition of manufacture/ import of the relevant product
f.	If a manufacturer or an importer fails to announce a recall plan in violation of Article 53 (1)	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
g.	If the manufacturer or an importer fails to inform the handlers of a medical device subject to recall of the entire or part of the recall plan in violation of Article 53 (3)	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
h.	If a repairer, a distributor, or a lessor fails to take measures, such as the return of medical devices subject to recall according to Article 53 (4) or fails to send a written confirmation of recall to the person responsible for recall	3-day suspension of repair/ distribution/ lease activities	7-day suspension of repair/ distribution/ lease activities	15-day suspension of repair/ distribution/ lease activities	1-month suspension of repair/ distribution/ lease activities
i.	If a manufacturer or an importer fails to destroy returned or recalled medical devices or take measures to prevent any harm or prepare a recall evaluation report in violation of Article 54 (1) and (2)	15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product
j.	If a manufacturer or an importer fails to keep a written confirmation of destruction in violation of Article 54 (2)	15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product

k.	If a manufacturer or an importer fails to submit a recall completion report or submits one falsely in violation of Article 54 (3)		1-month suspension of all manufacturing/ import activities or manufacturing/ import activities of the relevant product	3-month suspension of all manufacturing/ import activities or manufacturing/ import activities of the relevant product	6-month suspension of all manufacturing/ import activities or manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
29-2.	If the details of the provision of a medical device are not reported or falsely reported in violation of Article 31-2 (1) of the Act	Article 36 (1) 17-2 of the Act				
a.	If details of the provision of medical devices are not reported					
1)	A manufacturer or an importer	Warning		15-day suspension of distribution activities of the relevant item	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product
2)	A distributor or a lessor	Warning		7-day suspension of distribution/lease business activities	15-day suspension of distribution/lease activities	1-month suspension of distribution/lease activities
b.	If the details of the provision of medical devices are reported falsely					
1)	A manufacturer or an importer		1-month suspension of distribution activities of the relevant item	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
2)	A distributor or a lessor		15-day suspension of	1-month suspension of	3-month suspension of	6-month suspension of

		distribution/ lease business activities	distribution/ lease activities	distribution/ lease activities	distribution/ lease activities
29-3. If information is not registered in the integrated medical device information system in violation of Article 31-3 (2) of the Act or the standards for integrated medical device information management are not observed in violation of Article 31-3 (3) of the Act	Article 36 (1) 17-3 of the Act				
a. If information is not registered in the integrated medical device information system		1-month suspension of distribution activities of the relevant item	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
b. If the standards for integrated medical device information management are not observed		15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant item	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product
29-4. If a medical device handler fails to report the discovery of a foreign substance or reports it falsely in violation of Article 31-5 (1) of the Act	Article 36 (1) 18 of the Act				
a. A manufacturer or an importer		15-day suspension of distribution activities of the relevant product	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product
b. A repairer, a distributor, or a lessor		7-day suspension of repair/distribution / lease activities	15-day suspension of repair/ distribution/ lease activities	1-month suspension of repair/ distribution/ lease activities	3-month suspension of repair/ distribution/ lease activities

30. If a medical device handler fails to obey an order to file a report under Article 32 (1) of the Act or rejects, impedes, or evades the access, inspection, questioning, or collection of a relevant medical device by a competent public official	Article 36 (1) 19 of the Act				
a. A manufacturer or an importer		1-month suspension of all manufacturing/ import activities or two-month suspension of manufacturing/ import activities of the relevant product	3-month suspension of all manufacturing/ import activities or 5-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of all manufacturing/ import activities or eight-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import business license
b. A repairer, a distributor, or a lessor		1-month suspension of repair/distribution / lease activities	3-month suspension of repair/ distribution/ lease activities	6-month suspension of repair/ distribution/ lease activities	Closure of the repair shop/business
31. If the results of an inspection, etc. under Article 32 or Article 33 of the Act conducted for a medical device manufactured or imported by a manufacturer or an importer for the purpose of distribution fall under any of the following	Article 36 (1) 20 of the Act				
a. If the test results on physical and chemical properties do not meet the relevant standards		1-month suspension of manufacturing/ import activities of the relevant product	3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
b. If the test results on electrical/mechanical					

safety do not meet the relevant standards					
1) If the test results on power input, voltage and/or energy limitation, continuous leakage currents and patient auxiliary currents, withstand voltage, mechanical strength, X-rays, over temperature, overflow/discharge/leakage /moisture/liquid intrusion, cleaning/disinfection and sterilization, safety for hazardous output, and abnormal operation and fault condition do not meet the relevant standards.		3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of the manufacturing/ import approval/ certification of the relevant product or prohibition of manufacture/ import of the relevant item	
2) If the test results on outer packing and protective covering, protective/functional grounding and equalization (making electric potentials equal), stability during normal use, scattering objects, pressure vessels and areas under pressure, parts and assembly in general, power supply units (components and arrangement), structure, and arrangement do not meet the relevant standards		2-month suspension of manufacturing/ import activities of the relevant product	4-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
3) If the results of other electrical and mechanical safety tests do not meet the relevant standards		1-month suspension of manufacturing/ import activities of the relevant product	3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
c. If the test results on biological safety do not meet the relevant standards		6-month suspension of manufacturing/ import activities	Revocation of manufacturing/ import approval/		

		of the relevant product	certification or prohibition of manufacture/ import of the relevant product		
d.	If the test results on radiation safety do not meet the relevant standards				
1)	If the test results on X-ray leakage limitation, filtration, X-ray flux limitation for X-ray equipment for imaging, restriction of use of primary protective barriers, X-ray flux limitation for fluoroscopy equipment, protection against scattering radiation from the vicinity of fluoroscopy equipment, and limitation of entrance radiation dose rates do not meet the relevant standards	3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product	
2)	If the test results on distance (source to image distance and source to skin distance) setting, structure for safety of major parts (X-ray control device, high voltage generator, X-ray tube device, X-ray field limiting device, X-ray machine device, XTV monitor, image intensifier, etc.) do not meet the relevant standards	2-month suspension of manufacturing/ import activities of the relevant product	4-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
3)	If the results of other radiation safety tests do not meet the relevant standards	1-month suspension of manufacturing/ import activities of the relevant product	3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product

e.	If the test results on electromagnetic safety do not meet the relevant standards		2-month suspension of manufacturing/ import activities of the relevant product	4-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
f.	If the test results on performance do not meet the relevant standards		15-day suspension of manufacturing/ import activities of the relevant product	1-month suspension of manufacturing/ import activities of the relevant product	3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product
g.	If the results of sterility tests do not meet the relevant standards		3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product	
h.	If the results of ethylene oxide (EO) gas residual tests do not meet the relevant standards		1-month suspension of manufacturing/ import activities of the relevant product	3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product	Revocation of manufacturing/ import approval/ certification or prohibition of manufacture/ import of the relevant product
i.	If the results of other tests do not meet the relevant standards		15-day suspension of manufacturing/ import activities of the relevant product	1-month suspension of manufacturing/ import activities of the relevant product	3-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of manufacturing/ import activities of the relevant product
32.	If a manufacturer or an importer fails to obey an order to undergo an inspection under Article 33 of the Act	Article 36 (1) 21 of the Act	1-month suspension of all manufacturing/ import activities or 2-month suspension of distribution activities of the relevant product	3-month suspension of all manufacturing/ import activities or 6-month suspension of distribution	6-month suspension of all manufacturing/ import activities, revocation of manufacturing/ import approval or certification for the relevant	Revocation of manufacturing/ import business license

			activities of the relevant product	product, or prohibition of manufacture/ import of the relevant product	
33. If a medical device manufacturer, etc. disobeys an order under Article 34 of the Act	Article 36 (1) 21 of the Act				
a. In case of disobeying a recall or disposal order					
1) A manufacturer or an importer		1-month suspension of all manufacturing/ import activities	3-month of suspension of all manufacturing/ import activities	6-month of suspension of all manufacturing /import activities	Revocation of manufacturing/ import business license
2) A repairer, a distributor, or a lessor		1-month suspension of repair/distribution/ lease activities	3-month suspension of repair/distributio n/ lease activities	6-month suspension of repair/distribution / lease activities	Closure of the repair shop/business
b. In case of disobeying other orders	Article 36 (1) 21-2 of the Act				
1) A manufacturer or an importer		15-day suspension of all manufacturing/ import activities	1-month suspension of all manufacturing/ import activities	3-month suspension of all manufacturing/ import activities	6-month of suspension of all manufacturing/ import activities
2) A repairer, a distributor, or a lessor		15-day suspension of repair/ distribution/ lease activities	1-month suspension of repair/ distribution/ lease activities	3-month suspension of repair/distribution / lease activities	6-month suspension of repair/ distribution/ lease activities
33-2. If a medical device manufacturer, etc. fails to obtain insurance, etc. in violation of Article 43-6 of the Act					
a. In case of non-compliance with the insured amount requirement under Article 12-6 (1) of the Decree		Warning	1-month suspension of distribution activities of the relevant item	2-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product
b. In case of non-compliance with the		Warning	2-month suspension of	4-month suspension of	6-month suspension of

insurance purchase time requirement under Article 12-6 (2) of the Decree			distribution activities of the relevant product	distribution activities of the relevant product	distribution activities of the relevant product
c. In case of non-compliance with both the insured amount and insurance purchase time requirements under Article 12-6 (1) and (2) of the Decree		Warning	3-month suspension of distribution activities of the relevant product	6-month suspension of distribution activities of the relevant product	Prohibition of the distribution of the relevant product
34. If a medical device manufacturer, etc., manufactures, imports, repairs, distributes, or leases a medical device that poses harm, is likely to pose harm to public health, or that is deemed to have no valid performance, efficacy, or effectiveness	Article 36 (1) 22 of the Act				
1) A manufacturer or an importer		15-day suspension of all manufacturing/ import activities or 1-month suspension of manufacturing/ import activities of the relevant product	1-month suspension of all manufacturing/ import activities or 3-month suspension of manufacturing/ import activities of the relevant product	3-month suspension of all manufacturing/ import activities or 6-month suspension of manufacturing/ import activities of the relevant product	6-month suspension of all manufacturing/ import activities, revocation of manufacturing/ import approval or certification for the relevant product, or prohibition of manufacture/ import of the relevant product
2) A repairer, a distributor, or a lessor		7-day suspension of repair/ distribution/ lease activities	15-day suspension of repair/ distribution/ lease activities	1-month suspension of repair/ distribution /lease activities	3-month suspension of repair/ distribution/ lease activities
35. If a medical device manufacturer, etc. fails to secure a facility at the address where approval	Article 36 (1) 23 of the Act	Revocation of manufacturing/ import business license or closure			

or certification has been obtained or a notification has been filed following the relevant laws		of the repair shop/business			
36. If business is conducted during the suspension period	Article 36 (1) 24 of the Act	Revocation of manufacturing/ import approval/ certification, revocation of manufacturing/ import business license, or closure of the repair shop/business			
37. If a manufacturer or an importer manufactures or imports a medical device whose validity period has expired without renewing the manufacturing approval, etc., in violation of Article 49 (3) of the Act	Article 36 (1) 25 of the Act	6-month suspension of all manufacturing/ import activities	Revocation of manufacturing/ import business permit		
38. If a manufacturer or an importer fails to fulfill the requirements imposed at the time of renewal under Article 49 (4) of the Act	Article 36 (1) 25 of the Act	1-month suspension of distribution activities of the relevant product	3-month suspension of distribution activities of the relevant product	5-month suspension of distribution activities of the relevant product	Revocation of manufacturing/ import approval, certification, or notification receipt for the relevant product or prohibition of manufacture/ import of the relevant product

- ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 9]
<Amended on Jan. 16, 2024>

Standards for Administrative Dispositions

(Related to Article 58 (2))

I. General Standards

1. In cases of 2 or more violations, the standard for the severest administrative disposition shall be followed: Provided, That if all the disposition standards correspond to business suspension, disposition may be imposed by adding 1/2 of each remaining disposition standard to the severest disposition standard within the range of 6 months.
2. When a violation falls under any of the following and the disposition standard thereof corresponds to business suspension, the period of suspension may be reduced by 1/2 of the period set by the disposition standard, and when the disposition standard corresponds to the revocation of designation, such disposition may be mitigated into the suspension of the business from 3 to 6 months:
 - a. When the violation does not have a significant impact on the results or is deemed to be a simple mistake;
 - b. When the clinical trial subject to the disposition does not directly affect the safety of the subjects.
3. The standards for aggravated administrative dispositions for cumulative violations shall apply when a person receives administrative dispositions for the same type of violations for the last 3 years. In such cases, the period shall be calculated based on the date when an administrative disposition was ordered for a violation and the date when the same violation is detected again: Provided, That when the same violation is detected during the period wherein the procedure for a previously received administrative disposition is in progress, 1/2 of the period of the dispositions set by the standards for each of the newly detected violations shall be added to the disposition period.
4. When an aggravated additional disposition is ordered following subparagraph 3, such disposition shall be given the ordinal number subsequent to that of the disposition imposed right before the violation (in cases of 2 or more dispositions ordered within the period under subparagraph 3, the disposition with the highest ordinal number).

II. Standards by Case

1. Standards for Administrative Dispositions on Clinical Trial Institutions

Violation	Relevant Provisions	Standards for Administrative Disposition			
		1st Violation	2nd Violation	3rd Violation	4th Violation or More
a. If an institution obtained designation by fraud or other improper means	Article 37 (1) 1 of the Act	Revocation of designation			
b. If an institution prepares or issues a falsified report on results of a clinical trial intentionally or by gross negligence	Article 37 (1) 2 of the Act	Revocation of designation			
c. If an institution fails to meet any of the requirements for designation under Article 10 (3) of the Act	Article 37 (1) 3 of the Act	Warning	3-month suspension of clinical trial activities	6-month suspension of clinical trial activities	Revocation of designation
d. If an institution fails to comply with any of the matters to be observed under Article 10 (5) of the Act	Article 37 (1) 4 of the Act				
1) In case of violating the regulations on the consent and protection of subjects in violation of Article 24 (1) 4 and 5		3-month suspension of the relevant clinical trial activities and replacement of principal investigator	6-month suspension of the relevant clinical trial activities and replacement of principal investigator	Revocation of designation	
2) In case of failure to preserve records and data in violation of Article 24 (3)		3-month suspension of clinical trial activities	6-month suspension of clinical trial activities	Revocation of designation	
3) In case of violating Annex 3					
a) If a clinical trial is conducted according to an unapproved clinical trial protocol in violation of subparagraph 3 (f) of Annex 3		6-month suspension of the relevant clinical trial activities and 3-month exclusion of the relevant principal investigator from any clinical trial	Revocation of designation		
b) If a clinical trial is conducted differently from the initial		3-month suspension of	6-month suspension of	Revocation of designation	

clinical trial protocol before the approval of a protocol amendment in violation of subparagraph 5 (b) of Annex 3		the relevant clinical trial activities	the relevant clinical trial activities		
c) If an institution operates an institutional review board (IRB) in violation of subparagraph 6 of Annex 3		Warning	1-month suspension of the IRB's duty of granting new clinical trial approvals	3-month suspension of the IRB's duty of granting new clinical trial approvals	6-month suspension of the IRB's duty of granting new clinical trial approvals
d) If an institution operates a designated IRB in violation of subparagraph 6 (e) of Annex 3		One-month suspension of the designated IRB's duty of granting new clinical trial approvals	3-month suspension of the designated IRB's duty of granting new clinical trial approvals	6-month suspension of the designated IRB's duty of granting new clinical trial approvals	Revocation of the designation of the IRB
e) If an institution conducts a clinical trial that has not been approved by an IRB in violation of subparagraph 7 (d) of Annex 3		3-month suspension of the relevant clinical trial activities	6-month suspension of the relevant clinical trial activities	Revocation of designation	
f) If an institution conducts a clinical trial whose modification has not been approved by an IRB in violation of subparagraph 7 d of Attached Table 3		1-month suspension of the relevant clinical trial activities	3-month suspension of the relevant clinical trial activities	6-month suspension of the relevant clinical trial activities	Revocation of designation
g) If an institution fails to comply with Annex 3 in relation to other matters		Warning	1-month suspension of the relevant clinical trial activities	3-month suspension of the relevant clinical trial activities	6-month suspension of the relevant clinical trial activities
e. If an institution continues its business activities are conducted during a period for which its business activities are suspended	Article 37 (1) 5 of the Act	Revocation of designation			

2. Standards for Administrative Dispositions on Quality Control Examination Agency

Violation	Relevant Provisions	Standards for Administrative Dispositions			
		1st Violation	2nd Violation	3rd Violation	4th Violation or More
a. If an institution obtained designation by fraud or other improper means	Article 37 (1) 1 of the Act	Revocation of designation			
b. If an institution prepares or issues a falsified report on results of a quality control examination intentionally or by gross negligence	Article 37 (1) 2 of the Act	Revocation of designation			
c. If an institution fails to meet any of the requirements for designation under Article 28 (3) of the Act	Article 37 (1) 3 of the Act	3-month suspension of the business	6-month suspension of the business	Revocation of designation	
d. If an institution fails to comply with any of the matters to be observed under Article 28 (4) of the Act	Article 37 (1) 4 of the Act				
1) In case of failure to preserve records on any quality control examination in violation of Article 48 (4) 1		1-month suspension of the business	3-month suspension of the business	6-month suspension of the business	Revocation of designation
2) In case of failure to report any quality control examination result in violation of Article 48 (4) 2		Warning	1-month suspension of the business	3-month suspension of the business	6-month suspension of the business
3) In case of failure to comply with the management standards for quality control examination agencies in violation of Article 48 (4) 3.		1-month suspension of the business	3-month suspension of the business	6-month suspension of the business	Revocation of designation
e. If an institution continues its business during a period for which its business activities are suspended	Article 37 (1) 5 of the Act	Revocation of designation			

3. Standards for Administrative Dispositions on Institution Reviewing Technical Documents

Violation	Relevant Provisions	Standards for Administrative Dispositions			
		1st Violation	2nd Violation	3rd Violation	4th Violation or More
a. If an institution obtained designation by fraud or other improper means	Article 37 (1) 1 of the Act	Revocation of designation			
b. If an institution prepares or issues a falsified report on results of a technical document review intentionally or by gross negligence	Article 37 (1) 2 of the Act	Revocation of designation			
c. If an institution fails to meet any of the requirements for designation under Article 6-4 (2) of the Act	Article 37 (1) 3 of the Act	3-month suspension of the business	6-month suspension of the business	Revocation of designation	
d. If an institution fails to comply with any of the matters to be observed Article 6-4 (3) of the Act	Article 37 (1) 4 of the Act				
1) In case of failure to comply with the operating standards for institutions reviewing technical documents in violation of Article 15-3 (1)		1-month suspension of the business	3-month suspension of the business	6-month suspension of the business	Revocation of designation
2) In case of failure to report the results of a technical document review in violation of Article 15-3 (2)		Warning	1-month suspension of the business	3-month suspension of the business	6-month suspension of the business
3) In case of failure to keep a copy of a notice of a technical document review result and records regarding such review in violation of Article 15-3 (3)		1-month suspension of the business	3-month suspension of the business	6-month suspension of the business	Revocation of designation
4) In case of failure to comply with the matters determined and publicly notified by the Minister of Food and Drug Safety regarding the preparation and issuance of a notice of a technical document review result in violation of Article 15-3 (4)		Warning	1-month suspension of the business	3-month suspension of the business	6-month suspension of the business
e. If an institution continues its business during a period for which its business activities are suspended	Article 37 (1) 5 of the Act	Revocation of designation			

4. Standards for Administrative Dispositions on Institutions Conducting Non-Clinical Studies

Violation	Relevant Provisions	Standards for Administrative Dispositions			
		1st Violation	2nd Violation	3rd Violation	4th Violation or More
a. If an institution obtained designation by fraud or other improper means	Article 37 (1) 1 of the Act	Revocation of designation			
b. If an institution prepares or issues a falsified non-clinical study report intentionally or by gross negligence	Article 37 (1) 2 of the Act	Revocation of designation			Revocation of designation
c. If an institution fails to meet any of the requirements for designation under Article 10-2 (2) of the Act	Article 37 (1) 3 of the Act	1-month suspension of the business	3-month suspension of the business	6-month suspension of the business	
d. If an institution fails to comply with any of the matters to be observed under Article 10-2 (3) of the Act	Article 37 (1) 4 of the Act				
1) In case of failure to prepare a non-clinical study protocol or to conduct a non-clinical study according to the protocol in violation of Article 24-3 (1)		1-month suspension of the business	3-month suspension of the business	6-month suspension of the business	Revocation of designation
2) In case of failure to conduct inspection and audit to secure the reliability of a non-clinical study by a person with no interest in the trial in violation of Article 24-3 (2)		Warning	1-month suspension of the business	3-month suspension of the business	6-month suspension of the business
3) In case of failure to comply with the good laboratory practices (GLP) the Minister of Food and Drug Safety determined and notified in violation of Article 24-3 (3)		Warning	1-month suspension of the business	3-month suspension of the business	6-month suspension of the business
4) In case of failure to keep data and records related to a non-clinical study in violation of Article 24-3 (4)		Warning	1-month suspension of the business	3-month suspension of the business	6-month suspension of the business
e. If an institution continues its business during a period for which its business activities are suspended	Article 37 (1) 5 of the Act	Revocation of designation			

5. Standards for Administrative Dispositions on Institutions Offering Education

Violation	Relevant Provisions	Standards for Administrative Dispositions			
		1st Violation	2nd Violation	3rd Violation	4th Violation or More
a. If an institution obtained designation by fraud or other improper means	Article 37 (1) 1 of the Act	Revocation of designation			
b. If an institution prepares or issues a falsified certificate of the completion of education or prepares or reports such fact intentionally or by gross negligence	Article 37 (1) 2 of the Act	Revocation of designation			
c. If an institution fails to meet any of the requirements for designation under Article 6-2 (5) of the Act	Article 37 (1) 3 of the Act	3-month suspension of the business	6-month suspension of the business	Revocation of designation	
d. If an institution fails to comply with any of the matters to be observed under Article 6-2 (6) of the Act	Article 37 (1) 4 of the Act				
1) In case of failure to submit an education plan and obtain approval therefor in violation of Article 15 (1) 1		1-month suspension of the business	3-month suspension of the business	6-month suspension of the business	Revocation of designation
2) In case of failure to provide education according to the annual education plan in violation of Article 15 (1) 2		1-month suspension of the business	3-month suspension of the business	6-month suspension of the business	Revocation of designation
3) In case of failure to develop educational materials and provide them to educatees in violation of Article 15 (1) 3		Warning	1-month suspension of the business	3-month suspension of the business	6-month suspension of the business
4) In case of failure to issue a certificate of completion with a person who completes the education in violation of Article 15 (1) 4 or to record and maintain matters related to the education		1-month suspension of the business	3-month suspension of the business	6-month suspension of the business	Revocation of designation
5) In case of failure to submit records related to the provision of education in violation of Article 15 (1) 5		Warning	1-month suspension of the business	3-month suspension of the business	6-month suspension of the business
e. If an institution continues its business during a period for which its business activities are suspended	Article 37 (1) 5 of the Act	Revocation of designation			

■ ENFORCEMENT RULE OF THE MEDICAL DEVICES ACT [Annex 10]
 <Amended on Jul. 24, 2025>

Fees (Related to Article 65 (1))

Description	e-Government	Visit/Mail
1. Application for manufacturing/import business license	144,000 KRW	160,000 KRW
2. Application for change in manufacturing/importing business license		
a. Change of representative (in cases of transfer/acquisition/inheritance)	81,000 KRW	90,000 KRW
b. Change of location	45,000 KRW	50,000 KRW
c. Changes of other licensed matters	27,000 KRW	30,000 KRW
3. Application for manufacturing/import approval (newly developed medical devices are excluded)		
a. When the review of technical documentation and clinical trial data is required	1,495,000 KRW	1,662,000 KRW
b. When the review of technical documentation is required	719,000 KRW	799,000 KRW
c. Other cases	158,000 KRW	176,000 KRW
3-2. Application for manufacturing/import approval (for newly developed medical devices)		
a. Approval for manufacturing/import (including the review of technical documentation, etc.)	98,430,000 KRW	98,430,000 KRW
b. The review of technical documentation, etc.		
1) The review of technical documentation	55,240,000 KRW	55,240,000 KRW
2) The review of clinical trial data	39,170,000 KRW	39,170,000 KRW
c. Approval for manufacturing/import (do not include the review of technical documentation, etc.)	4,020,000 KRW	4,020,000 KRW
3-3. Application for renewal of manufacturing/import approval	500,000 KRW	520,000 KRW
4. Application for manufacturing/import certification	130,000 KRW	145,000 KRW
4-2. Application for renewal of manufacturing/import certification	430,000 KRW	450,000 KRW
5. Notification of manufacturing/import	85,000 KRW	96,000 KRW
5-2. Application for renewal of manufacturing/import notification	100,000 KRW	100,000 KRW

6.	Application for review of technical documentation, etc.		
a.	The review of technical documentation and clinical trial data	1,338,000 KRW	1,488,000 KRW
b.	The review of technical documentation	561,000 KRW	624,000 KRW
c.	The review of change in technical documentation and clinical trial data	888,000 KRW	987,000 KRW
d.	The review of change in technical documentation	430,000 KRW	478,000 KRW
7.	Application for review of post-marketing surveillance results	90,000 KRW	100,000 KRW
8.	Application for change in manufacturing/import approval		
a.	When the review of technical documentation and clinical trial data is required	1,009,000 KRW	1,122,000 KRW
b.	When the review of technical documentation is required	551,000 KRW	612,000 KRW
c.	Other cases	121,000 KRW	135,000 KRW
9.	Application for change in manufacturing/import certification	82,000 KRW	93,000 KRW
10.	Notification of manufacturing/import changes	39,000 KRW	43,000 KRW
11.	Notification of repair business	45,000 KRW	50,000 KRW
12.	Notification of repair business changes		
a.	Change of representative (in cases of transfer/acquisition/inheritance)	32,000 KRW	36,000 KRW
b.	Change of location	27,000 KRW	30,000 KRW
c.	Changes of other notification matters	22,000 KRW	25,000 KRW
13.	Notification of sales or lease business	9,000 KRW	10,000 KRW
14.	Notification of sales or lease business changes	4,000 KRW	5,000 KRW
15.	Issuance of an English-language certificate	21,000 KRW	24,000 KRW
16.	Reissuance of approval and certification certificates	2,100 KRW	2,400 KRW
17.	Deleted <Jun. 24, 2021>		
18.	Application for preliminary review of technical documentation, etc. (newly developed medical devices are excluded)		
a.	The preliminary review of technical documentation	524,000 KRW	583,000 KRW

b. The preliminary review of technical documentation and clinical trial data (including the protocol)	1,097,000 KRW	1,219,000 KRW
19. Application for preliminary review of technical documentation, etc. (for newly developed medical devices)		
a. The preliminary review of technical documentation	55,240,000 KRW	55,240,000 KRW
b. The preliminary review of clinical trial data (including the protocol)	39,170,000 KRW	39,170,000 KRW
20. Notification of medical device sales representatives	-	10,000 KRW
20-2. Notification of medical device sales representative changes	-	5,000 KRW
Note: Only when the preliminary review of a newly developed medical device is deemed appropriate, the applicant for manufacturing approval or marketing authorization of the newly developed medical device may pay an amount equal to the manufacturing/import approval application fee under subparagraph 3-2 minus the preliminary review application fee under subparagraph 19.		

Standards of Good Manufacturing Practice (GMP) for Medical Devices



[Enforced on December 9, 2025]

[Ministry of Food and Drug Safety Notice No. 2025-80; December 9, 2025; Partially Amended]

Ministry of Food and Drug Safety (Medical Device Management Division)

Article 1 (Purpose) The purpose of this GMP is to prescribe the detailed requirements to be observed when manufacturing or importing in medical devices (including medical devices for investigational use) and matters necessary for the designation procedures and management methods for the audit organization and training organizations for quality managers pursuant to Articles 6, 6-2, 10, 12, 13, 15, 28, and 45 of the Medical Device Act; Articles 8, 14, 15, 24, 26, 27, 31, 33, 34, and 48, Annex 2, and Annex 4 of the Enforcement Rule of the Medical Device Act; Article 24 of the Promotion of the Medical Device Industry and Support for Innovative Medical Devices; and Article 15 of the Regulations on the Support and Management of Innovative Medical Devices.

Article 2 (Definitions) The terms used in this GMP shall have the meanings defined in Annex 1.

Article 3 (Scope of Application) (1) The scope of this GMP shall be as follows:

1. A person who intends to obtain approval or certification for manufacturing or import of medical devices, or to submit a notification for such manufacturing or import;
 2. A person who intends to manufacture or import medical device for investigational use.
 3. A medical device manufacturer or importer who applies for conformity recognition and periodic assessment (hereinafter referred to as the “conformity recognition assessment”).
 4. A person who has been designated, or who intends to be designated, as audit organization.
 5. A person who has been designated or who intends to be designated, as training organizations for quality managers.
- (2) Notwithstanding subparagraphs 1 through 3 of paragraph (1), where any of the following applies, this GMP shall be followed; provided, however, that conformity recognition assessments may be excluded.
1. Where medical devices are manufactured for export (hereinafter referred to as “medical devices for export”).
 2. Where a person intends to manufacture or import Class I medical devices.
 3. Where a manufacturing site manufactures medical devices by undertaking manufacturing processes from the legal manufacturer under a contractual relationship, as referred to in subparagraph 57 of Annex 1, and all of the following subparagraphs apply:
 - (a) Where the legal manufacturer is changed or added.

- (b) Where the same or a different manufacturer or importer holds a valid conformity recognition certificate under this GMP for the same product group with respect to the relevant manufacturing site. Provided, however, that where such conformity recognition certificate has been issued through document review without an on-site inspection, a quality management system conformity recognition certificate issued by an assessment organization under the Medical Device Single Audit Program in accordance with subparagraph 70 of Annex 1 (limited to cases where it is valid based on an on-site inspection; hereinafter referred to as the “MDSAP conformity recognition certificate”) shall be submitted.

Article 4 (Classification of Conformity Recognition Assessments) (1) Conformity recognition under this GMP shall be conducted by classifying the assessments as follows:

1. The initial assessment that a manufacturing site must undergo to be recognized as conforming to this GMP (hereinafter referred to as the “initial assessment”);
 2. The assessment newly required when a manufacturing site adds medical devices of another product group pursuant to Annex 3 (hereinafter referred to as the “additional assessment”);
 3. The assessment that must be newly conducted to obtain conformity recognition due to a change in the location of a manufacturing site (hereinafter referred to as the “assessment for change”); provided, however, that changes to storage facilities or test laboratories are excluded.
- (2) Each manufacturing site shall undergo one periodic assessment every three years for each product group listed in Annex 3, pursuant to subparagraph 2 (e) 2) of Annex 2 and subparagraph 3 (b) of Annex 4 of the Enforcement Rule of the Medical Device Act (hereinafter referred to as the “Enforcement Rule”), and paragraph (1) 2 (d) and (e) of Article 15 of the Regulations on the Support and Management of Innovative Medical Devices.
- (3) Notwithstanding Article 3 (2) and Article 4 (2), a manufacturing site may be exempted from periodic assessments when it has obtained conformity recognition for the following medical devices:
1. Medical device for export;
 2. Class I medical device;
 3. Medical device for investigational use
 4. Drugs or quasi-drugs combined with, or integrally incorporated into combination medical devices

Article 5 (Criteria for Conformity Recognition Assessments) (1) The criteria for conformity recognition assessments pursuant to Annex 2 and Annex 4 of the Enforcement Rule and Article 15 of the Regulations on the Support and Management of Innovative Medical Devices shall be as specified in Annex 2. Provided, however, that in cases of combined assessments under subparagraph 72 of Annex 1, the assessment criteria and assessment tables prescribed in the detailed operating guidelines under Article 14 (2) shall apply.

- (2) Notwithstanding paragraph (1), only part of Annex 2 may be applied in the following cases of each subparagraph:
1. For a person who intends to manufacture or import medical devices for investigational use, Sections 7.1, 7.3, 7.4.3, 7.5, 7.6, 8.2.6, and 8.3 shall be applied.
 2. For an assessment for change under Article 4 (1) 3, Sections 4.1, 4.2, 6.1, 6.3, 6.4, 7.5, 7.6, 8.2.2, 8.2.3, 8.2.6, 8.3, and 8.5 shall be applied.
 3. Notwithstanding Article 3 (2), where conformity recognition assessments under this GMP are sought for Class I medical devices, Sections 4.1, 4.2, 5.5, 6.4, 7.1, 7.4, 7.5, 7.6, 8.2.1, 8.2.2, 8.2.3, 8.2.6, 8.3, and 8.5 shall be applied.

Article 6 (Methods of Conformity Recognition Assessments) (1) Conformity recognition assessments pursuant to subparagraph 2 (e) and (f) of Annex 2 and subparagraph 3 of Annex 4 of the Enforcement Rule, and Article 15 of the Regulations on the Support and Management of Innovative Medical Devices shall be conducted jointly by the Commissioner of the Regional Office of Food and Drug Safety (hereinafter referred to as the “Commissioner of Regional Office”) and the head of the audit organization through document review and on-site inspection for each product group of the manufacturing site. Where the manufacturing process is carried out under an outsourcing arrangement between the legal manufacturer and the manufacturer (hereinafter referred to as the “legal manufacturer-manufacturer”), document review and on-site inspection may also be conducted separately for each of them. In such cases, for manufacturing sites of combination medical devices (including cases of legal manufacturer–manufacturer), separate document review and on-site inspection may be conducted. In such cases, on-site inspections shall not be limited to the core products under Article 7 (2).

- (2) Notwithstanding paragraph (1), pursuant to the proviso to subparagraph 2 (f) 2) of Annex 2 of the Enforcement Rule and Article 15 of the Regulations on the Support and Management of Innovative Medical Devices, only document review shall be conducted in the following subparagraphs:
1. Where an additional assessment is conducted under Article 4 (1) 2;
 2. Where an assessment for change is conducted based on the submission of data under Article 7 (1) 2 (b) for a manufacturing site whose location has been changed pursuant to Article 4 (1) 3;
 3. Where another medical device manufacturer or importer has undergone document review and on-site inspection for the manufacturing site and holds a valid conformity recognition certificate;
 4. Where a person has two or more manufacturing sites subject to periodic assessments under Article 4 (2), remaining manufacturing sites other than those selected for on-site inspection;
 5. Where another manufacturer or importer of in vitro diagnostic medical devices under the Act on In Vitro Diagnostic Medical Devices has undergone document review and on-site inspection for the manufacturing site under the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices and holds a valid conformity recognition certificate;

6. Where a manufacturer holds MDSAP certificate;
 7. Where periodic assessments are conducted for Excellent Manufacturing Sites under subparagraph 71 of Annex 1.
- (3) Notwithstanding paragraph (2), an on-site inspection shall be conducted in any of the following cases:
1. Deleted
 2. Where a manufacturing site is deemed to present potential risks;
 3. Where a manufacturer or importer is unable to submit the data required under Article 7 (1) 2 for reasons such as trade secrets, and requests an on-site inspection;
 4. Where a manufacturer holds an MDSAP conformity recognition certificate, in any of the following cases:
 - (a) A manufacturing site subjects to periodic assessments under Article 4 (2);
 - (b) A manufacturing site that the Minister of Food and Drug Safety recognizes as likely to affect public health, including cases where significant nonconformities are identified in quality management system conformity recognition assessments under the Medical Device Single Audit Program (MDSAP);
 - (c) A manufacturing site that produces combination medical devices.
 - (d) A manufacturing site that produces medical devices containing human-derived components or using human-derived tissues.
- (4) Notwithstanding Article 4, a new initial assessment shall be required in any of the following cases:
1. Where the expiration date of the conformity recognition certificate held by a manufacturing site for export, Class I devices, or medical devices for investigational use has expired, and reapplication for conformity recognition is made;
 2. Where a manufacturing site holding conformity recognition for medical devices for export intends to manufacture products for domestic sale;
 3. Where the legal manufacturer in a legal manufacturer–manufacturer relationship that has undergone conformity recognition assessments is changed or removed;
 4. Where the location of a manufacturing site that has obtained conformity recognition for medical devices for investigational use pursuant to Article 5 (2) 1 is changed, or where medical devices for investigational use belonging to a different product group are added, or where such devices are intended to be manufactured or imported for the purpose of sale;
 5. Where a manufacturing site that has obtained conformity recognition for Class I medical devices pursuant to Article 5 (2) 3 intends to manufacture or import Class II, Class III, or Class IV medical devices.
- (5) The entities for conducting conformity recognition assessments under paragraphs (1) through (4) shall be as provided in Annex 4.
- (6) Where an on-site inspection cannot be conducted at a manufacturing site that is subject to such

inspection due to circumstances such as war, infectious disease, natural disasters, or other similar events, the on-site inspection may be temporarily suspended and only a document review shall be conducted.

- (7) Manufacturers or importers for whom only document review was conducted under paragraph (6) shall submit test reports conforming to their self-quality control test specifications for each manufacturing or import unit to the Commissioner of Regional Office at each instance of manufacture or import.

Article 7 (Application for Conformity Recognition Assessments) (1) A person who falls under any subparagraph of Article 3 (1) 1 through 3 and seeks to undergo conformity recognition assessments under this GMP shall submit an application in Form 1, along with the following documents, to the head of the audit organization. In this case, the manufacturing site shall have quality control records for at least one manufacturing unit, and the preferred date for the on-site inspection shall be finalized and submitted at least 20 days before the inspection start date.

1. A copy of the manufacturing (import) business license for medical devices or a copy of the conditional manufacturing (import) business license for medical devices (excluding cases where no such initial assessment or license for manufacturing (importing) medical devices (conditional) for investigational use is held).
2. The following documents corresponding to each item:
 - (a) An overview of the manufacturing site (including the name of the site and the address of each facility; if there are multiple sites, all site names must be included), organizational chart, number of employees, and medical devices manufactured;
 - (b) A copy of the quality management system conformity certificate issued by the regulatory authority or an agency delegated by the regulatory authority (only applicable to Article 6 (2) and Article 6 (6)) and on-site inspection results (only applicable to Article 6 (2) 2 and Article 6 (6), including any follow-up actions taken in response to the inspection results);
 - (c) A description of facility conditions for each manufacturing site subject to assessment [including floor plans of work areas, test laboratories, and storage facilities, and lists of facilities and equipment], cleanroom procedures (if applicable), and procedures for monitoring and measurement equipment that specify monitoring cycles;
 - (d) The quality manual of the manufacturing site (including the quality policy);
 - (e) Procedures and test reports related to finished product testing (e.g., final release inspection) for the core product of the manufacturing site (including documentation demonstrating sterilization for sterile products);
 - (f) Purchasing and outsourcing procedures for the core product of the manufacturing site, names of major suppliers (including contracted suppliers), and scope of work;
 - (g) Device Master Records of the core product for the manufacturing site (including descriptions of specific manufacturing processes such as sterilization or software, as applicable), and procedures for validation of sterilization, where applicable;

- (h) Checklist for Annex 2 criteria of the manufacturing site;
 - (i) Declaration of conformity to Annex 2 criteria of the manufacturing site;
 - (j) Deleted
3. Notwithstanding subparagraph 2, when undergoing assessment using the conformity recognition results obtained under the Medical Device Single Audit Program, the documents in any of the following items, excluding the materials corresponding to subparagraph 2, shall be submitted:
- (a) A copy of the MDSAP conformity recognition certificate and the accompanying assessment results (including, where nonconformities were identified, the nonconformity report issued by the audit organization and the corrective and preventive action plan or results submitted by the manufacturing site that have been confirmed by the organization as compliant).
 - (b) Device Master Records for the product belonging to the highest classification level within each product group of the manufacturing site. Provided, however, that for such an assessment for change, the Device Master Record shall be that of the product which belongs to the highest classification level within the product group of the manufacturing site and has the highest manufacturing or import volume.
 - (c) The following documents demonstrating that the quality management system complies with the requirements prescribed in statutes related to medical devices:
 - 1) Quality manual of the manufacturing site;
 - 2) Procedures related to record management;
 - 3) Procedures that define the scope of responsibilities of the quality manager;
 - 4) Procedures for managing medical devices subject to traceability (where applicable);
 - 5) Procedures for adverse event reporting and advisory notices.
 - (d) Documents demonstrating the correlation between the products covered by the MDSAP conformity recognition certificate and the products subject to conformity recognition assessments.
4. Notwithstanding subparagraph 2, where a manufacturing site qualifies as a Excellent Manufacturing Site and undergoes a periodic assessment, the following documents shall be submitted in lieu of the documents required under subparagraph 2:
- (a) Documentation confirming that the manufacturing site falls under Annex 1, subparagraph 71 (d);
 - (b) The Device Master Record for the core product that belongs to the highest classification level within each product group of the manufacturing site and has the highest manufacturing or import volume;
 - (c) The following documents demonstrating the appropriateness of quality control over the past three years:
 - 1) Procedures and test reports related to finished product testing (e.g., final

release inspection) for the core product (including sterilization validation procedures and test reports for sterile products);

- 2) Documents on corrective and preventive actions taken in the last three years in accordance with the criteria set out in Annex 2;
- 3) Checklist under Annex 2 and declaration of conformity.

- (2) The submission documents for the core product falling under Article 7 (1) 2 (e), (f), (g), and (j) shall be the documents for the products corresponding to each of the following subparagraphs.
 1. Where two or more products are submitted, the product belonging to the highest classification level within each product group of the manufacturing site shall be selected;
 2. Notwithstanding subparagraph 1, in the case of a periodic assessment under Article 4 (2), the product belonging to the highest classification level of the manufacturing site and having the highest manufacturing or import volume among the products under the assessment shall be selected;
 3. Notwithstanding subparagraph 1, in the case of an assessment for change under Article 4 (3), the product belonging to the highest classification level within each product group of the manufacturing site and having the highest manufacturing or import volume shall be selected.
- (3) A medical device manufacturer and importer required to undergo a periodic assessment under Article 4 (2) shall apply for the periodic assessment to the head of the audit organization by submitting an application in Form 1, accompanied by the documents under Article 7 (1) 1 and 2, no later than three months before the expiration date stated on the conformity recognition certificate. In such cases, the desired on-site inspection date shall be fixed and applied for no later than 20 days before the expiration date stated on the conformity recognition certificate, and if the desired on-site inspection date is not confirmed at the time of application submission, the applicant shall submit the desired date in writing no later than 20 days before the start date of the requested on-site inspection.
- (4) Where a medical device manufacturer and importer has multiple manufacturing sites subject to periodic assessment under paragraph (3), a consolidated application for periodic assessment may be submitted. Provided, however, that manufacturing sites that received the conformity recognition certificate using the Medical Device Single Audit Program or those designated as Excellent Manufacturing Sites shall be excluded from periodic assessment consolidated applications.
- (5) A person who intends to submit a consolidated periodic assessment application under paragraph (4) shall prepare the documents required under paragraph (3) and the manufacturing site summary sheet in Form 1, and submit them to the head of the audit organization.
- (6) Where Article 6 (2) 3 applies because another manufacturer or importer holds a valid conformity recognition certificate for the relevant manufacturing site under this GMP, only the following documents among those required under paragraph (1) may be submitted along with the application in Form 1:
 1. A copy of the manufacturing (import) business license for medical devices or a copy of the conditional manufacturing (import) business license for medical devices (excluding

cases where no such initial assessment or license for manufacturing (importing) medical devices (conditional) for investigational use is held);

2. The documents under Article 7 (1) 2 (g) (excluding sterilization validation procedures) and (j);
 3. The document of the manufacturing site demonstrating that the products are manufactured under the same system at the same manufacturing site.
- (7) When any of the following circumstances occurs, an Excellent Manufacturing Site under Annex 1, subparagraph 71, or a manufacturer or importer that has been issued a conformity recognition certificate under Article 6 (6) shall submit an application in Form 1 to the head of the audit organization within 10 days from the date of occurrence. In such cases, the applicant may omit the supporting documents for Form 1.
1. Where an Excellent Manufacturing Site no longer satisfies any of the criteria listed in Annex 1, subparagraph 71;
 2. Where the conditions at the location or region of a manufacturing site for which an on-site inspection was deferred under Article 6 (6) have ended.
- (8) Where a person required to apply for a periodic assessment fails to do so at least three months before the expiration date under paragraph (3), the head of the audit organization shall report the name of the company, its representative, and other relevant information to the Commissioner of Regional Office.
- (9) For manufacturing sites subject to on-site inspection under Article 6 (5), the documents listed in Article 7 (1) 2 (b), (h), and (j) may be omitted.
- (10) Where a person who intends to undergo conformity recognition assessments pursuant to paragraph (1) may apply for a combined assessment under subparagraph 72 of Annex 1 where the person also intends to undergo a quality management system conformity recognition assessment under the Medical Device Single Audit Program.
- (11) Costs and other matters related to conformity recognition assessments shall be governed by Annex 2 of the Enforcement Rule.
- (12) Where a person who intends to undergo conformity recognition assessments pursuant to paragraph (1) may apply to the head of the audit organization for a priority assessment (meaning an assessment conducted in priority over other applications for conformity recognition assessments) with respect to a manufacturing site that manufactures medical devices falling under any of the following subparagraphs: In such cases, documents demonstrating that the medical devices fall under any of the following subparagraphs shall be submitted.
1. Medical devices subject to reporting under Article 2 of the Notice on the Scope of Medical Devices Subject to Production/Import Suspension Reporting and Reporting Methods, and medical devices deemed by the Minister of Food and Drug Safety to pose a substantial risk of suspension of production or importation pursuant to Article 3 (6) thereof.
 2. Newly developed medical devices pursuant to Article 8 (1) 1 of the Medical Device Act.
 3. Medical devices designated as innovative medical devices pursuant to Article 21 of the

Promotion of the Medical Device Industry and Support for Innovative Medical Devices (excluding cases where such designation has been revoked).

4. Medical devices designed to display labeling or provide information by means of braille, audio, or other methods for persons with visual or hearing impairments pursuant to Article 23 (1) (a) and (b) of the Medical Device Act.

Article 8 (Procedures for Conformity Recognition Assessments) (1) Upon receiving an application for conformity recognition and related assessments under Article 7, the head of the audit organization shall, in accordance with the following subparagraphs, report the receipt and request confirmation of whether an on-site inspection is required under Article 6 (3) from the Commissioner of Regional Office. Provided, however, that where the assessment entity is single-agency under Article 6 (5) and Annex 4, and Article 6 (6) does not apply, reporting the receipt to the Commissioner of Regional Office may be omitted.

1. The head shall verify within five days whether all required documents under Article 7 (1) through (7) have been submitted, and if complete, shall report and request within seven days after receipt.
 2. If, as a result of confirming whether the supporting documents under subparagraph 1 have been submitted, any deficiency such as missing supporting documents is identified, the applicant shall be requested to supplement them by setting a supplementation deadline for the submission of such documents in accordance with the Administrative Procedures Act.
 3. Notwithstanding subparagraph 1, where an application additionally includes a confirmed desired on-site inspection date, the report and request shall be made no later than the day following the receipt of the application.
- (2) Within ten days after receiving the report and request under paragraph (1), the Commissioner of Regional Office shall determine the need for on-site inspection under Article 6 (3), the assessment entity under Article 6 (5), and the assessment method, and shall notify the head of the audit organization, who shall in turn notify the applicant.
 - (3) The head of the audit organization shall notify the applicant in writing of the conformity recognition assessment results under Article 6 within 30 days from the date the application for conformity recognition was received. Provided, however, that if an on-site inspection is required under paragraph (2), the period from the date of notification to the applicant until the start of the on-site inspection under this paragraph shall not be included in the processing period.
 - (4) Where an on-site inspection is required under paragraph (2), the head of the audit organization shall conduct the on-site inspection in accordance with the following subparagraphs:
 1. The assessment entity determined under paragraph (2) shall conduct the on-site inspection on the notified inspection date, and the head of the audit organization shall notify the applicant in writing of the results within seven days from the end of the inspection visit or within the processing period under paragraph (3). Provided, however, that if the results of the on-site inspection are determined to be nonconforming, the Commissioner of Regional Office shall be notified immediately.

2. If an on-site inspection under subparagraph 1 cannot be conducted due to war, epidemics, natural disasters, or other similar circumstances during the inspection period, or if the inspection cannot proceed normally due to delayed or refused submission of inspection documents, the on-site inspection may be suspended. In such cases, the applicant shall be immediately notified in writing of the reasons for the suspension, and the Commissioner of Regional Office shall be notified accordingly.
 3. When the reason for suspension under subparagraph 2 is confirmed to be resolved, the on-site inspection may resume, and the results shall be notified to the applicant in writing within seven days from the completion date of the resumed inspection or within the processing period under paragraph (3).
- (5) Where the head of the audit organization is unable to notify the applicant of the conformity recognition assessment results within the processing period under paragraphs (3) and (4) due to unavoidable reasons such as natural disasters, the head shall notify the applicant in advance of the delay.
- (6) Where the results of the conformity recognition assessments fall under Annex 2, Section 9.4 (2) (a) 2, the head of the audit organization shall take the actions in any of the following subparagraphs:
1. Require the applicant to submit corrective documentation and a corrective action plan, and evaluate conformity within 15 days from the end of the conformity recognition assessment.
 2. Review the documents submitted under subparagraph 1 and notify the applicant in writing of the results.
 3. If the applicant fails to submit the required documents within 15 days or the submitted documents are not adequate, supplementary measures shall be taken in accordance with paragraph (7).
 4. If the applicant fails to submit the implementation results of corrective actions under subparagraph 1 within three months or the submitted results are inadequate, the head of the audit organization shall immediately report to the Commissioner of Regional Office and notify the applicant in writing.
- (7) Where matters requiring supplementation are identified, the head of the audit organization shall take the following actions with respect to the results of the conformity recognition assessment:
1. Supplementation procedures and deadlines shall be required in accordance with the Civil Petitions Treatment Act, and the assessment entity under paragraph (2) shall review the results submitted by the applicant and evaluate conformity.
 2. If the applicant fails to submit the required documents within the deadline, the assessment entity shall determine as nonconforming.
 3. Where an application is determined nonconforming under subparagraph 2, the fact shall be reported immediately to the Commissioner of Regional Office, and the applicant shall be notified in writing.

- (8) The head of the audit organization shall prepare a result report in Form 3 and submit it to the Commissioner of Regional Office in accordance with the following subparagraphs. Provided, however, that submission may be omitted where the assessment entity is single-agency under Article 6 (5) and Annex 4, and the case does not fall under Article 6 (6).
1. Assessment results under paragraph (3) shall be submitted within the processing period prescribed in paragraph (3).
 2. Assessment results under paragraph (4) 1 shall be submitted within seven days from the end of the on-site inspection.
 3. Where the on-site inspection is resumed pursuant to paragraph (4) 3, the results shall be submitted within seven days from the end of the resumed inspection visit or within the processing period under paragraph (3).
- (9) Where the results of conformity recognition assessments under Article 6 are conforming, the head of the audit organization shall issue the Conformity Recognition Certificate under the Good Manufacturing Practice for Medical Devices (Form 2 or Form 2-2, pursuant to Annex 5) (hereinafter referred to as the “conformity recognition certificate”) to the applicant. Provided, however, that the temporary certificate may be issued in any case of the following subparagraphs:
1. Where the conformity recognition assessment results fall under Annex 2, 9.4 (2) (a) 2, a conditional conformity recognition certificate may be issued on the condition that corrective actions are implemented within three months;
 2. Where document review is deemed to conform under Article 6 (6), a temporary conformity recognition certificate may be issued.
- (10) Where an applicant objects to the assessment results under Article 6, the applicant may file an objection with the head of the relevant audit organization in accordance with the Civil Petitions Treatment Act.
- (11) When an objection is filed under paragraph (9), the head of the audit organization shall report both the content of the objection and the handling results to the head of the Commissioner of Regional Office.
- (12) Where multiple manufacturing sites are submitted as a consolidated periodic assessment application under Article 7 (4), the Commissioner of Regional Office and the head of the audit organization shall conduct an on-site inspection for one manufacturing site, selected by comprehensively considering the following criteria:
1. A manufacturing site that produces the product of the highest class;
 2. A manufacturing site with high domestic production or import volume;
 3. A manufacturing site that has not previously undergone an on-site inspection.
- (13) For manufacturing sites that apply for conformity recognition assessments under Article 7 (7), the head of the audit organization shall conduct an on-site inspection within 90 days from the date of application.

Article 9 (Expiration Date of the Conformity Recognition Certificate) (1) The expiration date of a conformity recognition certificate issued following an initial assessment shall be three years from the date of issuance.

- (2) When conformity recognition is granted following an additional assessment or an assessment for change, the existing expiration date shall remain unaffected.
- (3) The expiration date of a conformity recognition certificate issued following a periodic assessment shall be three years from the day after the expiration date of the previous certificate. Provided, however, that where the certificate is issued after the previous expiration date, or where the periodic assessment was submitted as a consolidated application, the expiration date shall be three years from the issuance date.
- (4) Where conformity recognition assessments have been conducted pursuant to Article 6 (2) 3, the expiration date for the relevant manufacturing site shall be set to match the expiration date of the manufacturer or importer that previously underwent conformity recognition assessments.
- (5) Where conformity recognition assessments have been conducted pursuant to Article 6 (2) 5, the expiration date for the relevant manufacturing site shall be set to match the expiration date of the in vitro diagnostic medical device manufacturer or importer that previously underwent conformity recognition assessments.
- (6) Where conformity recognition assessments have been conducted using the Medical Device Single Audit Program pursuant to Article 6 (2) 6, the expiration date for the relevant manufacturing site shall be set to match the expiration date of the MDSAP conformity recognition certificate.
- (7) Where conformity recognition assessments have been conducted pursuant to Article 7 (10), notwithstanding paragraphs (1) and (3), the expiration date of the conformity recognition certificate may, at the applicant's request, be set at up to three years.
- (8) Where conformity recognition assessments have been conducted only for the legal manufacturer pursuant to Article 3 (2) 3, the expiration date for the relevant legal manufacturer–manufacturer shall be set to match the expiration date of the conformity recognition certificate previously issued for the same product group. Provided, however, that where only document review has been conducted without an on-site inspection pursuant to the proviso to Article 3 (2) 3 (b), the expiration date shall be set to match the expiration date of the MDSAP conformity recognition certificate.

Article 10 (Reissuance of the Conformity Recognition Certificate) (1) A manufacturer or importer who has been issued a conformity recognition certificate under Article 8 (9) may apply to the audit organization that issued the certificate for reissuance if the certificate is lost or otherwise needs to be reissued.

- (2) Upon receiving an application for reissuance under paragraph (1), the head of the audit organization shall reissue the conformity recognition certificate in accordance with Annex 5.
- (3) A medical device manufacturer or importer may either obtain reissuance of the conformity recognition certificate or record the changes in any of the following subparagraphs on the

reverse side of the certificate for control purposes:

1. Change in the name of the place of manufacturing or importing business;
 2. Change in the location of the manufacturing site (limited to changes under the proviso of Article 4 (1) 3);
 3. Change in the location of an importing business;
 4. Change in the trade name of the legal manufacturer or the manufacturer;
 5. Change in the location of the legal manufacturer or the manufacturer (limited to changes under the proviso to Article 4 (1) 3).
- (4) Where a medical device manufacturer or importer records changes on the reverse side of the conformity recognition certificate under paragraph (3), the date and details of the approval of change shall also be recorded.
- (5) A manufacturer or importer who has been issued a conformity recognition certificate under Article 8 (9) 1 may apply to the issuing audit organization for replacement of the certificate only after corrective actions have been completed, and may receive a replacement certificate accordingly.

Article 10-2 (Return of the Conformity Recognition Certificate) (1) A manufacturer or importer who has been issued a conformity recognition certificate under Article 8 (9) may return the certificate to the issuing audit organization, specifying the relevant reasons in detail, when any of the following circumstances occurs:

1. Where the manufacturing business license or import business license is revoked;
 2. Where the manufacturing approval, import approval, manufacturing certification, or import certification is revoked;
 3. Where any other reasons exist requiring the manufacturer or importer to return the conformity recognition certificate.
- (2) In accordance with paragraph (1), the head of an audit organization who has received the return of the conformity recognition certificate shall, immediately upon receipt of the returned conformity recognition certificate, report the fact of its return to the Commissioner of Regional Office.

Article 11 (Marking for Conformity Recognition Assessments) A medical device manufacturer and importer may affix the conformity recognition marking, as specified in Annex 6, to medical devices that belong to the same product group as the manufacturing site which has undergone conformity recognition assessments.

Article 12 (Duties of the Audit Organization) The duties of the head of the audit organization shall be any of following subparagraphs:

1. Conducting conformity recognition assessments under the Good Manufacturing Practice for Medical Devices;

2. Issuing conformity recognition certificates.
3. Compiling statistics and providing administrative support related to conformity recognition assessments.
4. Other matters necessary for conformity recognition assessments.

Article 13 (Assessment for Designation of an Audit Organization) (1) Where the Minister of Food and Drug Safety receives an application for designation as an audit organization pursuant to Article 48 (1) of the Enforcement Rule, the Minister shall conduct a document review and an on-site evaluation of the submitted materials, including the application.

- (2) The Minister of Food and Drug Safety shall establish a plan for the on-site evaluation under paragraph (1) and notify the applicant of the following matters at least seven days prior to the conduct of the on-site evaluation:
 1. The site and schedule of the on-site evaluation
 2. The composition of the on-site evaluation team;
 3. Matters requiring cooperation in connection with the on-site evaluation.
- (3) The assessment criteria for designation as an audit organization pursuant to paragraph (1) shall be as specified in Annex 7.

Article 14 (Standards for Management and Operation of an Audit Organization) (1) The head of an audit organization shall establish detailed operating guidelines necessary for conducting conformity recognition assessments.

- (2) Where the head of an audit organization establishes or amends the detailed operating guidelines pursuant to paragraph (1), approval from the Minister of Food and Drug Safety shall be obtained.
- (3) An auditor of an audit organization shall maintain impartiality and integrity in conducting conformity recognition assessments.
- (4) An auditor of an audit organization shall not disclose to any third party, or use for purposes other than official duties, any information acquired in connection with conformity recognition assessments.
- (5) An entity subject to conformity recognition assessments may file a request for recusal of a specific auditor for special reasons that make it difficult to expect a fair audit. The head of the audit organization may replace the auditor if the recusal application is deemed justified.
- (6) Other standards for management and operation to be observed by an audit organization shall be as specified in Annex 8.

Article 15 (Reporting) (1) The head of the audit organization shall submit the quarterly report on the results of conformity recognition assessments for medical devices (Form 4) and the detailed list of such assessment results (Form 5) to the Minister of Food and Drug Safety and the Commissioner of Regional Office within 20 days after the end of each quarter. Provided, however, that where the

Minister of Food and Drug Safety or the Commissioner of Regional Office requests separate data, the relevant data shall be submitted within seven days from the date of the request.

- (2) Where there are personnel changes, such as transfers or resignations of assessors, the head of the audit organization shall report such changes to the Minister of Food and Drug Safety within seven days.

Article 16 (Guidance and Inspection of Audit Organizations) (1) The Minister of Food and Drug Safety shall conduct annual guidance and inspections of audit organizations to determine whether conformity recognition assessments are being properly conducted and whether the organizations are being operated in compliance with the standards for management and operation.

- (2) Where the Minister of Food and Drug Safety deems that there are improper conformity recognition assessments, issues with determinations, or problems in the performance of such assessments due to complaints or other reasons, the Minister may conduct guidance and inspections at any time.
- (3) The Minister of Food and Drug Safety shall establish detailed criteria for guidance and inspections to be conducted pursuant to paragraphs (1) and (2).

Article 17 (Application for Designation of Training Organizations for Quality Managers) (1) Where the Minister of Food and Drug Safety intends to additionally designate training organizations for quality managers, the Minister shall announce an application period during which institutions or organizations falling under Article 14 (1) of the Enforcement Rule may apply for designation as training organizations for quality managers.

- (2) The specific criteria for the designation of a training organizations for quality managers pursuant to Article 14 (6) of the Enforcement Regulations shall be as per Annex 9.

Article 18 (Assessment for Designation of Training Organizations for Quality Managers) (1) Where the Minister of Food and Drug Safety receives an application for designation as a training organization for quality managers pursuant to Article 17 (1), the Minister shall conduct a document review and an inspection of the submitted materials, including the application pursuant to Article 14 (2) of the Enforcement Rule.

- (2) The Minister of Food and Drug Safety shall establish a plan for the inspection under paragraph (1) and notify the applicant of the following matters at least seven days before the inspection:
 1. the site and schedule of the inspection;
 2. the composition of the inspection team;
 3. Matters requiring cooperation in connection with the inspection.

Article 19 (Announcement of Designation of Training Organizations for Quality Managers) The Minister of Food and Drug Safety shall publicly announce the training organizations for quality managers that comply with the Article 17.

Article 20 (Training Content) Pursuant to Article 13 (1) 4 of the Enforcement Rule, the head of a training organizations for quality managers shall establish a training plan to ensure that the curriculum includes the following training content:

1. Matters concerning the scope of duties of a quality manager pursuant to Article 12 of the Enforcement Rule;
2. Matters concerning safety related to the handling of hazardous substances, such as radiation;
3. Matters requiring scientific and technical training related to medical devices;
4. Other matters concerning the latest amendments in the laws and regulations on medical devices.

Article 21 (Matters to Be Observed by the Head of a Training Organizations for Quality Managers, etc.) (1) Where the head of a training organizations for quality managers intends to amend the regulations on training implementation specified in Annex 9, approval from the Minister of Food and Drug Safety shall be obtained.

(2) Pursuant to Article 15 (2) of the Enforcement Rule, the head of a training organization for quality managers shall establish a training plan that includes the matters prescribed in Article 20 and the following:

1. The trainees and the expected number of participants by category;
2. The training venue;
3. Tuition fees (including supporting documentation);
4. Training method (by target trainee, by region, etc.);
5. The curriculum;
6. Training subjects, hours, and content for each curriculum (including training materials);
7. Instructors;
8. An annual training schedule;
9. Other matters necessary for the implementation of the training.

(3) Where the training plan pursuant to paragraph (2) is to be amended, the revised plan shall be submitted to the Minister of Food and Drug Safety at least one month prior to the commencement of the training.

(4) The Minister of Food and Drug Safety may review the training plan and related documents submitted pursuant to paragraph (2) and, if necessary, request corrective measures or supplementation.

(5) The Minister of Food and Drug Safety shall approve the training plan submitted pursuant to Article 15 (2) of the Enforcement Rule within 15 days from the date of submission.

Article 22 (Guidance and Inspection of Training Organizations for Quality Manager) (1) The Minister of Food and Drug Safety shall conduct annual guidance and inspections of training organizations for quality manager to determine whether training is being properly conducted and whether such organizations are being operated in compliance with the training implementation rules.

- (2) Where the Minister of Food and Drug Safety deems that there are problems in the performance of training activities due to improper training or the filing of complaints, the Minister may conduct guidance and inspections at any time.
- (3) The Minister of Food and Drug Safety shall establish detailed criteria for guidance and inspections to be conducted pursuant to paragraphs (1) and (2).

Article 23 (Review of Regulation) In accordance with Article 8 of the Framework Act on Administrative Regulations and the Regulation on the Issuance and Management of Directives and Guidelines, the validity of this Notice shall be reviewed every three years, starting from Jan. 1, 2014 (until Dec. 31 of every third year), and necessary measures, including improvements, shall be taken.

ADDENDA <No. 2005-14, Mar. 16, 2005>

Article 1 (Enforcement Date) This GMP shall enter into force on the date of its promulgation.

Article 2 (Transitional Measures for Establishments Compliant with the former Good Manufacturing Practices) Where, as of the enforcement date of this GMP, a medical device manufacturer has obtained conformity recognition certificate with the former Good Manufacturing Practice for pursuant to the former Good Manufacturing Practice (Korea Food and Drug Administration Notice No. 1998-35, dated Apr. 16, 1998), such manufacturer shall be deemed to be in compliance with this GMP until the completion of the periodic audit under Article 6 of this GMP.

Article 3 (Transitional Measures for Medical Device Inspection Organizations) Where, as of the enforcement date of this GMP, an organization has been registered with the Korea Food and Drug Administration as a medical device inspection organization pursuant to the former Regulation on Authorization, etc. of Medical Devices (Korea Food and Drug Administration Notice No. 2003-48, dated Oct. 13, 2003), such organization shall be deemed to have been registered as a medical device audit organization pursuant to Article 8 of this GMP.

ADDENDA <Nov. 21, 2005>

Article 1 (Enforcement Date) This GMP shall enter into force on the date of its promulgation.

Article 2 (Transitional Measures for the Criteria for Conformity Assessment of the Good Manufacturing Practices for Medical Devices) With respect to 7.1 (d), 7.3.2 (a) 5), 7.5.2.1 (d),

and 7.5.2.2 of the Criteria for Conformity Assessment and Assessment Checklist for the Good Manufacturing Practice for Medical Devices specified in [Annex 1], such provisions shall enter into force on May 30, 2007.

ADDENDA <Feb. 7, 2007>

Article 1 (Enforcement Date) This GMP shall enter into force on the date of its promulgation. Provided, however, that the provisions of Article 7-2 shall enter into force on Jun. 1, 2007.

Article 2 (Transitional Measures) (1) Any application for conformity recognition assessment under the GMP for medical devices that was received by an audit organization prior to the enforcement of this Notice shall be conducted in accordance with the former Notice.

(2) Any person who, as of the enforcement date of this Notice, has been registered as a medical device audit organization pursuant to the former Notice shall comply with the standards for management and operation of audit organizations specified in [Annex 3] by May 30, 2007.

ADDENDA <Feb. 22, 2008>

Article 1 (Enforcement Date) This GMP shall enter into force on Mar. 1, 2008.

ADDENDA <Jun. 17, 2009>

Article 1 (Enforcement Date) This GMP shall enter into force on the date of its promulgation.

ADDENDA <Aug. 20, 2009>

Article 1 (Enforcement Date) This GMP shall enter into force on Aug. 30, 2009.

ADDENDA <Dec. 22, 2009>

Article 1 (Enforcement Date) This GMP shall enter into force on the date of its promulgation.

ADDENDA <May 7, 2010>

Article 1 (Enforcement Date) This GMP shall enter into force on the date of its promulgation.

ADDENDA <Dec. 27, 2010>

Article 1 (Enforcement Date) This GMP shall enter into force on Jan. 1, 2011.

Article 2 (Transitional Measures) Any conformity assessment for applications for conformity recognition under the GMP for medical devices that were received by an audit organization prior to the enforcement of this GMP shall be conducted in accordance with the former provisions.

ADDENDA <Dec. 12, 2011>

Article 1 (Enforcement Date) This GMP shall enter into force on Apr. 8, 2012. Provided, however, that the on-site inspection conducted as part of the periodic renewal assessment pursuant to Article 8 (3) shall enter into force as of Jan. 1, 2013 for manufacturing sites of Class III imported medical devices, and as of Jan. 1, 2014 for manufacturing sites of Class II medical devices (including applicable Class I medical devices).

Article 2 (Transitional Measures) (1) As of the enforcement date of this GMP, a conformity recognition certificate has been issued pursuant to the former provisions, the expiration date of such certificate shall be deemed to be the expiration date under this Notice, limited to the remaining portion of the original three-year expiration date.

- (2) As of the enforcement date of this GMP, any product that has undergone a conformity assessment for the Good Manufacturing and Importation Practice for Medical Devices pursuant to the former provisions shall be deemed to have undergone a conformity assessment under the Good Manufacturing Practice for Medical Devices.
- (3) Any product that has undergone a conformity assessment for the manufacturing (or import) and the GMP for medical devices prior to the enforcement date of this GMP shall be deemed to have undergone a conformity assessment in accordance with the medical device GMP product groups specified in Annex 3.
- (4) Where, among the conformity recognition certificates issued pursuant to Annex 3 of the former Regulation on Authorization, etc. of Medical Devices (Korea Food and Drug Administration Notice) or Annex 5 of the former Good Manufacturing and Importation Practice (Korea Food and Drug Administration Notice), the relevant product group has been changed pursuant to Annex 3 of this Notice, such certificates shall be reissued by Jun. 30, 2012.
- (5) Any Conformity Recognition Certificate for the Good Manufacturing and Importation Practice for medical devices issued prior to the enforcement date of this GMP shall be replaced and reissued as a Conformity Recognition Certificate under the Good Manufacturing Practice for Medical Devices by Jun. 30, 2012.
- (6) Any conformity assessment for applications for conformity recognition under the GMP for medical devices that were received by an audit organization prior to the enforcement of this GMP shall be conducted in accordance with the former provisions.

ADDENDA <Apr. 5, 2012>

Article 1 (Enforcement Date) This GMP shall enter into force on Apr. 8, 2012.

Article 2 (Transitional Measures) (1) As of the enforcement date of this GMP, any product that has undergone a conformity assessment for the Good Manufacturing (and Importation) Practice for medical devices pursuant to the former provisions shall be deemed to have undergone a conformity assessment in accordance with this GMP.

- (2) Where, among the conformity recognition certificates issued pursuant to Annex 3 of the former Regulation on Authorization, etc. of Medical Devices (Korea Food and Drug Administration Notice) or Annex 5 of the former Good Manufacturing and Importation Practice (Korea Food and Drug Administration Notice), the relevant product group has been changed pursuant to Annex 3 of this Notice, such certificates shall be reissued by Jun. 30, 2012.
- (3) Any conformity assessment for applications for conformity recognition under the GMP for medical devices that were received by an audit organization prior to the enforcement of this GMP shall be conducted in accordance with the amended Notice.

ADDENDA <No. 2013-58, Apr. 5, 2013>

This GMP shall enter into force on the date of promulgation.

ADDENDA <No. 2013-210, Aug. 29, 2013>

This Notice shall enter into force on the date of its promulgation.

ADDENDA <No. 2013-219, Sep. 16, 2013>

This Notice shall enter into force on the date of its promulgation.

ADDENDA <No. 2014-96, Feb. 12, 2014>

This Notice shall enter into force on the date of its promulgation.

ADDENDA <No. 2014-132, Jul. 25, 2014>

Article 1 (Enforcement Date) This Notice shall enter into force on the date of its promulgation. Provided, however, that the amended provisions of Articles 17 through 22 shall enter into force as of the date on which Articles 7-4 through 7-8 of the Enforcement Rule of the Medical Device Act enter into force.

ADDENDA <No. 2015-17, Mar. 30, 2015>

This Notice shall enter into force on the date of its promulgation.

ADDENDA <No. 2015-71, Sep. 25, 2015>

This Notice shall enter into force on the date of its promulgation.

ADDENDA <No. 2016-156, Dec. 30, 2016>

Article 1 (Enforcement Date) This Notice shall enter into force two months after the date of promulgation.

Article 2 (Transitional Measures) Notwithstanding the amended provisions, where, as of the enforcement date of this Notice, an application for conformity recognition assessments for medical devices has been submitted to an audit organization pursuant to the former provisions or the application procedure is in progress, such application shall be governed by the former provisions.

ADDENDA <No. 2019-25, Mar. 25, 2019>

Article 1 (Enforcement Date) This Notice shall enter into force on Jul. 1, 2019. Provided, however, that, with respect to usability under 7.3.3 (a) 1) and 7.3.9 (a) of the Criteria for Conformity Recognition Assessments for Medical Devices specified in Annex 2, such provisions shall enter into force on the dates specified in each of the following subparagraphs:

1. Class IV medical devices: Jan. 1, 2021
2. Class III medical devices: Jul. 1, 2021
3. Class II medical devices: Jan. 1, 2022
4. Class I medical devices: Jul. 1, 2022

Article 2 (Special Exemption concerning Conformity Recognition, etc.) Notwithstanding the amended provisions of Annex 2, regarding the criteria for conformity recognition assessments for medical devices, applications for conformity recognition, etc. may be submitted from the enforcement date of this Notice until Jun. 30, 2020, in accordance with Annex 2-2, as classified in each of the following subparagraphs:

1. The criteria for conformity recognition assessments pursuant to Article 5 (1): Annex 2-2 shall apply.
2. In the case under Article 5 (2) 1: Provisions 7.1, 7.3, 7.4.3, 7.5, 7.6, 8.2.4.1, and 8.3 of Annex 2-2 shall apply
3. In the case under Article 5 (2) 2: Provisions 4.1, 4.2, 6.1, 6.3, 6.4, 7.5, 7.6, 8.2.4, 8.3, and 8.5 of Annex 2-2 shall apply
4. In the case under Article 5 (2) 3: Provisions 4.1, 4.2, 5.5, 6.4, 7.1, 7.4, 7.5, 7.6, 8.2.1, 8.2.4, 8.3, and 8.5 of Annex 2-2 shall apply
5. In the case under Article 7 (1) 2 (m): Checklist for Annex 2-2 criteria of the manufacturing site
6. In the case under Article 7 (1) 2 (n): Declaration of conformity to Annex 2-2 criteria of the manufacturing site

Article 3 (Transitional Measures) Notwithstanding the amended provisions, where, as of the enforcement date of this Notice, an application for conformity recognition assessments for medical devices has been submitted to an audit organization pursuant to the former provisions and is in progress, such application shall be governed by the former provisions.

ADDENDA <No. 2019-90, Oct. 15, 2019>

This Notice shall enter into force on the date of its promulgation.

ADDENDA <No. 2020-41, May 27, 2020>

Article 1 (Enforcement Date) This Notice shall enter into force on May 29, 2020.

Article 2 (Transitional Measures) Notwithstanding the amended provisions, where, as of the enforcement date of this Notice, an application for conformity recognition assessments for medical devices has been submitted to an audit organization pursuant to the former provisions and is in progress, such application shall be governed by the former provisions.

ADDENDA <No. 2020-101, Oct. 20, 2020>

Article 1 (Enforcement Date) This Notice shall enter into force on the date of its promulgation.

Article 2 (Transitional Measures) Where, prior to the enforcement date of this Notice, an application for conformity recognition assessments for medical devices has been submitted to an audit organization and is in progress, such application shall be governed by the former provisions.

ADDENDA <No. 2020-103, Oct. 26, 2020>

Article 1 (Transitional Measures) (1) Among products for which the product group has been changed pursuant to the Regulation on Medical Device Groups and Class by Group (Ministry of Food and Drug Safety Notice No. 2020-103, Oct. 26, 2020), any product that, under the former provisions, obtained conformity recognition under the Good Manufacturing Practice for Medical Devices as a product group falling under 10. Physiological Monitoring Device or 26. Medical Device for Ubiquitous Healthcare of Annex 3 shall be deemed to have obtained conformity recognition as a product group falling under 28. Software of Annex 3.

- (2) Where a manufacturer or importer of the relevant product has been notified of matters deemed to have been changed pursuant to Article 3 (3) of the Addenda to the Regulation on Medical Device Groups and Class by Group (Ministry of Food and Drug Safety Notice No. 2020-103, Oct. 26, 2020), such manufacturer or importer shall record and attach the notified changes on the reverse side of the conformity recognition certificate.
- (3) Where a manufacturer or importer has obtained authorization or certification under the amended provisions after having obtained conformity recognition under the former provisions pursuant to Article 2 of the Addenda to the Regulation on Medical Device Groups and Class by Group (Ministry of Food and Drug Safety Notice No. 2020-103, Oct. 26, 2020), such manufacturer or importer shall record the changed information on the reverse side of the conformity recognition certificate.

ADDENDA <No. 2021-28, Apr. 1, 2021>

Article 1 (Enforcement Date) This Notice shall enter into force as of Jun. 1, 2021, from the date of its promulgation.

Article 2 (Transitional Measures) Where, prior to the enforcement date of this Notice, an application for conformity recognition assessments for medical devices has been submitted to an audit organization and is in progress, such application shall be governed by the former provisions.

ADDENDA <No. 2021-83, Oct. 28, 2021>

Article 1 (Enforcement Date) This Notice shall enter into force on the date of its promulgation.

Articles 2 through 8 are omitted.

Article 9 (Amendment of Other Notices) (1) The Good Manufacturing Practice for Medical Devices (Ministry of Food and Drug Safety Notice No. 2021-28, Apr. 1, 2021) shall be partially amended as follows:

1. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 13. Machine or Instrument for Medical Treatment, “C21000 Implant instrument” shall be amended to “C21000 Dental Implant,” and “C24000 Agent for Dental Use” shall be amended to “C24000 Cold Pulp Testing Agent.”
2. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 19. Interbody Implants for Medical Purpose, “C18000 Maxillofacial Implant” shall be amended to “C18000 Maxillofacial Plastic Material,” “C19000 Maxillary Bone Fixation Material” shall be amended to “C19000 Maxillary Bone Fixation Material,” and “C20000 Endosseous Implant System” shall be amended to “C20000 Dental Implant System.”
3. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 20. Substitute of Human Tissue or Body Function, “C22000 Bone Graft Material” shall be amended to “C22000 Dental Bone Graft Material,” and “C23000 Intra Oral Tissue Regeneration Barrier” shall be amended to “C23000 Guided Bone and Tissue Regeneration Material.”
4. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 23. Dental Alloy, “C01000 Alloy, foil” shall be amended to “C01000 Dental Processing Alloy,” and “C02000 Alloy, casting” shall be amended to “C02000 Dental Casting Alloy.”
5. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 23. Dental Alloy, “C03000 Alloy, metal-ceramic” shall be amended to “C03000 Metal-Ceramic Alloy,” “C04000 Alloy, soldering” shall be amended to “C04000 Soldering Alloy,” and “C05000 Alloy, artificial” shall be amended to “C05000 Fabricated Alloy.”

6. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 24. Other Materials for Dental Treatment, “C06000 Filling material for dental use” shall be amended to “C06000 Direct Restorative Material,” and “C07000 Crown & bridge material for dental use” shall be amended to “C07000 Esthetic Prosthetic Material.”
7. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 24. Other Materials for Dental Treatment, “C08000 Artificial teeth material” shall be amended to “C08000 Denture Making Material/Denture Material,” “C09000 Denture material” shall be amended to “C09000 Denture Base Material/Denture Base Resin,” and “C10000 Endodontic material for root canal” shall be amended to “C10000 Material for Root Canal Therapy.”
8. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 24. Other Materials for Dental Treatment, “C11000 Cement for dental use” shall be amended to “C11000 Dental Adhesive Cement,” and “C12000 Adhesive for dental use” shall be amended to “C12000 Dental Bonding Agent.”
9. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 24. Other Materials for Dental Treatment, “C13000 Impression material for dental use” shall be amended to “C13000 Dental Impression Material,” and “C14000 Wax for dental use” shall be amended to “C14000 Dental Wax.”
10. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 24. Other Materials for Dental Treatment, “C16000 Protection material for dental use” shall be amended to “C16000 Preventive Dental Material,” and “C17000 Orthodontic material” shall be amended to “C17000 Orthodontic Material.”
11. In Annex 3 Medical Device GMP Product Groups (related to Articles 4 and 5), under 24. Other Materials for Dental Treatment, “C25000 Separating material for prosthesis” shall be amended to “C25000 Prosthetic Adhesive Remover,” “C26000 Material for prosthesis” shall be amended to “C26000 Other Prosthetic Material,” and “C27000 Retentive material for dental use” shall be amended to “C27000 Other Restorative-Endodontic Material.”

ADDENDA <No. 2022-8, Feb. 10, 2022>

Article 1 (Enforcement Date) This Notice shall enter into force on the date of its promulgation.

ADDENDA <No. 2023-31, May 12, 2023>

Article 1 (enforcement date) This Notice shall enter into force six months after the date of promulgation. Provided, however, that the amended provisions of Article 1, Article 7 (1) 2 (limited to the amendment deleting item (r) of the same subparagraph), Article 8, and Annex 4 shall enter into force on the date of promulgation. announcement.

Article 2 (Cases of Application) This amended Notice shall apply to manufacturing sites that apply for conformity recognition assessments for medical devices after the enforcement of this Notice.

Article 3 (Transitional Measures) (1) A person who, at the time of enforcement of this Notice, has been issued a conformity recognition certificate for medical devices under the previous Notice shall be deemed to have been issued a conformity recognition certificate for medical devices under this amended Notice.

(2) Where a conformity recognition assessment of medical devices has been applied for and is in progress, the previous regulations shall apply.

ADDENDA <No. 2023-79, Dec. 19, 2023>

Article 1 (Enforcement Date) This Notice shall enter into force on the date of its promulgation.

Article 2 (Cases of Application) This amended Notice shall apply to manufacturing sites that first apply for conformity recognition assessments after the enforcement of this Notice.

ADDENDA <No. 2024-88, Dec. 27, 2024>

Article 1 (Enforcement Date) This Notice shall enter into force on the date of its promulgation. Provided, however, that the amended provisions of Article 8 (6), Article 9 (1) 1, Article 10 (5), and Annex 2, 9.4 (2) shall enter into force on May 1, 2025, after the date of promulgation.

Article 2 (Cases of Application) Where, prior to the enforcement date of this Notice, an application for conformity recognition assessments for medical devices has been submitted and is in progress, such application shall be governed by the former provisions.

ADDENDA <No. 2025-22, Apr. 7, 2025>

Article 1 (Enforcement Date) This Notice shall enter into force on the date of its promulgation.

Article 2 (Cases of Application concerning the Assessment Entity for Conformity Recognition, etc.) The amended provisions of Annex 4 shall apply to conformity recognition assessments that were applied for prior to the enforcement of this Notice.

ADDENDA <No. 2025-80, Dec. 9, 2025>

Article 1 (Enforcement Date) This Notice shall enter into force on the date of its promulgation.

Article 2 (Cases of Application) This amended Notice shall apply to manufacturing sites that apply for conformity recognition assessments for medical devices after the enforcement of this Notice.

[Annex 1]

Definitions

(Related to Article 2)

1. “Good Manufacturing Practice (GMP) for Medical Devices” means a quality management system that prescribes the requirements to be observed to ensure the quality of medical devices throughout all processes—from development and procurement of raw materials to manufacturing, testing, packaging, installation, storage, shipment, and the handling of complaints or returns—so that products of consistently high quality may be supplied.
2. “Conformity Recognition Assessments” means assessments conducted to determine whether a medical device can be consistently manufactured with a high level of assurance of safety, effectiveness, and quality appropriate for its intended use.
3. “Quality Management System” means a management system for efficiently managing the organization, responsibilities, procedures, processes, and resources for product quality management.
4. “Product Group” means a set of products that share similar raw materials, manufacturing processes, and quality control systems, the classification of which shall be in accordance with Annex 3.
5. “Manufacturing Site of Potential Concern” means a manufacturing site that falls under any of the following cases:
 - (a) If the applicant manufacturing site has failed a GMP assessment within the past three years;
 - (b) If the product group subject to the application has been found noncompliant in quality based on sampling inspection results within the past three years;
 - (c) If the product subject to the application has been subject to compulsory recall, suspension of use, suspension of manufacturing, or similar regulatory actions by domestic or foreign government authorities within the past three years.
6. “Manufacturing Unit” or “Lot” means a unit of finished products, components, or raw materials manufactured under the same manufacturing conditions and having uniform characteristics and quality.
7. “Device Master Record (DMR)” means a document that contains detailed information on all manufacturing processes—from the design of the product to shipment (installation)—including specifications, manufacturing processes, manufacturing criteria, and installation, for each medical device item or model.
8. “Manufacturing” means all operations required to produce medical devices, including design, packaging, and labeling.
9. “Quality” means the degree to which a set of inherent characteristics fulfills requirements.

10. “Quality Control (QC)” means the part of quality management that focuses on fulfilling quality requirements.
11. “Safety” means the property of being free from hazards or the risk of malfunction, and of ensuring safe performance.
12. “Sterilized Device” means a medical device that undergoes a sterilization process during manufacturing and is labeled as sterilized on the product container or packaging with indications such as the word “sterile,” the sterilization method, and the expiration date.
13. “Batch” means a specified quantity of products produced during a defined manufacturing cycle, intended to have uniform characteristics and quality.
14. “Sterilization” means a process that uses physical or chemical methods to destroy all forms of microorganisms, including spores.
15. “Organization” means a group of personnel and facilities with an established arrangement of responsibilities, authorities, and interrelationships.
16. “Quality Manual” means a document that defines the manufacturer’s quality management system and describes the details or requirements appropriate to the scale and complexity of the organization.
17. “Quality Policy” means the overall intentions and direction of an organization related to quality, as formally expressed by top management.
18. “Quality Objective” means a target or objective that is pursued with respect to quality.
19. “Manufacturing Process” means the activities related to the design and development, procurement of raw materials, incoming inspection, production, in-process inspection, finished product inspection, packaging, labeling, shipment, and storage for the manufacture of medical devices.
20. “Process” means a set of interrelated or interacting activities that transforms inputs into outputs.
21. “Procedure” means an established method for performing an activity or process.
22. “Document” means criteria or procedures that are specified or created prior to performing an activity.
23. “Record” means a document that states achieved results or provides evidence of activities performed.
24. “Review” means an activity conducted to determine the suitability, adequacy, and effectiveness of a subject in order to achieve established objectives.
25. “Service” means an intangible output of an organization involving activities that necessarily occur between the organization and the customer, such as decision-making, relationship-maintenance activities, repair, transportation, and information delivery.
26. “Management Review” means an activity conducted by top management at planned intervals to evaluate the need for changes to, and the potential for improvement of, the quality management system, including the quality policy and quality objectives, in order to ensure its continuing suitability, adequacy, and effectiveness.

27. “Requirement” means an expressed need or expectation, generally one that is implicit or obligatory.
28. “Effectiveness” means the extent to which planned activities are realized and planned results are achieved.
29. “Efficiency” means the ratio or relationship between the results achieved and the resources used.
30. “Infrastructure” means the system of facilities, equipment, and services required for the operation of an organization.
31. “Production Realization” means the combined sequence of processes and detailed processes required to achieve a product.
32. Deleted
33. “Design and Development” means a set of processes that transforms requirements into specified characteristics or into the specifications of a product, process, or system.
34. “Verification” means confirmation, through the provision of objective evidence (data demonstrating the existence of something or substantiating a fact) and testing, that specified requirements have been fulfilled.
35. “Validation” means the act of verifying and documenting that methods of manufacturing and quality control—including the structure and facilities of the manufacturing site, manufacturing processes, and systems—achieve the intended results.
36. “Revalidation” means validation activities that are conducted either periodically or in response to changes to raw materials, manufacturing processes, machinery and equipment, or manufacturing systems that may have an impact on product quality.
37. “Cleaning” means a chemical or physical method used to remove contaminants or microorganisms from surfaces.
38. “Installation” means the activities of placing a product at the site of use and enabling it to operate in accordance with its intended purpose, including arrangements such as piping and waste disposal.
39. “Traceability” means identifying and managing the sources of raw materials and components of a medical device, its quality control history, and information on its distributors and users (locations).
40. “Identification” means the activities performed at all stages—including raw materials, materials, in-process products, and finished products—to ensure product traceability and proper transfer to the next process or shipment.
41. “Customer” means a collective term for purchasers and users (patients and healthcare professionals).
42. “Customer Property” means assets owned by the customer, which include each of the following items:
 - (a) Raw materials or components (including packaging materials) provided for inclusion in the product;

- (b) Products supplied for repair, maintenance, or upgrading;
 - (c) Products supplied for additional processes (such as packaging, sterilization, or testing using customer-provided materials);
 - (d) Services provided on behalf of the customer (e.g., transportation of customer property to a third party);
 - (e) Customer intellectual property (e.g., specifications, drawings, and asset information).
43. “Measuring Equipment” means measuring instruments, software, measurement standards, reference materials, auxiliary devices, or combinations thereof required to carry out a measurement process.
44. “Calibration” means the operation that confirms that a specific device or instrument produces results within the prescribed limits when measured against measurement standards recognized under international or national standards.
45. “Audit” means a systematic and independent verification activity conducted to determine whether quality-related work and its associated results conform to planned arrangements and whether such arrangements have been effectively implemented and are suitable for achieving the intended objectives.
46. “Concession” means written approval to use or release a specific product that has minor nonconformities not directly related to safety or effectiveness, provided that statutory requirements are met.
47. “Correction” means an action taken to eliminate a detected nonconformity.
48. “Corrective Action” means an action taken to eliminate the cause of a detected nonconformity or other undesirable situation.
49. “Preventive Action” means an action taken to eliminate the cause of a potential nonconformity or other undesirable situation to prevent its occurrence.
50. “Risk Management” means an advanced safety management system that analyzes and evaluates all risks that may arise throughout the entire life cycle of a medical device—including design, production, distribution, and use—and manages those risks to an acceptable level.
51. “Rework” means an operation performed to bring a nonconforming product into conformity with quality standards by applying a method different from the established manufacturing process.
52. “Advisory Notice” means a communication issued by the manufacturing site after delivery of a medical device for the purpose of providing additional information or recommending actions regarding the use, change, return, or disposal of the medical device.
53. “Single-agency Assessment” means conducting document review and on-site inspection for conformity recognition assessments solely by the head of the audit organization.
54. “Joint” means that the documentation review and on-site inspection for conformity recognition assessments is conducted jointly by the Commissioner of Regional Office and the head of the audit organization.

55. “Senior Quality Auditor” means a person who is affiliated with the audit organization designated by the Minister of Food and Drug Safety and who oversees conformity recognition assessment activities for medical devices.
56. “Quality Auditor” means a person affiliated with the audit organization designated by the Minister of Food and Drug Safety who conducts conformity recognition assessment activities.
57. “Legal Manufacturer” means a person who, under a contractual relationship, entrusts all or the principal manufacturing processes of a medical device falling under any of the following items to a manufacturer under subparagraph 58 and bears statutory responsibility therefor.
- (a) A medical device that has obtained, or intends to obtain, authorization or certification from the Minister of Food and Drug Safety;
 - (b) A medical device that has submitted, or intends to submit, a notification to the Minister of Food and Drug Safety.
58. “Manufacturer” means a person who performs all or major manufacturing processes of the medical devices specified in each item of subparagraph 57 and bears legal responsibility therefor, or a person who, under a contractual relationship, undertakes all or major manufacturing processes of the relevant product from the legal manufacturer under subparagraph 57.
59. “Quality Nonconformity” means a case in which a medical device manufactured or imported for the purpose of sale by a medical device manufacturer or importer is found to be nonconforming as a result of inspection under Article 32 or Article 33 of the Medical Device Act.
60. “Supplier” means an individual or organization that provides part or all of components, processes, or services.
61. “Clinical Evaluation” means the assessment and analysis of clinical data to verify the clinical safety and performance of a medical device when used as intended by the organization.
62. “Complaint” means any written, electronic, or oral communication alleging defects related to the identification, quality, durability, reliability, usability, safety, or performance of a medical device after it has left the organization’s control, or alleging defects in services that affect the performance of such devices.
63. Deleted
64. “Sterile Barrier System” means the minimum packaging that prevents microbial ingress and ensures that the product is presented sterile at the point of use.
65. “Life Cycle” means all stages of the life of a medical device, from initial conception to final disposal and processing.
66. “Product” means the output of a process and includes each of the following items:
- (a) Hardware;
 - (b) Software;
 - (c) Processed materials;
 - (d) Services.

67. Deleted
68. “Critical/Core Process” means a process in which an intermediate product at a particular stage acquires the form of a finished medical device and, even after further processing (cleaning, packaging, or sterilization), its configuration, structure, or performance remains unchanged.
69. “Combination Medical Device” means a medical device that is combined or integrated with drugs, etc., where the primary function corresponds to that of a medical device.
70. “Medical Device Single Audit Program (MDSAP)” means a system in which the results of quality management system conformity recognition and related audits conducted by audit organizations (AO) jointly designated and operated by participating jurisdictions, including the United States and Japan, are mutually recognized by multiple countries.
71. “Excellent Manufacturing Site” means a manufacturing site that satisfies all of the following items:
- (a) It is not classified as a Manufacturing Site of Potential Concern under subparagraph 5;
 - (b) It has not been subject to administrative dispositions under the Medical Device Act within the past three years;
 - (c) During the most recent periodic assessment, an on-site inspection was conducted and the result was ‘conforming’;
 - (d) For imported medical devices, where the applicant holds a valid conformity recognition certificate to the quality management system issued by the regulatory authority or an organization delegated by the regulatory authority, and can demonstrate that all corrective actions for any nonconformities identified in the certificate have been completed.
72. “Combined Assessment” means an assessment conducted concurrently by an audit organization designated under the Medical Device Single Audit Program pursuant to subparagraph 70, in which the conformity recognition assessments under this Notice are combined with the quality management system conformity recognition assessment under the Medical Device Single Audit Program.

[Annex 2]

Criteria for Conformity Recognition Assessments of Medical Devices

(Related to Article 5 and 6)

1. Purpose

The purpose of the Good Manufacturing Practice (GMP) for Medical Devices is to specify the requirements of the quality management system applied to the design and development, production, installation, and servicing of medical devices by manufacturers or by manufacturing sites of imported medical devices (hereinafter referred to as the “organization”).

2. Scope of Application

Where, due to the activities performed by the organization or the characteristics of medical devices to which this GMP apply, any requirement under Chapter 6 (Resource Management), Chapter 7 (Production Realization), or Chapter 8 (Measurement, Analysis, and Improvement) is not applicable, the organization may exclude such requirement from its quality management system. Provided, however, that the organization shall document the justification for each excluded requirement in accordance with Section 4.2.2.

3. Definitions

- (a) With respect to the requirements in this GMP that are limited to those “where applicable,” the organization shall be deemed applicable unless it otherwise provides reasonable justification.
- (b) Where a requirement in this GMP is stated as “shall document,” it also includes the requirement to establish, implement, and maintain the corresponding content.
- (c) In applying this GMP, the definitions of other terms shall be in accordance with Annex 1.

4. Quality Management System**4.1 General Requirements**

- 4.1.1 (a) The organization shall document its quality management system in accordance with the requirements of this GMP and applicable statutory requirements, and shall maintain the effectiveness of the quality management system.
- (b) The organization shall establish, implement, and maintain specific requirements, procedures, activities, or methods of operation that must be documented pursuant to this GMP and applicable statutory requirements.
- (c) The organization shall document the roles required to perform in accordance with applicable statutory requirements.

4.1.2 The organization shall implement the following:

- 1) Determine the processes necessary for the quality management system, taking into account the roles performed by the organization, and apply those processes throughout the organization;
- 2) Apply a risk-based approach to the appropriate management of processes required for the quality management system;
- 3) Determine the sequence and interaction of those processes.

4.1.3 For the processes of the quality management system, the organization shall perform the following:

- 1) Determine the criteria and methods necessary to ensure the effective operation and control of the processes;
- 2) Ensure the availability of information and resources necessary to support the operation and monitoring of the processes;
- 3) Take necessary actions to achieve planned results and maintain the effectiveness of the processes;
- 4) Monitor such processes and, where applicable, measure and analyze them;
- 5) Prepare and maintain the records necessary to demonstrate conformity with this GMP and compliance with applicable statutory requirements.

4.1.4 The organization shall control quality management system processes in conformity with this GMP and applicable statutory requirements. Where such processes are to be changed, the organization shall perform the following:

- 1) Evaluate whether the change to the process affects the quality management system;
- 2) Evaluate whether the change to the process affects the medical devices produced under the quality management system;
- 3) Control such matters in accordance with this GMP and applicable statutory requirements.

4.1.5 (a) Where the organization outsources any process that affects product conformity requirements, it shall ensure that such processes are monitored and controlled.

- (b) The organization shall retain responsibility for ensuring compliance with this GMP, customer requirements, and applicable statutory requirements for outsourced processes.
- (c) Control of outsourced processes shall be proportionate to the associated risks and to the capability of the contracted supplier to meet the requirements under paragraph 7.4, and shall include a written quality agreement.

- 4.1.6 (a) The organization shall document procedures for the validation of computer software used in the quality management system.
- (b) Such software shall be validated prior to initial use, and where applicable, shall also be validated following any changes to the software or its application.
- (c) Specific approaches and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software.
- (d) Records of these activities shall be maintained.

4.2 Documentation Requirements

4.2.1 General Requirements

Documentation of the quality management system shall include the following:

- 1) Documented quality policy and quality objectives;
- 2) Quality manual;
- 3) Documented procedures and records required by this GMP;
- 4) Documents, including records, determined by the organization to be necessary to ensure the effective planning, operation, and control of its processes;
- 5) Any additional documentation required by applicable statutory requirements.

4.2.2 Quality Manual

- (a) The organization shall document a quality manual that includes the following:
- 1) The scope of the quality management system, including details of any exclusions or non-applications and their justification;
 - 2) Documented procedures established for the quality management system and reference to such documents;
 - 3) A description of the interactions between processes of the quality management system.
- (b) The quality manual shall briefly specify the structure of the documents used in the quality management system.

4.2.3 Medical Device File

- (a) For each medical device model or item, the organization shall establish and maintain one or more files containing or referencing documents generated to demonstrate conformity with this GMP and compliance with applicable statutory requirements.
- (b) The contents of the medical device file shall include, but not be limited to, the following:
- 1) A general description of the medical device, including its intended use/purpose and all instructions for use;

- 2) Product specifications;
- 3) Specifications and procedures for manufacturing, packaging, storage, handling, and distribution;
- 4) Measurement and monitoring procedures;
- 5) Installation requirements, where applicable;
- 6) Servicing procedures, where applicable.

4.2.4 Control of Documents

- (a) Documents required by the quality management system shall be controlled. Records are a special type of document and shall be controlled in accordance with Section 4.2.5.
- (b) Procedures necessary to control the following shall be documented:
 - 1) Review and approval of documents for adequacy prior to issuance;
 - 2) Review, update, and re-approval of documents as necessary;
 - 3) Ensure that changes to documents and the current revision status are identified;
 - 4) Ensure that applicable versions of documents are available at points of use;
 - 5) Ensure that documents remain legible and readily identifiable;
 - 6) Ensure that documents of external origin determined by the organization to be necessary for the planning and operation of the quality management system are identified and their distribution controlled;
 - 7) Prevent deterioration or loss of documents;
 - 8) Preventing the unintended use of obsolete documents and applying appropriate identification if they are retained for any purpose.
- (c) The organization shall ensure that document changes are reviewed and approved by the original approving authority or another designated authority with access to background information on which the organization's decisions are based.
- (d) The organization shall retain at least one copy of obsolete controlled documents for a period corresponding to the product's life cycle, which shall be no less than the retention period required for records.

4.2.5 Control of Records

- (a) Records shall be established and maintained to demonstrate the effective operation of the quality management system and conformity to requirements.
- (b) The organization shall document procedures defining the controls needed for the identification, storage, security and integrity, retrieval, retention period, and disposition of records.
- (c) The organization shall establish and implement methods to protect personal health information contained in records in accordance with applicable statutory requirements.

- (d) All records shall be easily legible, readily identifiable, and retrievable. Any changes to records shall remain identifiable.
- (e) The organization shall retain records for a period corresponding to the product's life cycle. This period shall be at least five years from the date of manufacture and at least two years after release to the market.

5. Management Responsibility

5.1 Management Commitment

Top management shall demonstrate its commitment to the development and implementation of the quality management system and to maintaining its effectiveness through the following:

- 1) Communicate the importance of fulfilling customer requirements and applicable statutory requirements with the organization;
- 2) Establish the quality policy;
- 3) Ensure that quality objectives are established;
- 4) Conduct management reviews;
- 5) Ensure the availability of resources.

5.2 Customer Focus

Top management shall ensure that customer requirements and applicable statutory requirements are determined and fulfilled.

5.3 Quality Policy

Top management shall ensure that the quality policy:

- 1) Is appropriate to the purpose of the organization;
- 2) Includes a commitment to comply with requirements and to maintain the effectiveness of the quality management system;
- 3) Provides a framework for establishing and reviewing quality objectives;
- 4) Is communicated and understood within the organization;
- 5) Is reviewed for continuing suitability.

5.4 Planning

5.4.1 Quality Objectives

- (a) Top management shall ensure that the quality objectives include the necessary elements to meet applicable statutory requirements and product requirements, and that they are established at relevant functions and levels within the organization.
- (b) The quality objectives shall be measurable and shall be consistent with the quality policy.

5.4.2 Planning of the Quality Management System

Top management shall ensure the following:

- 1) The planning of the quality management system is carried out not only to achieve the quality objectives but also to meet the requirements of Section 4.1;
- 2) The integrity of the quality management system is maintained when changes to the quality management system are planned and implemented.

5.5 Responsibility, Authority, and Communication

5.5.1 Responsibility and Authority

- (a) Top management shall ensure that responsibilities and authorities within the organization are defined, documented, and communicated.
- (b) Top management shall document the interrelationships of all personnel who manage, perform, and verify work affecting quality, and shall ensure the authority and independence necessary to perform such work.

5.5.2 Quality Manager

Top management shall appoint a person within the organization who, irrespective of other responsibilities, has the authority and responsibility to perform the following:

- 1) Ensure that the processes necessary for the quality management system are documented;
- 2) Report to top management on the performance and effectiveness of the quality management system and on the need for improvement;
- 3) Ensure that awareness of applicable statutory requirements and quality management system requirements is promoted throughout the organization.

5.5.3 Internal Communication

Top management shall ensure that appropriate communication processes are established within the organization and that communication regarding the effectiveness of the quality management system is carried out.

5.6 Management Review

5.6.1 General Requirements

- (a) The organization shall document the procedure for management review.
- (b) Top management shall review the quality management system at documented planned intervals to ensure its continuing suitability, adequacy, and effectiveness.
- (c) Management reviews shall evaluate the need for changes to the quality management system, including the quality policy and quality objectives, and shall identify opportunities for improvement.

- (d) Records of management reviews shall be maintained.

5.6.2 Review Inputs

The inputs to management review shall include, but not be limited to, the following:

- 1) Feedback;
- 2) Handling of complaints;
- 3) Reports to regulatory authorities;
- 4) Audits;
- 5) Monitoring and measurement of processes;
- 6) Monitoring and measurement of product;
- 7) Corrective action;
- 8) Preventive action;
- 9) Follow-up actions from previous management reviews;
- 10) Changes that could affect the quality management system;
- 11) Recommendations for improvement;
- 12) New or revised applicable statutory requirements.

5.6.3 Review Outputs

The outputs of management review shall be recorded and shall include decisions and actions related to the reviewed inputs and the following:

- 1) Improvements needed to maintain the suitability, adequacy, and effectiveness of the quality management system and its processes;
- 2) Improvement of product related to customer requirements;
- 3) Changes needed to meet new or revised applicable statutory requirements;
- 4) Resource needs.

6. Resource Management

6.1 Provision of Resources

The organization shall determine and provide the resources needed for:

- 1) Implementing the quality management system and maintaining its effectiveness;
- 2) Meeting applicable regulatory requirements and customer requirements.

6.2 Human Resources

- (a) Personnel performing work affecting product quality shall be competent on the basis of

appropriate education, training, skills, and experience.

- (b) The organization shall establish the competencies required of personnel, provide the necessary training, and establish and document processes to ensure personnel awareness.
- (c) The organization shall perform the following:
 - 1) Determine the competencies needed for personnel performing work that affects product quality;
 - 2) Provide training or take other actions to achieve or maintain the necessary competencies;
 - 3) Evaluate the effectiveness of the actions taken;
 - 4) Ensure that personnel are aware of the relevance and importance of their activities and how they contribute to the achievement of quality objectives;
 - 5) Maintain appropriate records of education, training, skills, and experience.

6.3. Infrastructure

- (a) The organization shall document the infrastructure requirements necessary to ensure conformity to product requirements, prevent product mix-ups, and ensure orderly handling. Where applicable, infrastructure includes:
 - 1) Buildings, workspace, and associated facilities;
 - 2) Process equipment (hardware and software);
 - 3) Supporting services such as transport, communication, or information systems.
- (b) Where maintenance activities of infrastructure, or lack thereof, may affect product quality, the organization shall document the maintenance requirements, including maintenance intervals. Where applicable, these requirements shall apply to equipment used for manufacturing, work environment control, and monitoring and measurement.
- (c) Records of such maintenance activities shall be maintained.

6.4 Work Environment and Contamination Control

6.4.1 Work Environment

- (a) The organization shall document the requirements for the work environment necessary to ensure conformity to product requirements.
- (b) Where work environment conditions may have an adverse effect on product quality, the organization shall document the requirements for the work environment and procedures for monitoring and controlling such conditions.
- (c) The organization shall perform the following requirements:
 - 1) Where personnel may come into contact with the product or the work environment in a manner that could affect the safety or performance of medical devices, requirements for personnel health, cleanliness, and clothing shall be documented.

- 2) All personnel who work temporarily under special environmental conditions shall be competent or shall be supervised by competent personnel.

6.4.2 Contamination Control

- (a) Where applicable, the organization shall plan and document methods for controlling products that are contaminated or potentially contaminated, in order to prevent contamination of the work environment, personnel, or products.
- (b) For sterilized medical devices, the organization shall document requirements for contamination control related to microorganisms or particulates and shall maintain the required cleanliness during assembly or packaging processes.

7. Production Realization

7.1 Planning of Production Realization

- (a) The organization shall plan and develop the processes needed for production realization. Planning of production realization shall be consistent with the other process requirements of the quality management system.
- (b) The organization shall document one or more processes for risk management during production realization, and records of risk management activities shall be maintained.
- (c) Where applicable, the organization shall determine the following in planning production realization:
 - 1) Quality objectives and requirements for the product;
 - 2) The need to establish and document processes, and to provide specific resources for the product, including infrastructure and work environment;
 - 3) Specific verification, validation, monitoring, measurement, testing and inspection, handling, storage, distribution, and traceability activities required for the product, along with the criteria for product acceptance;
 - 4) Records necessary to demonstrate that production realization processes and their outputs meet requirements.
- (d) The outputs of such planning shall be documented in a form appropriate to the organization's method of operation.

7.2 Customer-Related Processes

7.2.1 Determination of Requirements Related to the Product

The organization shall determine the following:

- 1) Requirements specified by the customer, including those related to delivery and post-delivery activities;
- 2) Requirements not stated by the customer but necessary for known specified or intended use;

- 3) Applicable statutory requirements related to the product;
- 4) User training necessary to ensure stated performance and safe use of the medical device;
- 5) Any additional requirements determined by the organization.

7.2.2 Review of Requirements Related to the Product

- (a) The organization shall review the requirements related to the product. This review shall be conducted prior to the organization's commitment to supply the product to the customer.
 - 1) The requirements for the product are defined and documented;
 - 2) Any contract or order requirements differing from those previously expressed are resolved;
 - 3) Applicable statutory requirements are met;
 - 4) User training determined under Section 7.2.1 is feasible or planned to be feasible;
 - 5) The organization has the capability to meet the defined requirements.
- (b) Records of the results of the review and any actions arising from the review shall be maintained.
- (c) Where the customer does not provide documented requirements, the organization shall confirm the customer requirements prior to acceptance.
- (d) When product requirements are changed, the organization shall amend the relevant documents and ensure that relevant personnel are made aware of the changed requirements.

7.2.3 Communication

- (a) The organization shall plan and document the methods for communicating with customers regarding:
 - 1) Product information;
 - 2) Handling inquiries, including amendments, contracts, or orders;
 - 3) Customer feedback, including complaints;
 - 4) Advisory notices.
- (b) The organization shall communicate with regulatory authorities in accordance with applicable statutory requirements.

7.3. Design and Development

7.3.1 General

The organization shall document procedures for design and development.

7.3.2 Design and Development Planning

- (a) The organization shall plan and control the design and development of the product. Where applicable, the design and development plan shall be maintained and updated as design and development progress.
- (b) The organization shall document the following in the course of design and development planning:
 - 1) The stages of design and development;
 - 2) The reviews required at each stage of design and development;
 - 3) The verification, validation, and design transfer activities appropriate to each stage of design and development;
 - 4) The responsibilities and authorities for design and development;
 - 5) The methods to ensure traceability between design and development inputs and outputs;
 - 6) The necessary resources, including personnel competence.

7.3.3 Design and Development Inputs

- (a) The organization shall determine and maintain records of inputs relating to product requirements. These inputs shall include:
 - 1) Functional, performance, usability, and safety requirements necessary for the intended use;
 - 2) Applicable statutory requirements and standards;
 - 3) Applicable risk management outputs;
 - 4) Information derived from previous similar designs, where applicable;
 - 5) Other requirements essential for the design and development of the product and process.
- (b) Such inputs shall be reviewed and approved for adequacy.
- (c) Product requirements shall be clear, unambiguous, verifiable or validatable, and shall not conflict with other requirements.

7.3.4 Design and Development Outputs

- (a) The design and development outputs shall:
 - 1) Meet the design and development input requirements;
 - 2) Provide appropriate information for purchasing, production, and service provision;
 - 3) Include or reference the criteria for product acceptance;
 - 4) Specify the characteristics of the product that are essential for safe and proper use.
- (b) The outputs of the design and development process shall be provided in a form that

enables verification against the design and development inputs and shall be approved prior to release.

- (c) Records of the design and development outputs shall be maintained.

7.3.5 Design and Development Review

- (a) Systematic reviews of the design and development shall be conducted at appropriate stages in accordance with planned and documented methods for the purpose of:
 - 1) Evaluating the ability of the design and development results to meet the requirements;
 - 2) Identifying and proposing any necessary actions.
- (b) Personnel participating in such reviews shall include not only the persons responsible for the design and development stage under review, but also other relevant experts.
- (c) Records of the results of the reviews and any necessary actions shall be maintained and shall include identification of the design under review, the personnel participating in the review, and the dates of the review.

7.3.6 Design and Development Verification

- (a) Design and development verification shall be performed in accordance with planned and documented methods to ensure that the design and development outputs meet the input requirements.
- (b) The organization shall document the verification plan, including the verification methods, acceptance criteria, and, where applicable, statistical techniques with justification for sample size.
- (c) If the intended use requires the medical device to be connected to or interfaced with another medical device, the verification shall include confirmation that the design outputs meet the design inputs when so connected or interfaced.
- (d) Records of the verification results, conclusions, and any necessary actions shall be maintained.

7.3.7 Design and Development Validation

- (a) Design and development validation shall be performed, in accordance with planned and documented methods, to ensure that the resulting product meets the requirements for the intended use or specified application.
- (b) The organization shall document the validation plan, including the validation methods, acceptance criteria, and, where applicable, justification for sample size.
- (c) Design validation shall be performed on core product. Core product includes initial production units, batches, or their equivalents. The rationale for the selection of the product used for validation shall be recorded.

- (d) As part of design and development validation, the organization shall perform clinical evaluation in accordance with applicable statutory requirement.
- (e) Medical devices used for clinical evaluation shall not be considered as released for customer use.
- (f) If the intended use requires the medical device to be connected to or interfaced with another medical device, the validation shall include confirmation that the product requirements for the specified application or intended use are met when so connected or interfaced.
- (g) Validation shall be completed prior to the product's release for customer use.
- (h) Records of the results of validation, the conclusions reached, and any necessary actions shall be maintained.

7.3.8 Design and Development Transfer

- (a) The organization shall document procedures for the transfer of design and development outputs to manufacturing. These procedures shall ensure that the design and development outputs have been verified as suitable for manufacturing before becoming the final production specifications and that manufacturing capability can meet product requirements.
- (b) Records of the results and conclusions of the transfer shall be maintained.

7.3.9 Control of Design and Development Changes

- (a) The organization shall document procedures for controlling design and development changes. The organization shall determine the significance of changes to the function, performance, usability, safety, applicable statutory requirements, and intended use of the medical device.
- (b) Design and development changes shall be identified. Prior to implementation, the changes shall be:
 - 1) Reviewed;
 - 2) Verified;
 - 3) Validated, where applicable;
 - 4) Approved.
- (c) The review of design and development changes shall include evaluation of the effects of the changes on constituent parts, products in manufacturing or already delivered, risk management inputs or outputs, and the production realization processes.
- (d) Records of the changes, the review of the changes, and any necessary actions shall be maintained.

7.3.10 Design and Development File

- (a) The organization shall maintain a design and development file for each medical device model or product.
- (b) This file shall contain or reference the records generated to demonstrate conformity with the design and development requirements and the records of design and development changes.

7.4. Purchasing

7.4.1 Purchasing Process

- (a) The organization shall document procedures to ensure that purchased product conforms to specified requirements.
- (b) The organization shall establish criteria for the evaluation and selection of suppliers. The criteria shall be based on:
 - 1) The supplier's ability to provide product that meets the organization's requirements;
 - 2) The supplier's performance;
 - 3) The effect of the purchased product on the quality of the medical device;
 - 4) Proportionality to risks associated with the medical device.
- (c) The organization shall plan monitoring and re-evaluation of suppliers. The performance of suppliers in meeting purchased product requirements shall be monitored. The results of monitoring shall be provided as input to the supplier re-evaluation process.
- (d) Non-fulfillment of purchasing requirements shall be addressed with the supplier in proportion to the risks associated with the purchased product and compliance with applicable statutory requirements.
- (e) Records of the results of evaluation, selection, monitoring, and re-evaluation of suppliers and of any necessary actions arising from these activities shall be maintained.

7.4.2 Purchasing Information

- (a) Purchasing information shall describe or reference the product to be purchased, including, where appropriate:
 - 1) Product specifications;
 - 2) Requirements for product approval, procedures, processes, and equipment;
 - 3) Requirements for the qualification of supplier personnel;
 - 4) Quality management system requirements.
- (b) The organization shall ensure the adequacy of specified purchasing requirements prior to communication with the supplier.
- (c) Purchasing information shall include, where appropriate, a written agreement that the supplier notify the organization of any changes to the product prior to implementation if

such changes may affect the ability of the product to meet specified purchasing requirements.

- (d) The organization shall maintain the relevant purchasing information as documents and records to the extent that traceability is required in accordance with Section 7.5.9.

7.4.3 Verification of Purchased Product

- (a) The organization shall establish and implement the inspection or other activities necessary to ensure that purchased product meets specified requirements. The extent of verification activities shall be based on the results of supplier evaluation and shall be proportional to the risks associated with the purchased product.
- (b) When the organization becomes aware of any changes to the purchased product, it shall determine whether such changes affect the production realization processes or the medical device.
- (c) If the organization or its customer intends to verify the purchased product at the supplier's premises, the organization shall specify in the purchasing information the intended verification arrangements and the method of product release.
- (d) Records of verification shall be maintained.

7.5 Production and Service Provision

7.5.1 Control of Production and Service Provision

- (a) Production and service provision shall be planned, carried out, monitored, and controlled to ensure that product conforms to specifications. Where appropriate, production control shall include, but not be limited to:
 - 1) Documentation of procedures and methods for production control;
 - 2) Qualification of infrastructure;
 - 3) Implementation of monitoring and measurement of process parameters and product characteristics;
 - 4) Availability and use of monitoring and measuring equipment;
 - 5) Implementation of activities specified for labeling and packaging operations;
 - 6) Implementation of product release, delivery, and post-delivery activities.
- (b) The organization shall provide traceability to the extent required in accordance with Section 7.5.9 and shall establish and maintain records by medical device or by medical device batch that enable identification of the quantity produced and approved for distribution. These records shall be verified and approved.

7.5.2 Cleanliness of Product

The organization shall document requirements for cleanliness of product or contamination control of product in the following cases. Provided, however, that where the product is cleaned

in accordance with 1) or 2), the requirements of 6.4.1 do not apply prior to the cleaning process.

- 1) Product that is cleaned by the organization prior to sterilization or use;
- 2) Product supplied non-sterile that requires a cleaning process prior to sterilization or use;
- 3) Product that cannot be cleaned prior to sterilization or use and for which cleanliness is of significant importance for use;
- 4) Product supplied non-sterile for which cleanliness is of significant importance for use;
- 5) Removal of process agents used during manufacturing from the product.

7.5.3 Installation Activities

- (a) Where applicable, the organization shall document the acceptance criteria for installation of the medical device and for installation verification.
- (b) Where installation by parties other than the organization or the supplier is permitted by the customer, the organization shall provide documented requirements for installation of the medical device and for installation verification.
- (c) Records of installation of the medical device and of installation verification performed by the organization or the supplier shall be maintained.

7.5.4 Servicing Activities

- (a) Where servicing of medical devices is a specified requirement, the organization shall document servicing procedures, reference materials, and reference measurements, where necessary, for performing servicing activities and for verifying that the specified requirements are met.
- (b) The organization shall analyze records of servicing activities performed by the organization or the supplier for the purpose of:
 - 1) Determining whether the information should be handled as a complaint;
 - 2) Providing, where applicable, input to the improvement processes.
- (c) Records of servicing activities performed by the organization or the supplier shall be maintained.

7.5.5 Specific Requirements for Sterile Medical Devices

The organization shall maintain records of the parameters of the sterilization process used for each sterilization batch. Sterilization records shall be traceable to each production batch of the medical device.

7.5.6 Validation of Processes for Production and Service Provision

- (a) The organization shall validate any processes for production and service provision where

the resulting output cannot be verified by subsequent monitoring or measurement. Validation shall include all processes where deficiencies become apparent only after the product is used or the service is delivered.

- (b) Validation shall demonstrate the ability of the processes to achieve the planned results consistently.
- (c) The organization shall document procedures for process validation that include:
 - 1) Defined criteria for review and approval of the processes;
 - 2) Qualification of equipment and personnel;
 - 3) Use of specific methods, procedures, and acceptance criteria;
 - 4) Statistical techniques, where applicable, including justification for sample size;
 - 5) Requirements for records;
 - 6) Revalidation, including the criteria for revalidation;
 - 7) Approval of changes to the process.
- (d) The organization shall document procedures for validation of the application of computer software used in production and service provision. Such software applications shall be validated prior to initial use and, where appropriate, validated after changes or software applications have been made. The specific approach and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software, including the impact on product specifications and product performance.
- (e) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.

7.5.7 Specific Requirements for Validation of Sterilization and Sterile Packaging Processes

- (a) The organization shall document procedures for validation of the sterilization processes and the sterile barrier systems.
- (b) The sterilization processes and the sterile barrier systems shall be validated prior to initial use and, where applicable, prior to changes to the product or the process.
- (c) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.

7.5.8 Identification

- (a) The organization shall document procedures for product identification and shall identify the product by suitable means throughout production realization.
- (b) The organization shall identify the status of the product with respect to monitoring and measurement requirements throughout production realization. The organization shall maintain identification of product status to ensure that only product that has passed the required tests and inspections, or that has been released under an approved concession, is dispatched, used, or installed during all phases of production, storage, installation, and

servicing.

- (c) Where required by applicable statutory requirements, the organization shall document a system for assigning a unique device identification (UDI) to the medical device.
- (d) The organization shall document procedures to ensure that medical devices returned to the organization are identified and distinguished from conforming product.

7.5.9 Traceability

7.5.9.1 General Requirements

The organization shall document procedures for traceability. These procedures shall define the scope of traceability and the records to be maintained in accordance with applicable statutory requirements.

7.5.9.2 Specific Requirements for Medical Devices Subject to Traceability

- (a) Where components, materials, or working environment conditions used could cause the medical device not to meet specified safety and performance requirements, records required for traceability shall include records of the components, materials, and working environment conditions used.
- (b) The organization shall require distributors or retailers to maintain records of sales of the medical device and to make such records available for investigation to ensure product traceability.
- (c) The organization shall maintain records of the name and address of the consignee for released product.

7.5.10 Customer Property

Where customer property provided for use or incorporation into the product is under the manufacturer's control or is being used by the manufacturer, the organization shall identify, verify, protect, and safeguard such property. If customer property is lost, damaged, or found to be unsuitable for use, this shall be reported to the customer and records shall be maintained.

7.5.11 Preservation of Product

- (a) The organization shall document procedures to preserve product conformity to requirements during processing, storage, handling, and distribution.
- (b) Preservation shall also apply to components of the medical device.
- (c) When exposed to expected conditions and hazards during processing, storage, handling, and distribution, the organization shall protect the product from alteration, contamination, or damage by the following means:
 - 1) Designing and constructing appropriate packaging and transportation containers;
 - 2) Documenting requirements for any special conditions needed where packaging

alone does not provide preservation.

- (d) Where special conditions are necessary, such conditions shall be controlled and recorded.

7.6. Control of Monitoring and Measuring Equipment

- (a) The organization shall determine the monitoring and measurement activities to be performed, and the monitoring and measuring equipment required, to demonstrate that the product meets specified requirements.
- (b) The organization shall document procedures to ensure that monitoring and measurement activities are carried out in a manner consistent with the monitoring and measurement requirements.
- (c) Where necessary to ensure valid results, measuring equipment shall:
 - 1) Be calibrated or verified, or both, at specified intervals or prior to use, against measurement standards traceable to international or national measurement standards. Where no such standards exist, the basis used for calibration or verification shall be recorded.
 - 2) Be adjusted or re-adjusted as necessary. Such adjustment or re-adjustment shall be recorded.
 - 3) Be identified to enable the calibration status to be determined;
 - 4) Be safeguarded from adjustments that would invalidate the measurement result;
 - 5) Be protected from damage and deterioration during handling, maintenance, and storage.
- (d) The organization shall calibrate or verify the equipment in accordance with documented procedures.
- (e) When equipment is found not to conform to requirements, the organization shall assess the validity of previous measurement results. The organization shall take appropriate action regarding the equipment and any product affected. Records of the results of calibration and verification shall be maintained.
- (f) When computer software is used in monitoring or measuring the requirements specified, the organization shall document procedures for validation of the application of computer software. The software shall be validated prior to initial use and, where appropriate, revalidated after changes to the software or its application. The specific approach and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software, including the impact on product specifications and product performance.
- (g) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.

8. Measurement, Analysis and Improvement

8.1 General Requirements

- (a) The organization shall plan and implement the monitoring, measurement, analysis, and improvement processes needed:
 - 1) To demonstrate conformity of the product;
 - 2) To ensure conformity of the quality management system;
 - 3) To maintain the effectiveness of the quality management system.
- (b) This shall include determination of the methods, including statistical techniques, and the extent of their use.

8.2 Monitoring and Measurement

8.2.1 Feedback

- (a) As one of the measurements of the effectiveness of the quality management system, the organization shall collect and monitor information relating to whether customer requirements have been met.
- (b) The methods for obtaining and using this information shall be documented.
- (c) The organization shall document procedures for the feedback process. The feedback process shall include provisions for gathering data from production as well as post-production activities.
- (d) Information gathered in the feedback process shall be used as potential input to risk management in order to monitor and maintain the product requirements and the production realization or improvement processes.
- (e) Where applicable statutory requirements require the organization to collect information from post-production activities, review of that information shall be part of the feedback process.

8.2.2 Handling of Complaints

- (a) The organization shall document procedures for timely handling of complaints in accordance with applicable statutory requirements. These procedures shall include, at a minimum, the following requirements and responsibilities:
 - 1) Receiving and recording information;
 - 2) Evaluating information to determine whether feedback constitutes a complaint;
 - 3) Investigating complaints;
 - 4) Determining whether the information must be reported to the appropriate regulatory authorities;
 - 5) Handling complaint-related product;
 - 6) Determining the need for correction or corrective action.

- (b) If any complaint is not investigated, the justification for not conducting the investigation shall be documented. All results of corrections and corrective actions arising from the complaint handling process shall be documented.
- (c) Where an investigation determines that activities external to the organization caused the complaint, relevant information shall be exchanged between the organization and the external parties.
- (e) Records of complaint handling shall be maintained.

8.2.3 Reporting to Regulatory Authorities

- (a) Where complaints are subject to adverse event reporting or advisory notice reporting in accordance with applicable statutory requirements, the organization shall document procedures for reporting such complaints to the regulatory authorities.
- (b) Records of reports submitted to regulatory authorities shall be maintained.

8.2.4 Internal Audit

- (a) The organization shall conduct internal audits at planned intervals to determine whether the quality management system:
 - 1) Conforms to the planned and documented arrangements, the requirements of this GMP, the quality management system requirements established by the organization, and the applicable statutory requirements;
 - 2) Is effectively implemented and maintained.
- (b) The organization shall document procedures that define the responsibilities and requirements for planning and conducting audits, and for recording and reporting audit results.
- (c) The audit program shall be planned, taking into consideration the status and importance of the processes and areas to be audited, as well as the results of previous audits. The audit criteria, scope, frequency, and methods shall be defined and recorded. Auditors shall be selected and audits conducted to ensure objectivity and impartiality of the audit process. Auditors shall not audit their own work. Records of the audit and audit results, including the processes and areas audited and the conclusions reached, shall be maintained.
- (d) Management responsible for the areas being audited shall ensure that necessary corrections and corrective actions are taken without undue delay to eliminate detected nonconformities and their causes. Follow-up activities shall include the verification of the actions taken and the reporting of the results of verification.

8.2.5 Monitoring and Measurement of Processes

The organization shall apply suitable methods for monitoring and, where applicable, measurement of the quality management system processes. These methods shall demonstrate

the ability of the processes to achieve the planned results. When the planned results are not achieved, appropriate correction and corrective action shall be taken to ensure conformity of the product.

8.2.6 Monitoring and Measurement of Product

- (a) The organization shall monitor and measure the characteristics of the product to verify that product requirements have been met. This shall be carried out at appropriate stages of the production realization process in accordance with the planned and documented arrangements and documented procedures.
- (b) Records demonstrating conformity with the acceptance criteria shall be maintained. The identity of the person authorizing product release shall be recorded. Where applicable, the test equipment used for measurement activities shall be identified and recorded.
- (c) Product shall not be released, nor shall service be provided, until the planned and documented activities have been satisfactorily completed.
- (d) For medical devices subject to traceability, the organization shall identify and record the identity of personnel performing all inspections or tests.

8.3 Control of Nonconforming Product

8.3.1 General

- (a) The organization shall ensure that nonconforming product is identified and controlled to prevent its unintended use or delivery. The organization shall document procedures that define the controls and related responsibilities and authorities for dealing with nonconforming product, including identification, documentation, segregation, evaluation, and disposition.
- (b) Evaluation of nonconformities shall include investigation into any external party responsible for the nonconformity and determination of whether notification is required.
- (c) Records of the nonconformity, including the evaluation, investigation, the basis for the decisions made, and all actions taken in response, shall be maintained.

8.3.2 Actions in Response to Nonconforming Product Detected Prior to Delivery

- (a) The organization shall deal with nonconforming product in one or more of the following ways:
 - 1) Taking action to eliminate the detected nonconformity;
 - 2) Taking action to preclude its original intended use or application;
 - 3) Authorizing its use, release, or acceptance under concession.
- (b) The organization shall ensure that concessions are granted only when justified, approved, and compliant with applicable statutory requirements. Records shall be maintained to identify acceptance under concession and the personnel authorizing the concession.

8.3.3 Actions in Response to Nonconforming Product Detected After Delivery

- (a) When nonconforming product is detected after delivery or use, the organization shall take appropriate action regarding the effects or potential effects of the nonconformity. Records of the actions taken shall be maintained.
- (b) The organization shall document procedures for issuing advisory notices in accordance with applicable statutory requirements. These procedures shall be capable of being implemented at any time. Records of the actions related to advisory notices shall be maintained.

8.3.4 Rework

- (a) The organization shall perform rework in accordance with documented procedures, taking into account the potential adverse effects of rework on the product. These procedures shall be subject to the same review and approval as the original procedures.
- (b) After completion of the rework, the product shall be verified to ensure that it meets the applicable acceptance criteria and statutory requirements.
- (c) Records of the rework shall be maintained.

8.4 Analysis of Data

- (a) The organization shall document procedures to determine, collect, and analyze appropriate data to demonstrate the suitability, adequacy, and effectiveness of the quality management system. These procedures shall include the determination of appropriate methods, including statistical techniques and the extent of their application.
- (b) Analysis of data shall include data generated from the results of monitoring and measurement and from other relevant sources, and shall include, at a minimum, the following inputs:
 - 1) Feedback;
 - 2) Conformity to product requirements;
 - 3) Process and product characteristics and trends, including opportunities for improvement;
 - 4) Suppliers;
 - 5) Audits;
 - 6) Service reports, where applicable.
- (c) Where analysis of data shows that the quality management system is not suitable, adequate, or effective, the organization shall use this analysis as input for improvement as required in 8.5.
- (d) Records of the results of data analysis shall be maintained.

8.5 Improvement

8.5.1 General Requirements

The organization shall identify and implement any changes necessary to ensure and maintain the ongoing suitability, adequacy, and effectiveness of the quality management system, as well as the safety and performance of medical devices, through the use of the quality policy, quality objectives, audit results, post-marketing surveillance, data analysis, corrective and preventive actions, and management review.

8.5.2 Corrective Action

- (a) The organization shall take action to eliminate the causes of nonconformities in order to prevent their recurrence.
- (b) Corrective actions required shall be taken without undue delay. Corrective actions shall be proportionate to the effects of the nonconformities encountered.
- (c) Documented procedures shall define requirements for:
 - 1) Reviewing nonconformities (including customer complaints);
 - 2) Determining the causes of nonconformities;
 - 3) Evaluating the need for action to ensure that nonconformities do not recur;
 - 4) Planning and documenting the required actions and implementing them, including document changes where applicable;
 - 5) Verifying that corrective actions do not adversely affect the safety and performance of the medical device or compliance with applicable statutory requirements;
 - 6) Reviewing the effectiveness of the corrective actions taken.
- (d) Records of all investigation results and actions taken shall be maintained.

8.5.3 Preventive Action

- (a) The organization shall determine preventive actions to eliminate the causes of potential nonconformities in order to prevent their occurrence. Preventive actions shall be proportionate to the potential impacts of such issues.
- (b) Documented procedures shall define requirements for:
 - 1) Determining potential nonconformities and their causes;
 - 2) Evaluating the need for action to prevent the occurrence of nonconformities;
 - 3) Planning and documenting the required actions and determining and implementing such actions, including document changes where applicable;
 - 4) Verifying that preventive actions do not adversely affect the safety and performance of the medical device or compliance with applicable statutory requirements;
 - 5) Reviewing the effectiveness of preventive actions taken, where applicable.
- (c) Records of the results of all investigations and actions taken shall be maintained.

9. Conformity Recognition Assessment Sheet for Medical Devices

9.1 General Information

Conformity Recognition Assessment Sheet for Medical Devices			
Name of business		Type of business	☐ Manufacturing ☐ Import
		Business license number	
Representative		Quality manager	
Address	(Telephone: , Fax: E-mail:)		
Assessment type	☐ Initial assessment ☐ Periodic assessment ☐ Assessment for change ☐ Additional assessment		
	☐ Class 1 medical device ☐ Medical device for investigational use ☐ Medical device for export ☐ Combination medical device ☐ Use of the Medical Device Single Audit Program ☐ Excellent manufacturing site ※ Fill in only if applicable.		
Method of assessment	☐ On-site inspection ☐ Document review ☐ Combined assessment		
Reason for the determination of the assessment type and method			
Product	Product group		
	Product name / Class		
Assessment team	Affiliation	Name	
	Ministry of Food and Drug Safety		
	Audit Organization (Name of Agency)		
Assessment date	 -		
Assessment result	☐ Conforming ☐ Additional actions required (by . . .) ☐ Nonconforming		
	<u>In the case of Section 9.4, subparagraph 2, item (a) 2), the results of corrective actions shall be submitted by (yyyy.mm.dd).</u>		
This document represents the result of the conformity assessment conducted pursuant to Article 6 of the Good Manufacturing Practice for Medical Devices.			
Year Month Day Ministry of Food and Drug Safety: Seal Audit Organization: Seal Representative: Seal			

9.2 Information on Assessment Location

Name of business	☐ Corporation ☐ Individual		License number	
Representative			Quality manager	
Name/address of manufacturing site subject to assessment	Legal manufacturer:			
	(Name) (Location)			
	Manufacturer:			
	(Name) (Location)			
Facility information of the manufacturing site				
Contact information of the responsible review department				
Number of employees subject to assessment			Working hours (Shift hours, etc.)	
Status of related certifications	Certification body	Certification criteria	Scope of certification	Expiration date
On-site inspection date	Year month day - year month day			
Information on previous assessment (Fill in only if applicable)	Assessment date			
	Audit organization			
	Auditor(s)			
	Assessment criteria and scope			
	Assessment result			
	Action required			
Remarks				

9.3.1 Detailed Assessment Contents

(Where the Medical Device Single Audit Program Is Not Applied)

Category		Details
Noteworthy findings during assessment		
Excluded items		
Reason for exclusion		
Points to verify regarding the interrelationships of the quality management system		
Assessment area		Assessment details
1. Quality Management System		
2. Management Responsibility		
3. Resource Management		
4. Production Realization		
5. Measurement, Analysis and Improvement		
6. Assessment result		
Required actions		
No.	Relevant clause	Required actions
1		
2		
3		
4		
5		
Assessment description		

9.3.2. Detailed Assessment Contents

(Where the Medical Device Single Audit Program Is Applied)

Category	Assessment details																																																															
Noteworthy findings during assessment																																																																
Assessment information	<i>Audit organization, assessment start date, assessment end date, assessment duration (number of assessment days), assessment report number, assessment type (initial/renewal), etc. (refer to Sections 1 and 3 of the MDSAP Assessment Results)</i>																																																															
Information on the manufacturing site subject to assessment	<i>Name of the manufacturing site subject to assessment, information on the assessed organization, detailed address of the manufacturing site, relationship with the product subject to assessment, etc. (Refer to Sections 2 through 8)</i>																																																															
Excluded items and reasons	<i>Refer to section 9</i>																																																															
Points to verify regarding the interrelationships of the quality management system	<i>Roles performed by the manufacturing site subject to assessment, manufacturing processes conducted at the site, etc. (refer to section 4)</i>																																																															
Assessment area	Assessment details																																																															
1. MDSAP Assessment Results	※ The review results for Sections 4 through 8 of Annex 2, item (a) of Article 7 (1) 3 shall be indicated in the assessment table below. (The assessment results and determination criteria shall be applied in accordance with the same criteria as those in 9.4 Assessment Sheet)																																																															
	<table border="1"> <thead> <tr> <th rowspan="2">Category</th><th rowspan="2">Scope of assessment</th><th colspan="4">Assessment result</th></tr> <tr> <th>A</th><th>B</th><th>C</th><th>D</th></tr> </thead> <tbody> <tr> <td rowspan="8">Section 11</td><td>11.1 Process: Management</td><td></td><td></td><td></td><td></td></tr> <tr> <td>11.2 Process: Medical Device Approval and Manufacturing Site Registration</td><td></td><td></td><td></td><td></td></tr> <tr> <td>11.3 Process: Measurement, Analysis and Improvement</td><td></td><td></td><td></td><td></td></tr> <tr> <td>11.4 Process: Adverse Event Reporting and Issuance of Advisory Notices for Medical Devices</td><td></td><td></td><td></td><td></td></tr> <tr> <td>11.5 Process: Design and Development</td><td></td><td></td><td></td><td></td></tr> <tr> <td>11.6 Process: Production and Service Controls</td><td></td><td></td><td></td><td></td></tr> <tr> <td>11.7 Process: Purchasing</td><td></td><td></td><td></td><td></td></tr> <tr> <td>11.8 Other Findings</td><td></td><td></td><td></td><td></td></tr> <tr> <td>Section 12</td><td>Nonconformities (Identification of Nonconformities and Supporting Evidence)</td><td></td><td></td><td></td><td></td></tr> <tr> <td>Section 14</td><td>Follow-up Actions on Previous Nonconformities</td><td></td><td></td><td></td><td></td></tr> </tbody> </table>	Category	Scope of assessment	Assessment result				A	B	C	D	Section 11	11.1 Process: Management					11.2 Process: Medical Device Approval and Manufacturing Site Registration					11.3 Process: Measurement, Analysis and Improvement					11.4 Process: Adverse Event Reporting and Issuance of Advisory Notices for Medical Devices					11.5 Process: Design and Development					11.6 Process: Production and Service Controls					11.7 Process: Purchasing					11.8 Other Findings					Section 12	Nonconformities (Identification of Nonconformities and Supporting Evidence)					Section 14	Follow-up Actions on Previous Nonconformities				
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2. Device Master Record (DMR)	<i>Adequacy of the Device Master Records (DMRs) for core product of each product group among domestically manufactured or imported products (Article 7 (1) 3 (b))</i>																																																															
3. Requirements under the Medical Device Act	<i>Conformity with the regulatory requirements under the Medical Device Act (Article 7 (1) 3 (c))</i>																																																															
4. Assessment Result	<i>Overall Opinion of the Assessment Team</i>																																																															
Required Actions																																																																
No.	Relevant clause	Required actions																																																														
1																																																																
2																																																																
Assessment description																																																																

※ To be completed for conformity recognition assessments using the Medical Device Single Audit Program (9.4 Assessment Sheet omitted)

9.4 Assessment Sheet

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
4. Quality Management System 4.1 General Requirements 4.1.1	(a) The organization shall document its quality management system in accordance with the requirements of this GMP and applicable statutory requirements, and shall maintain the effectiveness of the quality management system. (b) The organization shall establish, implement, and maintain specific requirements, procedures, activities, or methods of operation that must be documented pursuant to this GMP and applicable statutory requirements. (c) The organization shall document the roles required to perform in accordance with applicable statutory requirements.					
4.1.2	The organization shall implement the following: 1) Determine the processes necessary for the quality management system, taking into account the roles performed by the organization, and apply those processes throughout the organization; 2) Apply a risk-based approach to the appropriate management of processes required for the quality management system; 3) Determine the sequence and interaction of those processes.					
4.1.3	For each processes of the quality management system, the organization shall perform the following: 1) Determine the criteria and methods necessary to ensure the effective operation and control of the processes; 2) Ensure the availability of information and resources necessary to support the operation and monitoring of the processes; 3) Take necessary actions to achieve planned results and maintain the effectiveness of the processes; 4) Monitor such processes and, where applicable, measure and analyze them; 5) Prepare and maintain the records necessary to demonstrate conformity with this GMP and compliance with applicable statutory requirements.					
4.1.4	The organization shall control quality management system processes in conformity with this GMP and applicable statutory requirements. Where such processes are to be changed, the organization shall perform the following: 1) Evaluate whether the change to the process affects the quality management system; 2) Evaluate whether the change to the process affects the medical devices produced under the quality management system; 3) Control such matters in accordance with this GMP and applicable statutory requirements.					
4.1.5	(a) Where the organization outsources any process that affects product conformity requirements, it shall ensure that such processes are monitored and controlled. (b) The organization shall retain responsibility for ensuring compliance with this GMP, customer requirements, and applicable statutory requirements for outsourced processes. (c) Control of outsourced processes shall be proportionate to the					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	associated risks and to the capability of the contracted supplier to meet the requirements under paragraph 7.4, and shall include a written quality agreement.					
4.1.6	(a) The organization shall document procedures for the validation of computer software used in the quality management system. (b) Such software shall be validated prior to initial use, and where applicable, shall also be validated following any changes to the software or its application. (c) Specific approaches and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software. (d) Records of these activities shall be maintained.					
4.2 Documentation Requirements 4.2.1 General Requirements	Documentation of the quality management system shall include the following: 1) Documented quality policy and quality objectives; 2) Quality manual; 3) Documented procedures and records required by this GMP; 4) Documents, including records, determined by the organization to be necessary to ensure the effective planning, operation, and control of its processes; 5) Any additional documentation required by applicable statutory requirements.					
4.2.2 Quality Manual	(a) The organization shall document a quality manual that includes the following: 1) The scope of the quality management system, including details of any exclusions or non-applications and their justification; 2) Documented procedures established for the quality management system and reference to such documents; 3) A description of the interactions between processes of the quality management system. (b) The quality manual shall briefly specify the structure of the documents used in the quality management system.					
4.2.3 Medical Device File	(a) For each medical device model or item, the organization shall establish and maintain one or more files containing or referencing documents generated to demonstrate conformity with this GMP and compliance with applicable statutory requirements. (b) The contents of the medical device file shall include, but not be limited to, the following: 1) A general description of the medical device, including its intended use/purpose and all instructions for use; 2) Product specifications; 3) Specifications and procedures for manufacturing, packaging, storage, handling, and distribution; 4) Measurement and monitoring procedures; 5) Installation requirements, where applicable; 6) Servicing procedures, where applicable.					
4.2.4 Control of	(a) Documents required by the quality management system shall be controlled. Records are a special type of document and					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
Documents	shall be controlled in accordance with Section 4.2.5. (b) Procedures necessary to control the following shall be documented: 1) Review and approval of documents for adequacy prior to issuance; 2) Review, update, and re-approval of documents as necessary; 3) Ensure that changes to documents and the current revision status are identified; 4) Ensure that applicable versions of documents are available at points of use; 5) Ensure that documents remain legible and readily identifiable; 6) Ensure that documents of external origin determined by the organization to be necessary for the planning and operation of the quality management system are identified and their distribution controlled; 7) Prevent deterioration or loss of documents; 8) Preventing the unintended use of obsolete documents and applying appropriate identification if they are retained for any purpose. (c) The organization shall ensure that document changes are reviewed and approved by the original approving authority or other authorized personnel who have access to the background information on which the organization's decisions are based. (d) The organization shall retain at least one copy of obsolete controlled documents for a period corresponding to the product's life cycle, which shall be no less than the retention period required for records.					
4.2.5 Control of Records	(a) Records shall be established and maintained to demonstrate the effective operation of the quality management system and conformity to requirements. (b) The organization shall document procedures defining the controls needed for the identification, storage, security and integrity, retrieval, retention period, and disposition of records. (c) The organization shall establish and implement methods to protect personal health information contained in records in accordance with applicable statutory requirements. (d) All records shall be easily legible, readily identifiable, and retrievable. Any changes to records shall remain identifiable. (e) The organization shall retain records for a period corresponding to the product's life cycle. This period shall be at least five years from the date of manufacture and at least two years after release to the market.					
5. Management Responsibility 5.1 Management Commitment	Top management shall demonstrate its commitment to the development and implementation of the quality management system and to maintaining its effectiveness through the following: 1) Communicate the importance of fulfilling customer requirements and applicable statutory requirements with the organization; 2) Establish the quality policy;					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	3) Ensure that quality objectives are established; 4) Conduct management reviews; 5) Ensure the availability of resources.					
5.2 Customer Focus	Top management shall ensure that customer requirements and applicable statutory requirements are determined and fulfilled.					
5.3 Quality Policy	Top management shall ensure that the quality policy: 1) Is appropriate to the purpose of the organization; 2) Includes a commitment to comply with requirements and to maintain the effectiveness of the quality management system; 3) Provides a framework for establishing and reviewing quality objectives; 4) Is communicated and understood within the organization; 5) Is reviewed for continuing suitability.					
5.4 Planning 5.4.1 Quality Objectives	(a) Top management shall ensure that the quality objectives include the necessary elements to meet applicable statutory requirements and product requirements, and that they are established at relevant functions and levels within the organization. (b) The quality objectives shall be measurable and shall be consistent with the quality policy.					
5.4.2 Planning of the Quality Management System	Top management shall ensure the following: 1) The planning of the quality management system is carried out not only to achieve the quality objectives but also to meet the requirements of Section 4.1; 2) The integrity of the quality management system is maintained when changes to the quality management system are planned and implemented.					
5.5 Responsibility, Authority, and Communication 5.5.1 Responsibility and Authority	(a) Top management shall ensure that responsibilities and authorities within the organization are defined, documented, and communicated. (b) Top management shall document the interrelationships of all personnel who manage, perform, and verify work affecting quality, and shall ensure the authority and independence necessary to perform such work.					
5.5.2 Quality Manager	Top management shall appoint a person within the organization who, irrespective of other responsibilities, has the authority and responsibility to perform the following: 1) Ensure that the processes necessary for the quality management system are documented; 2) Report to top management on the performance and effectiveness of the quality management system and on the need for improvement; 3) Ensure that awareness of applicable statutory requirements and quality management system requirements is promoted throughout the organization.					
5.5.3 Internal Communication	Top management shall ensure that appropriate communication processes are established within the					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	organization and that communication regarding the effectiveness of the quality management system is carried out.					
5.6 Management Review 5.6.1 General Requirements	(a) The organization shall document the procedure for management review. (b) Top management shall review the quality management system at documented planned intervals to ensure its continuing suitability, adequacy, and effectiveness. (c) Management reviews shall include an evaluation of the need for changes and opportunities for improvement in the quality management system, including the quality policy and quality objectives. (d) Records of management reviews shall be maintained.					
5.6.2 Review Inputs	The inputs to management review shall include, but not be limited to, the following: 1) Feedback; 2) Handling of complaints; 3) Reports to regulatory authorities; 4) Audits; 5) Monitoring and measurement of processes; 6) Monitoring and measurement of product; 7) Corrective action; 8) Preventive action; 9) Follow-up actions from previous management reviews; 10) Changes that could affect the quality management system; 11) Recommendations for improvement; 12) New or revised applicable statutory requirements.					
5.6.3 Review Outputs	The outputs of management review shall be recorded and shall include decisions and actions related to the reviewed inputs and the following: 1) Improvements needed to maintain the suitability, adequacy, and effectiveness of the quality management system and its processes; 2) Improvement of product related to customer requirements; 3) Changes needed to meet new or revised applicable statutory requirements; 4) Resource needs.					
6. Resource Management 6.1 Provision of Resources	The organization shall determine and provide the resources needed for: 1) Implementing the quality management system and maintaining its effectiveness; 2) Meeting applicable regulatory requirements and customer requirements.					
6.2 Human Resources	(a) Personnel performing work affecting product quality shall be competent on the basis of appropriate education, training, skills, and experience. (b) The organization shall establish the competencies required of personnel, provide the necessary training, and establish and					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	document processes to ensure personnel awareness. (c) The organization shall perform the following: 1) Determine the competencies needed for personnel performing work that affects product quality; 2) Provide training or take other actions to achieve or maintain the necessary competencies; 3) Evaluate the effectiveness of the actions taken; 4) Ensure that personnel are aware of the relevance and importance of their activities and how they contribute to the achievement of quality objectives; 5) Maintain appropriate records of education, training, skills, and experience.					
6.3 Infrastructure	(a) The organization shall document the infrastructure requirements necessary to ensure conformity to product requirements, prevent product mix-ups, and ensure orderly handling. Where applicable, infrastructure includes: 1) Buildings, workspace, and associated facilities; 2) Process equipment (hardware and software); 3) Supporting services such as transport, communication, or information systems. (b) Where maintenance activities of infrastructure, or lack thereof, may affect product quality, the organization shall document the maintenance requirements, including maintenance intervals. Where applicable, these requirements shall apply to equipment used for manufacturing, work environment control, and monitoring and measurement. (c) Records of such maintenance activities shall be maintained.					
6.4 Work Environment and Contamination Control 6.4.1 Work Environment	(a) The organization shall document the requirements for the work environment necessary to ensure conformity to product requirements. (b) Where work environment conditions may have an adverse effect on product quality, the organization shall document the requirements for the work environment and procedures for monitoring and controlling such conditions. (c) The organization shall perform the following requirements: 1) Where personnel may come into contact with the product or the work environment in a manner that could affect the safety or performance of medical devices, requirements for personnel health, cleanliness, and clothing shall be documented. 2) All personnel who work temporarily under special environmental conditions shall be competent or shall be supervised by competent personnel.					
6.4.2 Contamination Control	(a) Where applicable, the organization shall plan and document methods for controlling products that are contaminated or potentially contaminated, in order to prevent contamination of the work environment, personnel, or products. (b) For sterilized medical devices, the organization shall document requirements for contamination control related to microorganisms or particulates and shall maintain the required cleanliness during assembly or packaging processes.					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
7. Production Realization 7.1 Planning of Production Realization	(a) The organization shall plan and develop the processes needed for production realization. Planning of production realization shall be consistent with the other process requirements of the quality management system. (b) The organization shall document one or more processes for risk management during production realization, and records of risk management activities shall be maintained. (c) Where applicable, the organization shall determine the following in planning production realization: 1) Quality objectives and requirements for the product; 2) The need to establish and document processes, and to ensure the availability of specific resources for the product, including infrastructure and work environment; 3) Specific verification, validation, monitoring, measurement, testing and inspection, handling, storage, distribution, and traceability activities required for the product, along with the criteria for product acceptance; 4) Records necessary to demonstrate that production realization processes and their outputs meet requirements. (d) The outputs of such planning shall be documented in a form appropriate to the organization's method of operation.					
7.2 Customer-Related Processes 7.2.1 Determination of Requirements Related to the Product	The organization shall determine the following: 1) Requirements specified by the customer, including those related to delivery and post-delivery activities; 2) Requirements not stated by the customer but necessary for known specified or intended use; 3) Applicable statutory requirements related to the product; 4) User training necessary to ensure stated performance and safe use of the medical device; 5) Any additional requirements determined by the organization.					
7.2.2 Review of Requirements Related to the Product	(a) The organization shall review the requirements related to the product. This review shall be conducted prior to the organization's commitment to supply the product to the customer. 1) The requirements for the product are defined and documented; 2) Any contract or order requirements differing from those previously expressed are resolved; 3) Applicable statutory requirements are met; 4) User training determined under Section 7.2.1 is feasible or planned to be feasible; 5) The organization has the capability to meet the defined requirements. (b) Records of the results of the review and any actions arising from the review shall be maintained. (c) Where the customer does not provide documented requirements, the organization shall confirm the customer requirements prior to acceptance. (d) When product requirements are changed, the organization shall amend the relevant documents and ensure that relevant personnel are made aware of the changed requirements.					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
7.2.3 Communication	(a) The organization shall plan and document the methods for communicating with customers regarding: 1) Product information; 2) Handling inquiries, including amendments, contracts, or orders; 3) Customer feedback, including complaints; 4) Advisory notices. (b) The organization shall communicate with regulatory authorities in accordance with applicable statutory requirements.					
7.3. Design and Development 7.3.1 General	The organization shall document procedures for design and development.					
7.3.2 Design and Development Planning	(a) The organization shall plan and control the design and development of the product. Where applicable, the design and development plan shall be maintained and updated as design and development progress. (b) The organization shall document the following in the course of design and development planning: 1) The stages of design and development; 2) The reviews required at each stage of design and development; 3) The verification, validation, and design transfer activities appropriate to each stage of design and development; 4) The responsibilities and authorities for design and development; 5) The methods to ensure traceability between design and development inputs and outputs; 6) The necessary resources, including personnel competence.					
7.3.3 Design and Development Inputs	(a) The organization shall determine and maintain records of inputs relating to product requirements. These inputs shall include: 1) Functional, performance, usability, and safety requirements necessary for the intended use; 2) Applicable statutory requirements and standards; 3) Applicable risk management outputs; 4) Information derived from previous similar designs, where applicable; 5) Other requirements essential for the design and development of the product and process. (b) Such inputs shall be reviewed and approved for adequacy. (c) Product requirements shall be clear, unambiguous, verifiable or validatable, and shall not conflict with other requirements.					
7.3.4 Design and Development Outputs	(a) The design and development outputs shall: 1) Meet the design and development input requirements; 2) Provide appropriate information for purchasing, production, and service provision; 3) Include or reference the criteria for product acceptance; 4) Specify the characteristics of the product that are essential					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	for safe and proper use. (b) The outputs of the design and development process shall be provided in a form that enables verification against the design and development inputs and shall be approved prior to release. (c) Records of the design and development outputs shall be maintained.					
7.3.5 Design and Development Review	(a) Systematic reviews of the design and development shall be conducted at appropriate stages in accordance with planned and documented methods for the purpose of: 1) Evaluating the ability of the design and development results to meet the requirements; 2) Identifying and proposing any necessary actions. (b) Personnel participating in such reviews shall include not only the persons responsible for the design and development stage under review, but also other relevant experts. (c) Records of the results of the reviews and any necessary actions shall be maintained and shall include identification of the design under review, the personnel participating in the review, and the dates of the review.					
7.3.6 Design and Development Verification	(a) Design and development verification shall be performed in accordance with planned and documented methods to ensure that the design and development outputs meet the input requirements. (b) The organization shall document the verification plan, including the verification methods, acceptance criteria, and, where applicable, statistical techniques with justification for sample size. (c) If the intended use requires the medical device to be connected to or interfaced with another medical device, the verification shall include confirmation that the design outputs meet the design inputs when so connected or interfaced. (d) Records of the verification results, conclusions, and any necessary actions shall be maintained.					
7.3.7 Design and Development Validation	(a) Design and development validation shall be performed, in accordance with planned and documented methods, to ensure that the resulting product meets the requirements for the intended use or specified application. (b) The organization shall document the validation plan, including the validation methods, acceptance criteria, and, where applicable, justification for sample size. (c) Design validation shall be performed on core product. Core product includes initial production units, batches, or their equivalents. The rationale for the selection of the product used for validation shall be recorded. (d) As part of design and development validation, the organization shall perform clinical evaluation in accordance with applicable statutory requirement. (e) Medical devices used for clinical evaluation shall not be considered as released for customer use. (f) If the intended use requires the medical device to be connected to or interfaced with another medical device, the validation shall include confirmation that the product requirements for the specified application or intended use are met when so					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	connected or interfaced. (g) Validation shall be completed prior to the product's release for customer use. (h) Records of the results of validation, the conclusions reached, and any necessary actions shall be maintained.					
7.3.8 Design and Development Transfer	(a) The organization shall document procedures for the transfer of design and development outputs to manufacturing. These procedures shall ensure that the design and development outputs have been verified as suitable for manufacturing before becoming the final production specifications and that manufacturing capability can meet product requirements. (b) Records of the results and conclusions of the transfer shall be maintained.					
7.3.9 Control of Design and Development Changes	(a) The organization shall document procedures for controlling design and development changes. The organization shall determine the significance of changes to the function, performance, usability, safety, applicable statutory requirements, and intended use of the medical device. (b) Design and development changes shall be identified. Prior to implementation, the changes shall be: 1) Reviewed; 2) Verified; 3) Validated, where applicable; 4) Approved. (c) The review of design and development changes shall include evaluation of the effects of the changes on constituent parts, products in manufacturing or already delivered, risk management inputs or outputs, and the production realization processes. (d) Records of the changes, the review of the changes, and any necessary actions shall be maintained.					
7.3.10 Design and Development File	(a) The organization shall maintain a design and development file for each medical device model or product. (b) This file shall contain or reference the records generated to demonstrate conformity with the design and development requirements and the records of design and development changes.					
7.4. Purchasing 7.4.1 Purchasing Process	(a) The organization shall document procedures to ensure that purchased product conforms to specified requirements. (b) The organization shall establish criteria for the evaluation and selection of suppliers. The criteria shall be based on: 1) The supplier's ability to provide product that meets the organization's requirements; 2) The supplier's performance; 3) The effect of the purchased product on the quality of the medical device; 4) Proportionality to risks associated with the medical device. (c) The organization shall plan monitoring and re-evaluation of suppliers. The performance of suppliers in meeting purchased product requirements shall be monitored. The results of					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	monitoring shall be provided as input to the supplier re-evaluation process. (d) Non-fulfillment of purchasing requirements shall be addressed with the supplier in proportion to the risks associated with the purchased product and compliance with applicable statutory requirements. (e) Records of the results of evaluation, selection, monitoring, and re-evaluation of suppliers and of any necessary actions arising from these activities shall be maintained.					
7.4.2 Purchasing Information	(a) Purchasing information shall describe or reference the product to be purchased, including, where appropriate: 1) Product specifications; 2) Requirements for product approval, procedures, processes, and equipment; 3) Requirements for the qualification of supplier personnel; 4) Quality management system requirements. (b) The organization shall ensure the adequacy of specified purchasing requirements prior to communication with the supplier. (c) Purchasing information shall include, where appropriate, a written agreement that the supplier notify the organization of any changes to the product prior to implementation if such changes may affect the ability of the product to meet specified purchasing requirements. (d) The organization shall maintain the relevant purchasing information as documents and records to the extent that traceability is required in accordance with Section 7.5.9.					
7.4.3 Verification of Purchased Product	(a) The organization shall establish and implement the inspection or other activities necessary to ensure that purchased product meets specified requirements. The extent of verification activities shall be based on the results of supplier evaluation and shall be proportional to the risks associated with the purchased product. (b) When the organization becomes aware of any changes to the purchased product, it shall determine whether such changes affect the production realization processes or the medical device. (c) If the organization or its customer intends to verify the purchased product at the supplier's premises, the organization shall specify in the purchasing information the intended verification arrangements and the method of product release. (d) Records of verification shall be maintained.					
7.5 Production and Service Provision 7.5.1 Control of Production and Service Provision	(a) Production and service provision shall be planned, carried out, monitored, and controlled to ensure that product conforms to specifications. Where appropriate, production control shall include, but not be limited to: 1) Documentation of procedures and methods for production control; 2) Qualification of infrastructure; 3) Implementation of monitoring and measurement of process parameters and product characteristics; 4) Availability and use of monitoring and measuring equipment;					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	5) Implementation of activities specified for labeling and packaging operations; 6) Implementation of product release, delivery, and post-delivery activities. (b) The organization shall provide traceability to the extent required in accordance with Section 7.5.9 and shall establish and maintain records by medical device or by medical device batch that enable identification of the quantity produced and approved for distribution. These records shall be verified and approved.					
7.5.2 Cleanliness of Product	The organization shall document requirements for cleanliness of product or contamination control of product in the following cases. Provided, however, that where the product is cleaned in accordance with 1) or 2), the requirements of 6.4.1 do not apply prior to the cleaning process. 1) Product that is cleaned by the organization prior to sterilization or use; 2) Product supplied non-sterile that requires a cleaning process prior to sterilization or use; 3) Product that cannot be cleaned prior to sterilization or use and for which cleanliness is of significant importance for use; 4) Product supplied non-sterile for which cleanliness is of significant importance for use; 5) Removal of process agents used during manufacturing from the product.					
7.5.3 Installation Activities	(a) Where applicable, the organization shall document the acceptance criteria for installation of the medical device and for installation verification. (b) Where installation by parties other than the organization or the supplier is permitted by the customer, the organization shall provide documented requirements for installation of the medical device and for installation verification. (c) Records of installation of the medical device and of installation verification performed by the organization or the supplier shall be maintained.					
7.5.4 Servicing Activities	(a) Where servicing of the medical device is a specified requirement, the organization shall document, where necessary, servicing procedures, reference materials, and reference measurements for performing servicing activities and for verifying that the specified requirements are met. (b) The organization shall analyze records of servicing activities performed by the organization or the supplier for the purpose of: 1) Determining whether the information should be handled as a complaint; 2) Providing, where applicable, input to the improvement processes. (c) Records of servicing activities performed by the organization or the supplier shall be maintained.					
7.5.5 Specific	The organization shall maintain records of the parameters of the sterilization process used for each sterilization batch. Sterilization					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
Requirements for Sterile Medical Devices	records shall be traceable to each production batch of the medical device.					
7.5.6 Validation of Processes for Production and Service Provision	(a) The organization shall validate any processes for production and service provision where the resulting output cannot be verified by subsequent monitoring or measurement. Validation shall include all processes where deficiencies become apparent only after the product is used or the service is delivered. (b) Validation shall demonstrate the ability of the processes to achieve the planned results consistently. (c) The organization shall document procedures for process validation that include: 1) Defined criteria for review and approval of the processes; 2) the suitability of equipment and personnel; 3) the use of specific methods, procedures, and acceptance criteria; 4) Statistical techniques, where applicable, including justification for sample size; 5) Requirements for records; 6) Revalidation, including the criteria for revalidation; 7) Approval of changes to the process. (d) The organization shall document procedures for validation of the application of computer software used in production and service provision. Such software applications shall be validated prior to initial use and, where appropriate, validated after changes or software applications have been made. The specific approach and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software, including the impact on product specifications and product performance. (e) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.					
7.5.7 Specific Requirements for Validation of Sterilization and Sterile Packaging Processes	(a) The organization shall document procedures for validation of the sterilization processes and the sterile barrier systems. (b) The sterilization processes and the sterile barrier systems shall be validated prior to initial use and, where applicable, prior to changes to the product or the process. (c) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.					
7.5.8 Identification	(a) The organization shall document procedures for product identification and shall identify the product by suitable means throughout production realization. (b) The organization shall identify the status of the product with respect to monitoring and measurement requirements throughout production realization. The organization shall maintain identification of product status to ensure that only product that has passed the required tests and inspections, or that has been released under an approved concession, is dispatched, used, or installed during all phases of production,					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	storage, installation, and servicing. (c) Where required by applicable statutory requirements, the organization shall document a system for assigning a unique device identification (UDI) to the medical device. (d) The organization shall document procedures to ensure that medical devices returned to the organization are identified and distinguished from conforming product.					
7.5.9 Traceability 7.5.9.1 General Requirements	The organization shall document procedures for traceability. These procedures shall define the scope of traceability and the records to be maintained in accordance with applicable statutory requirements.					
7.5.9.2 Specific Requirements for Medical Devices Subject to Traceability	(a) Where components, materials, or working environment conditions used could cause the medical device not to meet specified safety and performance requirements, records required for traceability shall include records of the components, materials, and working environment conditions used. (b) The organization shall require distributors or retailers to maintain records of sales of the medical device and to make such records available for investigation to ensure product traceability. (c) The organization shall maintain records of the name and address of the consignee for released product.					
7.5.10 Customer Property	Where customer property provided for use or incorporation into the product is under the manufacturer's control or is being used by the manufacturer, the organization shall identify, verify, protect, and safeguard such property. If customer property is lost, damaged, or found to be unsuitable for use, this shall be reported to the customer and records shall be maintained.					
7.5.11 Preservation of Product	(a) The organization shall document procedures to preserve product conformity to requirements during processing, storage, handling, and distribution. (b) Preservation shall also apply to components of the medical device. (c) When exposed to expected conditions and hazards during processing, storage, handling, and distribution, the organization shall protect the product from alteration, contamination, or damage by the following means: 1) Designing and constructing appropriate packaging and transportation containers; 2) Documenting requirements for any special conditions needed where packaging alone does not provide preservation. (d) Where special conditions are necessary, such conditions shall be controlled and recorded.					
7.6 Control of Monitoring and Measuring Equipment	(a) The organization shall determine the monitoring and measurement activities to be performed, and the monitoring and measuring equipment required, to demonstrate that the product meets specified requirements. (b) The organization shall document procedures to ensure that					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	monitoring and measurement activities are carried out in a manner consistent with the monitoring and measurement requirements. (c) Where necessary to ensure valid results, measuring equipment shall: 1) Be calibrated or verified, or both, at specified intervals or prior to use, against measurement standards traceable to international or national measurement standards; Where no such standards exist, the basis used for calibration or verification shall be recorded. 2) Be adjusted or re-adjusted as necessary. Such adjustment or re-adjustment shall be recorded. 3) Be identified to enable the calibration status to be determined; 4) Be safeguarded from adjustments that would invalidate the measurement result; 5) Be protected from damage and deterioration during handling, maintenance, and storage. (d) The organization shall calibrate or verify the equipment in accordance with documented procedures. (e) When equipment is found not to conform to requirements, the organization shall assess the validity of previous measurement results. The organization shall take appropriate action regarding the equipment and any product affected. Records of the results of calibration and verification shall be maintained. (f) When computer software is used in monitoring or measuring the requirements specified, the organization shall document procedures for validation of the application of computer software. The software shall be validated prior to initial use and, where appropriate, revalidated after changes to the software or its application. The specific approach and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software, including the impact on product specifications and product performance. (g) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.					
8. Measurement, Analysis and Improvement 8.1 General Requirements	(a) The organization shall plan and implement the monitoring, measurement, analysis, and improvement processes needed: 1) To demonstrate conformity of the product; 2) To ensure conformity of the quality management system; 3) To maintain the effectiveness of the quality management system. (b) This shall include determination of the methods, including statistical techniques, and the extent of their use.					
8.2 Monitoring and Measurement 8.2.1 Feedback	(a) As one of the measurements of the effectiveness of the quality management system, the organization shall collect and monitor information relating to whether customer requirements have been met. (b) The methods for obtaining and using this information shall be documented. (c) The organization shall document procedures for the feedback					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	process. The feedback process shall include provisions for gathering data from production as well as post-production activities. (d) Information gathered in the feedback process shall be used as potential input to risk management in order to monitor and maintain the product requirements and the production realization or improvement processes. (e) Where applicable statutory requirements require the organization to collect information from post-production activities, review of that information shall be part of the feedback process.					
8.2.2 Handling of Complaints	(a) The organization shall document procedures for timely handling of complaints in accordance with applicable statutory requirements. These procedures shall include, at a minimum, the following requirements and responsibilities: 1) Receiving and recording information; 2) Evaluating information to determine whether feedback constitutes a complaint; 3) Investigating complaints; 4) Determining whether the information must be reported to the appropriate regulatory authorities; 5) Handling complaint-related product; 6) Determining the need for correction or corrective action. (b) If any complaint is not investigated, the justification for not conducting the investigation shall be documented. All results of corrections and corrective actions arising from the complaint handling process shall be documented. (c) Where an investigation determines that activities external to the organization caused the complaint, relevant information shall be exchanged between the organization and the external parties. (e) Records of complaint handling shall be maintained.					
8.2.3 Reporting to Regulatory Authorities	(a) Where complaints are subject to adverse event reporting or advisory notice reporting in accordance with applicable statutory requirements, the organization shall document procedures for reporting such complaints to the regulatory authorities. (b) Records of reports submitted to regulatory authorities shall be maintained.					
8.2.4 Internal Audit	(a) The organization shall conduct internal audits at planned intervals to determine whether the quality management system: 1) Conforms to the planned and documented (established, implemented, and maintained) arrangements, the requirements of this GMP, the quality management system requirements established by the organization, and the applicable statutory requirements; 2) Is effectively implemented and maintained. (b) The organization shall document procedures that define the responsibilities and requirements for planning and conducting audits, and for recording and reporting audit results. (c) The audit program shall be planned, taking into consideration					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	the status and importance of the processes and areas to be audited, as well as the results of previous audits. The audit criteria, scope, frequency, and methods shall be defined and recorded. Auditors shall be selected and audits conducted to ensure objectivity and impartiality of the audit process. Auditors shall not audit their own work. Records of the audit and audit results, including the processes and areas audited and the conclusions reached, shall be maintained. (d) Management responsible for the areas being audited shall ensure that necessary corrections and corrective actions are taken without undue delay to eliminate detected nonconformities and their causes. Follow-up activities shall include the verification of the actions taken and the reporting of the results of verification.					
8.2.5 Monitoring and Measurement of Processes	The organization shall apply suitable methods for monitoring and, where applicable, measurement of the quality management system processes. These methods shall demonstrate the ability of the processes to achieve the planned results. When the planned results are not achieved, appropriate correction and corrective action shall be taken to ensure conformity of the product.					
8.2.6 Monitoring and Measurement of Product	(a) The organization shall monitor and measure the characteristics of the product to verify that product requirements have been met. This shall be carried out at appropriate stages of the production realization process in accordance with the planned and documented arrangements and documented procedures. (b) Records demonstrating conformity with the acceptance criteria shall be maintained. The identity of the person authorizing product release shall be recorded. Where applicable, the test equipment used for measurement activities shall be identified and recorded. (c) Product shall not be released, nor shall service be provided, until the planned and documented activities have been satisfactorily completed. (d) For medical devices subject to traceability, the organization shall identify and record the identity of personnel performing all inspections or tests.					
8.3 Control of Nonconforming Product 8.3.1 General	(a) The organization shall ensure that nonconforming product is identified and controlled to prevent its unintended use or delivery. The organization shall document procedures that define the controls and related responsibilities and authorities for dealing with nonconforming product, including identification, documentation, segregation, evaluation, and disposition. (b) Evaluation of nonconformities shall include investigation into any external party responsible for the nonconformity and determination of whether notification is required. (c) Records of the nonconformity, including the evaluation, investigation, the basis for the decisions made, and all actions taken in response, shall be maintained.					
8.3.2 Actions in Response to Nonconforming	(a) The organization shall deal with nonconforming product in one or more of the following ways: 1) Taking action to eliminate the detected nonconformity;					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
Product Detected Prior to Delivery	2) Taking action to preclude its original intended use or application; 3) Authorizing its use, release, or acceptance under concession. (b) The organization shall ensure that concessions are granted only when justified, approved, and compliant with applicable statutory requirements. Records shall be maintained to identify acceptance under concession and the personnel authorizing the concession.					
8.3.3 Actions in Response to Nonconforming Product Detected After Delivery	(a) When nonconforming product is detected after delivery or use, the organization shall take appropriate action regarding the effects or potential effects of the nonconformity. Records of the actions taken shall be maintained. (b) The organization shall document procedures for issuing advisory notices in accordance with applicable statutory requirements. These procedures shall be capable of being implemented at any time. Records of the actions related to advisory notices shall be maintained.					
8.3.4 Rework	(a) The organization shall perform rework in accordance with documented procedures that take into account any potential adverse effects on the product. These procedures shall be subject to the same review and approval as the original procedures. (b) After completion of the rework, the product shall be verified to ensure that it meets the applicable acceptance criteria and statutory requirements. (c) Records of the rework shall be maintained.					
8.4 Analysis of Data	(a) The organization shall document procedures to determine, collect, and analyze appropriate data to demonstrate the suitability, adequacy, and effectiveness of the quality management system. These procedures shall include the determination of appropriate methods, including statistical techniques and the extent of their application. (b) Analysis of data shall include data generated from the results of monitoring and measurement and from other relevant sources, and shall include, at a minimum, the following inputs: 1) Feedback; 2) Conformity to product requirements; 3) Process and product characteristics and trends, including opportunities for improvement; 4) Suppliers; 5) Audits; 6) Service reports, where applicable. (c) Where analysis of data shows that the quality management system is not suitable, adequate, or effective, the organization shall use this analysis as input for improvement as required in 8.5. (d) Records of the results of data analysis shall be maintained.					
8.5 Improvement 8.5.1 General	The organization shall identify and implement any changes necessary to ensure and maintain the ongoing suitability, adequacy, and effectiveness of the quality management system, as well as the safety and performance of medical					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
Requirements	devices, through the use of the quality policy, quality objectives, audit results, post-marketing surveillance, data analysis, corrective and preventive actions, and management review.					
8.5.2 Corrective Action	(a) The organization shall take action to eliminate the causes of nonconformities in order to prevent their recurrence. (b) Corrective actions required shall be taken without undue delay. Corrective actions shall be proportionate to the effects of the nonconformities encountered. (c) Documented procedures shall define requirements for: 1) Reviewing nonconformities (including customer complaints); 2) Determining the causes of nonconformities; 3) Evaluating the need for action to ensure that nonconformities do not recur; 4) Planning and documenting the required actions and implementing them, including document changes where applicable; 5) Verifying that corrective actions do not adversely affect the safety and performance of the medical device or compliance with applicable statutory requirements; 6) Reviewing the effectiveness of the corrective actions taken. (d) Records of all investigation results and actions taken shall be maintained.					
8.5.3 Preventive Action	(a) The organization shall determine preventive actions to eliminate the causes of potential nonconformities in order to prevent their occurrence. Preventive actions shall be proportionate to the potential impacts of such issues. (b) Documented procedures shall define requirements for: 1) Determining potential nonconformities and their causes; 2) Evaluating the need for action to prevent the occurrence of nonconformities; 3) Planning and documenting the required actions and determining and implementing such actions, including document changes where applicable; 4) Verifying that preventive actions do not adversely affect the safety and performance of the medical device or compliance with applicable statutory requirements; 5) Reviewing the effectiveness of preventive actions taken, where applicable. (c) Records of the results of all investigations and actions taken shall be maintained.					

1. Assessment Sheet

- (a) “A (Conforming)” means that the requirements prescribed in the Good Manufacturing Practice (GMP) are recognized as being met.
- (b) “B (Additional action required)” means that the requirements prescribed in the Good Manufacturing Practice (GMP) are not being fully met, or that although the requirements are being met, the evidence of conformance, feasibility of implementation, or adequacy of documentation is insufficient, thereby requiring improvement or supplementary actions.
- (c) “C (Nonconforming)” means that no action has been taken in response to “Additional action required,” or that a violation of statutes related to medical devices has occurred.
- (d) “D (Not applicable)” means that the requirement prescribed in the Good Manufacturing Practice (GMP) does not apply.

2. Determination Criteria

(a) Conforming

- 1) Where all items under each review criterion are rated “A (Conforming).”
- 2) Where all other items under each review criterion are rated “A (Conforming),” and certain sections—specifically Sections 4.1 through 6.3 (excluding Section 4.2.3) and Section 8.2.4—are rated “B (Additional action required).” Provided, however, that this shall not apply where the same item was rated “B (Additional action required)” or “C (Nonconforming)” in the previous assessment.

(b) Additional action required

Where all other items under each assessment criterion are rated “A (Conforming),” and some items are rated “B (Additional action required)” (provided, however, that this does not apply to cases under item (a) 2)).

(c) Nonconforming

- 1) Where the required actions have not been submitted or have not been completed.
- 2) Where one or more items are rated “C (Nonconforming)” in the evaluation sheet.

[Annex 3]**Medical Device GMP Product Groups**

(Related to Articles 4, 6, and 7)

No.	Product Group	Categories
1	General Equipment for Medical Treatment	A01000 Operating and Treatment Table
		A02000 Bed for Medical Use
		A03000 Medical Light and Lamps
		A68000 Dental Unit and Chair
		A88000 Treatment Table for Ear, Nose and Throat
		A89000 Ophthalmic Instrument Table and Chair
		A04000 Medical Sterilizing Apparatus
		A05000 Medical Water Sterilizers
2	Surgical Operation System	A06000 Anesthesia Apparatus
		A39000 Aspirators for Medical Use
		A35000 Electrosurgical and Other Surgical Devices
		A36000 Cryosurgery Device
		A40000 Pneumothorax and Pneumoperitoneum Apparatus
3	Laser Surgical Devices	A37000 Laser Apparatus for Medical Use
		A15500 Laser Protective Device
4	Chamber for Medical Purpose	A08000 Medical Chamber
		A34000 Thermostats for Medical Use
5	Life Support System	A07000 Respiratory Apparatus
		A10000 Neonatal Incubator
6	Device for Replacing Function of Internal Organ (I)	A09000 Artificial Internal Organ Apparatus
7	Device for Replacing Function of Internal Organ (II)	A09000 Artificial Internal Organ Apparatus (Class 3,4)
8	Diagnostic Imaging System(I)	A11000 Diagnostic X-ray System
		A12000 Non-ionization Diagnostic Device
		A13000 Radiologic Device
9	Diagnostic Imaging System (II)	A14000 Film Developer for Medical Use
		A87000 Film Viewing Devices for Medical Use
		B01000 Radiographic Supplies
		A15000 Radiation Protective Device

No.	Product Group	Categories
10	Physical Devices for Medical Use (I)	A16000 Physical Devices for Medical Use
11	Physical Devices for Medical Use (II)	A16000 Physical Devices for Medical Use (Class 3,4)
12	Machine or Instrument for Generating Electric Stimulation, Medical Use	A83000 Electric Stimulator for Medical Use by Persona
		A85000 Magnetic Induction Apparatus for Medical Use
		A67000 Medical Device for Orthopedics and Restoration
		A82000 Vibrators
13	Cardiovascular Devices (I)	A17000 Cardiovascular Devices
14	Cardiovascular Devices (II)	A17000 Cardiovascular Devices (Class 3,4)
15	Urology Devices (I)	A18000 Urology Devices
16	Urology Devices (II)	A18000 Urology Devices (Class 3,4)
17	Tissue Processing Device	A33000 Tissue Processing Device
		A91000 Medical Cell and Tissue Processing Device
18	Instruments for Ligature and Suture (I)	A38000 Instruments for Ligature and Suture
19	Instruments for Ligature and Suture (II)	A38000 Instruments for Ligature and Suture (Class 3,4)
20	Patient Transport Vehicle	A19000 Patient Transport
21	Probe and Sound for Medical Use (I)	A58000 Medical Informant
22	Probe and Sound for Medical Use (II)	A58000 Medical Informant (Class 3,4)
23	Physiological Monitoring Device (I)	A20000 Stethoscope
		A21000 Clinical Thermometric System
		A28000 Eye Testing Instruments
		A29000 Hearing Testing Instruments
		B06000 Test Chart for Visual Acuity and Color Blindness (Class 1)
24	Physiological Monitoring Device (II)	A23000 Sphygmomanometers and Sphygmographs
		A25000 Body Fluid Testing Apparatus (Class 1)
		A26000 Visceral Function Testing Instruments
		A30000 Perception and Organs Diagnostic Devices
		A27000 Respiratory Function Testing Apparatus
25	Measuring and Introducing Instrument (I)	A64000 Measuring and Introducing Instrument
26	Measuring and Introducing Instrument (II)	A64000 Measuring and Introducing Instrument (Class 4)
27	Medical Speculum (I)	A31000 Speculums for Medical Use
28	Medical Speculum (II)	A31000 Speculums for Medical Use (Class 4)

No.	Product Group	Categories
29	Machine or Instrument for Medical Treatment (I)	A41000 Knives for Medical Use
		A42000 Scissors for Medical Use
		A43000 Curettes for Medical Use
		A44000 Clamp for Medical Use
		A45000 Forceps for Medical Use
		A46000 Saw for Medical Use
		A47000 Chisel for Medical Use
		A48000 Raspatories for Medical Use
		A49000 Mallet for Medical Use
		A80000 Hernia Supporters
		A62000 Filling Instruments for Medical Use
		A63000 Depressors for Medical Use
30	Machine or Instrument for Medical Treatment (II)	A50000 File for Medical Use
		A51000 Lever for Medical Use
		A52000 Snare for Medical Use
		A55000 Puncturing, Abrasion, Perforating Instrument for Medical Use
		A56000 Wound Retractors and Speculums
		A59000 Dilator and Expander for Medical Use
		A60000 Applicator for Medical Use
		A61000 Dispenser and Mixing Instrument
		A65000 Douche Instruments for Medical Use
		A81000 Inhalators for Medical Use
31	Syringe or Needle	A53000 Needle for Syringe and Puncture
		A54000 Syringes
		A84000 Acupuncture and Moxibustion Apparatus
32	Tube and Catheter for Medical Use (I)	A57000 Tube and Catheter for Medical Use
33	Tube and Catheter for Medical Use (II)	A57000 Tube and Catheter for Medical Use (Class 3,4)
34	Blood Donor or Transfusion and Biopsy Set (I)	A66000 Blood Donor or Transfusion and Biopsy Set
35	Blood Donor or Transfusion and Biopsy Set (II)	A66000 Blood Donor or Transfusion and Biopsy Set (Class 3,4)
36	Infusion Instruments (I)	A79000 Infusion Instruments
37	Infusion Instruments (II)	A79000 Infusion Instruments (Class 3,4)

No.	Product Group	Categories
38	Machine or Device for Dental Treatment	A69000 Dental Engine
		A70000 Broaches for Dental Use
		A71000 Explorers for Dental Use
		A72000 Moisture-excluding Instruments for Dental Use
		A73000 Impression Taking and Articulating Instruments
		A74000 Vulcanizers and Curing Units for Dental Use
39	Sight Corrective Spectacles	A76000 Sight Corrective Spectacles
40	Ophthalmic Lens (I)	A77000 Ophthalmic Lens
41	Ophthalmic Lens (II)	A77000 Ophthalmic Lens (Class 3,4)
42	Hearing Aid	A78000 Hearing Aid
43	Equipment Generating Medical Substance	A86000 Medicinal Substance-producing Equipment
44	Suture and Ligature	B02000 Suture and Ligature
45	Suture and Ligature	B02000 Suture and Ligature (Class 3,4)
46	Orthopedic Materials (Internal Total etc.)	B03000 Orthopedic Materials (except for Orthopedic Materials II)
47	Orthopedic Materials	B03190, B03240, B03260, B03280 - B03400
48	Interbody Implants for Medical Purpose	C18000 Maxillofacial Plastic Material
		C19000 Maxillary Bone Fixation Material
		C21000 Implant, Endosseous, Hand Instrument
49	Dental Implant System (I)	C20000 Dental Implant System
50	Dental Implant System (II)	C20000 Dental Implant System (Class 3,4)
51	Substitute of Human Tissue or Body Function	B04000 Human Tissue and Organ Substitute
52	Dental Bone Graft Material	C22000 Dental Bone Graft Material
53	Guided Bone and Tissue Regeneration Material	C23000 Guided Bone and Tissue Regeneration Material
54	Splints	B05000 Splints
55	Surgical Supplies	B07000 Surgical Supplies
56	Dressing	B07070 Dressing
57	Condom	B08000 Condom

No.	Product Group	Categories
58	Contraceptive Device	B09000 Contraceptive Device
59	Dental Alloy	C01000 Dental Processing Alloy
		C02000 Dental Casting Alloy
		C03000 Metal-Ceramic Alloy
		C04000 Soldering Alloy
		C05000 Fabricated Alloy
60	Other Materials for Dental Treatment	C06000 Direct Restorative Material
		C07000 Esthetic Prosthetic Material
		C08000 Denture Making Material/Denture Material
		C09000 denture material
		C11000 Dental Adhesive Cement
		C12000 Dental Bonding Agent
		C10000 Material for Root Canal Therapy
		C13000 Dental Impression Material
		C14000 Dental Wax
		C16000 Preventive Dental Material
		C17000 Orthodontic Material
		C24000 dental Diagnosis Material
		C25000 Prosthetic Adhesive Remover
		C26000 Other Prosthetic Material
		C27000 Other Restorative-Endodontic Material
61	Medical Device for Ubiquitous Healthcare (I)	A90000 Medical Device for Ubiquitous Healthcare
62	Medical Device for Ubiquitous Healthcare (II)	A90000 Medical Device for Ubiquitous Healthcare
63	Deleted	
64	Deleted	

1. The categories numbered 1 through 62 shall be classified according to the medical device middle-category as prescribed in Article 3 of the Medical Device Act and Article 2 of the Enforcement Rule of the same Act.

[Annex 4]

Entities for Conformity Recognition Assessments

(Related to Article 6 and 8)

1. Conformity recognition assessments shall, pursuant to Article 4, be classified into initial assessments, additional assessments, assessments for change, and periodic assessments.
2. ‘Single-agency (assessment)’ means an assessment conducted solely by the head of audit organization, and “joint (assessment)” means a conformity recognition assessment conducted jointly by the Commissioner of Regional Office of Food and Drug Safety (hereinafter referred to as the “Commissioner of Regional Office”) and the head of audit organization.
3. The head of the audit organization shall conduct the conformity recognition assessments as a “single-agency assessment” under subparagraph 1 for manufacturing sites of Class I, Class II, and Class III domestically manufactured or imported medical devices, as well as manufacturing sites for medical devices for export.
4. The Commissioner of Regional Office and the head of the audit organization may conduct the conformity recognition assessments as a “joint assessment” under subparagraph 1 for manufacturing sites of Class IV domestically manufactured or imported medical devices. Provided, however, that assessments for change and periodic assessments (limited to document review) for such Class IV manufacturing sites, as well as combined assessments under subparagraph 72 of Annex 1, shall be conducted as a single-agency assessment by the audit organization.
5. Notwithstanding subparagraphs 3 and 4, where a manufacturing site for domestically manufactured or imported medical devices is deemed to be a Manufacturing Site of Potential Risks, the Commissioner of Regional Office and the head of the audit organization may conduct a joint on-site inspection as part of the conformity recognition assessments under subparagraph 1.

[Annex 5]**Issuance and Management of Conformity Recognition Certificates**

(Related to Article 8 (8), Article 9, and Article 10)

1. The issuing authority for the Conformity Recognition Certificate shall be as follows:
 - (a) For joint conformity recognition assessments pursuant to Annex 4, the Commissioner of Regional Office and the head of the audit organization;
 - (b) For single-agency conformity recognition assessments pursuant to Annex 4, the head of the audit organization.
2. Items of the Conformity Recognition Certificate and Instructions for Entry
 - (a) General Principles
 - 1) Each item of the conformity recognition certificate shall be provided in both Korean and English.
 - 2) Printing paper specification: 130 g white, A4 (210 × 297 mm)
 - (b) Required entries
 - 1) Recognition number

① Audit organization code - ② Assessment type - ③ Serial number

① Audit organization code

Name of audit organization	Agency code	Name of audit organization	Agency code
Korea Testing Laboratory	CTL	Korea Conformity Laboratories	KCL
Korea Testing Certification Institute	KTC	Korea Testing & Research Institute	KTR
TÜV SÜD Korea	TSK	TÜV Rheinland Korea	TRK

② Assessment type: The assessment type shall be indicated using up to six digits.

Assessment type	A	B	C	D	E	F	G
1st digit	Manufacture	Import					
2nd digit	Initial assessment	Periodic assessment	Additional assessment	Assessment for change			
3rd digit	Document review	On-site inspection	Combined assessment				
4th digit	Others	Class I	For investigation al use	For export	Deleted	Medical Device Single Audit Program (MDSAP)	Excellent manufacturing site
5th digit	Not applicable	Conforming* 2)					
6th digit					Reissuance		Replacement issuance

* When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 2)

③ Serial number: A sequential number assigned in the order of assessment receipt

- 2) Name of business / License number: State the business name, business type (manufacturing or import), and license number as stated on the manufacturing/import business license.
- 3) Business address: State the address as shown on the manufacturing/import business license; for importers, state only the address of the place of business.
- 4) Deleted
- 5) Name of manufacturing site: State the name of the manufacturing site of the legal manufacturer (where applicable) and the manufacturer.
- 6) Address of manufacturing site: State the location of the legal manufacturer (where applicable) and the manufacturer.
- 7) Product group: Enter the name of the product group corresponding to the product name listed on the product license (or notification) certificate; if multiple product groups apply, indicate them in an attachment.
- 8) Date of issuance: State the date of issuance of the conformity recognition certificate.
- 9) Expiration date: Indicate according to Article 9 of the text.
- 10) GMP mark: Print according to Annex 6.

- 11) Official seal and personal seal: Print one of each clearly, reflecting the appropriate colors.
- 12) Changes and administrative actions: Indicate the review date, review type, transfer/acquisition, and other relevant matters.
- 13) Attachments: For all attachment pages, the recognition number (No.) shall be indicated in the upper left corner for identification.
- 14) Page numbering: When attachments to the Certificate of Conformity exist, indicate the page number at the top right corner (e.g., “Page 1 of 2” when the attachments consist of two pages and the current page is the first).
- 15) Seal: An embossed seal shall be affixed in the blank space next to the official stamp at the lower right corner of the Conformity Recognition Certificate, according to each issuing agency.

[Annex 6]

Marking of Conformity Recognition Assessment

(Related to Article 11)

1. Design of the conformity recognition assessment mark

(a) Design



(b) Size ratio: Width × Height = 1 × 0.83

(c) Color code: Pantone 2736CVC

2. Methods and standards for marking

(a) The mark for conformity recognition assessment shall be applied based on the size and color specified in item (a), and may be used in various sizes (with the same proportions) and colors suitable for the characteristics of the product and its packaging materials; provided that the design of the mark shall not be altered.

(b) The method of the conformity recognition assessment marking in item (a) may follow the labeling requirements under Articles 20 through 22 of the Medical Device Act, and the mark may be affixed to one or more of the following: the container, outer packaging, external package, or package insert.

[Annex 7]**Evaluation Criteria for Medical Device Audit Organizations**

(Related to Article 13)

1. Scope of Application

Organizations seeking new designation as a medical device audit organization

2. Composition of the Evaluation Team

The evaluation team shall consist of at least two officials of the Ministry of Food and Drug Safety, and external experts shall account for a majority of the committee members.

3. Evaluation Items

- (a) Compliance with the standards for management and operation for medical device Audit Organizations (90%)
- (b) Capability to perform conformity recognition assessments activities (10%)

4. Designation Criteria

An absolute evaluation shall be conducted based on a total score of 100 points, and organization scoring 80 points or higher shall be designated.

5. Evaluation Procedure

The evaluation team shall review and verify the evaluation report, supporting evidence, and other relevant materials of the audit organization, and shall assign scores for each evaluation item.

6. Designation Evaluation Report for Audit Organizations

Audit Organization Requirements (Points)	Evaluation Items	Score
1. Audit Organization Requirements (a) General Requirements (4 points)	(1) The policies, procedures, and operation of the audit organization in performing its duties shall be fair.	
	(2) The audit organization shall be accessible to all applicants and shall not impose any unfair monetary or other conditions.	

Audit Organization Requirements (Points)	Evaluation Items	Score
	(3) The audit organization shall perform the duties prescribed by the Minister of Food and Drug Safety. (4) The criteria for conformity recognition with respect to an applicant's compliance with Good Manufacturing Practice shall be in accordance with the Good Manufacturing Practice for Medical Devices. Where a separate interpretation of this GMP is required, approval shall be obtained from the Minister of Food and Drug Safety.	
(b) Organizational Structure (6 points)	The organizational structure of the audit organization shall be capable of ensuring the reliability of assessment activities and shall meet the following requirements: (1) In performing assessment activities, the audit organization shall ensure independence and fairness and shall be accountable for its decisions. (2) The head of the audit organization shall designate an operating manager or a committee with overall responsibility for the following duties: (a) Supervision of the implementation of assessment activities prescribed under this GMP (b) Establishment and implementation of the operational policies for the audit organization (3) The audit organization shall have a documented organizational structure that ensures the fairness of its operations. Such organizational structure shall be designed to allow the participation of interested parties in establishing policies and principles related to the performance of assessment activities. (4) The audit organization shall establish internal procedures to fulfill its responsibilities and obligations in relation to its operation and the performance of assessment activities. Such procedures shall clearly define policies and procedures to ensure the continuity of assessment activities in cases where continued performance becomes difficult, including suspension of the organization's operations, and the organization shall have in place appropriate means or arrangements to cover liabilities, such as compensation responsibilities, arising from its operations and activities. (5) The audit organization shall secure the financial resources and other resources necessary for stable operation and shall maintain an independent organization composed of personnel with the professional knowledge and experience required to perform assessment activities. (6) Personnel of the organization performing assessment activities	

Audit Organization Requirements (Points)	Evaluation Items	Score
	shall not engage in other duties that may impair the professionalism, fairness, or independence of assessments.	
	(7) To ensure the reliability of operational capability related to assessment activities, the audit organization shall establish a quality management system as referred to in item (c).	
	(8) The activities of the audit organization shall be conducted in a manner that ensures they do not affect the confidentiality, objectivity, or fairness of assessments, and the organization shall not directly or indirectly propose or promote any of the following to applicants: (a) Provision of consultancy services for obtaining or maintaining conformity recognition (b) Recommendation or referral to receive consultancy services from a specific organization (c) Consultancy services related to the design, implementation, or maintenance of a quality management system (d) Offering or providing information on benefits such as cost reductions or time savings in cases where consultancy services are received from a specific organization	
	(9) It shall be ensured that the operating manager and all personnel of the audit organization are free from any commercial, financial, or other pressures that may influence, or have the potential to influence, the assessment process or assessment results.	
(c) Quality Management System (10 points)	(1) The head of the audit organization shall establish and document a quality policy that includes quality objectives and a commitment to implementation, and shall maintain and manage the policy so that it is understood and implemented at all levels of the organization.	
	(2) The head of the audit organization shall establish and document a quality management system appropriate to the types and volume of tasks to be performed in accordance with this GMP, and shall ensure that such system is available for use by the personnel of the audit organization. The head of the audit organization shall demonstrate that the documented quality manual, procedures, and guidelines are being effectively implemented, and shall designate a quality manager vested with authority over the following matters: (a) Establishment, implementation, and maintenance of the quality management system in accordance with this GMP (b) Reporting operational performance to the head of the audit organization for the review and improvement of the quality management system	
	(3) The quality management system shall be documented in the form of a quality manual, relevant procedures, guidelines, and other related documents, and the quality manual shall include the following matters:	

Audit Organization Requirements (Points)	Evaluation Items	Score
	(a) The quality policy	
	(b) Matters concerning the statutory status of the audit organization	
	(c) Qualifications, experience, and authority of the operating manager and personnel belonging to the audit organization that may affect assessment activities	
	(d) An organizational chart showing the lines of authority, responsibility, and division of duties centered on the head of the audit organization (The organizational chart shall indicate the relationship between the person responsible for assessments and the person responsible for conformity recognition decisions)	
	(e) Matters concerning the organization of the audit organization (in this case, details regarding the operating manager or committee prescribed in item (b) (2), including its composition, allocation of duties, and rules of operation, shall be included)	
	(f) Policies and procedures for conducting internal audits and quality management system reviews	
	(g) Operational procedures, including control of documents	
	(h) Responsibilities and authority of personnel in charge of operational and functional tasks related to assessment activities	
	(i) Education and training plans for personnel of the audit organization, including quality auditors	
	(j) Procedures for handling nonconformities identified after assessments and for ensuring the validity of corrective actions taken	
	(k) Other policies and procedures necessary for the performance of assessment activities, including the issuance of conformity recognition certificates, conformity assessment of applicants' compliance with Good Manufacturing Practice, and post-assessment follow-up management	
(d) Requirements for Approval of Conformity Recognition (4 points)	(1) The head of the audit organization shall establish the conditions for approval of conformity recognition, and shall require applicants to notify the audit organization in cases where the applicant changes its quality management system to an extent that may affect conformity.	
	(2) The audit organization shall establish procedures for performing conformity recognition assessments.	
(e) Internal Audit and Review of the Quality Management System (8 points)	(1) The head of the audit organization shall conduct internal audits at least once a year, in a systematic manner, covering all procedures related to assessment activities, in order to verify the implementation and validity of the quality management system, and shall ensure the following:	

Audit Organization Requirements (Points)	Evaluation Items	Score
	(a) Notification and reporting of audit results to the personnel of the audited organization and to the head of the audit organization (b) Implementation of corrective actions in a timely manner (c) Recording and maintenance of audit and corrective action results (2) The head of the audit organization shall conduct a review of the quality management system at least once a year in order to satisfy the requirements of this GMP, the quality policy, and quality objectives, and to continuously maintain conformity and validity, and shall retain records thereof.	
(f) Documentation (8 points)	(1) The head of the audit organization shall prepare and manage documents covering the following matters: (a) The basis for performing assessment activities; (b) Criteria and procedures for approval of conformity recognition; (c) Guidelines and procedures, including assessment guidelines; (d) Matters related to assessment fees; (e) Procedures for handling appeals, complaints, and disputes; (f) A list of entities that have been granted conformity recognition. (2) The head of the audit organization shall establish procedures for controlling all documents and related materials pertaining to assessment activities, and shall maintain a document list that enables identification of the current version and revision status of each document. Where documents are initially prepared, revised, or otherwise amended, the validity thereof shall be reviewed and approved prior to issuance by a person vested with delegated authority.	
(g) Records (4 points)	(1) The head of the audit organization shall retain documents related to assessment activities for five years, and shall establish policies and procedures for their proper retention. (2) Documents related to assessment activities shall be maintained in a manner that ensures traceability, and shall be securely stored with appropriate security measures in place.	
(h) Confidentiality (4 points)	The head of the audit organization shall establish documented procedures to ensure the confidentiality of information concerning applicants collected in the course of performing duties, and shall not disclose such information to any third party without the applicant's written consent, except where specifically required under this GMP.	
2. Composition of Personnel and Assessment Teams	(1) Personnel of the organization performing assessment activities shall have the competence required for their respective duties, and the organization shall secure at least one senior quality	

Audit Organization Requirements (Points)	Evaluation Items	Score
of the Audit Organization (a) General Requirements (10 points)	auditor and two or more quality auditors. (2) The organization shall maintain and manage up-to-date records of the qualifications, education and training, and experience of personnel performing assessment activities, and shall maintain guidelines that clearly describe each individual's duties and responsibilities.	
(b) Qualification Criteria for Quality Auditors and Technical Experts (10 points)	(1) A quality auditor shall be a graduate of a university or an equivalent or higher educational institution and shall meet one of the following requirements: (a) A certified auditor for quality management system (b) A person who has obtained the qualification of assistant quality management system auditor and has worked in the medical device quality management field for at least one year (c) A certified auditor in the medical device field in accordance with Article 6 of the Enforcement Rule of the Industrial Standardization Act (2) A technical expert is not required to meet the qualification requirements for a quality auditor, but shall meet one of the following requirements: (a) A person who has directly conducted research, planning, or implementation of relevant work in the medical device field for at least ten years at a research institute, public institution, organization, or company (b) A person who holds a professional engineer license or a doctoral degree in the medical device field	
(c) Composition of Assessment Teams (2 points)	(1) Assessment teams shall be organized in accordance with the provisions determined by the Minister of Food and Drug Safety. Provided, however, that where necessary, technical experts related to the medical devices subject to assessment may be included in the assessment team. Such technical experts may provide advice to the assessment team under the supervision of auditors. (2) Assessment teams shall have knowledge of the applicable relevant statutes, assessment criteria, and requirements, and shall possess sufficient experience and competence in medical device quality management as specified below, and shall be able to communicate effectively both in writing and orally. (a) Evaluation of applicants' compliance with Good Manufacturing Practice and determination of the effectiveness of their implementation (b) Understanding of specific standards and criteria applied to the evaluation of applicants' compliance with Good Manufacturing Practice (c) Assessment of the intended use and risks related to the medical devices subject to assessment (d) Evaluation of design, manufacturing processes, and related technologies	
(d) Records on	(1) The head of the audit organization shall maintain and manage	

Audit Organization Requirements (Points)	Evaluation Items	Score
Quality Auditors and Technical Experts (6 points)	up-to-date records on quality auditors and technical experts with respect to the following matters: (a) Name and address (b) Position and title (c) Evidence of educational background and professional technical qualifications (d) Scope of assessment activities and grounds for assignment, practical experience, and education and training (e) Date of last qualification renewal (f) A statement that consultancy services will not be provided to applicants	
	(2) The head of the audit organization shall maintain and manage records that enable confirmation that quality auditors and technical experts satisfy the requirements of this GMP.	
3. Assessment Procedures (a) Assessment Preparation (4 points)	(1) The audit organization shall evaluate the “Application for Conformity Recognition of Good Manufacturing Practice for Medical Devices” submitted by the applicant, together with the required supporting documents, and shall designate the auditors who will conduct the assessment and, where necessary, technical experts related to the medical devices subject to assessment.	
	(2) In selecting specific auditors and technical experts, the audit organization shall provide an advance notice period taking into account the possibility of objections by the applicant, and shall notify the applicant of the list of auditors and technical experts who will conduct the assessment.	
	(3) The audit organization shall consult with the applicant regarding the assessment plan and schedule.	
	(4) For the preparation of on-site assessments, the assessment team shall review the required documents and relevant regulations and shall maintain appropriate confidentiality in handling such materials.	
	(5) The audit organization shall provide the assessment team with all documents and information received from the applicant.	
(b) Assessment (3 points)	(1) Based on all requirements related to the Good Manufacturing Practice, the assessment team shall review documents and records extracted from all stages of the applicant’s quality management system. Such extracted documents and records shall reflect information relevant to risks associated with the intended use of the medical device, the complexity of manufacturing technologies, the scope of medical devices manufactured, and post-market surveillance.	
	(2) The assessment team shall collect and verify objective evidence through interviews, document reviews, and	

Audit Organization Requirements (Points)	Evaluation Items	Score
	observation of activities and conditions in relevant areas. (3) Findings shall be recorded as follows: (a) In a clear and concise manner; (b) Supported by objective evidence; (c) Indicating the specific requirements that have not been met. (4) The assessment team (including technical experts) shall not provide consultancy to the applicant during the assessment process.	
(c) Notification of Assessment Results (3 points)	(1) Prior to leaving the assessment site, the assessment team shall hold a meeting with the applicant's management and relevant responsible personnel. At the meeting, the assessment team shall notify the applicant of the results of the evaluation of the applicant's compliance with Good Manufacturing Practice, provide the applicant with an opportunity to ask questions regarding the findings identified by the assessment team and the grounds therefor, and obtain management's agreement on the identified findings. (2) The assessment team shall submit a results report on the conformity assessment of the applicant's compliance with Good Manufacturing Practice to the audit organization. (3) Based on the results report, the audit organization shall issue to the applicant either a Conformity Recognition Certificate under the Good Manufacturing Practice for Medical Devices or a Request for Supplementation, and the Request for Supplementation shall specify the items to be supplemented by the applicant.	
4. Procedures for Handling Appeals, Complaints, and Disputes (4 points)	The head of the audit organization shall establish procedures for handling appeals, complaints, and disputes raised by applicants or other relevant parties, and shall record the following matters: (1) All appeals, complaints, and disputes related to assessment activities and the actions taken in response thereto (2) Appropriate corrective and preventive actions (3) Documentation of corrective actions taken and evaluation of their validity	
5. Capability to Perform Quality Control Assessment Activities (10 points)	As an audit organization, the organization shall have experience in quality control assessments, areas of performance, operational capability, and work experience in the medical device field.	

[Annex 8]

**Standards for Management and Operation for
Medical Device Audit Organizations**

(Related to Article 14)

1. Requirements for Audit Organizations

(a) General Requirements

- 1) The policies, procedures, and operation of the audit organization in performing its duties shall be fair.
- 2) The audit organization shall be accessible to all applicants for conformity recognition assessments (hereinafter referred to as the “applicants”) and shall not impose any unjust monetary or other conditions.
- 3) The audit organization shall perform the duties prescribed by the Minister of Food and Drug Safety.
- 4) Conformity recognition assessments with respect to an applicants’ compliance with Good Manufacturing Practice shall be conducted in accordance with the Good Manufacturing Practice for Medical Devices. Where a separate interpretation of this GMP is required, approval shall be obtained from the Minister of Food and Drug Safety.

(b) Organizational Structure

The organizational structure of the audit organization shall be capable of ensuring the reliability of conformity recognition assessments activities and shall meet the following requirements:

- 1) In performing duties such as conformity recognition assessments, the audit organization shall ensure independence and fairness and shall be accountable for its decisions.
- 2) The head of the audit organization shall designate an operating manager or a committee with overall responsibility for the following duties:
 - (a) Supervision of the implementation of assessment activities in accordance with this GMP
 - (b) Establishment and implementation of the operational policies for the audit organization
- 3) The audit organization shall have a documented organizational structure that ensures the fairness of its operations. Such organizational structure shall be designed to allow the participation of interested parties in establishing policies and principles related to the performance of assessment activities.

- 4) The audit organization shall establish internal procedures to fulfill its responsibilities and obligations in relation to its operation and the performance of assessment activities. Such procedures shall clearly define policies and procedures to ensure the continuity of assessment activities in cases where continued performance becomes difficult, including suspension of the organization's operations, and the organization shall have in place appropriate means or arrangements to cover liabilities, such as compensation responsibilities, arising from its operations and activities.
- 5) The audit organization shall secure the financial resources and other resources necessary for stable operation, and shall maintain an independent organization composed of personnel with the professional knowledge and experience required to perform assessment activities.
- 6) Personnel of the organization performing assessment activities shall not engage in other duties that may impair the professionalism, fairness, or independence of assessments.
- 7) To ensure the reliability of operational capability related to assessment activities, the audit organization shall establish a quality management system as referred to in item (c).
- 8) The activities of the audit organization shall be conducted in a manner that ensures they do not affect the confidentiality, objectivity, or fairness of assessments, and the organization shall not directly or indirectly propose or promote any of the following to applicants:
 - (a) Provision of consultancy services for obtaining or maintaining conformity recognition
 - (b) Recommendation or referral to receive consultancy services from a specific organization
 - (c) Consultancy services related to the design, implementation, or maintenance of a quality management system
 - (d) Offering or providing information on benefits such as cost reductions or time savings in cases where consultancy services are received from a specific organization
- 9) It shall be ensured that the operating manager and all personnel of the audit organization are free from any commercial, financial, or other pressures that may influence, or have the potential to influence, the assessment process or assessment results.

(c) Quality Management System

- 1) The head of the audit organization shall establish and document a quality policy that includes quality objectives and a commitment to implementation, and shall maintain and manage the policy so that it is understood and implemented at all levels of the organization.

- 2) The head of the audit organization shall establish and document a quality management system appropriate to the types and volume of tasks to be performed in accordance with this GMP, and shall ensure that such system is available for use by the personnel of the audit organization. The head of the audit organization shall demonstrate that the documented quality manual, procedures, and guidelines are being effectively implemented, and shall designate a quality manager vested with authority over the following matters:
 - (a) Establishment, implementation, and maintenance of the quality management system in accordance with this GMP
 - (b) Reporting operational performance to the head of the audit organization for the review and improvement of the quality management system
- 3) The quality management system shall be documented in the form of a quality manual, relevant procedures, guidelines, and other related documents, and the quality manual shall include the following matters:
 - (a) The quality policy
 - (b) Matters concerning the statutory status of the audit organization
 - (c) Qualifications, experience, and authority of the operating manager and personnel belonging to the audit organization that may affect assessment activities
 - (d) An organizational chart showing the lines of authority, responsibility, and division of duties centered on the head of the audit organization (The organizational chart shall indicate the relationship between the person responsible for assessments and the person responsible for conformity recognition decisions)
 - (e) Matters concerning the organization of the audit organization (in this case, details regarding the operating manager or committee in accordance with item (b) (2), including its composition, allocation of duties, and rules of operation, shall be included.)
 - (f) Policies and procedures for conducting internal audits and quality management system reviews
 - (g) Operational procedures, including control of documents
 - (h) Responsibilities and authority of personnel in charge of operational and functional tasks related to assessment activities
 - (i) Education and training plans for personnel of the audit organization, including quality auditors
 - (j) Procedures for handling nonconformities identified after assessments and for ensuring the validity of corrective actions taken
 - (k) Other policies and procedures necessary for the performance of assessment activities, including the issuance of conformity recognition certificates, conformity assessment of applicants' compliance with Good Manufacturing

Practice, and post-assessment follow-up management (including follow-up actions after guidance and inspections pursuant to Article 16)

- (l) Policies and procedures for handling appeals, complaints, and disputes

(d) Conditions for Approval of Conformity Recognition

- 1) The head of the audit organization shall establish the conditions for approval of conformity recognition, etc., and shall require applicants to notify the audit organization in cases where the applicant changes its quality management system to an extent that may affect conformity.
- 2) The audit organization shall establish procedures for performing conformity recognition assessments.

(e) Internal Audit and Review of the Quality Management System

- 1) The head of the audit organization shall conduct internal audits at least once a year, in a systematic manner, covering all procedures related to assessment activities, in order to verify the implementation and validity of the quality management system, and shall ensure the following:
 - (a) Notification and reporting of audit results to the personnel of the audited organization and to the head of the audit organization
 - (b) Implementation of corrective actions in a timely manner
 - (c) Recording and maintenance of audit and corrective action results
- 2) The head of the audit organization shall conduct a review of the quality management system at least once a year in order to satisfy the requirements of this GMP, the quality policy, and quality objectives, and to continuously maintain conformity and validity, and shall retain records thereof.

(f) Documentation

- 1) The head of the audit organization shall prepare and manage documents covering the following matters:
 - (a) The basis for performing assessment activities;
 - (b) Criteria and procedures for approval of conformity recognition;
 - (c) Guidelines and procedures, including assessment guidelines;
 - (d) Matters related to assessment fees;
 - (e) Procedures for handling appeals, complaints, and disputes;
 - (f) A list of entities that have been granted conformity recognition.
- 2) The head of the audit organization shall establish procedures for controlling all documents and related materials pertaining to assessment activities, and shall

maintain a document list that enables identification of the current version and revision status of each document. Where documents are initially prepared, revised, or otherwise amended, the validity thereof shall be reviewed and approved prior to issuance by a person vested with delegated authority.

(g) Records

- 1) The head of the audit organization shall retain documents related to assessment activities for five years, and shall establish policies and procedures for their proper retention.
- 2) Documents related to assessment activities shall be maintained in a manner that ensures traceability, and shall be securely stored with appropriate security measures in place.

(h) Confidentiality

The head of the audit organization shall establish documented procedures to ensure the confidentiality of information concerning applicants collected in the course of performing duties, and shall not disclose such information to any third party without the applicant's written consent, except where specifically required under this GMP.

2. Composition of Personnel and Assessment Teams of the Audit Organization

(a) General Requirements

- 1) Personnel of the organization performing assessment activities shall have the competence required for their respective duties, and the organization shall secure at least one senior quality auditor and two or more quality auditors.
- 2) The organization shall maintain and manage up-to-date records of the qualifications, education and training, and experience of personnel performing assessment activities, and shall maintain guidelines that clearly describe each individual's duties and responsibilities.

(b) Qualification and Criteria for Qualification Maintenance for Quality Auditors, Senior Quality Auditors, and Technical Experts

- 1) A quality auditor shall be a person who has obtained a bachelor's degree or higher by majoring in a field of natural sciences, engineering, or medicine as prescribed in Article 2 (9) of the Regulation on the Establishment and Operation of Universities, at a school specified in the subparagraphs of Article 2 of the Higher Education Act (excluding junior colleges), and shall meet one of the following requirements:
 - (a) A certified auditor for quality management system
 - (b) A person who has obtained the qualification of assistant quality management system auditor and has engaged for at least one year in the field of medical

device quality management (including GMP assessments, testing and inspection, and technical documentation review)

- (c) A certified auditor in the medical device field pursuant to Article 15 of the Enforcement Rule of the Industrial Standardization Act
 - (d) A person who has performed related work in medical device manufacturing and quality management for at least two years and has completed the quality auditor training course for the Good Manufacturing Practice for Medical Device designated by the Minister of Food and Drug Safety
- 2) A senior quality auditor shall be a person who meets the qualifications under 1) and has at least six years of experience in conducting conformity recognition assessments under the Good Manufacturing Practice for Medical Device at a regulatory authority or an organization delegated by a regulatory authority.
 - 3) In order to maintain the qualifications of a senior quality auditor and a quality auditor, one of the following requirements shall be satisfied:
 - (a) Maintenance of the qualification as a certified quality management system auditor and completion of at least eight hours per year of a quality auditor qualification maintenance training course designated by the Minister of Food and Drug Safety
 - (b) Conducting five or more assessments per year (with at least 12 assessment days) of conformity recognition assessments under the Good Manufacturing Practice for Medical Device (on-site assessments), and completion of at least 24 hours of technical development activities (including at least eight hours per year of a quality auditor qualification maintenance training course designated by the Minister of Food and Drug Safety, and including education related to the Good Manufacturing Practice for Medical Device, performance of research, acquisition of qualifications, etc.)
 - 4) A technical expert is not required to meet the qualification requirements for a quality auditor, but shall meet one of the following requirements:
 - (a) A person who has directly conducted research, planning, or implementation of relevant work in the medical device field for at least ten years at a research institute, public institution, organization, or company
 - (b) A person who holds a professional engineer license or a doctoral degree in the medical device field
- (c) Composition of Assessment Teams
- 1) Assessment teams shall be organized in accordance with the provisions determined by the Minister of Food and Drug Safety. Provided, however, that, where necessary, technical experts related to the medical devices subject to assessment may be included in the assessment team, and such technical experts may provide advice to the assessment team under the supervision of quality auditors.
 - 2) Assessment teams shall have knowledge of the applicable relevant statutes,

assessment criteria, and requirements, and shall possess sufficient experience and competence in medical device quality management as specified below, and shall be able to communicate effectively both in writing and orally.

- (a) Evaluation of applicants' compliance with Good Manufacturing Practice and determination of the effectiveness of their implementation
- (b) Understanding of specific standards and criteria applied to the evaluation of applicants' compliance with Good Manufacturing Practice
- (c) Assessment of the intended use and risks related to the medical devices subject to assessment
- (d) Evaluation of design, manufacturing processes, and related technologies

(d) Records on Quality Auditors and Technical Experts

- 1) The head of the audit organization shall maintain and manage up-to-date records on quality auditors and technical experts with respect to the following matters:
 - (a) Name and address
 - (b) Position and title
 - (c) Evidence of educational background and professional technical qualifications
 - (d) Scope of assessment activities and grounds for assignment, practical experience, and education and training
 - (e) Date of last qualification renewal
 - (f) A statement that consultancy services will not be provided to applicants
- (2) The head of the audit organization shall maintain and manage records that enable confirmation that quality auditors and technical experts satisfy the requirements of this GMP.

3. Assessment Procedures

Where matters are not specified under this GMP, the audit organization shall conduct assessment activities in accordance with the detailed operating rules approved by the Minister of Food and Drug Safety.

(a) Assessment Preparation

- 1) The audit organization shall evaluate the Application for Conformity Recognition of Good Manufacturing Practice for Medical Device submitted by the applicant, together with the required supporting documents, and shall designate the quality auditors who will conduct the assessment and, where necessary, technical experts related to the medical devices subject to assessment.
- 2) In selecting specific quality auditors and technical experts, the audit organization shall provide an advance notice period taking into account the possibility of objections by the applicant, and shall notify the applicant of the list of quality

auditors and technical experts who will conduct the assessment.

- 3) The audit organization shall consult with the applicant regarding the assessment plan and schedule.
- 4) For the preparation of on-site assessments, the assessment team shall review the required documents and relevant regulations and shall maintain appropriate confidentiality in handling such materials.
- 5) The audit organization shall provide the assessment team with all documents and information received from the applicant.

(b) Assessment

- 1) Based on all requirements related to the Good Manufacturing Practice, the assessment team shall review documents and records extracted from all stages of the applicant's quality management system. Such extracted documents and records shall reflect information relevant to risks associated with the intended use of the medical device, the complexity of manufacturing technologies, the scope of medical devices manufactured, and post-market surveillance.
- 2) The assessment team shall collect and verify objective evidence through interviews, document reviews, and observation of activities and conditions in relevant areas.
- 3) Findings shall be recorded as follows:
 - (a) In a clear and concise manner;
 - (b) Supported by objective evidence;
 - (c) Indicating the specific requirements that have not been met.
- 4) The assessment team (including technical experts) shall not provide consultancy to the applicant during the assessment process.

(c) Notification of Assessment Results

- 1) Prior to leaving the assessment site, the assessment team shall hold a meeting with the applicant's management and relevant responsible personnel. At the meeting, the assessment team shall notify the applicant of the results of the evaluation of the applicant's compliance with Good Manufacturing Practice, provide the applicant with an opportunity to ask questions regarding the findings identified by the assessment team and the grounds therefor, and obtain management's agreement on the identified findings.
- 2) The assessment team shall submit a results report on the conformity assessment of the applicant's compliance with Good Manufacturing Practice to the audit organization.
- 3) Based on the results report, the audit organization shall issue to the applicant either a Conformity Recognition Certificate under the Good Manufacturing Practice for Medical Devices or a Request for Supplementation, and the Request for

Supplementation shall specify the items to be supplemented by the applicant.

4. Procedures for Handling Appeals, Complaints, and Disputes

The head of the audit organization shall establish procedures for handling appeals, complaints, and disputes raised by applicants or other relevant parties, and shall record the following matters:

- 1) All appeals, complaints, and disputes related to assessment activities and the actions taken in response thereto
- 2) Appropriate corrective and preventive actions
- 3) Documentation of corrective actions taken and evaluation of their validity

[Annex 9]

**Criteria for Designation of Training Organizations
for Quality Manager**

(Related to Article 17)

1. Training Facilities and Equipment

- (a) A training organization shall either own training facilities or continuously lease such facilities for the duration of the training period.
- (b) Training facilities shall include lecture rooms, rest areas, restrooms (with separate facilities for men and women), parking areas, and other necessary facilities.
- (c) There shall be at least one lecture room with a floor area of 150 m² or more (where the expected number of trainees exceeds 100, an additional 1.5 m² per excess trainee shall be secured).
- (d) Lecture rooms shall be equipped with a sufficient number of chairs and desks to accommodate trainees, and shall be fitted with screens, audio systems, and other facilities enabling audiovisual instruction, as well as appropriate ventilation and lighting facilities.
- (e) The training institution shall be equipped with equipment necessary for training, such as portable computers and beam projectors.

2. Training Personnel and Curriculum

(a) Training Administrator

- 1) A training organization shall designate at least one training administrator to supervise overall operations.

(b) Training instructors shall satisfy one of the following requirements:

- 1) A person who has graduated from a junior college or higher educational institution under the Higher Education Act with a major related to the training curriculum (including graduates of relevant majors who possess academic qualifications equivalent to or higher than those prescribed under other statutes) and has at least five years of practical experience in a relevant field
- 2) A person who has at least 50 hours of teaching experience over the past five years in education or training related to the Good Manufacturing Practice for Medical Device, conducted by a government authority or a government-designated institution
- 3) Any other person recognized by the Minister of Food and Drug Safety as having qualifications equivalent to those of a training instructor

(c) The curriculum.

- 1) A training organization shall establish and operate training programs to enable quality managers to develop fundamental competencies.

- 2) A training organization shall establish and conduct training programs tailored to the characteristics of each training demand area of quality managers.

3. Training Implementation Rules

A training organization shall establish and operate training implementation rules that include the following matters in order to ensure efficient implementation of training:

- (a) Training objectives;
- (b) Training subjects and methods for the preparation of training materials;
- (c) Matters related to the conduct of training;
- (d) Matters related to instructors and tuition fees;
- (e) Matters related to the curriculum;
- (f) Measures concerning class cancellations;
- (g) Various forms related to training, including the register for issuance of certificates of completion
- (h) Other matters necessary for the implementation of training

[Form 1]

(1/6)

Application for Conformity Recognition Assessments of Medical Devices			
Receipt number			
Type of business	☐ Manufacturing ☐ Import	Business license number	
Name of business	Korean: English:		
Representative	Korean: English:	Quality manager	Name: Phone number:
Address	Korean: English: (☎) (FAX) (E-MAIL)		
Name/address of manufacturing site subject to assessment	Legal manufacturer: (Name) (Location)		
	Manufacturer: (Name) (Location)		
Assessment type	☐ Initial assessment ☐ Periodic assessment ☐ Assessment for change ☐ Additional assessment		
	☐ Class 1 medical device ☐ Medical device for investigational use ☐ Medical device for export ☐ Combination medical device ☐ Use of the Medical Device Single Audit Program ☐ Excellent manufacturing site ※ Fill in only if applicable.		
Product	Product group		
	Product name / Class		
Preferred date of on-site inspection		Year Month Day	
Remarks		☐ Applies as a manufacturing site of potential concern under Article 6 (3) ☐ Applied through a combined assessment	
In accordance with Article 7 of the Good Manufacturing Practice for Medical Devices, I hereby apply for conformity recognition assessments as stated above.			
Year Month Day Applicant (Signature or Seal)			
To: Head of ○○○ Audit Organization			
※ Required Documents Submission of documents required for conformity recognition assessments under Article 7			Fee
			To be prescribed separately

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(2/6)

Submission Status	Required Documents	Remarks (file name, etc.)
	1. Application for Conformity Recognition Assessments of Medical Devices	
	2. A copy of the manufacturing (import) business license or conditional manufacturing (import) business license for medical devices (excluding initial assessments or medical devices for investigational use)	
	2-a. An overview of the manufacturing site (including the name of the site and the address of each facility; if there are multiple sites, all site names must be included), organizational chart, number of employees, and medical devices manufactured	
	2-b. A copy of the quality management system conformity certificate issued by the regulatory authority or an agency delegated by the regulatory authority (only applicable to Article 6 (2) and Article 6 (6)) and on-site inspection results (only applicable to Article 6 (2) 2 and Article 6 (6), including any follow-up actions taken in response to the inspection results);	
	2-c. Status of facilities for each manufacturing site subject to assessment (including floor plans of work areas, test laboratories, and storage areas; lists of facilities and equipment; cleanroom information, if applicable; and procedures related to monitoring and measuring equipment)	
	2-d. The quality manual of the manufacturing site (including the quality policy)	
	2-e. Procedures and test reports related to finished product testing for the core product of the manufacturing site (including documentation demonstrating sterilization for sterile products)	
	2-f. Purchasing and outsourcing procedures for the core product of the manufacturing site, names of major suppliers (including contracted suppliers), and scope of work	
	2-g. Device Master Records of the core product (including descriptions of specific manufacturing processes such as sterilization or software, as applicable), and procedures for validation of sterilization, where applicable	
	2-h. Checklist for Annex 2 criteria of the manufacturing site	
	2-i. Declaration of conformity to Annex 2 criteria of the manufacturing site	
	3. Other relevant documents.	

(3/6)

Submission Status	List of Required Documents (related to Article 7 (1) 3)	Remarks (file name, etc.)
	1. Application for Conformity Recognition Assessments of Medical Devices	
	2. The following documents corresponding to each item:	
	2-a. A copy of the MDSAP conformity recognition certificate and the accompanying assessment results (including, where nonconformities were identified, the nonconformity report issued by the audit organization and the corrective and preventive action plan or results submitted by the manufacturing site that have been confirmed by the organization as compliant)	
	2-b. Device Master Records for the product belonging to the highest classification level within each product group of the manufacturing site. Provided, however, that for an assessment for change, the Device Master Record shall be that of the product belonging to the highest classification level within the product group of the manufacturing site and having the highest manufacturing or import volume	
	2-c. The following documents demonstrating that the quality management system complies with the requirements prescribed in statutes related to medical devices:	
	1) Quality manual of the manufacturing site;	
	2) Procedures related to record management;	
	3) Procedures that define the scope of responsibilities of the quality manager;	
	4) Procedures for managing medical devices subject to traceability (where applicable);	
	5) Procedures for adverse event reporting and advisory notices.	
	2-d. Documents demonstrating the correlation between the MDSAP conformity recognition certificate and the products subject to conformity recognition assessments	

※ To be completed only when applying for conformity determination using the Medical Device Single Audit Program (MDSAP).

(4/6)

Submission Status	List of Required Documents (related to Article 7 (1) 4)	Remarks (file name, etc.)
	1. Application for Conformity Recognition Assessments of Medical Devices	
	2. A copy of the manufacturing (import) business license or conditional manufacturing (import) business license for medical devices	
	3. The following documents corresponding to each item:	
	3-a. Documentation confirming that the manufacturing site falls under Annex 1, subparagraph 71 (d)	
	3-b. The Device Master Record for the core product that belongs to the highest classification level within each product group of the manufacturing site and has the highest manufacturing or import volume	
	3-c. The following documents demonstrating the appropriateness of quality control over the past three years:	
	1) Procedures and test reports related to finished product testing (e.g., final release inspection) for the core product (including sterilization validation procedures and test reports for sterile products)	
	2) Documents on corrective and preventive actions taken in the last three years in accordance with the criteria set out in Annex 2	
	3) Checklist under Annex 2 and declaration of conformity	
	4. Other relevant documents.	

※ To be completed only when applying for conformity recognition assessment as an Excellent Manufacturing Site.

(5/6)

Interrelation within the Quality Management System												
Category	Manufacturing Process Flow											
	1	2	3	4	5	6	7	8	9	10	11	12
Region of the manufacturing site (country name for foreign sites)												
Indication of whether manufacturing is outsourced or in-house												
GMP Criteria	GMP Requirements						Interrelation within the Quality Management System					
4. Quality Management System	4.1 General Requirements											
	4.2 Documentation Requirements											
5. Management Responsibility	5.1 Management Commitment											
	5.2 Customer Focus											
	5.3 Quality Policy											
	5.4 Planning											
	5.5 Responsibility, Authority, and Communication											
	5.6 Management Review											
6. Resource Management	6.1 Provision of Resources											
	6.2 Human Resources											
	6.3 Infrastructure											
	6.4 Work Environment and Contamination Control											
7. Production Realization	7.1 Planning of Production Realization											
	7.2 Customer-Related Processes											
	7.3 Design and Development											
	7.4 Purchasing											
	7.5 Production and Service Provision											
	7.6 Control of Monitoring and Measuring Equipment											
8. Measurement, Analysis and Improvement	8.1 General Requirements											
	8.2 Monitoring and Measurement											
	8.3 Control of Nonconforming Product											
	8.4 Analysis of Data											
	8.5 Improvement											

(6/6)

Master List of Manufacturing Sites												
Information on the manufacturing site						Information on manufactured products						Remarks
Name of manufacturing site	Location (addresses)	Name of representative	Head office address	Recognition number	Expiration date	By product	Subclass number	Product name	Approval Number	Approval Date	Classes	
Manufacturing site A						Product a						
						Product b						
						Product c						
Manufacturing site B						Product d						
						Product e						
						Product f						
Manufacturing site C						Product g						
						Product h						
						Product i						

※ To be completed only when applying collectively for multiple manufacturing sites

[Form 2]

(Front)

Certificate No.:

Certificate of GMP

- Company name of Applicant / License No.
- Company address of Applicant
- Name of Manufacturer
- Address of Manufacturer
- Product Group



We hereby certify that the above manufacturer complies with Korea Good Manufacturing Practices of Medical Devices for the Product group listed above

Date of Issue : . . .

Date of Expiration : . . .

**Commissioner of Regional Office of
Food and Drug Safety**

Head of the Audit Organization

Seal

Seal

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(Back Page)

Changes (Changes History Records of GMP Certificate)	
Date	Description
(Attachment) Where a combination medical device is included The product name of the combination medical device, and the name and address of the manufacturing site of the drugs or quasi-drug that is combined with or integrally incorporated into the combination medical device	

[Form 2-2]

(Front)

Certificate No.:

Certificate of GMP

- Company name of Applicant / License No.
- Company address of Applicant
- Name of Manufacturer
- Address of Manufacturer
- Product Group



We hereby certify that the above manufacturer complies with Korea Good Manufacturing Practices of Medical Devices for the Product group listed above

Date of Issue : . . .

Date of Expiration : . . .

Head of the Audit Organization

Seal

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Changes (Changes History Records of GMP Certificate)

Date	Description

(Attachment) Where a combination medical device is included

The product name of the combination medical device, and the name and address of the manufacturing site of the drugs or quasi-drug that is combined with or integrally incorporated into the combination medical device

[Form 3]

Report on the Results of Conformity Recognition Assessment for Medical Devices			
Type of business	☐ Manufacturing ☐ Import	Business license number	
Name of business		Representative	
Address	(☎) (FAX)		
Assessment type	☐ Initial assessment ☐ Periodic assessment ☐ Assessment for change ☐ Additional assessment		
	☐ Class 1 medical device ☐ Medical device for investigational use ☐ Medical device for export ☐ Combination medical device ☐ Use of the Medical Device Single Audit Program ☐ Excellent manufacturing site ※ Fill in only if applicable.		
Method of assessment	☐ On-site inspection ☐ Document review ☐ Combined assessment		
Product	Product group		
	Product name / Class		
Assessment team	Affiliation	Name	
	Ministry of Food and Drug Safety		
	Audit Organization (Name of Agency)		
Assessment date (YYYY/MM/DD)	. . . - . . .		
Assessment result	☐ Conforming ☐ Additional actions required (by . .) ☐ Nonconforming		
	In the case of Section 9.4, subparagraph 2, item (a) 2), the results of corrective actions shall be submitted by (yyyy.mm.dd).		
In accordance with Articles 6 and 8 of the Good Manufacturing Practice for Medical Devices, we hereby report the results of the conformity recognition assessments as stated above. Year Month Day Head of ○○○ Audit Organization Seal			
※ Attachments: One copy of the Conformity Recognition Assessment Form for Medical Devices			

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[Form 4]

Periodic Report on the Results of Conformity Recognition Assessment for Medical Devices							
Quality Control Name of the audit organization							
Address	(☎) (Fax)						
Assessment period	. . . - . . . (months)						
Assessment history	Category		Total	Conforming 1)* 2)**		Additional action required	Nonconforming
	Initial	Manufacture					
		Import					
	Additional / Change	Manufacture					
		Import					
	Periodic	Manufacture					
		Import					
	Total						
In accordance with Article 15 of the Good Manufacturing Practice for Medical Devices, we hereby report the results of the quality control assessment as stated above. Year Month Day Head of ○○○ Audit Organization Seal							
※ Attachment: Detailed List of Quality Control Assessment Results for Medical Devices (1 copy) * 1) When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 1) * 2) When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 2)							

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*	Conforming 1) When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 1)
**	Conforming 2) When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 2)
***	In cases falling under a combined assessment, the relevant information shall be entered in the Remarks column

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Standards of Good Manufacturing Practice (GMP) for In Vitro Diagnostic Medical Devices



[Enforced on August 12, 2025]

[Ministry of Food and Drug Safety Notice No. 2025-51; August 12, 2025; Partially Amended]

Ministry of Food and Drug Safety (Innovative and Diagnostic Medical Devices Policy Division)

Article 1 (Purpose) The purpose of this GMP is to prescribe the detailed requirements to be observed when manufacturing or importing in vitro diagnostic medical devices (including in vitro diagnostic medical devices for clinical performance studies) pursuant to Article 4, Article 5 (5), Article 7 (2), Article 10 (1), and Article 11 (4) of the Act on In Vitro Diagnostic Medical Devices, Article 6 (1) 1, Article 10 (1), Article 11, Article 13 (1) 2, Article 26 (1) 2, and Article 27 of the Enforcement Rule of the same Act, Article 13 (1), Article 15 (4) and (6), Article 28, and Article 45 of the Medical Device Act, Article 27 (1) 10 and 11, Article 33 (1) 15, Article 48, Annex 2, and Annex 4 of the Enforcement Rule of the Medical Device Act, Article 24 (9) of the Act on the Promotion of the Medical Device Industry and Support for Innovative Medical Devices, and Article 15 of the Regulations on the Support and Management of Innovative Medical Devices.

Article 2 (Definitions) The terms used in this GMP shall have the meanings defined in Annex 1.

Article 3 (Scope) (1) The scope of this GMP shall be as follows:

1. A person who intends to obtain approval or certification for manufacturing or import of in vitro diagnostic medical devices, or to submit a notification for such manufacturing or import;
 2. A person who intends to manufacture or import in vitro diagnostic medical devices for clinical performance studies;
 3. A holder of a manufacturing business license (“manufacturer”) or a holder of an import business license (hereinafter referred to as the “importer”) who applies for conformity recognition and periodic assessment (hereinafter referred to as the “conformity recognition assessment”).
- (2) Notwithstanding subparagraphs 1 through 3 of paragraph (1), a person who intends to manufacture in vitro diagnostic medical devices for export (hereinafter referred to as the “in vitro diagnostic medical devices for export”) or a person who intends to manufacture or import Class I in vitro diagnostic medical devices shall comply with this GMP, but may be exempted from the conformity recognition assessment.

Article 4 (Types of Conformity Recognition Assessment) (1) Conformity recognition under this GMP shall be conducted by classifying it as follows:

1. The initial assessment that a manufacturing site must undergo to be recognized as conforming to this GMP (hereinafter referred to as the “initial assessment”);

2. The assessment newly required when a manufacturing site adds in vitro diagnostic medical devices of another product group pursuant to Annex 3 (hereinafter referred to as the “additional assessment”);
 3. The assessment that must be newly conducted to obtain conformity recognition due to a change in the location of a manufacturing site (hereinafter referred to as the “assessment for change”); provided, however, that changes to storage facilities or test laboratories that have little relevance to product quality, or changes to the location of in vitro diagnostic software manufacturing sites, are excluded.
- (2) Each manufacturing site shall undergo one periodic assessment every three years for each product group listed in Annex 3.
- (3) Notwithstanding Article 3 (2) and Article 4 (2), a manufacturing site may be exempted from periodic assessments when it has obtained conformity recognition for the following in vitro diagnostic medical devices:
1. In vitro diagnostic medical devices for export;
 2. Class I in vitro diagnostic medical devices;
 3. In vitro diagnostic medical devices for clinical performance studies.

Article 5 (Criteria for Conformity Recognition Assessments) (1) The criteria for conformity recognition assessments shall be as specified in Annex 2.

- (2) Notwithstanding paragraph (1), only part of Annex 2 may be applied in the following cases of each subparagraph:
1. For a person who intends to manufacture or import in vitro diagnostic medical devices for clinical performance studies, Sections 7.1, 7.3, 7.4.3, 7.5, 7.6, 8.2.6, and 8.3 shall be applied;
 2. For an assessment for change under Article 4 (1) 3, Sections 4.1, 4.2, 6.1, 6.3, 6.4, 7.5, 7.6, 8.2.2, 8.2.3, 8.2.6, 8.3, and 8.5 shall be applied;
 3. Notwithstanding Article 3 (2), where conformity recognition assessments under this GMP are sought for Class I in vitro diagnostic medical devices, Sections 4.1, 4.2, 5.5, 6.4, 7.1, 7.4, 7.5, 7.6, 8.2.1, 8.2.2, 8.2.3, 8.2.6, 8.3, and 8.5 shall be applied.

Article 6 (Methods of Conformity Recognition Assessments) (1) Conformity recognition assessments shall be conducted jointly by the Commissioner of the Regional Office of Food and Drug Safety (hereinafter referred to as the “Commissioner of Regional Office”) and the head of the audit organization through document review and on-site inspection for each product group of the manufacturing site. Where the manufacturing process is carried out under an outsourcing arrangement between the legal manufacturer and the manufacturer (hereinafter referred to as the “legal manufacturer-manufacturer”), document review and on-site inspection may also be conducted separately for each of them. In such cases, on-site inspections shall not be limited to the core products under Article 7 (2).

- (2) Notwithstanding paragraph (1), only document review shall be conducted in the following

subparagraphs:

1. Where an additional assessment is conducted under Article 4 (1) 2;
 2. Where an assessment for change is conducted based on the submission of data under Article 7 (1) 2 (b) for a manufacturing site whose location has been changed under Article 4 (1) 3;
 3. Where another manufacturer or importer has undergone document review and on-site inspection for the relevant manufacturing site under this GMP and holds a valid conformity recognition certificate;
 4. Where a person has two or more manufacturing sites subject to periodic assessments under Article 4 (2), remaining manufacturing sites other than those selected for on-site inspection;
 5. Where a medical device manufacturer or importer under the Medical Device Act has undergone document review and on-site inspection for the manufacturing site under the Good Manufacturing Practice for Medical Devices and holds a valid conformity recognition certificate;
 6. Where a manufacturer holds a quality management system conformity recognition certificate (hereinafter referred to as the “MDSAP conformity recognition certificate”) issued through an on-site inspection by an audit organization pursuant to the Medical Device Single Audit Program (MDSAP) under subparagraph 68 of Annex 1;
 7. Where periodic assessments are conducted for Excellent Manufacturing Sites under subparagraph 69 of Annex 1.
- (3) Notwithstanding paragraph (2), on-site inspection shall be conducted in any of the following cases:
1. Where a manufacturing site is deemed to present potential risks;
 2. Where a manufacturer or importer is unable to submit the data required under Article 7 (1) 2 for reasons such as trade secrets, and requests an on-site inspection;
 3. Where a manufacturer holds a MDSAP conformity recognition certificate, in any of the following cases:
 - (a) A manufacturing sites subject to periodic assessments under Article 4 (2);
 - (b) A manufacturing site that the Minister of Food and Drug Safety recognizes as likely to affect public health, including cases where significant nonconformities are identified in conformity recognition assessments under the Medical Device Single Audit Program (MDSAP);
 - (c) A manufacturing site that produces in vitro diagnostic medical devices containing human-derived components or using human-derived tissues.
- (4) Notwithstanding Article 4, a new initial assessment shall be required in any of the following cases:
1. Where the expiration date of the conformity recognition certificate held by a manufacturing site for export, Class I devices, or in vitro diagnostic medical devices for clinical performance studies has expired, and reapplication for conformity recognition is made;

2. Where a manufacturing site holding conformity recognition for in vitro diagnostic medical devices for export intends to manufacture products for domestic sale;
 3. Where the legal manufacturer in a legal manufacturer-manufacturer relationship that has undergone conformity recognition assessments is changed or removed;
 4. Where the location of a manufacturing site that has obtained conformity recognition for in vitro diagnostic medical devices for clinical performance studies pursuant to Article 5 (2) 1 is changed, or where in vitro diagnostic medical devices for clinical performance studies belonging to a different product group are added, or where such devices are intended to be manufactured or imported for the purpose of sale;
 5. Where a manufacturing site that has obtained conformity recognition for Class I in vitro diagnostic medical devices pursuant to Article 5 (2) 3 intends to manufacture or import Class II, Class III, or Class IV in vitro diagnostic medical devices.
- (5) The entities and methods for conducting conformity recognition assessments under paragraphs (1) through (4) shall be as provided in Annex 4.
- (6) Where an on-site inspection cannot be conducted at a manufacturing site that is subject to such inspection due to circumstances such as war, infectious disease, natural disasters, or other similar events, the on-site inspection may be temporarily suspended and only a document review shall be conducted.
- (7) Manufacturers or importers for whom only document review was conducted under paragraph (6) shall submit test reports conforming to their self-quality control test specifications for each manufacturing or import unit to the Commissioner of Regional Office at each instance of manufacture or import.
- (8) In Article 11 (1) 1 and Article 27 (2) 2 of the Enforcement Rule of the Act on In Vitro Diagnostic Medical Devices (hereinafter referred to as the “Enforcement Rule”), the term “ a person prescribed and publicly notified by the Minister of Food and Drug Safety” means a manufacturer or a medical device manufacturer who has been recognized as conforming to the GMP system requirements pursuant to the texts of Article 5 (5) of the Act and Article 6 (4) of the Medical Device Act.
- (9) Where tests or manufacturing processes for quality control are outsourced under Article 11 (2) of the Enforcement Rule, the consignor and the consignee shall faithfully fulfill their respective responsibilities and obligations as prescribed in any of the following subparagraphs:
1. The consignor shall provide the consignee with the GMP standards to be observed.
 2. The consignee shall record manufacturing and quality control information for each product in accordance with the standards referred to in subparagraph 1.
 3. The consignor shall receive the records referred to in subparagraph 2 from the consignee and retain them for one year from the date of expiration of the product’s shelf life (provided, however, that where no shelf life is specified, the records shall be retained for a period corresponding to the product’s service life).

Article 7 (Application for Conformity Recognition Assessments) (1) A person who falls under any subparagraph of Article 3 (1) and seeks to undergo conformity recognition assessments under

this GMP shall submit an application in Form 1, along with the following documents, to the head of the audit organization. In this case, the manufacturing site shall have quality control records for at least one manufacturing unit, and the preferred date for the on-site inspection shall be finalized and submitted at least 20 days before the inspection start date.

1. A copy of the manufacturing (import) business license for in vitro diagnostic medical devices or a copy of the conditional manufacturing (import) business license for in vitro diagnostic medical devices (excluding cases where no such initial assessment or license for manufacturing (importing) in vitro diagnostic medical devices (conditional) for clinical performance study is held).
2. The following documents corresponding to each item:
 - (a) An overview of the manufacturing site (including the name of the site and the address of each facility; if there are multiple sites, all site names must be included), organizational chart, number of employees, and in vitro diagnostic medical devices manufactured;
 - (b) A copy of the quality management system conformity certificate issued by the regulatory authority or an agency delegated by the regulatory authority (only applicable to Article 6 (2) and Article 6 (6)) and on-site inspection results (only applicable to Article 6 (2) 2 and Article 6 (6), including any follow-up actions taken in response to the inspection results);
 - (c) A description of facility conditions for each manufacturing site subject to assessment [including floor plans of work areas, test laboratories, and storage facilities (for software manufacturing sites, only if such work areas, test laboratories, or storage facilities exist), and lists of facilities and equipment], cleanroom procedures (if applicable), and procedures for monitoring and measurement equipment that specify monitoring cycles;
 - (d) The quality manual of the manufacturing site (including the quality policy);
 - (e) Procedures and test reports related to finished product testing (e.g., final release inspection) for the core product of the manufacturing site (including documentation demonstrating sterilization for sterile products);
 - (f) Purchasing and outsourcing procedures for the core product of the manufacturing site, names of major suppliers (including contracted suppliers), and scope of work;
 - (g) Device Master Records of the core product for the manufacturing site (including descriptions of specific manufacturing processes such as sterilization or software, as applicable), and procedures for validation of sterilization, where applicable;
 - (h) Checklist for Annex 2 criteria of the manufacturing site;
 - (i) Declaration of conformity to Annex 2 criteria of the manufacturing site;
 - (j) The designation certificate for the core innovative medical device.
3. Notwithstanding subparagraph 2, when undergoing assessment using the conformity recognition results obtained under the Medical Device Single Audit Program under Annex 1, subparagraph 68 (hereinafter referred to as the “use of the Medical Device Single Audit Program”), the documents in any of the following items shall be submitted:

- (a) A copy of the MDSAP conformity recognition certificate and the accompanying assessment results (including, where nonconformities were identified, the nonconformity report issued by the audit organization and the corrective and preventive action plan or results submitted by the manufacturing site that have been confirmed by the organization as compliant).
- (b) Device Master Records for the product belonging to the highest classification level within each product group of the manufacturing site.

Provided, however, that for an assessment for change, the Device Master Record shall be that of the product belonging to the highest classification level within the product group of the manufacturing site and having the highest manufacturing or import volume.

- (c) The following documents related to the quality management system:
 - 1) Quality manual of the manufacturing site;
 - 2) Procedures related to record management;
 - 3) Procedures that define the scope of responsibilities of the quality manager;
 - 4) Procedures for managing medical devices subject to traceability (where applicable);
 - 5) Procedures for adverse event reporting and advisory notices.
- (d) Documents demonstrating the correlation between the products covered by the MDSAP conformity recognition certificate and the products subject to conformity recognition assessments.

4. Notwithstanding subparagraph 2, where a manufacturing site qualifies as an Excellent Manufacturing Site and undergoes a periodic assessment, the following documents shall be submitted in lieu of the documents required under subparagraph 2:

- (a) Documentation confirming that the site falls under Annex 1, subparagraph 69 (d);
- (b) The Device Master Record for the core product that belongs to the highest classification level within each product group of the manufacturing site and has the highest manufacturing or import volume;
- (c) The following documents demonstrating the appropriateness of quality control over the past three years:
 - 1) Procedures and test reports related to finished product testing (e.g., final release inspection) for the core product (including sterilization validation procedures and test reports for sterile products);
 - 2) Documents on corrective and preventive actions taken in the last three years in accordance with the criteria set out in Annex 2;
 - 3) Checklist under Annex 2 and declaration of conformity.

- (2) The submission documents for the core product falling under Article 7 (1) 2 (e), (f), (g), and (h) shall be the documents for the products corresponding to each of the following subparagraphs.

1. Where two or more products are submitted, the product belonging to the highest classification level within each product group of the manufacturing site shall be selected.
 2. Notwithstanding subparagraph 1, in the case of a periodic assessment under Article 4 (2), the product belonging to the highest classification level of the manufacturing site and having the highest manufacturing or import volume among the products under the assessment shall be selected.
 3. Notwithstanding subparagraph 1, in the case of an assessment for change under Article 4 (3), the product belonging to the highest classification level within each product group of the manufacturing site and having the highest manufacturing or import volume shall be selected.
- (3) A manufacturer or importer required to undergo a periodic assessment under Article 4 (2) shall apply for the periodic assessment to the head of the audit organization by submitting an application in Form 1, accompanied by the documents under Article 7 (1) 1 and 2, no later than three months before the expiration date stated on the conformity recognition certificate. In such cases, the desired on-site inspection date shall be fixed and applied for no later than 20 days before the expiration date stated on the conformity recognition certificate, and if the desired on-site inspection date is not confirmed at the time of application submission, the applicant shall submit the desired date in writing no later than 20 days before the start date of the requested on-site inspection.
- (4) Where a manufacturer or importer has multiple manufacturing sites subject to periodic assessment under paragraph (3), a consolidated application for periodic assessment may be submitted. Provided, however, that manufacturing sites that received the conformity recognition certificate using the Medical Device Single Audit Program or those designated as Excellent Manufacturing Sites shall be excluded from periodic assessment consolidated applications.
- (5) A person who intends to submit a consolidated periodic assessment application under paragraph (4) shall prepare the documents required under paragraph (3) and the manufacturing site summary sheet in Form 1, and submit them to the head of the audit organization.
- (6) Where Article 6 (2) 3 applies because another manufacturer or importer holds a valid conformity recognition certificate for the relevant manufacturing site under this GMP, only the following documents among those required under paragraph (1) may be submitted along with the application in Form 1:
1. A copy of the manufacturing (import) business license for in vitro diagnostic medical devices or a copy of the conditional manufacturing (import) business license for in vitro diagnostic medical devices (excluding cases where no such initial assessment or license for manufacturing (importing) in vitro diagnostic medical devices (conditional) for clinical performance study is held).
 2. The documents under Article 7 (1) 2 (g) (excluding sterilization validation procedures) and (h);
 3. The document of the manufacturing site demonstrating that the products are manufactured under the same system at the same manufacturing site.
- (7) When any of the following circumstances occurs, an Excellent Manufacturing Site under

Annex 1, subparagraph 69, or a manufacturer or importer that has been issued a conformity recognition certificate under Article 6 (6) shall submit an application in Form 1 to the head of the audit organization within 10 days from the date of occurrence. In such cases, the applicant may omit the supporting documents for Form 1.

1. Where an Excellent Manufacturing Site no longer satisfies any of the criteria listed in Annex 1, subparagraph 69;
 2. Where the conditions at the location or region of a manufacturing site for which an on-site inspection was deferred under Article 6 (6) have ended.
- (8) If a person required to apply for a periodic assessment fails to do so at least three months before the expiration date under paragraph (3), the head of the audit organization shall report the name of the company, its representative, and other relevant information to the Commissioner of Regional Office.
- (9) For manufacturing sites subject to on-site inspection under Article 6 (5), the documents listed in Article 7 (1) 2 (b), (h), and (i) may be omitted.
- (10) Costs and other matters related to conformity recognition assessments shall be governed by Annex 2 of the Enforcement Rule of the Medical Device Act.

Article 8 (Procedures for Conformity Recognition Assessments) (1) Upon receiving an application for conformity recognition and related assessments under Article 7, the head of the audit organization shall, in accordance with the following subparagraphs, report the receipt and request confirmation of whether an on-site inspection is required under Article 6 (3) from the Commissioner of Regional Office. Provided, however, that where the assessment entity is single-agency under Article 6 (5) and Annex 4, and Article 6 (6) does not apply, reporting the receipt to the Commissioner of Regional Office may be omitted.

1. The head shall verify within five days whether all required documents under Article 7 (1) through (6) have been submitted, and if complete, shall report and request within seven days after receipt.
 2. If, as a result of confirming whether the supporting documents under subparagraph 1 have been submitted, any deficiency such as missing supporting documents is identified, the applicant shall be requested to supplement them by setting a supplementation deadline for the submission of such documents in accordance with the Administrative Procedures Act.
 3. Notwithstanding subparagraph 1, where an application additionally includes a confirmed desired on-site inspection date, the report and request shall be made no later than the day following the receipt of the application.
- (2) Within ten days after receiving the report and request under paragraph (1), the Commissioner of Regional Office shall determine the need for on-site inspection under Article 6 (3), the assessment entity under Article 6 (5), and the assessment method, and shall notify the head of the audit organization, who shall in turn notify the applicant.
- (3) The head of the audit organization shall notify the applicant in writing of the conformity recognition assessment results under Article 6 within 30 days from the date the application for conformity recognition was received. Provided, however, that if an on-site inspection is required

under paragraph (2), the period from the date of notification to the applicant until the start of the on-site inspection under this paragraph shall not be included in the processing period.

- (4) Where an on-site inspection is required under paragraph (2), the head of the audit organization shall conduct the on-site inspection in accordance with the following subparagraphs:
 1. The assessment entity determined under paragraph (2) shall conduct the on-site inspection on the notified inspection date, and the head of the audit organization shall notify the applicant in writing of the results within seven days from the end of the inspection visit or within the processing period under paragraph (3). Provided, however, that if the results of the on-site inspection are determined to be nonconforming, the Commissioner of Regional Office shall be notified immediately.
 2. If an on-site inspection under subparagraph 1 cannot be conducted due to war, epidemics, natural disasters, or other similar circumstances during the inspection period, or if the inspection cannot proceed normally due to delayed or refused submission of inspection documents, the on-site inspection may be suspended. In such cases, the applicant shall be immediately notified in writing of the reasons for the suspension, and the Commissioner of Regional Office shall be notified accordingly.
 3. When the reason for suspension under subparagraph 2 is confirmed to be resolved, the on-site inspection may resume, and the results shall be notified to the applicant in writing within seven days from the completion date of the resumed inspection or within the processing period under paragraph (3).
- (5) Where the head of the audit organization is unable to notify the applicant of the conformity recognition assessment results within the processing period under paragraphs (3) and (4) due to unavoidable reasons such as natural disasters, the head shall notify the applicant in advance of the delay.
- (6) Where the results of the conformity recognition assessments fall under Annex 2, Section 9.4 (2) (a) 2, the head of the audit organization shall take the actions in any of the following subparagraphs:
 1. Require the applicant to submit corrective documentation and a corrective action plan, and evaluate conformity within 15 days from the end of the conformity recognition assessment.
 2. Review the documents submitted under subparagraph 1 and notify the applicant in writing of the results.
 3. If the applicant fails to submit the required documents within 15 days or the submitted documents are not adequate, supplementary measures shall be taken in accordance with paragraph (7).
 4. If the applicant fails to submit the implementation results of corrective actions under subparagraph 1 within three months or the submitted results are inadequate, the head of the audit organization shall immediately report to the Commissioner of Regional Office and notify the applicant in writing.
- (6) Where matters requiring supplementation are identified, the head of the audit organization shall take the following actions with respect to the results of the conformity recognition assessment:

1. Supplementation procedures and deadlines shall be required in accordance with the Civil Petitions Treatment Act, and the assessment entity under paragraph (2) shall review the results submitted by the applicant and evaluate conformity.
 2. If the applicant fails to submit the required documents within the deadline, the assessment entity shall determine as nonconforming.
 3. Where an application is determined nonconforming under subparagraph 2, the fact shall be reported immediately to the Commissioner of Regional Office, and the applicant shall be notified in writing.
- (8) The head of the audit organization shall prepare a result report in Form 3 and submit it to the Commissioner of Regional Office in accordance with the following subparagraphs. Provided, however, that submission may be omitted where the assessment entity is single-agency under Article 6 (5) and Annex 4, and the case does not fall under Article 6 (6).
1. Assessment results under paragraph (3) shall be submitted within the processing period prescribed in paragraph (3).
 2. Assessment results under paragraph (4) 1 shall be submitted within seven days from the end of the on-site inspection.
 3. Where the on-site inspection is resumed pursuant to paragraph (4) 3, the results shall be submitted within seven days from the end of the resumed inspection visit or within the processing period under paragraph (3).
- (9) Where the results of conformity recognition assessments under Article 6 are conforming, the head of the audit organization shall issue the Certificate of GMP (Form 2 or Form 2-2, pursuant to Annex 5) (hereinafter referred to as the “certificate of conformity”) to the applicant. Provided, however, that the certificate may be issued in any case of the following subparagraphs:
1. Where the conformity recognition assessment results fall under Annex 2, 9.4 (2) (a) 2, a conditional certificate of conformity may be issued on the condition that corrective actions are implemented within three months;
 2. Where document review is deemed to conform under Article 6 (6), a temporary certificate of conformity may be issued.
- (10) Where an applicant objects to the assessment results under Article 6, the applicant may file an objection with the head of the relevant audit organization in accordance with the Civil Petitions Treatment Act.
- (11) When an objection is filed under paragraph (9), the head of the audit organization shall report both the content of the objection and the handling results to the head of the Commissioner of Regional Office.
- (12) Where multiple manufacturing sites are submitted as a consolidated periodic assessment application under Article 7 (4), the Commissioner of Regional Office and the head of the audit organization shall conduct an on-site inspection for one manufacturing site, selected by comprehensively considering the following criteria:
1. A manufacturing site that produces the product of the highest class;

2. A manufacturing site with high domestic production or import volume;
 3. A manufacturing site that has not previously undergone an on-site inspection.
- (13) For manufacturing sites that apply for conformity recognition assessments under Article 7 (7), the head of the audit organization shall conduct an on-site inspection within three months from the date of application.

Article 9 (Expiration Date of the Certificate of Conformity) (1) The expiration date of a certificate of conformity issued following an initial assessment shall be three years from the date of issuance. Provided, however, that the Minister of Food and Drug Safety may extend this period where deemed necessary.

- (2) When conformity recognition is granted following an additional assessment or an assessment for change, the existing expiration date shall remain unaffected.
- (3) The expiration date of a certificate of conformity issued following a periodic assessment shall be three years from the day after the expiration date of the previous certificate. Provided, however, that where the certificate is issued after the previous expiration date, or where the periodic assessment was submitted as a consolidated application, the expiration date shall be three years from the issuance date. Where conformity recognition assessments have been conducted pursuant to Article 6 (2) 3 or 5, the expiration date for the relevant manufacturing site shall be set to match the expiration date of the manufacturer or importer that previously underwent conformity recognition assessments. Where conformity recognition assessments have been conducted based on the documents under Article 7 (1) 3, the expiration date for the relevant manufacturing site shall be set to be identical to that of the MDSAP conformity recognition certificate.

Article 10 (Reissuance of the Certificate of Conformity) (1) A manufacturer or importer who has been issued a certificate of conformity under Article 8 (9) may apply to the audit organization that issued the certificate for reissuance if the certificate is lost or otherwise needs to be reissued.

- (2) Upon receiving an application for reissuance under paragraph (1), the head of the audit organization shall reissue the certificate of conformity in accordance with Annex 5.
- (3) A manufacturer or importer may either obtain reissuance of the certificate of conformity or record the changes in any of the following subparagraphs on the reverse side of the certificate for control purposes:
 1. Change in the name of the manufacturing or importing business;
 2. Change in the location of the manufacturing site (limited to changes under the proviso of Article 4 (1) 3);
 3. Change in the location of an importing business;
 4. Change in the trade name of the legal manufacturer
 5. Change in the location of the legal manufacturer (limited to changes under the proviso of Article 4 (1) 3);

6. Change in the manufacturer's trade name;
 7. Change in the manufacturer's location (limited to changes under the proviso of Article 4 (1) 3).
- (4) Where a manufacturer or importer records changes on the reverse side of the certificate of conformity under paragraph (3), the date and details of the approval of change shall also be recorded.
- (5) A manufacturer or importer who has been issued a certificate of conformity under Article 8 (9) 1 may apply to the issuing audit organization for replacement of the certificate only after corrective actions have been completed, and may receive a replacement certificate accordingly.

Article 11 (Return of the Certificate of Conformity) (1) A manufacturer or importer who has been issued a certificate of conformity under Article 8 (9) may return the certificate to the issuing audit organization, specifying the relevant reasons in detail, when any of the following circumstances occurs:

1. Where the manufacturing business license or import business license is revoked;
 2. Where the manufacturing approval, import approval, manufacturing certification, or import certification is revoked;
 3. Where any other reasons exist requiring the manufacturer or importer to return the certificate of conformity.
- (2) In accordance with paragraph (1), the head of a quality management examination agency, etc. who has received the return of the certificate of conformity shall, immediately upon receipt of the returned certificate of conformity, report the fact of its return to the Commissioner of Regional Office.

Article 12 (Marking for Conformity Recognition Assessments) A manufacturer or importer may affix the conformity recognition marking, as specified in Annex 6, to in vitro diagnostic medical devices that belong to the same product group as the manufacturing site which has undergone conformity recognition assessments.

Article 13 (Duties of the Audit Organization) The duties of the audit organization under Article 4 of the Act on In Vitro Diagnostic Medical Devices and Article 48 of the Enforcement Rule of the Medical Device Act shall be as follows:

1. Conducting conformity recognition assessments under the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices;
2. Issuing certificates of conformity;
3. Compiling statistics and providing administrative support related to conformity recognition assessments;
4. Other matters necessary for conformity recognition assessments.

Article 14 (Reporting) (1) The head of the audit organization shall submit the quarterly report on the results of conformity recognition assessments for in vitro diagnostic medical devices (Form 4) and the detailed list of such assessment results (Form 5) to the Minister of Food and Drug Safety and the Commissioner of Regional Office within 20 days after the end of each quarter. Provided, however, that where the Minister of Food and Drug Safety or the Commissioner of Regional Office requests separate data, the relevant data shall be submitted within seven days from the date of the request.

(2) Where there are personnel changes, such as transfers or resignations of assessors, the head of the audit organization shall report such changes to the Minister of Food and Drug Safety within seven days.

Article 15 (Review of Regulation) Pursuant to Article 8 of the Framework Act on Administrative Regulations, the validity of this GMP shall be reviewed every three years as of July 1, 2020 (that is, by June 30 of every third year), and necessary improvements shall be made.

Article 16 (Review Deadline) The Minister of Food and Drug Safety shall review the validity of this Notice every three years as of January 1, 2024 (that is, by December 31 of every third year), pursuant to the Regulation on the Issuance and Management of Directives and Established Rules, and shall take necessary measures for improvement.

ADDENDA <No. 2025-51, Aug. 12, 2025>

This Notice shall enter into force on the date of its promulgation.

[Annex 1] Definitions

[Annex 2] Criteria for Conformity Recognition Assessments of In Vitro Diagnostic Medical Devices

[Annex 3] GMP Product Groups for In Vitro Diagnostic Medical Devices

[Annex 4] Entities and Methods for Conformity Recognition Assessments

[Annex 5] Issuance and Management of Certificates of Conformity

[Annex 6] Marking of Conformity Recognition Assessment

[Form 1] Application for Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices

[Form 2] Certificate of GMP for In Vitro Diagnostic Medical Devices

[Form 3] Report on the Results of Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices

[Form 4] Periodic Report on the Results of Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices

[Form 5] List of the Results of Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices

[Annex 1]

Definitions

(Related to Article 2)

1. “Audit” means a systematic and independent verification activity conducted to determine whether quality-related work and its associated results conform to planned arrangements and whether such arrangements have been effectively implemented and are suitable for achieving the intended objectives.
2. “Verification” means confirmation, through the provision of objective evidence (data demonstrating the existence of something or substantiating a fact) and testing, that specified requirements have been fulfilled.
3. “Review” means an activity conducted to determine the suitability, adequacy, and effectiveness of a subject in order to achieve established objectives.
4. “Management Review” means an activity conducted by top management at planned intervals to evaluate the need for changes to, and the potential for improvement of, the quality management system, including the quality policy and quality objectives, in order to ensure its continuing suitability, adequacy, and effectiveness.
5. “Customer” means a collective term for purchasers and users (patients and healthcare professionals).
6. “Customer Property” means assets owned by the customer, which include each of the following items:
 - (a) Raw materials or components (including packaging materials) provided for inclusion in the product;
 - (b) Products supplied for repair, maintenance, or upgrading;
 - (c) Products supplied for additional processes (such as packaging, sterilization, or testing using customer-provided materials);
 - (d) Services provided on behalf of the customer (e.g., transportation of customer property to a third party);
 - (e) Customer intellectual property (e.g., specifications, drawings, and asset information).
7. “Supplier” means an individual or organization that provides all or part of components, processes, or services.
8. “Calibration” means the operation that confirms that a specific device or instrument produces results within the prescribed limits when measured against measurement standards recognized under international or national standards.
9. “Advisory notice” means a communication issued by the manufacturing site after delivery of an in vitro diagnostic medical device for the purpose of providing additional information or recommending actions regarding the use, change, return, or disposal of the in vitro diagnostic medical device.

10. “Record” means a document that states achieved results or provides evidence of activities performed.
11. “Infrastructure” means the system of facilities, equipment, and services required for the operation of an organization.
12. “Single-agency Assessment” means conducting an on-site inspection for conformity recognition assessments solely by the audit organization.
13. “Sterilization” means a process that uses physical or chemical methods to destroy all types of microorganisms, including spores.
14. “Sterile Barrier System” means the minimum packaging that prevents microbial ingress and ensures that the product is presented sterile at the point of use.
15. “Sterilized Device” means an in vitro diagnostic medical device that undergoes a sterilization process during manufacturing process and is labeled as sterilized on the product container or packaging with indications such as the word “sterile,” the sterilization method, and the expiration date.
16. “Document” means criteria or procedures that are specified or created prior to performing an activity.
17. “Batch” means a specified quantity of products produced during a defined manufacturing cycle, intended to have uniform characteristics and quality.
18. “Complaint” means any written, electronic, or oral communication alleging defects related to the identification, quality, durability, reliability, usability, safety, or performance of an in vitro diagnostic medical device after it has left the organization’s control, or alleging defects in services that affect the performance of such devices.
19. “Service” means an intangible output of an organization involving activities that necessarily occur between the organization and the customer, such as decision-making, relationship-maintenance activities, repair, transportation, and information delivery.
20. “Senior Quality Auditor” means a person who is affiliated with the audit organization designated by the Minister of Food and Drug Safety and who oversees conformity recognition assessment activities.
21. “Design and Development” means a set of processes that transforms requirements into specified characteristics or into the specifications of a product, process, or system.
22. “Installation” means the activities of placing a product at the site of use and enabling it to operate in accordance with its intended purpose, including arrangements such as piping and waste disposal.
23. “Performance Evaluation” means the assessment and data analysis conducted to identify or verify the ability of an in vitro diagnostic medical device to achieve its intended use.
24. “Cleaning” means a chemical or physical method used to remove contaminants or microorganisms from surfaces.
25. “Life Cycle” means all stages of the life of an in vitro diagnostic medical device, from initial conception to final disposal and processing.

26. “Correction” means an action taken to eliminate a detected nonconformity.
27. “Corrective Action” means an action taken to eliminate the cause of a detected nonconformity or other undesirable situation.
28. “Identification” means the activities performed at all stages—including raw materials, materials, in-process products, and finished products—to ensure product traceability and proper transfer to the next process or shipment.
29. “Safety” means the property of being free from hazards or the risk of malfunction, and of ensuring safe performance.
30. “Preventive Action” means an action taken to eliminate the cause of a potential nonconformity or other undesirable situation to prevent its occurrence.
31. “Requirement” means an expressed need or expectation, generally one that is implicit or obligatory.
32. “Manufacturing Site of Potential Concern” means a manufacturing site that falls under any of the following cases:
 - (a) If the applicant manufacturing site has failed a GMP assessment within the past three years;
 - (b) If the product group subject to the application has been found noncompliant in quality based on sampling inspection results within the past three years;
 - (c) If the product subject to the application has been subject to compulsory recall, suspension of use, suspension of manufacturing, or similar regulatory actions by domestic or foreign government authorities within the past three years.
33. “Risk Management” means an advanced safety management system that analyzes and evaluates all risks that may arise throughout the entire lifecycle of an in vitro diagnostic medical device—including design, production, distribution, and use—and manages those risks to an acceptable level.
34. “Validation” means the act of verifying and documenting that methods of manufacturing and quality control—including the structure and facilities of the manufacturing site, manufacturing processes, and systems—achieve the intended results.
35. “Revalidation” means validation activities that are conducted either periodically or in response to changes to raw materials, manufacturing processes, machinery and equipment, or manufacturing systems that may have an impact on product quality.
36. Deleted
37. “Rework” means an operation performed to bring a nonconforming product into conformity with quality standards by applying a method different from the established manufacturing process.
38. “Conformity Recognition Assessments” means assessments conducted to determine whether an in vitro diagnostic medical device can be consistently manufactured with a high level of assurance of safety, effectiveness, and quality appropriate for its intended use.
39. “Procedure” means an established method for performing an activity or process.

40. “Manufacturing” means all operations required to produce in vitro diagnostic medical device, including design, packaging, and labeling.
41. “Manufacturing Process” means the activities related to the design and development, procurement of raw materials, incoming inspection, production, in-process inspection, finished product inspection, packaging, labeling, shipment, and storage for the manufacture of in vitro diagnostic medical device.
42. “Manufacturing Unit” or “Lot” means a unit of finished products, components, or raw materials manufactured under the same manufacturing conditions and having uniform characteristics and quality.
43. “Legal Manufacturer” means a person who, under a contractual relationship, entrusts all or the principal manufacturing processes of an in vitro diagnostic medical device falling under any of the following items to a manufacturer under subparagraph 44 and bears statutory responsibility therefor.
 - (a) An in vitro diagnostic medical device that has obtained, or intends to obtain, authorization or certification from the Minister of Food and Drug Safety;
 - (b) An in vitro diagnostic medical device that has submitted, or intends to submit, a notification to the Minister of Food and Drug Safety.
44. “Manufacturer” means a person who performs all operations necessary to produce an in vitro diagnostic medical device, or a person who, under a contractual relationship, is entrusted by the legal manufacturer with the principal manufacturing processes of the product.
45. “Product” means the output of a process and includes each of the following items:
 - (a) Hardware;
 - (b) Software;
 - (c) Processed materials;
 - (d) Services.
46. “Production Realization” means the combined sequence of processes and detailed processes required to achieve a product.
47. “Device Master Record (DMR)” means a document that contains detailed information on all manufacturing processes—from product design to shipment (installation)—including specifications, manufacturing processes, manufacturing criteria, and installation, for each in vitro diagnostic medical device item or model.
48. “Organization” means a group of personnel and facilities with an established arrangement of responsibilities, authorities, and interrelationships.
49. “Critical/Core Process” means a process in which an intermediate product at a particular stage acquires the form of a finished in vitro diagnostic medical device and, even after further processing, its configuration or performance remains unchanged.
50. “Good Manufacturing Practice (GMP) for In Vitro Diagnostic Digital Medical Devices” means a quality management system that prescribes the requirements to be observed to ensure the quality of in vitro diagnostic medical devices throughout all processes—from development and

procurement of raw materials to manufacturing, testing, packaging, installation, storage, shipment, and the handling of complaints or returns—so that products of consistently high quality may be supplied.

51. “Traceability” means identifying and managing the sources of raw materials and components of an in vitro diagnostic medical device, its quality control history, and information on its distributors and users (locations).
52. “Measuring Equipment” means measuring instruments, software, measurement standards, reference materials, auxiliary devices, or combinations thereof required to carry out a measurement process.
53. “Concession” means written approval to use or release a specific product that has minor nonconformities not directly related to safety or effectiveness, provided that statutory requirements are met.
54. “Product Group” means a set of products that share similar raw materials, manufacturing processes, and quality control systems.
55. “Quality” means the degree to which a set of inherent characteristics fulfills requirements.
56. “Quality Management System” means a management system for efficiently managing the organization, responsibilities, procedures, processes, and resources for product quality management.
57. “Quality Control (QC)” means the part of quality management that focuses on fulfilling quality requirements.
58. “Quality Manual” means a document that defines the manufacturer’s quality management system and describes the details or requirements appropriate to the scale and complexity of the organization.
59. “Quality Objective” means a target or objective that is pursued with respect to quality.
60. “Quality Policy” means the overall intentions and direction of an organization related to quality, as formally expressed by top management.
61. “Quality Nonconformity” means a case in which an in vitro diagnostic medical device manufactured or imported for the purpose of sale by an in vitro diagnostic medical device manufacturer or importer is found to be nonconforming as a result of inspection under Article 32 or Article 33 of the Medical Device Act.
62. “Quality Auditor” means a person affiliated with the audit organization designated by the Minister of Food and Drug Safety who conducts conformity recognition assessment activities.
63. “Process” means a set of interrelated or interacting activities that transforms inputs into outputs.
64. “Joint” means that the on-site inspection for conformity recognition assessments is conducted jointly by the MFDS and an audit organization, or by the Regional Office of Food and Drug Safety and an audit organization.
65. ‘Innovative Medical Device Software’ means medical device software designated as an innovative medical device and developed and manufactured as stand-alone software.

66. “Effectiveness” means the extent to which planned activities are realized and planned results are achieved.
67. “Efficiency” means the ratio or relationship between the results achieved and the resources used.
68. “Medical Device Single Audit Program (MDSAP)” means a system in which the results of conformity recognition and related audits conducted by audit organizations (AO) jointly designated and operated by participating jurisdictions, including the United States and Japan, are mutually recognized by multiple countries.
69. “Excellent Manufacturing Site” means a manufacturing site that satisfies all of the following items:
- (a) It is not classified as a Manufacturing Site of Potential Concern under subparagraph 32;
 - (b) It has not been subject to administrative dispositions under the Act on In Vitro Diagnostic Medical Devices or the Medical Device Act within the past three years;
 - (c) During the most recent periodic assessment, an on-site inspection was conducted and the result was ‘conforming’;
 - (d) For imported in vitro diagnostic medical devices, where the applicant holds a valid certificate of conformity to the quality management system issued by the regulatory authority or an organization delegated by the regulatory authority, and can demonstrate that all corrective actions for any nonconformities identified in the certificate have been completed.

[Annex 2]

Criteria for Conformity Recognition Assessments of In Vitro Diagnostic Medical Devices

(Related to Article 5 and 6)

1. Purpose

The purpose of the Good Manufacturing Practice (GMP) for In Vitro Diagnostic Medical Devices is to specify the requirements of the quality management system applied to the design and development, production, installation, and servicing of in vitro diagnostic medical devices by manufacturers or by manufacturing sites of imported in vitro diagnostic medical devices (hereinafter referred to as the “organization”).

2. Scope of Application

Where, due to the activities performed by the organization or the characteristics of in vitro medical devices to which this GMP apply, any requirement under Chapter 6 (Resource Management), Chapter 7 (Production Realization), or Chapter 8 (Measurement, Analysis, and Improvement) is not applicable, the organization may exclude such requirement from its quality management system. Provided, however, that the organization shall document the justification for each excluded requirement in accordance with Section 4.2.2.

3. Definitions

- (a) With respect to the requirements in this GMP that are limited to those “where applicable,” the organization shall be deemed applicable unless it otherwise provides reasonable justification.
- (b) Where a requirement in this GMP is stated as “shall document,” it also includes the requirement to establish, implement, and maintain the corresponding content.
- (c) In applying this GMP, the definitions of other terms shall be in accordance with Annex 1.

4. Quality Management System

4.1 General Requirements

- 4.1.1** (a) The organization shall document its quality management system in accordance with the requirements of this GMP and applicable statutory requirements, and shall maintain the effectiveness of the quality management system.
- (b) The organization shall establish, implement, and maintain specific requirements, procedures, activities, or methods of operation that must be documented pursuant to this GMP and applicable statutory requirements.
- (c) The organization shall document the roles required to perform in accordance with applicable statutory requirements.

4.1.2 The organization shall implement the following:

- 1) Determine the processes necessary for the quality management system, taking into account the roles performed by the organization, and apply those processes throughout the organization;
- 2) Apply a risk-based approach to the appropriate management of processes required for the quality management system;
- 3) Determine the sequence and interaction of those processes.

4.1.3 For the processes of the quality management system, the organization shall perform the following:

- 1) Determine the criteria and methods necessary to ensure the effective operation and control of the processes;
- 2) Ensure the availability of information and resources necessary to support the operation and monitoring of the processes;
- 3) Take necessary actions to achieve planned results and maintain the effectiveness of the processes;
- 4) Monitor such processes and, where applicable, measure and analyze them;
- 5) Prepare and maintain the records necessary to demonstrate conformity with this GMP and compliance with applicable statutory requirements.

4.1.4 The organization shall control quality management system processes in conformity with this GMP and applicable statutory requirements. Where such processes are to be changed, the organization shall perform the following:

- 1) Evaluate whether the change to the process affects the quality management system;
- 2) Evaluate whether the change to the process affects the in vitro diagnostic medical devices produced under the quality management system;
- 3) Control such matters in accordance with this GMP and applicable statutory requirements.

4.1.5 (a) Where the organization outsources any process that affects product conformity requirements, it shall ensure that such processes are monitored and controlled.

- (b) The organization shall retain responsibility for ensuring compliance with this GMP, customer requirements, and applicable statutory requirements for outsourced processes.
- (c) Control of outsourced processes shall be proportionate to the associated risks and to the capability of the contracted supplier to meet the requirements under paragraph 7.4, and shall include a written quality agreement.

4.1.6 (a) The organization shall document procedures for the validation of computer software used in the quality management system.

- (b) Such software shall be validated prior to initial use, and where applicable, shall also be validated following any changes to the software or its application.
- (c) Specific approaches and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software.
- (d) Records of these activities shall be maintained.

4.2 Documentation Requirements

4.2.1 General Requirements

Documentation of the quality management system shall include the following:

- 1) Documented quality policy and quality objectives;
- 2) Quality Manual;
- 3) Documented procedures and records required by this GMP;
- 4) Documents, including records, determined by the organization to be necessary to ensure the effective planning, operation, and control of its processes;
- 5) Any additional documentation required by applicable statutory requirements.

4.2.2 Quality Manual

- (a) The organization shall document a quality manual that includes the following:
 - 1) The scope of the quality management system, including details of any exclusions or non-applications and their justification;
 - 2) Documented procedures established for the quality management system and reference to such documents;
 - 3) A description of the interactions between processes of the quality management system.
- (b) The quality manual shall briefly specify the structure of the documents used in the quality management system.

4.2.3 In Vitro Diagnostic Medical Device File

- (a) For each in vitro diagnostic medical device model or item, the organization shall establish and maintain one or more files containing or referencing documents generated to demonstrate conformity with this GMP and compliance with applicable statutory requirements.
- (b) The contents of the in vitro diagnostic medical device file shall include, but not be limited to, the following:
 - 1) A general description of the in vitro diagnostic medical device, including its intended use/purpose and all instructions for use;

- 2) Product specifications;
- 3) Specifications and procedures for manufacturing, packaging, storage, handling, and distribution;
- 4) Measurement and monitoring procedures;
- 5) Installation requirements, where applicable;
- 6) Servicing procedures, where applicable.

4.2.4 Control of Documents

- (a) Documents required by the quality management system shall be controlled. Records are a special type of document and shall be controlled in accordance with Section 4.2.5.
- (b) Procedures necessary to control the following shall be documented:
 - 1) Review and approval of documents for adequacy prior to issuance;
 - 2) Review, update, and re-approval of documents as necessary;
 - 3) Ensure that changes to documents and the current revision status are identified;
 - 4) Ensure that applicable versions of documents are available at points of use;
 - 5) Ensure that documents remain legible and readily identifiable;
 - 6) Ensure that documents of external origin determined by the organization to be necessary for the planning and operation of the quality management system are identified and their distribution controlled;
 - 7) Prevent deterioration or loss of documents;
 - 8) Preventing the unintended use of obsolete documents and applying appropriate identification if they are retained for any purpose.
- (c) The organization shall ensure that document changes are reviewed and approved by the original approving authority or another designated authority with access to background information on which the organization's decisions are based.
- (d) The organization shall retain at least one copy of obsolete controlled documents for a period corresponding to the product's life cycle, which shall be no less than the retention period required for records.

4.2.5 Control of Records

- (a) Records shall be established and maintained to demonstrate the effective operation of the quality management system and conformity to requirements.
- (b) The organization shall document procedures defining the controls needed for the identification, storage, security and integrity, retrieval, retention period, and disposition of records.
- (c) The organization shall establish and implement methods to protect personal health information contained in records in accordance with applicable statutory requirements.

- (d) All records shall be easily legible, readily identifiable, and retrievable. Any changes to records shall remain identifiable.
- (e) The organization shall retain records for a period corresponding to the product's life cycle. This period shall be at least five years from the date of manufacture and at least two years after release to the market.

5. Management Responsibility

5.1 Management Commitment

Top management shall demonstrate its commitment to the development and implementation of the quality management system and to maintaining its effectiveness through the following:

- 1) Communicate the importance of fulfilling customer requirements and applicable statutory requirements with the organization;
- 2) Establish the quality policy;
- 3) Ensure that quality objectives are established;
- 4) Conduct management reviews;
- 5) Ensure the availability of resources.

5.2 Customer Focus

Top management shall ensure that customer requirements and applicable statutory requirements are determined and fulfilled.

5.3 Quality Policy

Top management shall ensure that the quality policy:

- 1) Is appropriate to the purpose of the organization;
- 2) Includes a commitment to comply with requirements and to maintain the effectiveness of the quality management system;
- 3) Provides a framework for establishing and reviewing quality objectives;
- 4) Is communicated and understood within the organization;
- 5) Is reviewed for continuing suitability.

5.4 Planning

5.4.1 Quality Objectives

- (a) Top management shall ensure that the quality objectives include the necessary elements to meet applicable statutory requirements and product requirements, and that they are established at relevant functions and levels within the organization.
- (b) The quality objectives shall be measurable and shall be consistent with the quality policy.

5.4.2 Planning of the Quality Management System

Top management shall ensure the following:

- 1) The planning of the quality management system is carried out not only to achieve the quality objectives but also to meet the requirements of Section 4.1;
- 2) The integrity of the quality management system is maintained when changes to the quality management system are planned and implemented.

5.5 Responsibility, Authority, and Communication

5.5.1 Responsibility and Authority

- (a) Top management shall ensure that responsibilities and authorities within the organization are defined, documented, and communicated.
- (b) Top management shall document the interrelationships of all personnel who manage, perform, and verify work affecting quality, and shall ensure the authority and independence necessary to perform such work.

5.5.2 Quality Manager

Top management shall appoint a person within the organization who, irrespective of other responsibilities, has the authority and responsibility to perform the following:

- 1) Ensure that the processes necessary for the quality management system are documented;
- 2) Report to top management on the performance and effectiveness of the quality management system and on the need for improvement;
- 3) Ensure that awareness of applicable statutory requirements and quality management system requirements is promoted throughout the organization.

5.5.3 Internal Communication

Top management shall ensure that appropriate communication processes are established within the organization and that communication regarding the effectiveness of the quality management system is carried out.

5.6 Management Review

5.6.1 General Requirements

- (a) The organization shall document the procedure for management review.
- (b) Top management shall review the quality management system at documented planned intervals to ensure its continuing suitability, adequacy, and effectiveness.
- (c) Management reviews shall evaluate the need for changes to the quality management system, including the quality policy and quality objectives, and shall identify opportunities for improvement.

- (d) Records of management reviews shall be maintained.

5.6.2 Review Inputs

The inputs to management review shall include, but not be limited to, the following:

- 1) Feedback;
- 2) Handling of complaints;
- 3) Reports to regulatory authorities;
- 4) Audits;
- 5) Monitoring and measurement of processes;
- 6) Monitoring and measurement of product;
- 7) Corrective action;
- 8) Preventive action;
- 9) Follow-up actions from previous management reviews;
- 10) Changes that could affect the quality management system;
- 11) Recommendations for improvement;
- 12) New or revised applicable statutory requirements.

5.6.3 Review Outputs

The outputs of management review shall be recorded and shall include decisions and actions related to the reviewed inputs and the following:

- 1) Improvements needed to maintain the suitability, adequacy, and effectiveness of the quality management system and its processes;
- 2) Improvement of product related to customer requirements;
- 3) Changes needed to meet new or revised applicable statutory requirements;
- 4) Resource needs.

6. Resource Management

6.1 Provision of Resources

The organization shall determine and provide the resources needed for:

- 1) Implementing the quality management system and maintaining its effectiveness;
- 2) Meeting applicable regulatory requirements and customer requirements.

6.2 Human Resources

- (a) Personnel performing work affecting product quality shall be competent on the basis of

appropriate education, training, skills, and experience.

- (b) The organization shall establish the competencies required of personnel, provide the necessary training, and establish and document processes to ensure personnel awareness.
- (c) The organization shall perform the following:
 - 1) Determine the competencies needed for personnel performing work that affects product quality;
 - 2) Provide training or take other actions to achieve or maintain the necessary competencies;
 - 3) Evaluate the effectiveness of the actions taken;
 - 4) Ensure that personnel are aware of the relevance and importance of their activities and how they contribute to the achievement of quality objectives;
 - 5) Maintain appropriate records of education, training, skills, and experience.

6.3. Infrastructure

- (a) The organization shall document the infrastructure requirements necessary to ensure conformity to product requirements, prevent product mix-ups, and ensure orderly handling. Where applicable, infrastructure includes:
 - 1) Buildings, workspace, and associated facilities;
 - 2) Process equipment (hardware and software);
 - 3) Supporting services such as transport, communication, or information systems.
- (b) Where maintenance activities of infrastructure, or lack thereof, may affect product quality, the organization shall document the maintenance requirements, including maintenance intervals. Where applicable, these requirements shall apply to equipment used for manufacturing, work environment control, and monitoring and measurement.
- (c) Records of such maintenance activities shall be maintained.

6.4 Work Environment and Contamination Control

6.4.1 Work Environment

- (a) The organization shall document the requirements for the work environment necessary to ensure conformity to product requirements.
- (b) Where work environment conditions may have an adverse effect on product quality, the organization shall document the requirements for the work environment and procedures for monitoring and controlling such conditions.
- (c) The organization shall perform the following requirements:
 - 1) Where personnel may come into contact with the product or the work environment in a manner that could affect the safety or performance of in vitro diagnostic medical devices, requirements for personnel health, cleanliness, and clothing shall be

documented.

- 2) All personnel who work temporarily under special environmental conditions shall be competent or shall be supervised by competent personnel.

6.4.2 Contamination Control

- (a) Where applicable, the organization shall plan and document methods for controlling products that are contaminated or potentially contaminated, in order to prevent contamination of the work environment, personnel, or products.
- (b) For sterilized in vitro diagnostic medical devices, the organization shall document requirements for contamination control related to microorganisms or particulates and shall maintain the required cleanliness during assembly or packaging processes.

7. Production Realization

7.1 Planning of Production Realization

- (a) The organization shall plan and develop the processes needed for production realization. Planning of production realization shall be consistent with the other process requirements of the quality management system.
- (b) The organization shall document one or more processes for risk management during production realization, and records of risk management activities shall be maintained.
- (c) Where applicable, the organization shall determine the following in planning production realization:
 - 1) Quality objectives and requirements for the product;
 - 2) The need to establish and document processes, and to provide specific resources for the product, including infrastructure and work environment;
 - 3) Specific verification, validation, monitoring, measurement, testing and inspection, handling, storage, distribution, and traceability activities required for the product, along with the criteria for product acceptance;
 - 4) Records necessary to demonstrate that production realization processes and their outputs meet requirements.
- (d) The outputs of such planning shall be documented in a form appropriate to the organization's method of operation.

7.2 Customer-Related Processes

7.2.1 Determination of Requirements Related to the Product

The organization shall determine the following:

- 1) Requirements specified by the customer, including those related to delivery and post-delivery activities;

- 2) Requirements not stated by the customer but necessary for known specified or intended use;
- 3) Applicable statutory requirements related to the product;
- 4) User training necessary to ensure stated performance and safe use of the in vitro diagnostic medical device;
- 5) Any additional requirements determined by the organization.

7.2.2 Review of Requirements Related to the Product

- (a) The organization shall review the requirements related to the product. This review shall be conducted prior to the organization's commitment to supply the product to the customer.
 - 1) The requirements for the product are defined and documented;
 - 2) Any contract or order requirements differing from those previously expressed are resolved;
 - 3) Applicable statutory requirements are met;
 - 4) User training determined under Section 7.2.1 is feasible or planned to be feasible;
 - 5) The organization has the capability to meet the defined requirements.
- (b) Records of the results of the review and any actions arising from the review shall be maintained.
- (c) Where the customer does not provide documented requirements, the organization shall confirm the customer requirements prior to acceptance.
- (d) When product requirements are changed, the organization shall amend the relevant documents and ensure that relevant personnel are made aware of the changed requirements.

7.2.3 Communication

- (a) The organization shall plan and document the methods for communicating with customers regarding:
 - 1) Product information;
 - 2) Handling inquiries, including amendments, contracts, or orders;
 - 3) Customer feedback, including complaints;
 - 4) Advisory notices.
- (b) The organization shall communicate with regulatory authorities in accordance with applicable statutory requirements.

7.3. Design and Development

7.3.1 General

The organization shall document procedures for design and development.

7.3.2 Design and Development Planning

- (a) The organization shall plan and control the design and development of the product. Where applicable, the design and development plan shall be maintained and updated as design and development progress.
- (b) The organization shall document the following in the course of design and development planning:
 - 1) The stages of design and development;
 - 2) The reviews required at each stage of design and development;
 - 3) The verification, validation, and design transfer activities appropriate to each stage of design and development;
 - 4) The responsibilities and authorities for design and development;
 - 5) The methods to ensure traceability between design and development inputs and outputs;
 - 6) The necessary resources, including personnel competence.

7.3.3 Design and Development Inputs

- (a) The organization shall determine and maintain records of inputs relating to product requirements. These inputs shall include:
 - 1) Functional, performance, usability, and safety requirements necessary for the intended use;
 - 2) Applicable statutory requirements and standards;
 - 3) Applicable risk management outputs;
 - 4) Information derived from previous similar designs, where applicable;
 - 5) Other requirements essential for the design and development of the product and process.
- (b) Such inputs shall be reviewed and approved for adequacy.
- (c) Product requirements shall be clear, unambiguous, verifiable or validatable, and shall not conflict with other requirements.

7.3.4 Design and Development Outputs

- (a) The design and development outputs shall:
 - 1) Meet the design and development input requirements;
 - 2) Provide appropriate information for purchasing, production, and service provision;
 - 3) Include or reference the criteria for product acceptance;

- 4) Specify the characteristics of the product that are essential for safe and proper use.
- (b) The outputs of the design and development process shall be provided in a form that enables verification against the design and development inputs and shall be approved prior to release.
- (c) Records of the design and development outputs shall be maintained.

7.3.5 Design and Development Review

- (a) Systematic reviews of the design and development shall be conducted at appropriate stages in accordance with planned and documented methods for the purpose of:
 - 1) Evaluating the ability of the design and development results to meet the requirements;
 - 2) Identifying and proposing any necessary actions.
- (b) Personnel participating in such reviews shall include not only the persons responsible for the design and development stage under review, but also other relevant experts.
- (c) Records of the results of the reviews and any necessary actions shall be maintained and shall include identification of the design under review, the personnel participating in the review, and the dates of the review.

7.3.6 Design and Development Verification

- (a) Design and development verification shall be performed in accordance with planned and documented methods to ensure that the design and development outputs meet the input requirements.
- (b) The organization shall document the verification plan, including the verification methods, acceptance criteria, and, where applicable, statistical techniques with justification for sample size.
- (c) If the intended use requires the in vitro diagnostic medical device to be connected to or interfaced with another in vitro diagnostic medical device, the verification shall include confirmation that the design outputs meet the design inputs when so connected or interfaced.
- (d) Records of the verification results, conclusions, and any necessary actions shall be maintained.

7.3.7 Design and Development Validation

- (a) Design and development validation shall be performed, in accordance with planned and documented methods, to ensure that the resulting product meets the requirements for the intended use or specified application.
- (b) The organization shall document the validation plan, including the validation methods, acceptance criteria, and, where applicable, justification for sample size.

- (c) Design validation shall be performed on core product. Core product includes initial production units, batches, or their equivalents. The rationale for the selection of the product used for validation shall be recorded.
- (d) As part of design and development validation, the organization shall perform clinical performance studies in accordance with applicable statutory requirements.
- (e) In vitro diagnostic medical devices used for clinical performance studies shall not be considered as released for customer use.
- (f) If the intended use requires the in vitro diagnostic medical device to be connected to or interfaced with another in vitro diagnostic medical device, the validation shall include confirmation that the product requirements for the specified application or intended use are met when so connected or interfaced.
- (g) Validation shall be completed prior to the product's release for customer use.
- (h) Records of the results of validation, the conclusions reached, and any necessary actions shall be maintained.

7.3.8 Design and Development Transfer

- (a) The organization shall document procedures for the transfer of design and development outputs to manufacturing. These procedures shall ensure that the design and development outputs have been verified as suitable for manufacturing before becoming the final production specifications and that manufacturing capability can meet product requirements.
- (b) Records of the results and conclusions of the transfer shall be maintained.

7.3.9 Control of Design and Development Changes

- (a) The organization shall document procedures for controlling design and development changes. The organization shall determine the significance of changes to the function, performance, usability, safety, applicable statutory requirements, and intended use of the in vitro diagnostic medical device.
- (b) Design and development changes shall be identified. Prior to implementation, the changes shall be:
 - 1) Reviewed;
 - 2) Verified;
 - 3) Validated, where applicable;
 - 4) Approved.
- (c) The review of design and development changes shall include evaluation of the effects of the changes on constituent parts, products in manufacturing or already delivered, risk management inputs or outputs, and the production realization processes.
- (d) Records of the changes, the review of the changes, and any necessary actions shall be

maintained.

7.3.10 Design and Development File

- (a) The organization shall maintain a design and development file for each in vitro diagnostic medical device model or item.
- (b) This file shall contain or reference the records generated to demonstrate conformity with the design and development requirements and the records of design and development changes.

7.4. Purchasing

7.4.1 Purchasing Process

- (a) The organization shall document procedures to ensure that purchased product conforms to specified requirements.
- (b) The organization shall establish criteria for the evaluation and selection of suppliers. The criteria shall be based on:
 - 1) The supplier's ability to provide product that meets the organization's requirements;
 - 2) The supplier's performance;
 - 3) The effect of the purchased product on the quality of the in vitro diagnostic medical device;
 - 4) Proportionate to the risks associated with the in vitro diagnostic medical device.
- (c) The organization shall plan monitoring and re-evaluation of suppliers. The performance of suppliers in meeting purchased product requirements shall be monitored. The results of monitoring shall be provided as input to the supplier re-evaluation process.
- (d) Non-fulfillment of purchasing requirements shall be addressed with the supplier in proportion to the risks associated with the purchased product and compliance with applicable statutory requirements.
- (e) Records of the results of evaluation, selection, monitoring, and re-evaluation of suppliers and of any necessary actions arising from these activities shall be maintained.

7.4.2 Purchasing Information

- (a) Purchasing information shall describe or reference the product to be purchased, including, where appropriate:
 - 1) Product specifications;
 - 2) Requirements for product approval, procedures, processes, and equipment;
 - 3) Requirements for the qualification of supplier personnel;
 - 4) Quality management system requirements.

- (b) The organization shall ensure the adequacy of specified purchasing requirements prior to communication with the supplier.
- (c) Purchasing information shall include, where appropriate, a written agreement that the supplier notify the organization of any changes to the product prior to implementation if such changes may affect the ability of the product to meet specified purchasing requirements.
- (d) The organization shall maintain the relevant purchasing information as documents and records to the extent that traceability is required in accordance with Section 7.5.9.

7.4.3 Verification of Purchased Product

- (a) The organization shall establish and implement the inspection or other activities necessary to ensure that purchased product meets specified requirements. The extent of verification activities shall be based on the results of supplier evaluation and shall be proportional to the risks associated with the purchased product.
- (b) When the organization becomes aware of any changes to the purchased product, it shall determine whether such changes affect the production realization processes or the in vitro diagnostic medical device.
- (c) If the organization or its customer intends to verify the purchased product at the supplier's premises, the organization shall specify in the purchasing information the intended verification arrangements and the method of product release.
- (d) Records of verification shall be maintained.

7.5 Production and Service Provision

7.5.1 Control of Production and Service Provision

- (a) Production and service provision shall be planned, carried out, monitored, and controlled to ensure that product conforms to specifications. Where appropriate, production control shall include, but not be limited to:
 - 1) Documentation of procedures and methods for production control;
 - 2) Qualification of infrastructure;
 - 3) Implementation of monitoring and measurement of process parameters and product characteristics;
 - 4) Availability and use of monitoring and measuring equipment;
 - 5) Implementation of activities specified for labeling and packaging operations;
 - 6) Implementation of product release, delivery, and post-delivery activities.
- (b) The organization shall provide traceability to the extent required in accordance with Section 7.5.9 and shall establish and maintain records by in vitro diagnostic medical device or by in vitro diagnostic medical device batch that enable identification of the quantity produced and approved for distribution. These records shall be verified and

approved.

7.5.2 Cleanliness of Product

The organization shall document requirements for cleanliness of product or contamination control of product in the following cases. Provided, however, that where the product is cleaned in accordance with 1) or 2), the requirements of 6.4.1 do not apply prior to the cleaning process.

- 1) Product that is cleaned by the organization prior to sterilization or use;
- 2) Product supplied non-sterile that requires a cleaning process prior to sterilization or use;
- 3) Product that cannot be cleaned prior to sterilization or use and for which cleanliness is of significant importance for use;
- 4) Product supplied non-sterile for which cleanliness is of significant importance for use;
- 5) Removal of process agents used during manufacturing from the product.

7.5.3 Installation Activities

- (a) Where applicable, the organization shall document the acceptance criteria for installation of the in vitro diagnostic medical device and for its installation verification.
- (b) Where installation by parties other than the organization or the supplier is permitted by the customer, the organization shall provide documented requirements for installation of the in vitro diagnostic medical device and for installation verification.
- (c) Records of installation of the in vitro diagnostic medical device and of installation verification performed by the organization or the supplier shall be maintained.

7.5.4 Servicing Activities

- (a) Where servicing of the in vitro diagnostic medical device is a specified requirement, the organization shall document servicing procedures, reference materials, and reference measurements, where necessary, for performing servicing activities and for verifying that the specified requirements are met.
- (b) The organization shall analyze records of servicing activities performed by the organization or the supplier for the purpose of:
 - 1) Determining whether the information should be handled as a complaint;
 - 2) Providing, where applicable, input to the improvement processes.
- (c) Records of servicing activities performed by the organization or the supplier shall be maintained.

7.5.5 Particular Requirements for Sterile In Vitro Diagnostic Medical Devices

The organization shall maintain records of the parameters of the sterilization process used for

each sterilization batch. Sterilization records shall be traceable to each production batch of the in vitro diagnostic medical device.

7.5.6 Validation of Processes for Production and Service Provision

- (a) The organization shall validate any processes for production and service provision where the resulting output cannot be verified by subsequent monitoring or measurement. Validation shall include all processes where deficiencies become apparent only after the product is used or the service is delivered.
- (b) Validation shall demonstrate the ability of the processes to achieve the planned results consistently.
- (c) The organization shall document procedures for process validation that include:
 - 1) Defined criteria for review and approval of the processes;
 - 2) Qualification of equipment and personnel;
 - 3) Use of specific methods, procedures, and acceptance criteria;
 - 4) Statistical techniques, where applicable, including justification for sample size;
 - 5) Requirements for records;
 - 6) Revalidation, including the criteria for revalidation;
 - 7) Approval of changes to the process.
- (d) The organization shall document procedures for validation of the application of computer software used in production and service provision. Such software applications shall be validated prior to initial use and, where appropriate, validated after changes or software applications have been made. The specific approach and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software, including the impact on product specifications and product performance.
- (e) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.

7.5.7 Specific Requirements for Validation of Sterilization and Sterile Packaging Processes

- (a) The organization shall document procedures for validation of the sterilization processes and the sterile barrier systems.
- (b) The sterilization processes and the sterile barrier systems shall be validated prior to initial use and, where applicable, prior to changes to the product or the process.
- (c) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.

7.5.8 Identification

- (a) The organization shall document procedures for product identification and shall identify

the product by suitable means throughout production realization.

- (b) The organization shall identify the status of product with respect to monitoring and measurement requirements throughout production realization. The organization shall maintain identification of the status of product to ensure that only product that has passed the required tests and inspections, or that has been released under an approved concession, is dispatched, used, or installed during all phases of production, storage, installation, and servicing.
- (c) Where required by applicable statutory requirements, the organization shall document a system for assigning a unique device identification (UDI) to the in vitro diagnostic medical device.
- (d) The organization shall document procedures to ensure that in vitro diagnostic medical devices returned to the organization are identified and distinguished from conforming product.

7.5.9 Traceability

7.5.9.1 General Requirements

The organization shall document procedures for traceability. These procedures shall define the scope of traceability and the records to be maintained in accordance with applicable statutory requirements.

7.5.9.2 Particular Requirements for In Vitro Diagnostic Medical Devices Subject to Traceability

- (a) Where components, materials, or working environment conditions used could cause the in vitro diagnostic medical device not to meet specified safety and performance requirements, records required for traceability shall include records of the components, materials, and working environment conditions used.
- (b) The organization shall require distributors or retailers to maintain records of sales of the in vitro diagnostic medical device and to make such records available for investigation to ensure product traceability.
- (c) The organization shall maintain records of the name and address of the consignee for shipped product.

7.5.10 Customer Property

Where customer property provided for use or incorporation into the product is under the manufacturer's control or is being used by the manufacturer, the organization shall identify, verify, protect, and safeguard such property. If customer property is lost, damaged, or found to be unsuitable for use, this shall be reported to the customer and records shall be maintained.

7.5.11 Preservation of Product

- (a) The organization shall document procedures to preserve product conformity to requirements during processing, storage, handling, and distribution.
- (b) Preservation shall also apply to components of the in vitro diagnostic medical device.
- (c) When exposed to expected conditions and hazards during processing, storage, handling, and distribution, the organization shall protect the product from alteration, contamination, or damage by the following means:
 - 1) Designing and constructing appropriate packaging and transportation containers;
 - 2) Documenting requirements for any special conditions needed where packaging alone does not provide preservation.
- (d) Where special conditions are necessary, such conditions shall be controlled and recorded.

7.6. Control of Monitoring and Measuring Equipment

- (a) The organization shall determine the monitoring and measurement activities to be performed, and the monitoring and measuring equipment required, to demonstrate that the product meets specified requirements.
- (b) The organization shall document procedures to ensure that monitoring and measurement activities are carried out in a manner consistent with the monitoring and measurement requirements.
- (c) Where necessary to ensure valid results, measuring equipment shall:
 - 1) Be calibrated or verified, or both, at specified intervals or prior to use, against measurement standards traceable to international or national measurement standards. Where no such standards exist, the basis used for calibration or verification shall be recorded.
 - 2) Be adjusted or re-adjusted as necessary. Such adjustments or re-adjustments shall be recorded.
 - 3) Be identified to enable the calibration status to be determined.
 - 4) Be safeguarded from adjustments that would invalidate the measurement result.
 - 5) Be protected from damage and deterioration during handling, maintenance, and storage.
- (d) The organization shall calibrate or verify the equipment in accordance with documented procedures.
- (e) When equipment is found not to conform to requirements, the organization shall assess the validity of previous measurement results. The organization shall take appropriate action regarding the equipment and any product affected. Records of the results of calibration and verification shall be maintained.
- (f) When computer software is used in monitoring or measuring the requirements specified, the organization shall document procedures for validation of the application of computer software. The software shall be validated prior to initial use and, where appropriate, revalidated after changes to the software or its application. The specific approach and

activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software, including the impact on product specifications and product performance.

- (g) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.

8. Measurement, Analysis and Improvement

8.1 General Requirements

- (a) The organization shall plan and implement the monitoring, measurement, analysis, and improvement processes needed:
 - 1) To demonstrate conformity of the product;
 - 2) To ensure conformity of the quality management system;
 - 3) To maintain the effectiveness of the quality management system.
- (b) This shall include determination of the methods, including statistical techniques, and the extent of their use.

8.2 Monitoring and Measurement

8.2.1 Feedback

- (a) As one of the measurements of the effectiveness of the quality management system, the organization shall collect and monitor information relating to whether customer requirements have been met.
- (b) The methods for obtaining and using this information shall be documented.
- (c) The organization shall document procedures for the feedback process. The feedback process shall include provisions for gathering data from production as well as post-production activities.
- (d) Information gathered in the feedback process shall be used as potential input to risk management in order to monitor and maintain the product requirements and the production realization or improvement processes.
- (e) Where applicable statutory requirements require the organization to collect information from post-production activities, review of that information shall be part of the feedback process.

8.2.2 Handling of Complaints

- (a) The organization shall document procedures for timely handling of complaints in accordance with applicable statutory requirements. These procedures shall include, at a minimum, the following requirements and responsibilities:
 - 1) Receiving and recording information;

- 2) Evaluating information to determine whether feedback constitutes a complaint;
 - 3) Investigating complaints;
 - 4) Determining whether the information must be reported to the appropriate regulatory authorities;
 - 5) Handling complaint-related product;
 - 6) Determining the need for correction or corrective action.
- (b) If any complaint is not investigated, the justification for not conducting the investigation shall be documented. All results of corrections and corrective actions arising from the complaint handling process shall be documented.
- (c) Where an investigation determines that activities external to the organization caused the complaint, relevant information shall be exchanged between the organization and the external parties.
- (e) Records of complaint handling shall be maintained.

8.2.3 Reporting to Regulatory Authorities

- (a) Where complaints are subject to adverse event reporting or advisory notice reporting in accordance with applicable statutory requirements, the organization shall document procedures for reporting such complaints to the regulatory authorities.
- (b) Records of reports submitted to regulatory authorities shall be maintained.

8.2.4 Internal Audit

- (a) The organization shall conduct internal audits at planned intervals to determine whether the quality management system:
- 1) Conforms to the planned and documented arrangements, the requirements of this GMP, the quality management system requirements established by the organization, and the applicable statutory requirements;
 - 2) Is effectively implemented and maintained.
- (b) The organization shall document procedures that define the responsibilities and requirements for planning and conducting audits, and for recording and reporting audit results.
- (c) The audit program shall be planned, taking into consideration the status and importance of the processes and areas to be audited, as well as the results of previous audits. The audit criteria, scope, frequency, and methods shall be defined and recorded. Auditors shall be selected and audits conducted to ensure objectivity and impartiality of the audit process. Auditors shall not audit their own work. Records of the audit and audit results, including the processes and areas audited and the conclusions reached, shall be maintained.
- (d) Management responsible for the areas being audited shall ensure that necessary corrections and corrective actions are taken without undue delay to eliminate detected

nonconformities and their causes. Follow-up activities shall include the verification of the actions taken and the reporting of the results of verification.

8.2.5 Monitoring and Measurement of Processes

The organization shall apply suitable methods for monitoring and, where applicable, measurement of the quality management system processes. These methods shall demonstrate the ability of the processes to achieve the planned results. When the planned results are not achieved, appropriate correction and corrective action shall be taken to ensure conformity of the product.

8.2.6 Monitoring and Measurement of Product

- (a) The organization shall monitor and measure the characteristics of the product to verify that product requirements have been met. This shall be carried out at appropriate stages of the production realization process in accordance with the planned and documented arrangements and documented procedures.
- (b) Records demonstrating conformity with the acceptance criteria shall be maintained. The identity of the person authorizing product release shall be recorded. Where applicable, the test equipment used for measurement activities shall be identified and recorded.
- (c) Product shall not be released, nor shall service be provided, until the planned and documented activities have been satisfactorily completed.
- (d) For in vitro diagnostic medical devices subject to traceability, the organization shall identify and record the identity of personnel performing all inspections or tests.

8.3 Control of Nonconforming Product

8.3.1 General

- (a) The organization shall ensure that nonconforming product is identified and controlled to prevent its unintended use or delivery. The organization shall document procedures that define the controls and related responsibilities and authorities for dealing with nonconforming product, including identification, documentation, segregation, evaluation, and disposition.
- (b) Evaluation of nonconformities shall include investigation into any external party responsible for the nonconformity and determination of whether notification is required.
- (c) Records of the nonconformity, including the evaluation, investigation, the basis for the decisions made, and all actions taken in response, shall be maintained.

8.3.2 Actions in Response to Nonconforming Product Detected Prior to Delivery

- (a) The organization shall deal with nonconforming product in one or more of the following ways:

- 1) Taking action to eliminate the detected nonconformity;
 - 2) Taking action to preclude its original intended use or application;
 - 3) Authorizing its use, release, or acceptance under concession.
- (b) The organization shall ensure that concessions are granted only when justified, approved, and compliant with applicable statutory requirements. Records shall be maintained to identify acceptance under concession and the personnel authorizing the concession.

8.3.3 Actions in Response to Nonconforming Product Detected After Delivery

- (a) When nonconforming product is detected after delivery or use, the organization shall take appropriate action regarding the effects or potential effects of the nonconformity. Records of the actions taken shall be maintained.
- (b) The organization shall document procedures for issuing advisory notices in accordance with applicable statutory requirements. These procedures shall be capable of being implemented at any time. Records of the actions related to advisory notices shall be maintained.

8.3.4 Rework

- (a) The organization shall perform rework in accordance with documented procedures that consider the potential adverse effects of the rework on the product. These procedures shall be subject to the same review and approval as the original procedures.
- (b) After completion of the rework, the product shall be verified to ensure that it meets the applicable acceptance criteria and statutory requirements.
- (c) Records of the rework shall be maintained.

8.4 Analysis of Data

- (a) The organization shall document procedures to determine, collect, and analyze appropriate data to demonstrate the suitability, adequacy, and effectiveness of the quality management system. These procedures shall include the determination of appropriate methods, including statistical techniques and the extent of their application.
- (b) Analysis of data shall include data generated from the results of monitoring and measurement and from other relevant sources, and shall include, at a minimum, the following inputs:
- 1) Feedback;
 - 2) Conformity to product requirements;
 - 3) Process and product characteristics and trends, including opportunities for improvement;
 - 4) Suppliers;
 - 5) Audits;

- 6) Service reports, where applicable.
- (c) Where analysis of data shows that the quality management system is not suitable, adequate, or effective, the organization shall use this analysis as input for improvement as required in 8.5.
- (d) Records of the results of data analysis shall be maintained.

8.5 Improvement

8.5.1 General Requirements

The organization shall identify and implement any changes necessary to ensure and maintain the ongoing suitability, adequacy, and effectiveness of the quality management system, as well as the safety and performance of in vitro diagnostic medical devices, through the use of the quality policy, quality objectives, audit results, post-marketing surveillance, data analysis, corrective and preventive actions, and management review.

8.5.2 Corrective Action

- (a) The organization shall take action to eliminate the causes of nonconformities in order to prevent their recurrence.
- (b) Corrective actions required shall be taken without undue delay. Corrective actions shall be proportionate to the effects of the nonconformities encountered.
- (c) Documented procedures shall define requirements for:
 - 1) Reviewing nonconformities (including customer complaints);
 - 2) Determining the causes of nonconformities;
 - 3) Evaluating the need for action to ensure that nonconformities do not recur;
 - 4) Planning and documenting the required actions and implementing them, including document changes where applicable;
 - 5) Verifying that corrective actions do not adversely affect the safety and performance of the in vitro diagnostic medical device or compliance with applicable statutory requirements;
 - 6) Reviewing the effectiveness of the corrective actions taken.
- (d) Records of all investigation results and actions taken shall be maintained.

8.5.3 Preventive Action

- (a) The organization shall determine preventive actions to eliminate the causes of potential nonconformities in order to prevent their occurrence. Preventive actions shall be proportionate to the potential impacts of such issues.
- (b) Documented procedures shall define requirements for:
 - 1) Determining potential nonconformities and their causes;

- 2) Evaluating the need for action to prevent the occurrence of nonconformities;
 - 3) Planning and documenting the required actions and determining and implementing such actions, including document changes where applicable;
 - 4) Verifying that preventive actions do not adversely affect the safety and performance of the in vitro diagnostic medical device or compliance with applicable statutory requirements;
 - 5) Reviewing the effectiveness of preventive actions taken, where applicable.
- (c) Records of the results of all investigations and actions taken shall be maintained.

9. Conformity Recognition Assessment Sheet for In Vitro Diagnostic Medical Devices

9.1 General Information

Conformity Recognition Assessment Sheet for In Vitro Diagnostic Medical Devices			
Name of business		Type of business	☐ Manufacturing ☐ Import
		Business license number	
Representative		Quality manager	
Address	(Telephone: , Fax: , E-mail:)		
Applicable criteria	☐ Class I in vitro diagnostic medical device ☐ In vitro diagnostic medical device for clinical performance studies ☐ In vitro diagnostic medical device for export ☐ Innovative medical device software ☐ Use of the Medical Device Single Audit Program ☐ Excellent manufacturing site ※ Fill in only if applicable.		
Assessment type	☐ Initial assessment ☐ Periodic assessment ☐ assessment for change ☐ Additional assessment		
Method of assessment	☐ On-site inspection ☐ Document review		
Reason for the determination of the assessment type and method			
Product	Product group		
	Product name / Class		
Assessment team	Affiliation	Name	
	Ministry of Food and Drug Safety		
	Audit Organization (Name of Agency)		
Assessment date	. . . - . . .		
Assessment result	☐ Conforming ☐ Additional actions required (by . . .) ☐ Nonconforming		
	In the case of Annex 2, Section 9.4, subparagraph 2, item (a) 2), the results of corrective actions shall be submitted by (yyyy.mm.dd).		
This document represents the result of the conformity assessment conducted pursuant to Article 6 of the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices. Year Month Day Ministry of Food and Drug Safety: Audit Organization: Representative: Seal Seal Seal			

9.2 Information on Assessment Location

Name of business	☐ Corporation ☐ Individual		License number	
Representative			Quality manager	
Name/address of manufacturing site subject to assessment	Legal manufacturer:			
	(Name) (Location)			
	Manufacturer:			
	(Name) (Location)			
Facility information of the manufacturing site				
Contact information				
Number of employees			Working hours (Shift hours, etc.)	
Status of related certifications	Certification body	Certification criteria	Scope of certification	Expiration date
On-site inspection date	Year month day – year month day			
Information on previous assessment Information (Fill in only if applicable)	Assessment date			
	Audit organization			
	Auditor(s)			
	Assessment criteria and scope			
	Assessment result			
	Action required			
Remarks				

9.3.1 Detailed Assessment Contents (Where the Medical Device Single Audit Program Is Not Applied)

Category		Details
Noteworthy findings during assessment		
Excluded items		
Reason for exclusion		
Points to verify regarding the interrelationships of the quality management system		
Assessment area		Assessment details
1. Quality Management System		
2. Management Responsibility		
3. Resource Management		
4. Production Realization		
5. Measurement, Analysis and Improvement		
6. Assessment Result		
Required actions		
No.	Relevant clause	Required actions
1		
2		
3		
4		
5		
Assessment description		

9.3.2 Detailed Assessment Contents (Where the Medical Device Single Audit Program Is Applied)

Category	Assessment details																																																															
Noteworthy findings during assessment																																																																
Assessment information	Audit organization, assessment start date, assessment end date, assessment duration (number of assessment days), assessment report number, assessment type (initial/renewal), etc. (refer to Sections 1 and 3 of the MDSAP Assessment Results)																																																															
Information on the manufacturing site subject to assessment	Name of the manufacturing site subject to assessment, information on the manufacturing site, detailed address of the manufacturing site, relationship with the product subject to assessment, etc. (refer to Sections 2 through 8)																																																															
Excluded items and reasons	(refer to section 9)																																																															
Points to verify regarding the interrelationships of the quality management system	Roles performed by the manufacturing site subject to assessment, manufacturing processes conducted at the site, etc. (refer to section 4)																																																															
Assessment area	Assessment details																																																															
1. MDSAP assessment results	※ The review results for Items 4 through 8 of Annex 2, item (a) of Article 7 (1) 3 shall be indicated in the assessment sheet below. (The assessment results and determination criteria shall be applied in accordance with the same criteria as those in 9.4 Assessment Sheet)																																																															
	<table><tr><th rowspan="2">Category</th><th rowspan="2">Scope of assessment</th><th colspan="4">Assessment result</th></tr><tr><th>A</th><th>B</th><th>C</th><th>D</th></tr><tr><td rowspan="8">Section 11</td><td>11.1 Process: Management</td><td></td><td></td><td></td><td></td></tr><tr><td>11.2 Process: Medical Device Approval and Manufacturing Site Registration</td><td></td><td></td><td></td><td></td></tr><tr><td>11.3 Process: Measurement, Analysis and Improvement</td><td></td><td></td><td></td><td></td></tr><tr><td>11.4 Process: Adverse Event Reporting and Issuance of Advisory Notices for Medical Devices</td><td></td><td></td><td></td><td></td></tr><tr><td>11.5 Process: Design and Development</td><td></td><td></td><td></td><td></td></tr><tr><td>11.6 Process: Production and Service Controls</td><td></td><td></td><td></td><td></td></tr><tr><td>11.7 Process: Purchasing</td><td></td><td></td><td></td><td></td></tr><tr><td>11.8 Other Findings</td><td></td><td></td><td></td><td></td></tr><tr><td>Section 12</td><td>Nonconformities (Identification of Nonconformities and Supporting Evidence)</td><td></td><td></td><td></td><td></td></tr><tr><td>Section 14</td><td>Follow-up Actions on Previous Nonconformities</td><td></td><td></td><td></td><td></td></tr></table>	Category	Scope of assessment	Assessment result				A	B	C	D	Section 11	11.1 Process: Management					11.2 Process: Medical Device Approval and Manufacturing Site Registration					11.3 Process: Measurement, Analysis and Improvement					11.4 Process: Adverse Event Reporting and Issuance of Advisory Notices for Medical Devices					11.5 Process: Design and Development					11.6 Process: Production and Service Controls					11.7 Process: Purchasing					11.8 Other Findings					Section 12	Nonconformities (Identification of Nonconformities and Supporting Evidence)					Section 14	Follow-up Actions on Previous Nonconformities				
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Section 12	Nonconformities (Identification of Nonconformities and Supporting Evidence)																																																															
Section 14	Follow-up Actions on Previous Nonconformities																																																															
2. Device Master Record (DMR)	Adequacy of the Device Master Records (DMRs) for core product of each product group among domestically manufactured or imported																																																															

		<i>products (Article 7 (1) 3 (b))</i>
3. Quality Management System Documentation		<i>Conformity with the regulatory requirements under the Act on In Vitro Diagnostic Medical Devices (Article 7 (1) 3 (c))</i>
4. Assessment Result		<i>Overall Opinion of the Assessment Team</i>
Required Actions		
No.	Relevant clause	Required actions
1		
2		
Assessment description		

※ To be completed for conformity recognition assessments using the Medical Device Single Audit Program (9.4 Assessment Sheet omitted)

9.4 Assessment Sheet

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
4. Quality Management System 4.1 General Requirements 4.1.1	(a) The organization shall document its quality management system in accordance with the requirements of this GMP and applicable statutory requirements, and shall maintain the effectiveness of the quality management system. (b) The organization shall establish, implement, and maintain specific requirements, procedures, activities, or methods of operation that must be documented pursuant to this GMP and applicable statutory requirements. (c) The organization shall document the roles required to perform in accordance with applicable statutory requirements.					
4.1.2	The organization shall implement the following: 1) Determine the processes necessary for the quality management system, taking into account the roles performed by the organization, and apply those processes throughout the organization; 2) Apply a risk-based approach to the appropriate management of processes required for the quality management system; 3) Determine the sequence and interaction of those processes.					
4.1.3	For each processes of the quality management system, the organization shall perform the following: 1) Determine the criteria and methods necessary to ensure the effective operation and control of the processes; 2) Ensure the availability of information and resources necessary to support the operation and monitoring of the processes; 3) Take necessary actions to achieve planned results and maintain the effectiveness of the processes; 4) Monitor such processes and, where applicable, measure and analyze them; 5) Prepare and maintain the records necessary to					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	demonstrate conformity with this GMP and compliance with applicable statutory requirements.					
4.1.4	The organization shall control quality management system processes in conformity with this GMP and applicable statutory requirements. Where such processes are to be changed, the organization shall perform the following: 1) Evaluate whether the change to the process affects the quality management system; 2) Evaluate whether the change to the process affects the in vitro diagnostic medical devices produced under the quality management system; 3) Control such matters in accordance with this GMP and applicable statutory requirements.					
4.1.5	(a) Where the organization outsources any process that affects product conformity requirements, it shall ensure that such processes are monitored and controlled. (b) The organization shall retain responsibility for ensuring compliance with this GMP, customer requirements, and applicable statutory requirements for outsourced processes. (c) Control of outsourced processes shall be proportionate to the associated risks and to the capability of the contracted supplier to meet the requirements under paragraph 7.4, and shall include a written quality agreement.					
4.1.6	(a) The organization shall document procedures for the validation of computer software used in the quality management system. (b) Such software shall be validated prior to initial use, and where applicable, shall also be validated following any changes to the software or its application. (c) Specific approaches and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software. (d) Records of these activities shall be maintained.					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
4.2 Documentation Requirements 4.2.1 General Requirements	Documentation of the quality management system shall include the following: 1) Documented quality policy and quality objectives; 2) Quality manual; 3) Documented procedures and records required by this GMP; 4) Documents, including records, determined by the organization to be necessary to ensure the effective planning, operation, and control of its processes; 5) Any additional documentation required by applicable statutory requirements.					
4.2.2 Quality Manual	(a) The organization shall document a quality manual that includes the following: 1) The scope of the quality management system, including details of any exclusions or non-applications and their justification; 2) Documented procedures established for the quality management system and reference to such documents; 3) A description of the interactions between processes of the quality management system. (b) The quality manual shall briefly specify the structure of the documents used in the quality management system.					
4.2.3 In Vitro Diagnostic Medical Device File	(a) For each in vitro diagnostic medical device model or item, the organization shall establish and maintain one or more files containing or referencing documents generated to demonstrate conformity with this GMP and compliance with applicable statutory requirements. (b) The contents of the in vitro diagnostic medical device file shall include, but not be limited to, the following: 1) A general description of the in vitro diagnostic medical device, including its intended use/purpose and all instructions for use; 2) Product specifications; 3) Specifications and procedures for					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	manufacturing, packaging, storage, handling, and distribution; 4) Measurement and monitoring procedures; 5) Installation requirements, where applicable; 6) Servicing procedures, where applicable.					
4.2.4 Control of Documents	(a) Documents required by the quality management system shall be controlled. Records are a special type of document and shall be controlled in accordance with Section 4.2.5. (b) Procedures necessary to control the following shall be documented: 1) Review and approval of documents for adequacy prior to issuance; 2) Review, update, and re-approval of documents as necessary; 3) Ensure that changes to documents and the current revision status are identified; 4) Ensure that applicable versions of documents are available at points of use; 5) Ensure that documents remain legible and readily identifiable; 6) Ensure that documents of external origin determined by the organization to be necessary for the planning and operation of the quality management system are identified and their distribution controlled; 7) Prevent deterioration or loss of documents; 8) Preventing the unintended use of obsolete documents and applying appropriate identification if they are retained for any purpose. (c) The organization shall ensure that document changes are reviewed and approved by the original approving authority or other authorized personnel who have access to the background information on which the organization's decisions are based. (d) The organization shall retain at least one copy of obsolete controlled documents for a period corresponding to the product's life cycle, which shall be no less than the retention period					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	required for records.					
4.2.5 Control of Records	(a) Records shall be established and maintained to demonstrate the effective operation of the quality management system and conformity to requirements. (b) The organization shall document procedures defining the controls needed for the identification, storage, security and integrity, retrieval, retention period, and disposition of records. (c) The organization shall establish and implement methods to protect personal health information contained in records in accordance with applicable statutory requirements. (d) All records shall be easily legible, readily identifiable, and retrievable. Any changes to records shall remain identifiable. (e) The organization shall retain records for a period corresponding to the product's life cycle. This period shall be at least five years from the date of manufacture and at least two years after release to the market.					
5. Management Responsibility 5.1 Management Commitment	Top management shall demonstrate its commitment to the development and implementation of the quality management system and to maintaining its effectiveness through the following: 1) Communicate the importance of fulfilling customer requirements and applicable statutory requirements with the organization; 2) Establish the quality policy; 3) Ensure that quality objectives are established; 4) Conduct management reviews; 5) Ensure the availability of resources.					
5.2 Customer Focus	Top management shall ensure that customer requirements and applicable statutory requirements are determined and fulfilled.					
5.3 Quality Policy	Top management shall ensure that the quality policy: 1) Is appropriate to the purpose of the organization; 2) Includes a commitment to comply with requirements and to maintain the effectiveness					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	of the quality management system; 3) Provides a framework for establishing and reviewing quality objectives; 4) Is communicated and understood within the organization; 5) Is reviewed for continuing suitability.					
5.4 Planning 5.4.1 Quality Objectives	(a) Top management shall ensure that the quality objectives include the necessary elements to meet applicable statutory requirements and product requirements, and that they are established at relevant functions and levels within the organization. (b) The quality objectives shall be measurable and shall be consistent with the quality policy.					
5.4.2 Planning of the Quality Management System	Top management shall ensure the following: 1) The planning of the quality management system is carried out not only to achieve the quality objectives but also to meet the requirements of Section 4.1; 2) The integrity of the quality management system is maintained when changes to the quality management system are planned and implemented.					
5.5 Responsibility, Authority, and Communication 5.5.1 Responsibility and Authority	(a) Top management shall ensure that responsibilities and authorities within the organization are defined, documented, and communicated. (b) Top management shall document the interrelationships of all personnel who manage, perform, and verify work affecting quality, and shall ensure the authority and independence necessary to perform such work.					
5.5.2 Quality Manager	Top management shall appoint a person within the organization who, irrespective of other responsibilities, has the authority and responsibility to perform the following: 1) Ensure that the processes necessary for the quality management system are documented; 2) Report to top management on the performance and effectiveness of the quality management system and on the need for improvement;					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	3) Ensure that awareness of applicable statutory requirements and quality management system requirements is promoted throughout the organization.					
5.5.3 Internal Communication	Top management shall ensure that appropriate communication processes are established within the organization and that communication regarding the effectiveness of the quality management system is carried out.					
5.6 Management Review 5.6.1 General Requirements	(a) The organization shall document the procedure for management review. (b) Top management shall review the quality management system at documented planned intervals to ensure its continuing suitability, adequacy, and effectiveness. (c) Management reviews shall include an evaluation of the need for changes and opportunities for improvement in the quality management system, including the quality policy and quality objectives. (d) Records of management reviews shall be maintained.					
5.6.2 Review Inputs	The inputs to management review shall include, but not be limited to, the following: 1) Feedback; 2) Handling of complaints; 3) Reports to regulatory authorities; 4) Audits; 5) Monitoring and measurement of processes; 6) Monitoring and measurement of product; 7) Corrective action; 8) Preventive action; 9) Follow-up actions from previous management reviews; 10) Changes that could affect the quality management system; 11) Recommendations for improvement; 12) New or revised applicable statutory requirements.					
5.6.3 Review Outputs	The outputs of management review shall be recorded and shall include decisions and actions					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	related to the reviewed inputs and the following: 1) Improvements needed to maintain the suitability, adequacy, and effectiveness of the quality management system and its processes; 2) Improvement of product related to customer requirements; 3) Changes needed to meet new or revised applicable statutory requirements; 4) Resource needs.					
6. Resource Management 6.1 Provision of Resources	The organization shall determine and provide the resources needed for: 1) Implementing the quality management system and maintaining its effectiveness; 2) Meeting applicable regulatory requirements and customer requirements.					
6.2 Human Resources	(a) Personnel performing work affecting product quality shall be competent on the basis of appropriate education, training, skills, and experience. (b) The organization shall establish the competencies required of personnel, provide the necessary training, and establish and document processes to ensure personnel awareness. (c) The organization shall perform the following: 1) Determine the competencies needed for personnel performing work that affects product quality; 2) Provide training or take other actions to achieve or maintain the necessary competencies; 3) Evaluate the effectiveness of the actions taken; 4) Ensure that personnel are aware of the relevance and importance of their activities and how they contribute to the achievement of quality objectives; 5) Maintain appropriate records of education, training, skills, and experience.					
6.3 Infrastructure	(a) The organization shall document the infrastructure requirements necessary to ensure conformity to product requirements, prevent product mix-ups, and ensure orderly handling.					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	Where applicable, infrastructure includes: 1) Buildings, workspace, and associated facilities; 2) Process equipment (hardware and software); 3) Supporting services such as transport, communication, or information systems. (b) Where maintenance activities of infrastructure, or lack thereof, may affect product quality, the organization shall document the maintenance requirements, including maintenance intervals. Where applicable, these requirements shall apply to equipment used for manufacturing, work environment control, and monitoring and measurement. (c) Records of such maintenance activities shall be maintained.					
6.4 Work Environment and Contamination Control 6.4.1 Work Environment	(a) The organization shall document the requirements for the work environment necessary to ensure conformity to product requirements. (b) Where work environment conditions may have an adverse effect on product quality, the organization shall document the requirements for the work environment and procedures for monitoring and controlling such conditions. (c) The organization shall perform the following requirements: 1) Where personnel may come into contact with the product or the work environment in a manner that could affect the safety or performance of in vitro diagnostic medical devices, requirements for personnel health, cleanliness, and clothing shall be documented. 2) All personnel who work temporarily under special environmental conditions shall be competent or shall be supervised by competent personnel.					
6.4.2 Contamination Control	(a) Where applicable, the organization shall plan and document methods for controlling products that are contaminated or potentially contaminated, in order to prevent contamination of the work environment,					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	personnel, or products. (b) For sterilized in vitro diagnostic medical devices, the organization shall document requirements for contamination control related to microorganisms or particulates and shall maintain the required cleanliness during assembly or packaging processes.					
7. Production Realization 7.1 Planning of Production Realization	(a) The organization shall plan and develop the processes needed for production realization. Planning of production realization shall be consistent with the other process requirements of the quality management system. (b) The organization shall document one or more processes for risk management during production realization, and records of risk management activities shall be maintained. (c) Where applicable, the organization shall determine the following in planning production realization: 1) Quality objectives and requirements for the product; 2) The need to establish and document processes, and to ensure the availability of specific resources for the product, including infrastructure and work environment; 3) Specific verification, validation, monitoring, measurement, testing and inspection, handling, storage, distribution, and traceability activities required for the product, along with the criteria for product acceptance; 4) Records necessary to demonstrate that production realization processes and their outputs meet requirements. (d) The outputs of such planning shall be documented in a form appropriate to the organization's method of operation.					
7.2 Customer-Related Processes 7.2.1 Determination of Requirements Related to the	The organization shall determine the following: 1) Requirements specified by the customer, including those related to delivery and post-delivery activities; 2) Requirements not stated by the customer but					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
Product	necessary for known specified or intended use; 3) Applicable statutory requirements related to the product; 4) User training necessary to ensure stated performance and safe use of the in vitro diagnostic medical device; 5) Any additional requirements determined by the organization.					
7.2.2 Review of Requirements Related to the Product	(a) The organization shall review the requirements related to the product. This review shall be conducted prior to the organization's commitment to supply the product to the customer. 1) The requirements for the product are defined and documented; 2) Any contract or order requirements differing from those previously expressed are resolved; 3) Applicable statutory requirements are met; 4) User training determined under Section 7.2.1 is feasible or planned to be feasible; 5) The organization has the capability to meet the defined requirements. (b) Records of the results of the review and any actions arising from the review shall be maintained. (c) Where the customer does not provide documented requirements, the organization shall confirm the customer requirements prior to acceptance. (d) When product requirements are changed, the organization shall amend the relevant documents and ensure that relevant personnel are made aware of the changed requirements.					
7.2.3 Communication	(a) The organization shall plan and document the methods for communicating with customers regarding: 1) Product information; 2) Handling inquiries, including amendments, contracts, or orders; 3) Customer feedback, including complaints; 4) Advisory notices.					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	(b) The organization shall communicate with regulatory authorities in accordance with applicable statutory requirements.					
7.3. Design and Development 7.3.1 General	The organization shall document procedures for design and development.					
7.3.2 Design and Development Planning	(a) The organization shall plan and control the design and development of the product. Where applicable, the design and development plan shall be maintained and updated as design and development progress. (b) The organization shall document the following in the course of design and development planning: 1) The stages of design and development; 2) The reviews required at each stage of design and development; 3) The verification, validation, and design transfer activities appropriate to each stage of design and development; 4) The responsibilities and authorities for design and development; 5) The methods to ensure traceability between design and development inputs and outputs; 6) The necessary resources, including personnel competence.					
7.3.3 Design and Development Inputs	(a) The organization shall determine and maintain records of inputs relating to product requirements. These inputs shall include: 1) Functional, performance, usability, and safety requirements necessary for the intended use; 2) Applicable statutory requirements and standards; 3) Applicable risk management outputs; 4) Information derived from previous similar designs, where applicable; 5) Other requirements essential for the design and development of the product and process. (b) Such inputs shall be reviewed and approved for adequacy. (c) Product requirements shall be clear,					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	unambiguous, verifiable or validatable, and shall not conflict with other requirements.					
7.3.4 Design and Development Outputs	(a) The design and development outputs shall: 1) Meet the design and development input requirements; 2) Provide appropriate information for purchasing, production, and service provision; 3) Include or reference the criteria for product acceptance; 4) Specify the characteristics of the product that are essential for safe and proper use. (b) The outputs of the design and development process shall be provided in a form that enables verification against the design and development inputs and shall be approved prior to release. (c) Records of the design and development outputs shall be maintained.					
7.3.5 Design and Development Review	(a) Systematic reviews of the design and development shall be conducted at appropriate stages in accordance with planned and documented methods for the purpose of: 1) Evaluating the ability of the design and development results to meet the requirements; 2) Identifying and proposing any necessary actions. (b) Personnel participating in such reviews shall include not only the persons responsible for the design and development stage under review, but also other relevant experts. (c) Records of the results of the reviews and any necessary actions shall be maintained and shall include identification of the design under review, the personnel participating in the review, and the dates of the review.					
7.3.6 Design and Development Verification	(a) Design and development verification shall be performed in accordance with planned and documented methods to ensure that the design and development outputs meet the input requirements. (b) The organization shall document the verification plan, including the verification					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	methods, acceptance criteria, and, where applicable, statistical techniques with justification for sample size. (c) If the intended use requires the in vitro diagnostic medical device to be connected to or interfaced with another in vitro diagnostic medical device, the verification shall include confirmation that the design outputs meet the design inputs when so connected or interfaced. (d) Records of the verification results, conclusions, and any necessary actions shall be maintained.					
7.3.7 Design and Development Validation	(a) Design and development validation shall be performed, in accordance with planned and documented methods, to ensure that the resulting product meets the requirements for the intended use or specified application. (b) The organization shall document the validation plan, including the validation methods, acceptance criteria, and, where applicable, justification for sample size. (c) Design validation shall be performed on core product. Core product includes initial production units, batches, or their equivalents. The rationale for the selection of the product used for validation shall be recorded. (d) As part of design and development validation, the organization shall perform clinical performance studies in accordance with applicable statutory requirements. (e) In vitro diagnostic medical devices used for clinical performance studies shall not be considered as released for customer use. (f) If the intended use requires the in vitro diagnostic medical device to be connected to or interfaced with another in vitro diagnostic medical device, the validation shall include confirmation that the product requirements for the specified application or intended use are met when so connected or interfaced. (g) Validation shall be completed prior to the product's release for customer use. (h) Records of the results of validation, the					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	conclusions reached, and any necessary actions shall be maintained.					
7.3.8 Design and Development Transfer	(a) The organization shall document procedures for the transfer of design and development outputs to manufacturing. These procedures shall ensure that the design and development outputs have been verified as suitable for manufacturing before becoming the final production specifications and that manufacturing capability can meet product requirements. (b) Records of the results and conclusions of the transfer shall be maintained.					
7.3.9 Control of Design and Development Changes	(a) The organization shall document procedures for controlling design and development changes. The organization shall determine the significance of changes to the function, performance, usability, safety, applicable statutory requirements, and intended use of the in vitro diagnostic medical device. (b) Design and development changes shall be identified. Prior to implementation, the changes shall be: 1) Reviewed; 2) Verified; 3) Validated, where applicable; 4) Approved. (c) The review of design and development changes shall include evaluation of the effects of the changes on constituent parts, products in manufacturing or already delivered, risk management inputs or outputs, and the production realization processes. (d) Records of the changes, the review of the changes, and any necessary actions shall be maintained.					
7.3.10 Design and Development File	(a) The organization shall maintain a design and development file for each in vitro diagnostic medical device model or item. (b) This file shall contain or reference the records generated to demonstrate conformity with the					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	design and development requirements and the records of design and development changes.					
7.4. Purchasing 7.4.1 Purchasing Process	(a) The organization shall document procedures to ensure that purchased product conforms to specified requirements. (b) The organization shall establish criteria for the evaluation and selection of suppliers. The criteria shall be based on: 1) The supplier's ability to provide product that meets the organization's requirements; 2) The supplier's performance; 3) The effect of the purchased product on the quality of the in vitro diagnostic medical device; 4) Proportionate to the risks associated with the in vitro diagnostic medical device. (c) The organization shall plan monitoring and re-evaluation of suppliers. The performance of suppliers in meeting purchased product requirements shall be monitored. The results of monitoring shall be provided as input to the supplier re-evaluation process. (d) Non-fulfillment of purchasing requirements shall be addressed with the supplier in proportion to the risks associated with the purchased product and compliance with applicable statutory requirements. (e) Records of the results of evaluation, selection, monitoring, and re-evaluation of suppliers and of any necessary actions arising from these activities shall be maintained.					
7.4.2 Purchasing Information	(a) Purchasing information shall describe or reference the product to be purchased, including, where appropriate: 1) Product specifications; 2) Requirements for product approval, procedures, processes, and equipment; 3) Requirements for the qualification of supplier personnel; 4) Quality management system requirements. (b) The organization shall ensure the adequacy of					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	specified purchasing requirements prior to communication with the supplier. (c) Purchasing information shall include, where appropriate, a written agreement that the supplier notify the organization of any changes to the product prior to implementation if such changes may affect the ability of the product to meet specified purchasing requirements. (d) The organization shall maintain the relevant purchasing information as documents and records to the extent that traceability is required in accordance with Section 7.5.9.					
7.4.3 Verification of Purchased Product	(a) The organization shall establish and implement the inspection or other activities necessary to ensure that purchased product meets specified requirements. The extent of verification activities shall be based on the results of supplier evaluation and shall be proportional to the risks associated with the purchased product. (b) When the organization becomes aware of any changes to the purchased product, it shall determine whether such changes affect the production realization processes or the in vitro diagnostic medical device. (c) If the organization or its customer intends to verify the purchased product at the supplier's premises, the organization shall specify in the purchasing information the intended verification arrangements and the method of product release. (d) Records of verification shall be maintained.					
7.5 Production and Service Provision 7.5.1 Control of Production and Service Provision	(a) Production and service provision shall be planned, carried out, monitored, and controlled to ensure that product conforms to specifications. Where appropriate, production control shall include, but not be limited to: 1) Documentation of procedures and methods for production control; 2) Qualification of infrastructure; 3) Implementation of monitoring and measurement of process parameters and					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	product characteristics; 4) Availability and use of monitoring and measuring equipment; 5) Implementation of activities specified for labeling and packaging operations; 6) Implementation of product release, delivery, and post-delivery activities. (b) The organization shall provide traceability to the extent required in accordance with Section 7.5.9 and shall establish and maintain records by in vitro diagnostic medical device or by in vitro diagnostic medical device batch that enable identification of the quantity produced and approved for distribution. These records shall be verified and approved.					
7.5.2 Cleanliness of Product	The organization shall document requirements for cleanliness of product or contamination control of product in the following cases. Provided, however, that where the product is cleaned in accordance with 1) or 2), the requirements of 6.4.1 do not apply prior to the cleaning process. 1) Product that is cleaned by the organization prior to sterilization or use; 2) Product supplied non-sterile that requires a cleaning process prior to sterilization or use; 3) Product that cannot be cleaned prior to sterilization or use and for which cleanliness is of significant importance for use; 4) Product supplied non-sterile for which cleanliness is of significant importance for use; 5) Removal of process agents used during manufacturing from the product.					
7.5.3 Installation Activities	(a) Where applicable, the organization shall document the acceptance criteria for installation of the in vitro diagnostic medical device and for its installation verification. (b) Where installation by parties other than the organization or the supplier is permitted by the customer, the organization shall provide documented requirements for installation of the in vitro diagnostic medical device and for					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	installation verification. (c) Records of installation of the in vitro diagnostic medical device and of installation verification performed by the organization or the supplier shall be maintained.					
7.5.4 Servicing Activities	(a) Where servicing of the in vitro diagnostic medical device is a specified requirement, the organization shall document, where necessary, servicing procedures, reference materials, and reference measurements for performing servicing activities and for verifying that the specified requirements are met. (b) The organization shall analyze records of servicing activities performed by the organization or the supplier for the purpose of: 1) Determining whether the information should be handled as a complaint; 2) Providing, where applicable, input to the improvement processes. (c) Records of servicing activities performed by the organization or the supplier shall be maintained.					
7.5.5 Particular Requirements for Sterile In Vitro Diagnostic Medical Devices	The organization shall maintain records of the parameters of the sterilization process used for each sterilization batch. Sterilization records shall be traceable to each production batch of the in vitro diagnostic medical device.					
7.5.6 Validation of Processes for Production and Service Provision	(a) The organization shall validate any processes for production and service provision where the resulting output cannot be verified by subsequent monitoring or measurement. Validation shall include all processes where deficiencies become apparent only after the product is used or the service is delivered. (b) Validation shall demonstrate the ability of the processes to achieve the planned results consistently. (c) The organization shall document procedures for process validation that include: 1) Defined criteria for review and approval of the processes;					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	2) the suitability of equipment and personnel; 3) the use of specific methods, procedures, and acceptance criteria; 4) Statistical techniques, where applicable, including justification for sample size; 5) Requirements for records; 6) Revalidation, including the criteria for revalidation; 7) Approval of changes to the process. (d) The organization shall document procedures for validation of the application of computer software used in production and service provision. Such software applications shall be validated prior to initial use and, where appropriate, validated after changes or software applications have been made. The specific approach and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software, including the impact on product specifications and product performance. (e) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.					
7.5.7 Specific Requirements for Validation of Sterilization and Sterile Packaging Processes	(a) The organization shall document procedures for validation of the sterilization processes and the sterile barrier systems. (b) The sterilization processes and the sterile barrier systems shall be validated prior to initial use and, where applicable, prior to changes to the product or the process. (c) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.					
7.5.8 Identification	(a) The organization shall document procedures for product identification and shall identify the product by suitable means throughout production realization.					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	(b) The organization shall identify the status of product with respect to monitoring and measurement requirements throughout production realization. The organization shall maintain identification of the status of product to ensure that only product that has passed the required tests and inspections, or that has been released under an approved concession, is dispatched, used, or installed during all phases of production, storage, installation, and servicing. (c) Where required by applicable statutory requirements, the organization shall document a system for assigning a unique device identification (UDI) to the in vitro diagnostic medical device. (d) The organization shall document procedures to ensure that in vitro diagnostic medical devices returned to the organization are identified and distinguished from conforming product.					
7.5.9 Traceability 7.5.9.1 General Requirements	The organization shall document procedures for traceability. These procedures shall define the scope of traceability and the records to be maintained in accordance with applicable statutory requirements.					
7.5.9.2 Particular Requirements for In Vitro Diagnostic Medical Devices Subject to Traceability	(a) Where components, materials, or working environment conditions used could cause the in vitro diagnostic medical device not to meet specified safety and performance requirements, records required for traceability shall include records of the components, materials, and working environment conditions used. (b) The organization shall require distributors or retailers to maintain records of sales of the in vitro diagnostic medical device and to make such records available for investigation to ensure product traceability. (c) The organization shall maintain records of the name and address of the consignee for shipped product.					
7.5.10 Customer Property	Where customer property provided for use or incorporation into the product is under the					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	manufacturer's control or is being used by the manufacturer, the organization shall identify, verify, protect, and safeguard such property. If customer property is lost, damaged, or found to be unsuitable for use, this shall be reported to the customer and records shall be maintained.					
7.5.11 Preservation of Product	(a) The organization shall document procedures to preserve product conformity to requirements during processing, storage, handling, and distribution. (b) Preservation shall also apply to components of the in vitro diagnostic medical device. (c) When exposed to expected conditions and hazards during processing, storage, handling, and distribution, the organization shall protect the product from alteration, contamination, or damage by the following means: 1) Designing and constructing appropriate packaging and transportation containers; 2) Documenting requirements for any special conditions needed where packaging alone does not provide preservation. (d) Where special conditions are necessary, such conditions shall be controlled and recorded.					
7.6 Control of Monitoring and Measuring Equipment	(a) The organization shall determine the monitoring and measurement activities to be performed, and the monitoring and measuring equipment required, to demonstrate that the product meets specified requirements. (b) The organization shall document procedures to ensure that monitoring and measurement activities are carried out in a manner consistent with the monitoring and measurement requirements. (c) Where necessary to ensure valid results, measuring equipment shall: 1) Be calibrated or verified, or both, at specified intervals or prior to use, against measurement standards traceable to international or national measurement standards; Where no such standards exist, the basis used for calibration or					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	verification shall be recorded; 2) Be adjusted or re-adjusted as necessary. Such adjustments or re-adjustments shall be recorded; 3) Be identified to enable the calibration status to be determined; 4) Be safeguarded from adjustments that would invalidate the measurement result; 5) Be protected from damage and deterioration during handling, maintenance, and storage. (d) The organization shall calibrate or verify the equipment in accordance with documented procedures. (e) When equipment is found not to conform to requirements, the organization shall assess the validity of previous measurement results. The organization shall take appropriate action regarding the equipment and any product affected. Records of the results of calibration and verification shall be maintained. (f) When computer software is used in monitoring or measuring the requirements specified, the organization shall document procedures for validation of the application of computer software. The software shall be validated prior to initial use and, where appropriate, revalidated after changes to the software or its application. The specific approach and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software, including the impact on product specifications and product performance. (g) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.					
8. Measurement, Analysis and Improvement	(a) The organization shall plan and implement the monitoring, measurement, analysis, and improvement processes needed:					
8.1 General Requirements	1) To demonstrate conformity of the product; 2) To ensure conformity of the quality					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	management system; 3) To maintain the effectiveness of the quality management system. (b) This shall include determination of the methods, including statistical techniques, and the extent of their use.					
8.2 Monitoring and Measurement 8.2.1 Feedback	(a) As one of the measurements of the effectiveness of the quality management system, the organization shall collect and monitor information relating to whether customer requirements have been met. (b) The methods for obtaining and using this information shall be documented. (c) The organization shall document procedures for the feedback process. The feedback process shall include provisions for gathering data from production as well as post-production activities. (d) Information gathered in the feedback process shall be used as potential input to risk management in order to monitor and maintain the product requirements and the production realization or improvement processes. (e) Where applicable statutory requirements require the organization to collect information from post-production activities, review of that information shall be part of the feedback process.					
8.2.2 Handling of Complaints	(a) The organization shall document procedures for timely handling of complaints in accordance with applicable statutory requirements. These procedures shall include, at a minimum, the following requirements and responsibilities: 1) Receiving and recording information; 2) Evaluating information to determine whether feedback constitutes a complaint; 3) Investigating complaints; 4) Determining whether the information must be reported to the appropriate regulatory authorities; 5) Handling complaint-related product; 6) Determining the need for correction or					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	corrective action. (b) If any complaint is not investigated, the justification for not conducting the investigation shall be documented. All results of corrections and corrective actions arising from the complaint handling process shall be documented. (c) Where an investigation determines that activities external to the organization caused the complaint, relevant information shall be exchanged between the organization and the external parties. (e) Records of complaint handling shall be maintained.					
8.2.3 Reporting to Regulatory Authorities	(a) Where complaints are subject to adverse event reporting or advisory notice reporting in accordance with applicable statutory requirements, the organization shall document procedures for reporting such complaints to the regulatory authorities. (b) Records of reports submitted to regulatory authorities shall be maintained.					
8.2.4 Internal Audit	(a) The organization shall conduct internal audits at planned intervals to determine whether the quality management system: 1) Conforms to the planned and documented (established, implemented, and maintained) arrangements, the requirements of this GMP, the quality management system requirements established by the organization, and the applicable statutory requirements; 2) Is effectively implemented and maintained. (b) The organization shall document procedures that define the responsibilities and requirements for planning and conducting audits, and for recording and reporting audit results. (c) The audit program shall be planned, taking into consideration the status and importance of the processes and areas to be audited, as well as the results of previous audits. The audit criteria, scope, frequency, and methods shall be defined					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	and recorded. Auditors shall be selected and audits conducted to ensure objectivity and impartiality of the audit process. Auditors shall not audit their own work. Records of the audit and audit results, including the processes and areas audited and the conclusions reached, shall be maintained. (d) Management responsible for the areas being audited shall ensure that necessary corrections and corrective actions are taken without undue delay to eliminate detected nonconformities and their causes. Follow-up activities shall include the verification of the actions taken and the reporting of the results of verification.					
8.2.5 Monitoring and Measurement of Processes	The organization shall apply suitable methods for monitoring and, where applicable, measurement of the quality management system processes. These methods shall demonstrate the ability of the processes to achieve the planned results. When the planned results are not achieved, appropriate correction and corrective action shall be taken to ensure conformity of the product.					
8.2.6 Monitoring and Measurement of Product	(a) The organization shall monitor and measure the characteristics of the product to verify that product requirements have been met. This shall be carried out at appropriate stages of the production realization process in accordance with the planned and documented arrangements and documented procedures. (b) Records demonstrating conformity with the acceptance criteria shall be maintained. The identity of the person authorizing product release shall be recorded. Where applicable, the test equipment used for measurement activities shall be identified and recorded. (c) Product shall not be released, nor shall service be provided, until the planned and documented activities have been satisfactorily completed. (d) For in vitro diagnostic medical devices subject to traceability, the organization shall identify and record the identity of personnel performing					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	all inspections or tests.					
8.3 Control of Nonconforming Product 8.3.1 General	(a) The organization shall ensure that nonconforming product is identified and controlled to prevent its unintended use or delivery. The organization shall document procedures that define the controls and related responsibilities and authorities for dealing with nonconforming product, including identification, documentation, segregation, evaluation, and disposition. (b) Evaluation of nonconformities shall include investigation into any external party responsible for the nonconformity and determination of whether notification is required. (c) Records of the nonconformity, including the evaluation, investigation, the basis for the decisions made, and all actions taken in response, shall be maintained.					
8.3.2 Actions in Response to Nonconforming Product Detected Prior to Delivery	(a) The organization shall deal with nonconforming product in one or more of the following ways: 1) Taking action to eliminate the detected nonconformity; 2) Taking action to preclude its original intended use or application; 3) Authorizing its use, release, or acceptance under concession. (b) The organization shall ensure that concessions are granted only when justified, approved, and compliant with applicable statutory requirements. Records shall be maintained to identify acceptance under concession and the personnel authorizing the concession.					
8.3.3 Actions in Response to Nonconforming Product Detected After Delivery	(a) When nonconforming product is detected after delivery or use, the organization shall take appropriate action regarding the effects or potential effects of the nonconformity. Records of the actions taken shall be maintained. (b) The organization shall document procedures for issuing advisory notices in accordance with					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	applicable statutory requirements. These procedures shall be capable of being implemented at any time. Records of the actions related to advisory notices shall be maintained.					
8.3.4 Rework	(a) The organization shall perform rework in accordance with documented procedures that take into account any potential adverse effects on the product. These procedures shall be subject to the same review and approval as the original procedures. (b) After completion of the rework, the product shall be verified to ensure that it meets the applicable acceptance criteria and statutory requirements. (c) Records of the rework shall be maintained.					
8.4 Analysis of Data	(a) The organization shall document procedures to determine, collect, and analyze appropriate data to demonstrate the suitability, adequacy, and effectiveness of the quality management system. These procedures shall include the determination of appropriate methods, including statistical techniques and the extent of their application. (b) Analysis of data shall include data generated from the results of monitoring and measurement and from other relevant sources, and shall include, at a minimum, the following inputs: 1) Feedback; 2) Conformity to product requirements; 3) Process and product characteristics and trends, including opportunities for improvement; 4) Suppliers; 5) Audits; 6) Service reports, where applicable. (c) Where analysis of data shows that the quality management system is not suitable, adequate, or effective, the organization shall use this analysis as input for improvement as required in 8.5.					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	(d) Records of the results of data analysis shall be maintained.					
8.5 Improvement 8.5.1 General Requirements	The organization shall identify and implement any changes necessary to ensure and maintain the ongoing suitability, adequacy, and effectiveness of the quality management system, as well as the safety and performance of in vitro diagnostic medical devices, through the use of the quality policy, quality objectives, audit results, post-marketing surveillance, data analysis, corrective and preventive actions, and management review.					
8.5.2 Corrective Action	(a) The organization shall take action to eliminate the causes of nonconformities in order to prevent their recurrence. (b) Corrective actions required shall be taken without undue delay. Corrective actions shall be proportionate to the effects of the nonconformities encountered. (c) Documented procedures shall define requirements for: 1) Reviewing nonconformities (including customer complaints); 2) Determining the causes of nonconformities; 3) Evaluating the need for action to ensure that nonconformities do not recur; 4) Planning and documenting the required actions and implementing them, including document changes where applicable; 5) Verifying that corrective actions do not adversely affect the safety and performance of the in vitro diagnostic medical device or compliance with applicable statutory requirements; 6) Reviewing the effectiveness of the corrective actions taken. (d) Records of all investigation results and actions taken shall be maintained.					
8.5.3 Preventive Action	(a) The organization shall determine preventive actions to eliminate the causes of potential nonconformities in order to prevent their occurrence. Preventive actions shall be					

GMP Criteria Requirements	Assessment Criteria	Assessment Result				Remarks
		A	B	C	D	
	proportionate to the potential impacts of such issues. (b) Documented procedures shall define requirements for: 1) Determining potential nonconformities and their causes; 2) Evaluating the need for action to prevent the occurrence of nonconformities; 3) Planning and documenting the required actions and determining and implementing such actions, including document changes where applicable; 4) Verifying that preventive actions do not adversely affect the safety and performance of the in vitro diagnostic medical device or compliance with applicable statutory requirements; 5) Reviewing the effectiveness of preventive actions taken, where applicable. (c) Records of the results of all investigations and actions taken shall be maintained.					

1. Assessment Sheet

- (a) “A (Conforming)” means that the requirements prescribed in the Good Manufacturing Practice (GMP) are recognized as being met.
- (b) “B (Additional action required)” means that the requirements prescribed in the Good Manufacturing Practice (GMP) are not being fully met, or that although the requirements are being met, the evidence of conformance, feasibility of implementation, or adequacy of documentation is insufficient, thereby requiring improvement or supplementary actions.
- (c) “C (Nonconforming)” means that no action has been taken in response to “Additional action required,” or that a violation of statutes related to in vitro diagnostic medical devices has occurred.
- (d) “D (Not applicable)” means that the requirement prescribed in the Good Manufacturing Practice (GMP) does not apply.

2. Determination Criteria

(a) Conforming

- 1) Where all items under each review criterion are rated “A (Conforming).”
- 2) Where all other items under each review criterion are rated “A (Conforming),” and certain sections—specifically Sections 4.1 through 6.3 (excluding Section 4.2.3) and Section 8.2.4—are rated “B (Additional action required).” Provided, however, that this shall not apply where the same item was rated “B (Additional action required)” or “C (Nonconforming)” in the previous assessment.

(b) Additional action required

Where all other items under each assessment criterion are rated “A (Conforming),” and some items are rated “B (Additional action required)” (provided, however, that this does not apply to cases under item (a) 2)).

(c) Nonconforming

- 1) Where the required actions have not been submitted or have not been completed.
- 2) Where one or more items are rated “C (Nonconforming)” in the evaluation sheet.

[Annex 3]

GMP Product Groups for In Vitro Diagnostic Medical Devices

(Related to Articles 4, 6, and 7)

Number	Major Categories
1	Device for Sample Preparation
2	Devices for Clinical Chemistry
3	Devices for Clinical Immunology
4	Devices for Blood Transfusion
5	Devices for Clinical Microbiology
6	Devices for Molecular Diagnostics
7	Devices for Immuno Cyto/Histo Chemistry
8	In Vitro Diagnostic (IVD) Software
9	Innovative Medical Device Software

[Annex 4]

Entities and Methods for Conformity Recognition Assessments

(Related to Article 6 and 8)

The entities responsible for conformity recognition assessments and the methods thereof are as follows: Provided, however, that if the manufacturing site of the in vitro diagnostic medical device is classified as a manufacturing site of potential concern, a joint on-site inspection shall be conducted even when the site is subject only to document review or a single-agency on-site inspection.

<Assessment Entity>

Category	Class	Initial Assessment	Additional Assessment	Assessment for Change	Periodic Assessment
Manufacture	Class I	Single-agency	Single-agency	Single-agency	-
	Class II	Single-agency	Single-agency	Single-agency	Single-agency
	Class III	Joint	Joint	Joint	Joint
	Class IV	Joint	Joint	Joint	Joint
Import	Class I	Single-agency	Single-agency	Single-agency	-
	Class II	Single-agency	Single-agency	Single-agency	Single-agency
	Class III	Joint	Joint	Joint	Joint
	Class IV	Joint	Joint	Joint	Joint

1. “Joint (assessment)” means a conformity recognition assessment conducted jointly by the Regional Office of Food and Drug Safety and the audit organization.
2. ‘Single-agency (assessment)’ means an assessment conducted solely by the audit organization.

<Method of Assessment>

Category	Class	Initial Assessment	Additional Assessment	Assessment for Change	Periodic Assessment
Manufacture	Class I	On-site inspection, document review	Document review	On-site inspection, document review	-
	Class II	On-site inspection, document review	Document review	On-site inspection, document review	On-site inspection, document review
	Class III	On-site inspection, document review	Document review	On-site inspection, document review	On-site inspection, document review
	Class IV	On-site inspection, document review	Document review	On-site inspection, document review	On-site inspection, document review
Import	Class I	On-site inspection, document review	Document review	On-site inspection, document review	-
	Class II	On-site inspection, document review	Document review	On-site inspection, document review	On-site inspection, document review
	Class III	On-site inspection, document review	Document review	On-site inspection, document review	On-site inspection, document review
	Class IV	On-site inspection, document review	Document review	On-site inspection, document review	On-site inspection, document review

1. For on-site inspection targets falling under Article 6 (2) 2 through 5, a document review shall be conducted, where applicable.
2. For an assessment for change or a periodic assessment (limited to document reviews) of manufacturing sites for Class III and Class IV in vitro diagnostic medical devices, and for an assessment of manufacturing sites for in vitro diagnostic medical devices for export, the assessments shall be conducted as a single-agency assessment by the audit organization.

[Annex 5]

Issuance and Management of Certificates of Conformity

(Related to Articles 8 (9), 9, and 10)

1. The issuing authority for the Certificate of Conformity shall be as follows:
 - (a) For Class III and Class IV in vitro diagnostic medical devices, the Commissioner of Regional Office of Food and Drug Safety and the head of the audit organization;
 - (b) For Class II in vitro diagnostic medical devices, the head of the audit organization
2. Items of the Certificate of Conformity and Instructions for Entry
 - (a) General Principles
 - 1) Each item of the Certificate of Conformity shall be presented in both Korean and English.
 - 2) Printing paper specification: 130 g white, A4 (210 × 297 mm)
 - (b) Required Entries
 - 1) Recognition Number

① Agency code – ② Assessment type – ③ Serial number

① Agency code

Name of audit organization	Agency code	Name of audit organization	Agency code
Korea Testing Laboratory	KTL	Korea Conformity Laboratories	KCL
Korea Testing Certification Institute	KTC	Korea Testing & Research Institute	KTR
TÜV SÜD Korea	TSK	TÜV Rheinland Korea	TRK

② Assessment type: The assessment type shall be indicated using up to six digits.

Assessment type	A	B	C	D	E	F	G
1st digit			Manufacture	Import			
2nd digit	Initial assessment	Periodic assessment	Additional assessment	Assessment for change			

Assessment type	A	B	C	D	E	F	G
3rd digit	Document review	On-site inspection					
4th digit	Others	Class I	For clinical performance studies	For export	Innovative medical device software	Medical Device Single Audit Program (MDSAP)	Excellent manufacturing site
5th digit	Conforming 2)*	Not applicable					
6th digit					Reissuance		Replacement issuance

* When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 2)

- ③ Serial number: A sequential number assigned in the order of assessment receipt
- 2) Name of business / License number: State the business name, business type (manufacturing or import), and license number as stated on the manufacturing/import business license.
- 3) Business address: State the address as shown on the manufacturing/import business license; for importers, state only the address of the place of business.
- 4) Name of manufacturing site: State the name of the manufacturing site of the legal manufacturer (where applicable) and the manufacturer.
- 5) Address of manufacturing site: State the location of the legal manufacturer (where applicable) and the manufacturer.
- 6) Product group: Enter the name of the product group corresponding to the product name listed on the product license (or notification) certificate; if multiple product groups apply, indicate them in an attachment.
- 7) Date of issuance: State the date of issuance of the Certificate of Conformity.
- 8) Expiration date: Indicate according to Article 9 of the text.
- 9) GMP mark: Print according to Annex 6.
- 10) Official seal and personal seal: Print one of each clearly, reflecting the appropriate colors.
- 11) Changes and administrative actions: State the assessment date, assessment type, transfer/acquisition, and other relevant matters.
- 12) Attachments: For all attachment pages, the recognition number (No.) shall be indicated in the upper left corner for identification.

- 13) Page numbering: When attachments to the Certificate of Conformity exist, indicate the page number at the top right corner (e.g., “Page 1 of 2” when the attachments consist of two pages and the current page is the first).
- 14) Seal: An embossed seal shall be affixed in the blank space next to the official stamp at the lower right corner of the Certificate of Conformity, according to each issuing agency.

[Annex 6]

Marking of Conformity Recognition Assessment

(Related to Article 11)

1. Design of the conformity recognition assessment mark

(a) Design



(b) Size ratio: Width × Height = 1 × 0.83

(c) Color code: Pantone 2736CVC

2. Methods and standards for marking

- (a) The mark for conformity recognition assessment shall be applied based on the size and color specified in item (a), and may be used in various sizes (with the same proportions) and colors suitable for the characteristics of the product and its packaging materials; provided that the design of the mark shall not be altered.
- (b) The method of the conformity recognition assessment marking in item (a) may follow the labeling requirements under Articles 13 through 15 of the Act on In Vitro Diagnostic Medical Devices, and the mark may be affixed to one or more of the following: the container, outer packaging, external package, or package insert.

[Form 1]

(1/6)

Application for Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices			
Receipt number			
Type of business	☐ Manufacturing ☐ Import	Business license number	
Name of business	Korean: English:		
Representative	Korean: English:	Quality manager	Name: Phone number:
Address	Korean: English: (☎) (FAX)		
Name/Address of manufacturing site subject to assessment	Legal manufacturer: (Name) (Location)		
	Manufacturer: (Name) (Location)		
Applicable criteria	☐ Class I in vitro diagnostic medical device ☐ In vitro diagnostic medical device for clinical performance studies ☐ In vitro diagnostic medical device for export ☐ Innovative medical device software ☐ Use of the Medical Device Single Audit Program ☐ Excellent manufacturing site ※ Fill in only if applicable.		
Assessment type	☐ Initial assessment ☐ Periodic assessment ☐ Assessment for change ☐ Additional assessment		
Product	Product group		
	Product name / Class		
Preferred date of on-site inspection	Year Month Day		
Remarks	☐ Applies as a manufacturing site of potential concern under Article 6(3)		
In accordance with Article 7 of the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices, I hereby apply for conformity recognition assessments as stated above.			
Applicant		Year Month Day (Signature or Seal)	
To: Head of ○○○ Audit Organization			
※ Required Documents Submission of documents required for conformity recognition assessments under Article 7			Fee To be prescribed separately

210 mm × 297 mm [standard paper 60 g/m² (recycled)]

(2/6)

Submission Status	Required Documents	Remarks (file name, etc.)
	1. Application for Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices	
	2. A copy of the manufacturing (import) business license or conditional manufacturing (import) business license for in vitro diagnostic medical devices (excluding initial assessments or in vitro diagnostic medical devices for clinical performance studies)	
	2-a. An overview of the manufacturing site (including the name of the site and the address of each facility; if there are multiple sites, all site names must be included), organizational chart, number of employees, and in vitro diagnostic medical devices manufactured	
	2-b. A copy of the quality management system conformity certificate issued by the regulatory authority or an agency delegated by the regulatory authority (only applicable to Article 6 (2) and Article 6 (6)) and on-site inspection results (only applicable to Article 6 (2) 2 and Article 6 (6), including any follow-up actions taken in response to the inspection results)	
	2-c. A description of facility conditions for each manufacturing site subject to assessment [including floor plans of work areas, test laboratories, and storage facilities (for software manufacturing sites, only if such work areas, test laboratories, or storage facilities exist), and lists of facilities and equipment], cleanroom procedures (if applicable), and procedures for monitoring and measurement equipment that specify monitoring cycles	
	2-d. The quality manual of the manufacturing site (including the quality policy)	
	2-e. Procedures and test reports related to finished product testing (e.g., final release inspection) for the core product of the manufacturing site (including documentation demonstrating sterilization for sterile products)	
	2-f. Purchasing and outsourcing procedures for the core product of the manufacturing site, names of major suppliers (including contracted suppliers), and scope of work	
	2-g. Device Master Records of the core product for the manufacturing site (including descriptions of specific manufacturing processes such as sterilization or software, as applicable), and procedures for validation of sterilization, where applicable	
	2-h. Checklist for Annex 2 criteria of the manufacturing site	
	2-i. Declaration of conformity to Annex 2 criteria of the manufacturing site	
	2-j. The designation certificate for the core product as an innovative medical device (applicable only to innovative medical device software)	
	Other relevant documents.	

(3/6)

Submission Status	List of Required Documents (related to Article 7 (1) 3)	Remarks (file name, etc.)
	1. Application for Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices	
	2. The following documents corresponding to each item:	
	2-a. A copy of the MDSAP conformity recognition certificate and the accompanying assessment results (including, where nonconformities were identified, the nonconformity report issued by the audit organization and the corrective and preventive action plan or results submitted by the manufacturing site that have been confirmed by the organization as compliant)	
	2-b. Device Master Records for the product belonging to the highest classification level within each product group of the manufacturing site. Provided, however, that for an assessment for change, the Device Master Record shall be that of the product belonging to the highest classification level within the product group of the manufacturing site and having the highest manufacturing or import volume	
	2-c. The following documents related to the quality management system:	
	1) Quality manual of the manufacturing site	
	2) Procedures related to record management	
	3) Procedures that define the scope of responsibilities of the quality manager	
	4) Procedures for managing medical devices subject to traceability (where applicable)	
	5) Procedures for adverse event reporting and advisory notices	
	2-d. Documents demonstrating the correlation between the MDSAP certificate and the products subject to conformity recognition assessments	

※ To be completed only when applying for conformity recognition assessment using the Medical Device Single Audit Program (MDSAP).

(4/6)

Submission Status	List of Required Documents (related to Article 7 (1) 4)	Remarks (file name, etc.)
	1. Application for Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices	
	2. A copy of the manufacturing (import) business license or conditional manufacturing (import) business license for in vitro diagnostic medical devices	
	3. The following documents corresponding to each item:	
	3-a. Documentation confirming that the manufacturing site falls under Annex 1, subparagraph 69 (d)	
	3-b. The Device Master Record for the core product that belongs to the highest classification level within each product group of the manufacturing site and has the highest manufacturing or import volume	
	3-c. The following documents demonstrating the appropriateness of quality control over the past three years:	
	1) Procedures and test reports related to finished product testing (e.g., final release inspection) for the core product (including sterilization validation procedures and test reports for sterile products)	
	2) Documents on corrective and preventive actions taken in the last three years in accordance with the criteria set out in Annex 2	
	3) Checklist under Annex 2 and declaration of conformity	
	4. Other relevant documents.	

※ To be completed only when applying for conformity recognition assessment as an Excellent Manufacturing Site.

Interrelation within the Quality Management System												
Category	Manufacturing Process Flow											
	1	2	3	4	5	6	7	8	9	10	11	12
Region of the manufacturing site (country name for foreign sites)												
Indication of whether manufacturing is outsourced or in-house												
GMP Criteria	GMP Requirements						Interrelation within the Quality Management System					
4. Quality Management System	4.1 General Requirements											
	4.2 Documentation Requirements											
5. Management Responsibility	5.1 Management Commitment											
	5.2 Customer Focus											
	5.3 Quality Policy											
	5.4 Planning											
	5.5 Responsibility, Authority, and Communication											
	5.6 Management Review											
6. Resource Management	6.1 Provision of Resources											
	6.2 Human Resources											
	6.3 Infrastructure											
	6.4 Work Environment and Contamination Control											
7. Production Realization	7.1 Planning of Production Realization											
	7.2 Customer-Related Processes											
	7.3 Design and Development											
	7.4 Purchasing											
	7.5 Production and Service Provision											
	7.6 Control of Monitoring and Measuring Equipment											
8. Measurement, Analysis and Improvement	8.1 General Requirements											
	8.2 Monitoring and Measurement											
	8.3 Control of Nonconforming Product											
	8.4 Analysis of Data											
	8.5 Improvement											

(6/6)

Master List of Manufacturing Sites												
Information on the manufacturing site						Information on manufactured products						Remarks
Name of manufacturing site	Location (address)	Name of representative	Head office address	Recognition number	Expiration date	By product	Subclass number	Product name	Approval Number	Approval Date	Class	
Manufacturing site A						Product a						
						Product b						
						Product c						
Manufacturing site B						Product d						
						Product e						
						Product f						
Manufacturing site C						Product g						
						Product h						
						Product i						

※ To be completed only when applying collectively for multiple manufacturing sites

[Form 2]

(Front)

Recognition Number (No.):

체외진단의료기기 제조 및 품질관리기준 적합인정서 (Certificate of GMP)

- 업소명/허가번호
(Company name of Applicant / License No.)
- 업소 소재지 (Company Address of Applicant)
- 제조소명 (Name of Manufacturer)
- 제조소 소재지 (Address of Manufacturer)
- 품목군 (Product Group)



체외진단의료기기 제조 및 품질관리기준에 적합함을 인정합니다.

(We hereby certify that the above manufacturer complies with Korea Good Manufacturing Practices of In-Vitro Diagnostic Devices for the Product group listed above)

발행일자(Date of Issue): . . .

유효기한(Date of Expiration): . . .

Commissioner of Regional Office of Food and Drug Safety

Seal

Head of the Audit Organization

Seal

210 mm × 297 mm [standard paper 60 g/m² (recycled)]

Changes (Change History Records of GMP certificate)

일자(Date)	내용(Description)

[Form 3]

Report on the Results of Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices			
Type of business	☐ Manufacturing ☐ Import	Business license number	
Name of business		Representative	
Address	(☎) (FAX)		
Applicable criteria	☐ Class I in vitro diagnostic medical device ☐ In vitro diagnostic medical device for clinical performance studies ☐ In vitro diagnostic medical device for export ☐ Innovative medical device software ☐ Use of the Medical Device Single Audit Program ☐ Excellent manufacturing site ※ Fill in only if applicable.		
Assessment type	☐ Initial assessment ☐ Periodic assessment ☐ Assessment for change ☐ Additional assessment		
Method of assessment	☐ On-site inspection ☐ Document review		
Product	Product group		
	Product name / Class		
Assessment team	Affiliation	Name	
	Ministry of Food and Drug Safety		
	Audit Organization (Name of Agency)		
Assessment date (YYYY/MM/DD)	. . . - . . .		
Assessment result	☐ Conforming ☐ Additional actions required (by . . .) ☐ Nonconforming In the case of Annex 2, Section 9.4, subparagraph 2, item (a) 2), the results of corrective actions shall be submitted by (yyyy.mm.dd).		
In accordance with Articles 6 and 8 of the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices, we hereby report the results of the conformity recognition assessments as stated above. Year Month Day Head of ○○○ Audit Organization Seal			
※ Attachments: One copy of the Conformity Recognition Assessment Form for In Vitro Diagnostic Digital Medical Devices			

210 mm × 297 mm [Standard paper 60 g/m² (Recycled)]

[Form 4]

Periodic Report on the Results of Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices							
Name of audit organization							
Address	(☎) (FAX)						
Assessment period	. . . - . . . (months)						
Assessment history	Category		Total	Conforming		Additional action required	Nonconforming
				1)*	2)**		
	Initial	Manufacture					
		Import					
	Additional / Change	Manufacture					
		Import					
	Periodic	Manufacture					
		Import					
Total							
* When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 1) * When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 2) In accordance with Article 14 of the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices, we hereby report the results of the quality control assessment as stated above. Year Month Day Head of ○○○ Audit Organization Seal							
※ Attachment: Detailed List of Quality Control Assessment Results for In Vitro Diagnostic Medical Devices (1 copy)							

210 mm × 297 mm [standard paper 60 g/m² (recycled)]

[Form 5]

List of the Results of Conformity Recognition Assessment for In Vitro Diagnostic Medical Devices	
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[illegible]

* When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 1)

* When applicable under Annex 2, Section 9.4, subparagraph 2 (a) 2)

210 mm × 297 mm [standard paper 60 g/m² (recycled)]

Standards of Good Manufacturing Practice (GMP) for Digital Medical Devices



[Enforced on April 21, 2025]

[Ministry of Food and Drug Safety Notice No. 2025-28; Apr. 21, 2025; Enacted]

Ministry of Food and Drug Safety (Medical Device Policy Division)

Article 1 (Purpose) The purpose of this GMP is to prescribe the specific requirements to be observed for the manufacture or import of digital medical devices pursuant to Articles 5 (1), 8 (4), 9 (3), 11 (1), 12 (3), and 24, 25, and 48 of the Digital Medical Products Act, and Articles 12, 14, 19, 24, 25, 27, 34, 35, and 54 of the Enforcement Rule of the same Act.

Article 2 (Definitions) The definitions of terms used in this GMP shall be as specified in Annex 1.

Article 3 (Scope of Application) (1) The scope of this GMP shall be as follows:

1. A person who intends to obtain manufacturing/import approval or manufacturing/import certification for digital medical devices, or who intends to submit a manufacturing/import notification;
 2. A person who intends to manufacture or import medical device hardware for investigational use;
 3. A person who has been granted a manufacturing business license (hereinafter referred to as the “manufacturer”) or a person who has been granted an import business license (hereinafter referred to as the “importer”) and who intends to undergo the assessment falling under each of the following subparagraphs (hereinafter referred to as “conformity determination assessment”).
 - (a) Conformity recognition and periodic assessment of the manufacturing and quality management system pursuant to the text of Article 8 (4) and the text of Article 12 (3) of the Digital Medical Products Act, and Article 12 (1) of the Enforcement Rule of the same Act
 - (b) Conformity determination (including conformity determination for changes) and periodic assessments under Article 24 of the Digital Medical Products Act
- (2) Notwithstanding subparagraphs 1 through 3 of paragraph (1), A person who intends to manufacture digital medical devices solely for export (hereinafter referred to as “digital medical devices for export”), or A person who intends to manufacture or import Class I digital medical devices, shall comply with this GMP, but may be exempted from the conformity determination assessment.

Article 4 (Classification of Conformity Determination Assessment) (1) Conformity determination assessment under this GMP shall be conducted by classifying them into the following categories:

1. The assessment that must be initially undergone under any of the following items in order to be determined as conforming to this GMP (hereinafter referred to as the “initial assessment”)
 - (a) The assessment to be undergone by a manufacturer or a manufacturing site of standalone software that is not combined with hardware (such as electronic or mechanical equipment), operates in an environment equivalent to a general-purpose computer, and functions independently as a digital medical device (hereinafter referred to as “standalone digital medical device software”)
 - (b) The assessment to be undergone by a manufacturer or manufacturing site of software that is installed in a digital medical device or connected to it, either wired or wirelessly, and is used for controlling or operating the digital medical device, or for storing data, processing signals, or processing images generated by the digital medical device (hereinafter referred to as “embedded digital medical device software”)
 - (c) The assessment to be undergone by a manufacturer or manufacturing site of medical device hardware under Article 2 subparagraph 2 of the Regulation on the Classification and Designation of Class of Digital Medical Products (hereinafter referred to as “medical device hardware”)
2. The assessment to be newly undergone when changes falling under the following items occur after having been determined as conforming to this GMP (hereinafter referred to as the “assessment for change”):
 - (a) Where a manufacturer or a manufacturing site of digital medical device software adds artificial intelligence and machine learning (AI/ML) functions pursuant to Annex 5;
 - (b) Where a manufacturing site of medical device hardware seeks to add another product group pursuant to Annex 5;
 - (c) Where a manufacturer or a manufacturing site of digital medical devices has no history of conformity determination under this GMP with respect to whether all or part of the manufacturing processes and services are outsourced;
 - (d) Where the location of a medical device hardware manufacturing site is changed or added. Provided, however, that changes to storage facilities or laboratories with minimal relevance to product quality shall be excluded;
 - (e) Where a medical device hardware manufacturer or a manufacturing site has changed the manufacturer or manufacturing site of the embedded digital medical device software;
 - (f) Where a manufacturer or a manufacturing site of embedded digital medical device software has changed the manufacturer or manufacturing site of medical device hardware.

- (2) Notwithstanding paragraph (1) 2, a manufacturer or a manufacturing site may undergo the assessment under paragraph (1) 1. In such cases, it shall be deemed to have undergone a periodic assessment under paragraph (3).
- (3) A manufacturer and manufacturing site that has been determined as conforming pursuant to paragraph (1) shall undergo one periodic assessment every three years, as prescribed in each of the following subparagraphs:
 1. A manufacturer or a manufacturing sites of digital medical device software;
 2. A manufacturing site or a manufacturer of medical device hardware.
- (4) Notwithstanding Article 3 (2) and (3), periodic assessments may be exempted in the following cases of each subparagraph:
 1. Digital medical device for export;
 2. Class I medical device hardware;
 3. Medical device hardware for investigational use.
- (5) Where an assessment received in substitution for the assessments under paragraphs (1) through (3) pursuant to Article 6 (2) (hereinafter referred to as the “alternate assessment”) has been conducted, it shall be deemed that the conformity determination assessment under this Notice has been undergone.

Article 5 (Standards for Conformity Determination Assessment) (1) The standards for conformity determination assessment of digital medical devices shall be as prescribed in each of the following subparagraphs:

1. Annex 2 shall apply to medical device hardware.
 2. Annexes 2 and 3 shall apply to digital medical device software.
 3. Where artificial intelligence and machine learning (AI/ML) functions are incorporated, Annexes 2 through 4 shall apply.
- (2) Notwithstanding paragraph (1), where any of the following subparagraphs applies, only part of Annexes 2 through 4 may be applied. In such cases, the applicant shall secure clear justification therefor.
 1. Where the requirements pertain only to digital medical device software or only to medical device hardware;
 2. In the case of an assessment for change under the text of Article 4 (1) 2 (d);
 3. Notwithstanding Article 3 (2), where a conformity determination assessment under this GMP is applied for in relation to a Class I digital medical device;
 4. Where a person intends to manufacture or import medical device hardware for investigational use.

Article 6 (Methods of Conformity Determination Assessment) (1) The head of a quality management audit organization pursuant to Article 28 (2) of the Medical Device Act, which applies

mutatis mutandis under Article 5 of the Digital Medical Products Act (hereinafter referred to as the “audit organization”), and the head of an agency designated to perform certification-related duties pursuant to Article 48 of the Digital Medical Products Act (hereinafter referred to as the “agency entrusted with certification-related duties”) (collectively referred to as the “heads of the audit organizations”) shall jointly conduct a document inspection and an on-site inspection in accordance with the following subparagraphs. In such cases, the audit organization and the agency entrusted with certification-related duties (hereinafter referred to as the “audit organizations”) may conduct a conformity determination assessment together with experts in the relevant field, and, in the case of digital medical device software, may conduct a remote inspection upon the applicant’s request.

1. An assessment shall be conducted by product group under Annex 5 for manufacturers and manufacturing sites of digital medical device software.
 2. Where the entire manufacturing process of digital medical device software or medical device hardware is performed under a contractual manufacturing arrangement between the legal manufacturer and the manufacturer (hereinafter collectively referred to as the “legal manufacturer and manufacturer”), each shall be subject to a separate assessment.
 3. Where an outsourced entity (hereinafter referred to as the “supplier”) is entrusted with part of the manufacturing process or related services, each such supplier shall be subject to a separate assessment. In such cases, only part of Annexes 2 through 4 shall be applied within the scope of the outsourced work.
- (2) Notwithstanding paragraph (1), in any of the following subparagraphs, the conformity determination assessment may be substituted.
1. Where another manufacturer or importer submits a valid certificate of conformity determination under this GMP for the relevant manufacturing site or manufacturer;
 2. Where a manufacturer or importer of medical devices (including in vitro diagnostic medical devices) under the Medical Device Act or the Act on In Vitro Diagnostic Medical Devices submits a valid conformity recognition certificate issued under the Good Manufacturing Practice for Medical Devices or the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices for the relevant manufacturing site or manufacturing site operator (limited to medical device hardware and digital medical device software without artificial intelligence and machine learning (AI/ML) functions);
 3. Where a relevant manufacturing site has obtained a valid conformity certificate under the Good Manufacturing Practice for Medical Devices or the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices pursuant to Article 4 (1) 2 (b), and submits a conformity recognition certificate (limited to valid certificates) whose item group falls under the product group of Annex 5 (limited to medical device hardware);
 4. Where a manufacturer submits a copy of a quality management system conformity recognition certificate and on-site inspection results (including follow-up actions based on such results), issued by a regulatory authority or an institution delegated by the regulatory authority for a manufacturing site whose location has been changed pursuant to the text of Article 4 (1) 2 (d) (limited to medical device hardware);
 5. Where a manufacturer submits a quality management system conformity recognition certificate (hereinafter referred to as the “MDSAP conformity recognition certificate”)

and the on-site inspection results (including any follow-up actions), issued by an audit organization under item 58 of Annex 1 pursuant to the Medical Device Single Audit Program (MDSAP) (limited to medical device hardware).

- (3) Notwithstanding paragraph (2), an on-site inspection shall be conducted for digital medical devices in any of the following subparagraphs:
1. Where the materials under paragraph (2) 2 through 5 cannot be submitted due to trade secrets or similar reasons, and an on-site inspection is requested;
 2. Where the materials under Article 7 (1) cannot be submitted due to trade secrets or similar reasons, and an on-site inspection is requested;
 3. Where the Minister of Food and Drug Safety recognizes that public health may otherwise be affected.
- (4) Notwithstanding Article 4, digital medical devices shall undergo a new initial assessment in any of the following subparagraphs:
1. Where the expiration date of a certificate of conformity determination issued to a manufacturing site or manufacturer of digital medical devices for export, Class I digital medical devices, or medical device hardware for investigational use has expired and conformity determination assessment are applied for again;
 2. Where the legal manufacturer in a legal manufacturer–manufacturer relationship that has undergone a conformity determination assessment is changed or removed;
 3. Where a manufacturing site that has undergone conformity determination assessment for Class I digital medical devices under Article 5 (2) 3 intends to manufacture or import Class II, III, or IV digital medical devices;
 4. Where the location of a manufacturing site that has undergone conformity determination assessment for medical device hardware for investigational use under Article 5 (2) 4 is changed, another item group of medical device hardware for investigational use is added, or the hardware is intended to be manufactured or imported for commercial sale.
- (5) A manufacturing site or manufacturer for which only a document inspection has been conducted pursuant to Article 35 (1) of the Enforcement Rule of the Digital Medical Products Act shall, for each manufacturing or import unit, submit test reports prepared in accordance with its in-house quality control test specifications to the head of the relevant agency entrusted with certification-related duties.

Article 7 (Application for Conformity Determination Assessment) (1) Any person falling under any of the subparagraphs of Article 3 (1) who intends to undergo conformity determination assessment under this GMP shall submit the application form with Form 1, along with the following documents of each subparagraph, to the head of the agency entrusted with certification-related duties. In such cases, except for digital medical device software, the relevant manufacturer and manufacturing site shall have quality management performance for at least one manufacturing unit, and the desired on-site inspection date shall be fixed and applied for at least 20 days prior to the start of the inspection.

1. For digital medical device software, the following documents of each item shall be

submitted:

- (a) Documents under Article 34 (1) 1 through 6 of the Enforcement Rule of the Digital Medical Products Act;
 - (b) Process flow diagrams, purchasing and outsourcing procedures, names of suppliers (including contracted suppliers), and scope of work for the core products of each product group under Annexes 5 and 6 for a manufacturer or manufacturing site;
 - (c) Device Master Records for core products of each product group under Annexes 5 and 6, and procedures related to cybersecurity against electronic intrusion for a manufacturer or manufacturing site.
 2. For medical device hardware, the documents under Article 7 (1) of the Good Manufacturing Practice for Medical Devices or the documents under Article 7 (1) of the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices, together with process flow diagrams, shall be submitted.
 3. Pursuant to Article 4 (5), in the case of an alternative assessment, the required materials shall consist of the process flow diagrams for core products by product group under Annexes 5 and 6 for a manufacturer or manufacturing site; and the applicable materials under each item of Article 6 (2).
- (2) A manufacturer or importer who must undergo a periodic assessment under Article 4 (3) shall, no later than three months before the expiration date stated on the certificate of conformity determination, submit the application form with Form 1 together with the documents specified in paragraph (1) to the head of the agency entrusted with certification-related duties to apply for the periodic assessment. In such cases, the desired on-site inspection date shall be fixed and applied for no later than 20 days before the expiration date stated on the certificate of conformity determination, and if the desired on-site inspection date is not confirmed at the time of application submission, the applicant shall submit the desired date in writing no later than 20 days before the start date of the requested on-site inspection.
 - (3) Upon receiving an application for conformity determination assessment under paragraph (1) or (2), the head of the agency entrusted with certification-related duties shall forward the application and related documents to the head of the audit organization.
 - (4) If a manufacturer or importer required to apply for a periodic assessment under Article 4 (3) fails to apply by three months before the expiration date under paragraph (2), the head of the agency entrusted with certification-related duties shall report the business name, representative, and other relevant information to the Commissioner of Regional Office of Food and Drug Safety.

Article 8 (Procedures for Conformity Determination Assessment) (1) Upon receiving an application for conformity determination assessment under Article 7 (1), the head of the audit organization shall comply with each of the following subparagraphs:

1. The submission of the supporting documents under Article 7 (1) shall be verified within five days, and where no deficiencies are identified, the application shall be accepted.
2. If, as a result of confirming whether the supporting documents under subparagraph 1 have

been submitted, any deficiency such as missing supporting documents is identified, the applicant shall be requested to supplement them by setting a supplementation deadline for the submission of such documents in accordance with the Administrative Procedures Act.

3. Notwithstanding subparagraph 1, where an application additionally includes a confirmed desired on-site inspection date, the request shall be made no later than the day following the receipt of the application.
- (2) The head of the audit organizations shall, within 10 days from the date of acceptance under paragraph (1) 1, notify the applicant of whether experts in the relevant field will attend and of other matters related to the assessment.
- (3) The head of the audit organization shall notify the applicant in writing of the assessment results under Article 7 within 30 days from the date on which the application for conformity determination assessment was received. Provided, however, that where an on-site inspection or a remote inspection (hereinafter referred to as “on-site inspection, etc.”) is conducted under Article 6 (1), the period from the date on which the applicant is notified to the start date of the on-site inspection, etc. under paragraph (3) shall not be counted toward the processing period.
- (4) Where an on-site inspection, etc. is conducted under Article 6 (1), the heads of the audit organizations shall conduct the inspection in accordance with the following subparagraphs:
 1. The on-site inspection, etc. shall be conducted in accordance with the matters notified to the applicant under paragraph (2), and the results shall be notified to the applicant in writing within seven days from the completion date of the on-site inspection, etc., or within the processing period under paragraph (3). Provided, however, that if the results of the on-site inspection, etc. are determined to be nonconforming, the Commissioner of Regional Office of Food and Drug Safety shall be notified immediately.
 2. If an on-site inspection cannot be conducted due to war, epidemics, natural disasters, or other similar circumstances during the inspection period, or if the inspection cannot proceed normally due to delayed or refused submission of inspection documents, the on-site inspection may be suspended. In such cases, the applicant shall be immediately notified in writing of the reasons for the suspension, and the Commissioner of Regional Office of Food and Drug Safety shall be notified accordingly.
 3. When the reason for suspension under subparagraph 2 is confirmed to be resolved, the on-site inspection may resume, and the results shall be notified to the applicant in writing within seven days from the completion date of the resumed inspection or within the processing period under paragraph (3).
- (5) Where the head of the audit organization is unable to notify the applicant of the conformity determination assessment results within the processing period under paragraphs (3) and (4) due to unavoidable reasons such as natural disasters, the head shall notify the applicant in advance of the delay. In such cases, this shall apply only where the on-site inspection is conducted pursuant to the text of Article 6 (1).
- (6) Where matters requiring supplementation are identified, the head of the audit organization shall take the following actions with respect to the results of the conformity determination assessment:
 1. The applicant shall be requested to make supplementation, including the supplementation

procedure and deadline, in accordance with the Civil Petitions Treatment Act. After reviewing the applicant's submissions in response to the supplementation request, the conformity shall be evaluated.

2. Where the applicant, pursuant to the first part of subparagraph 1, is unable to submit the required documents due to trade secrets or similar reasons and requests an on-site inspection, an on-site inspection, etc. may be conducted. In such cases, the related expenses may be charged to the applicant by applying *mutatis mutandis* the provisions governing on-site inspections under the text of Article 6 (1), and, in the case of a remote inspection, the applicant shall prepare the necessary remote inspection platforms and tools.
 3. If the applicant fails to submit the required documents within the supplementation deadline, the application shall be determined nonconforming.
 4. Where an application is determined to be nonconforming under subparagraph 3, the Commissioner of Regional Office of Food and Drug Safety shall be notified immediately, and the application shall be determined nonconforming.
- (7) The head of the audit organization shall prepare and retain the result report in Form 3 regarding the assessment results.
- (8) Where the results of the conformity determination assessment under Article 6 are found to be conforming, the head of the audit organization shall issue to the applicant the certificate of conformity determination under the Good Manufacturing Practice for Digital Medical Devices, in Form 2 and in accordance with Annex 7.
- (9) If the applicant objects to the assessment results under Article 6, an objection may be filed in accordance with the Civil Petitions Treatment Act.
- (10) Upon receiving an objection under paragraph (9), the head of the audit organization shall prepare and retain the results of the disposition made in response to the objection.

Article 9 (Expiration Date of the Certificate of Conformity Determination) (1) The expiration date of a certificate of conformity determination issued following an initial assessment shall be three years from the date of issuance.

- (2) Where conformity determination is granted based on an assessment for change, it shall not affect the existing expiration date.
- (3) Notwithstanding paragraph (2), where an assessment is conducted pursuant to the text of Article 4 (2), paragraph (4) shall apply.
- (4) The expiration date of a certificate of conformity determination issued following a periodic assessment shall be three years from the day after the expiration date of the previous certificate of conformity determination. Provided, however, that where the date of issuance of the certificate of conformity determination is later than the expiration date of the previous certificate, the expiration date shall be three years from the date of issuance.
- (5) Where a conformity determination assessment is conducted pursuant to Article 6 (2) 1, the expiration date for the relevant manufacturer and manufacturing site shall be calculated to coincide with the expiration date of the manufacturer or importer that previously underwent

the conformity determination assessment.

- (6) Where a conformity determination assessment is conducted pursuant to Article 6 (2) 2, the expiration date for the relevant manufacturer, manufacturing entity, or manufacturing site, shall be calculated to coincide with the expiration date of the manufacturer or importer that previously underwent the conformity determination assessment.
- (7) Where the expiration date of the certificate of conformity determination for embedded digital medical device software differs from that of the conformity recognition certificate for medical device hardware, the expiration date shall be determined based on the certificate with the longer remaining validity.
- (8) For medical device hardware for which conformity recognition assessments have been conducted under the Medical Device Single Audit Program (MDSAP), the expiration date for the relevant manufacturing site shall be set to be identical to the expiration date of the MDSAP conformity recognition certificate.

Article 10 (Reissuance of the Certificate of Conformity Determination, etc.)

- (1) A manufacturer or importer that has received a certificate of conformity determination pursuant to Article 8 (8) may apply to the head of the audit organization for reissuance if reissuance is required due to loss of the certificate or other reasons.
- (2) Where the head of the audit organization receives an application for reissuance under paragraph (1), the head shall reissue the certificate of conformity determination in accordance with Annex 7.
- (3) A manufacturer or importer may either obtain reissuance of the certificate of conformity determination or record the changes in any of the following subparagraphs on the reverse side of the certificate for control purposes:
 - 1. Change in the name of the manufacturing or importing business;
 - 2. Change in the location of a manufacturing site (limited to cases under the proviso of Article 4 (1) 2 (d) and to digital medical device software);
 - 3. Change in the location of an importing business;
 - 4. Change in the trade name of the legal manufacturer or the manufacturer;
 - 5. Change in the location of the legal manufacturer or the manufacturer (limited to cases under the proviso of Article 4 (1) 2 (d) and to digital medical device software);
 - 6. Change in location due to administrative district reorganization.
- (4) Where a manufacturer or importer records the changes on the reverse side of the certificate pursuant to paragraph (3), the manufacturer or importer shall also record the date and details of the approval of change, certification of change, or notification of change.

Article 11 (Return of the Certificate of Conformity Determination) (1) Where any of the following subparagraphs occur, a manufacturer or importer that has received a certificate of conformity determination pursuant to Article 8 (8) may return the certificate to the head of the audit organization that issued it, specifying the reasons therefor in detail.

1. Where the manufacturing business license or import business license is revoked;
 2. Where the manufacturing approval, import approval, manufacturing certification, or import certification is revoked;
 3. Where any other reasons exist requiring the manufacturer or importer to return the certificate of conformity determination.
- (2) In accordance with paragraph (1), the head of an audit organization, etc. who has received the return of the certificate of conformity determination shall, immediately upon receipt of the returned conformity recognition certificate, report the fact of its return to the Commissioner of the Regional Office of Food and Drug Safety.

Article 12 (Marking of Conformity Determination Assessment) A manufacturer or importer that has received a certificate of conformity determination pursuant to Article 8 (8) may affix the marking for conformity determination assessment, as prescribed in Annex 8, to digital medical devices that belong to the same product group as the manufacturing sites and manufacturers that underwent such assessments.

Article 13 (Duties of the Audit Organization) The duties of the head of the audit organization shall be any of following subparagraphs:

1. Conduct a conformity determination assessment under the Good Manufacturing Practice for Digital Medical Devices;
2. Issuance of certificates of conformity determination;
3. Statistics and support related to conformity determination assessment;
4. Other matters necessary for conformity determination assessment.

Article 14 (Reporting) (1) The head of the audit organization shall submit the quarterly report on the results of conformity determination assessment for digital medical devices, prepared in Form 4, and the detailed list of assessment results, prepared in Form 5, to the Minister of Food and Drug Safety and the Commissioner of Regional Office of Food and Drug Safety within 20 days after the end of each quarter. Provided, that where the Minister of Food and Drug Safety or the Commissioner of Regional Office of Food and Drug Safety requests separate data, the relevant data shall be submitted within seven days from the date of the request.

- (2) Where there are personnel changes, such as transfers or resignations of auditors, the head of the audit organization shall report such changes to the Minister of Food and Drug Safety within seven days.

Article 15 (Review of Regulation) In accordance with Article 8 of the Framework Act on Administrative Regulations and the Regulation on the Issuance and Management of Directives and Guidelines, the validity of this Notice shall be reviewed every three years, starting from January 1, 2025 (until December 31 of every third year), and necessary measures, including improvements, shall be taken.

ADDENDA <No. 2025-28, Apr. 21, 2025>

Article 1 (Enforcement Date) This Notice shall enter into force on the date of its promulgation.

Article 2 (Applicable Cases) This Notice shall apply to the manufacturer, importer, contract manufacturer, and manufacturing site that first submit an application after its enforcement.

Article 3 (Transitional Measures) (1) A person who, at the time of enforcement of this Notice, has been issued a conformity recognition certificate for medical devices or in vitro diagnostic medical devices under the previous regulations shall be deemed to have been issued a certificate of conformity determination for digital medical devices under this Notice.

(2) Where an assessment for conformity recognition of medical devices or in vitro diagnostic medical devices has been applied for and is in progress, the previous regulations shall apply.

[Annex 1] Definitions (Related to Article 2)

[Annex 2] Criteria for Conformity Determination Assessment (Related to Article 5)

[Annex 3] Criteria for Assessment of Digital Medical Device Software (Related to Article 5)

[Annex 4] Criteria for AI Control Measures Assessment for Digital Medical Devices (Related to Article 5)

[Annex 5] Product Groups for Digital Medical Devices (Related to Articles 4, 6, and 7)

[Annex 6] Selection of Core Products (Article 7)

[Annex 7] Issuance and Management of Certificate of Conformity Determination (Article 8 (8), Article 9, and Article 10)

[Annex 8] Mark for Conformity Determination Assessment (Related to Article 12)

[Form 1] Application for Conformity Determination Assessment for Digital Medical Devices

[Form 2] Certificate of GMP for Digital Medical Devices

[Form 3] Report on the Results of Conformity Determination Assessment for Digital Medical Devices

[Form 4] Periodic Report on the Results of Conformity Determination Assessment for Digital Medical Devices (Standalone Digital Medical Device Software)

[Form 5] List of Conformity Determination Assessment Results for Digital Medical Devices (Standalone Digital Medical Device Software)

[Annex 1]

Definitions (Related to Article 2)

1. “Good Manufacturing Practice (GMP) for Digital Medical Devices” means a quality management system that prescribes the requirements to be observed to ensure the quality of digital medical devices throughout all processes—from development and procurement of raw materials to manufacturing, testing, packaging, installation, storage, shipment, and the handling of complaints or returns—so that products of consistently high quality may be supplied.
2. “Conformity Determination Assessment” means assessments conducted to determine whether digital medical devices are consistently produced with a level of quality that provides a high level of assurance of their safety, effectiveness, and suitability for their intended use.
3. “Quality Management System” means a management system for efficiently managing the organization, responsibilities, procedures, processes, and resources for product quality management.
4. “Product Group” means a classification of medical devices based on instruments, machinery, devices, or materials.
5. “Manufacturing Unit” or “Lot” means a unit of finished products, components, or raw materials manufactured under the same manufacturing conditions and having uniform characteristics and quality.
6. “Device Master Record (DMR)” means a document that contains detailed information on all manufacturing processes—from the design of the product to shipment (installation)—including specifications, manufacturing processes, manufacturing criteria, and installation, for each medical device item or model.
7. “Manufacturing” means all operations required to produce medical devices, including design, packaging, and labeling.
8. “Quality” means the degree to which a set of inherent characteristics fulfills requirements.
9. “Quality Control (QC)” means the part of quality management that focuses on fulfilling quality requirements.
10. “Safety” means the property of being free from hazards or the risk of malfunction, and of ensuring safe performance.
11. “Sterilized Device” means a medical device that undergoes a sterilization process during manufacturing and is labeled as sterilized on the product container or packaging with indications such as the word “sterile,” the sterilization method, and the expiration date.
12. “Batch” means a specified quantity of products produced during a defined manufacturing cycle, intended to have uniform characteristics and quality.
13. “Sterilization” means a process that uses physical or chemical methods to destroy all types of microorganisms, including spores.
14. “Organization” means a group of personnel and facilities with an established arrangement of

responsibilities, authorities, and interrelationships.

15. “Quality Manual” means a document that defines the manufacturer’s quality management system and describes the details or requirements appropriate to the scale and complexity of the organization.
16. “Quality Policy” means the overall intentions and direction of an organization related to quality, as formally expressed by top management.
17. “Quality Objective” means a target or objective that is pursued with respect to quality.
18. “Manufacturing Process” means the activities related to the design and development, procurement of raw materials, incoming inspection, production, in-process inspection, finished product inspection, packaging, labeling, shipment, and storage for the manufacture of medical devices.
19. “Process” means a set of interrelated or interacting activities that transforms inputs into outputs.
20. “Procedure” means an established method for performing an activity or process.
21. “Document” means criteria or procedures that are specified or created prior to performing an activity.
22. “Record” means a document that states achieved results or provides evidence of activities performed.
23. “Review” means an activity conducted to determine the suitability, adequacy, and effectiveness of a subject in order to achieve established objectives.
24. “Service” means an intangible output of an organization involving activities that necessarily occur between the organization and the customer, such as decision-making, relationship-maintenance activities, repair, transportation, and information delivery.
25. “Management Review” means an activity conducted by top management at planned intervals to evaluate the need for changes to, and the potential for improvement of, the quality management system, including the quality policy and quality objectives, in order to ensure its continuing suitability, adequacy, and effectiveness.
26. “Requirement” means an expressed need or expectation, generally one that is implicit or obligatory.
27. “Effectiveness” means the extent to which planned activities are realized and planned results are achieved.
28. “Efficiency” means the ratio or relationship between the results achieved and the resources used.
29. “Infrastructure” means the system of facilities, equipment, and services required for the operation of an organization.
30. “Production Realization” means the combined sequence of processes and detailed processes required to achieve a product.
31. “Design and Development” means a set of processes that transforms requirements into specified characteristics or into the specifications of a product, process, or system.

32. “Verification” means confirmation, through the provision of objective evidence (data demonstrating the existence of something or substantiating a fact) and testing, that specified requirements have been fulfilled.
33. “Validation” means the act of verifying and documenting that methods of manufacturing and quality control—including the structure and facilities of the manufacturing site, manufacturing processes, and systems—achieve the intended results.
34. “Revalidation” means validation activities that are conducted either periodically or in response to changes to raw materials, manufacturing processes, machinery and equipment, or manufacturing systems that may have an impact on product quality.
35. “Cleaning” means a chemical or physical method used to remove contaminants or microorganisms from surfaces.
36. “Installation” means the activities of placing a product at the site of use and enabling it to operate in accordance with its intended purpose, including arrangements such as piping and waste disposal.
37. “Traceability” means identifying and managing the sources of raw materials and components of a medical device, its quality control history, and information on its distributors and users (locations).
38. “Identification” means the activities performed at all stages—including raw materials, materials, in-process products, and finished products—to ensure product traceability and proper transfer to the next process or shipment.
39. “Customer” means a collective term for purchasers and users (patients and healthcare professionals).
40. “Customer Property” means assets owned by the customer, which include each of the following items:
 - (a) Raw materials or components (including packaging materials) provided for inclusion in the product;
 - (b) Products supplied for repair, maintenance, or upgrading;
 - (c) Products supplied for additional processes (such as packaging, sterilization, or testing using customer-provided materials);
 - (d) Services provided on behalf of the customer (e.g., transportation of customer property to a third party);
 - (e) Customer intellectual property (e.g., specifications, drawings, and asset information).
41. “Measuring Equipment” means measuring instruments, software, measurement standards, reference materials, auxiliary devices, or combinations thereof required to carry out a measurement process.
42. “Calibration” means the operation that confirms that a specific device or instrument produces results within the prescribed limits when measured against measurement standards recognized under international or national standards.
43. “Audit” means a systematic and independent verification activity conducted to determine

whether quality-related work and its associated results conform to planned arrangements and whether such arrangements have been effectively implemented and are suitable for achieving the intended objectives.

44. “Concession” means written approval to use or release a specific product that has minor nonconformities not directly related to safety or effectiveness, provided that statutory requirements are met.
45. “Correction” means an action taken to eliminate a detected nonconformity.
46. “Corrective Action” means an action taken to eliminate the cause of a detected nonconformity or other undesirable situation.
47. “Preventive Action” means an action taken to eliminate the cause of a potential nonconformity or other undesirable situation to prevent its occurrence.
48. “Risk Management” means an advanced safety management system that analyzes and evaluates all risks that may arise throughout the entire life cycle of a medical device—including design, production, distribution, and use—and manages those risks to an acceptable level.
49. “Rework” means an operation performed to bring a nonconforming product into conformity with quality standards by applying a method different from the established manufacturing process.
50. “Advisory Notice” means a communication issued by the manufacturing site after delivery of a medical device for the purpose of providing additional information or recommending actions regarding the use, change, return, or disposal of the medical device.
51. “Quality Nonconformity” means a case in which a medical device manufactured or imported for the purpose of sale by a medical device manufacturer or importer is found to be nonconforming as a result of inspection under Article 32 or Article 33 of the Medical Device Act.
52. “Supplier” means an individual or organization that provides all or part of components, processes, or services.
53. “Clinical Evaluation” means the assessment and analysis of clinical data to verify the clinical safety and performance of a medical device when used as intended by the organization.
54. “Complaint” means any written, electronic, or oral communication alleging defects related to the identification, quality, durability, reliability, usability, safety, or performance of a medical device after it has left the organization’s control, or alleging defects in services that affect the performance of such devices.
55. “Sterile Barrier System” means the minimum packaging that prevents microbial ingress and ensures that the product is presented sterile at the point of use.
56. “Life Cycle” means all stages of the life of a medical device, from initial conception to final disposal and processing.
57. “Product” means the output of a process and includes each of the following items:
 - (a) Hardware;

- (b) Software;
 - (c) Processed materials;
 - (d) Services.
58. “Medical Device Single Audit Program (MDSAP)” means a system in which the results of conformity recognition and related audits conducted by audit organizations (AO) jointly designated and operated by participating jurisdictions, including the United States and Japan, are mutually recognized by multiple countries.
59. “In-house Quality Control Test Specifications” means test criteria established by a manufacturer for internal management and maintenance, which include procedures and standards for conducting periodic tests and inspections during the manufacturing process to ensure that product quality remains at a consistent level.
60. “Remote Inspection” means an inspection conducted without a physical site visit, using information and communication technologies such as remote video conferencing, online systems, or other non-face-to-face methods.
61. “Manufacturer” means a company or corporation that manages and is responsible for the overall process of producing a product, including production planning, quality control, and regulatory compliance.
62. “Manufacturing Site” means the physical location where a product is actually produced, such as a factory or production facility.
63. “Manufacturer” means a person who performs all manufacturing processes of a digital medical device and bears statutory responsibility therefor, or a person who, under a contractual relationship, is outsourced by a legal manufacturer with the entire manufacturing of the product.
64. “Legal Manufacturer” means a person who, under a contractual relationship, entrusts the entire manufacturing process of a digital medical device falling under any of the following items to a manufacturer and bears statutory responsibility therefor.
- (a) A digital medical device that has obtained, or intends to obtain, approval or certification from the Minister of Food and Drug Safety;
 - (b) A digital medical device that has submitted, or intends to submit, a notification to the Minister of Food and Drug Safety.
65. “Outsourcing of Manufacturing Processes” means entrusting certain processes to an external entity during the manufacturing of a product.
66. “Human-derived Ingredients” means substances or components obtained from the human body, including those extracted from blood, cells, or organs.
67. “Human-derived Tissue” means tissue directly collected from the human body, which is used as biological tissue itself or for research, transplantation, or regenerative therapy.
68. “Clinical Investigation” means a study or investigation conducted in humans to demonstrate the safety and effectiveness of a digital medical device.
69. “Clinical Performance Study” means a study or research that analyzes a specimen (as defined

in subparagraph 2 of Article 2 of the Act on In Vitro Diagnostic Medical Devices; hereinafter the same shall apply) to predict clinical, physiological, or pathological conditions or to verify the results thereof, for the purpose of demonstrating the performance of a digital medical device.

70. “Digital Medical Device Software” means software that constitutes a part of a digital medical device or on its own is a digital medical device, which falls under any of the following items:
 - (a) Embedded digital medical device software: Software installed in a digital medical device or connected by wire or wireless to a digital medical device, which is used for the purpose of controlling and operating the digital medical device, or storing data generated from the digital medical device, processing signals and images, etc.;
 - (b) Standalone digital medical device software: An independent form of software that operates in an environment equivalent to a general-purpose computer, etc. without being connected to hardware such as electronic or mechanical devices, and on its own is a digital medical device;
 - (c) Software similar to those referred to in item (a) or (b), as designated by the Minister of Food and Drug Safety.
71. “Digital Healthcare Devices” means a device, machine, equipment, software, or similar products designated by the Minister of Food and Drug Safety, which does not fall under digital medical devices, but monitors, measures, collects, and analyzes biological signals for the purpose of supporting medical services or maintaining and improving health or records and analyzes lifestyle habits for the purpose of providing health management information such as diet and exercises;
72. “Artificial Intelligence (AI)” means a computer programmed to perform tasks that mimic human capabilities—such as language comprehension, object and sound recognition, learning, and problem-solving—using logic, decision trees, machine learning, or deep learning.
73. “AI/ML (Artificial Intelligence/Machine Learning)” means the capability of an AI system to learn and improve through data for the purpose of achieving its intended medical objective.
74. “AI Control” means control measures that must be added to the existing software quality management system to ensure reliable quality management of AI/ML software systems.
75. “Legacy Software” means medical device software that has been legally marketed and remains commercially available, but for which objective evidence is insufficient to demonstrate that it was developed in accordance with the current version of IEC 62304.
76. “Software of Unknown Provenance (SOUP)” means software that has been previously developed and marketed independently of medical device software (including off-the-shelf software).
77. “Training” means a procedure that uses training data to establish or improve the parameters of an ML model based on ML training algorithms.
78. “Risk Analysis” means the systematic use of available information to identify hazards and to estimate the associated risks.
79. “Risk Estimation” means the process of assigning values to the probability of occurrence of

harm and to the severity of that harm.

80. “Management Review” means an activity conducted by top management at planned intervals to evaluate the need for changes to, and the potential for improvement of, the quality management system, including the quality policy and quality objectives, in order to ensure its continuing suitability, adequacy, and effectiveness.
81. “Requirement” means an expressed need or expectation, generally one that is implicit or obligatory.
82. “Software Life Cycle Process” means the processes performed within the software life cycle.
83. “Software Life Cycle Process Subgroup” means a subset of the set of software life cycle processes that constitute a specific software life cycle process group.
84. “Production Realization” means the combined sequence of processes and detailed processes required to achieve a product.
85. “Validation” means confirming, through the provision of objective evidence, that a specified intended use or product requirements have been satisfied.

[Annex 2]

Criteria for Conformity Determination Assessment (Related to Article 5)

1. Purpose

The purpose of this GMP is to prescribe the quality management system requirements applicable to the design and development, production, installation, and servicing of digital medical devices by digital medical device manufacturers or digital medical device importers (hereinafter referred to as the “organization”).

2. Scope

- (a) Where, due to the activities performed by the organization or the characteristics of the digital medical devices to which this GMP apply, any requirement under Chapter 6 (Resource Management), Chapter 7 (Production Realization), or Chapter 8 (Measurement, Analysis, and Improvement) is not applicable, the organization may exclude such requirement from its quality management system. Provided, however, that the organization shall document the justification for each excluded requirement in accordance with Section 4.2.2.
- (b) Digital medical device software shall additionally meet the criteria set forth in Annex 3.
- (c) Where AI/ML functions are incorporated, the criteria under Annex 4 shall be additionally applied.

3. Definitions

- (a) With respect to the requirements in this GMP that are limited to those “where applicable,” the organization shall be deemed applicable unless it otherwise provides reasonable justification.
- (b) Where a requirement in this GMP is stated as “shall document,” it also includes the requirement to establish, implement, and maintain the corresponding content.
- (c) In applying this GMP, the definitions of other terms shall be in accordance with Annex 1.

4. Quality Management System

4.1 General Requirements

4.1.1 Establishment and Documentation of the Quality Management System

- (a) The organization shall document its quality management system for digital medical devices in accordance with this GMP and applicable statutory requirements, and shall maintain the effectiveness of the quality management system.
- (b) The organization shall establish, implement, and maintain specific requirements, procedures, activities, or methods of operation that must be documented pursuant to this GMP and applicable statutory requirements.

- (c) The organization shall define and document the roles required to perform in accordance with applicable statutory requirements.

4.1.2 Implementation of the Quality Management System

The organization shall implement the following:

- (a) Define the processes necessary for the quality management system, considering the size of the organization and the roles it performs, and apply the defined processes throughout the organization;
- (b) Apply a risk-based approach to the appropriate management of processes required for the quality management system;
- (c) Determine the sequence, procedures for activity execution, and interactions of such processes.

4.1.3 Operation and Control of the Quality Management System

For the processes of the quality management system, the organization shall perform the following:

- (a) Determine the criteria and methods necessary to ensure the effective operation and control of the processes;
- (b) Ensure the availability of information and resources necessary to support the operation and control of the processes;
- (c) Monitor and take necessary actions to achieve planned results and maintain the effectiveness of the processes;
- (d) Monitor such processes and, where applicable, measure and analyze them;
- (e) Maintain records necessary to demonstrate conformity to this GMP and compliance with applicable statutory requirements.

4.1.4 Change Control of the Quality Management System

The organization shall control quality management system processes in conformity with this GMP and applicable statutory requirements. Where such processes are to be changed, the organization shall perform the following:

- (a) Evaluate whether the change to the process affects the quality management system;
- (b) Evaluate whether the change to the process affects the medical devices produced under the quality management system;
- (c) Control such changes in accordance with this GMP and applicable statutory requirements.

4.1.5 Outsourced Process Control within the Quality Management System

- (a) Where the organization outsources any process that affects product conformity

requirements, it shall ensure that such processes are monitored and controlled.

- (b) The organization shall retain responsibility for ensuring compliance with this GMP, customer requirements, and applicable statutory requirements for outsourced processes.
- (c) Control of outsourced processes shall be proportionate to the associated risks and to the capability of the contracted supplier to meet the requirements under Section 7.4, and shall include a written quality agreement.

4.1.6 Validation of Computer Software Used in the Quality Management System

- (a) The organization shall document procedures for the validation of computer software used in the quality management system.
- (b) Such software shall be validated prior to initial use, and where applicable, shall also be validated following any changes to the software or its application.
- (c) Specific approaches and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software.
- (d) Records of these activities shall be maintained.

4.2 Documentation Requirements

4.2.1 General Requirements

Documentation of the quality management system shall include the following:

- (a) Documented quality policy and quality objectives;
- (b) A quality manual;
- (c) Documented procedures and records required by this GMP;
- (d) Documents, including records, determined by the organization to be necessary to ensure the effective planning, operation, and control of its processes;
- (e) Any additional documentation required by applicable statutory requirements.

4.2.2 Quality Manual

- (a) The organization shall document a quality manual that includes the following:
 - 1) The scope of the quality management system, including details of any exclusions or non-applications and their justification;
 - 2) Documented procedures established for the quality management system and reference to such documents;
 - 3) A description of the interactions between processes of the quality management system.
- (b) The quality manual shall briefly specify the structure of the documents used in the quality management system.

4.2.3 Digital Medical Device File

- (a) For each digital medical device model or item, the organization shall establish and maintain one or more files containing or referencing documents generated to demonstrate conformity with this GMP and compliance with applicable statutory requirements.
- (b) The contents of the digital medical device file shall include, but not be limited to, the following:
 - 1) A general description of the digital medical device, including its intended use/purpose and all applicable instructions for use, as well as labeling requirements;
 - 2) Product specifications;
 - 3) Specifications and procedures for manufacturing, packaging, storage, handling, and distribution;
 - 4) Measurement and monitoring procedures;
 - 5) Installation requirements, where applicable;
 - 6) Servicing procedures, where applicable.

4.2.4 Control of Documents

- (a) Documents required by the quality management system shall be controlled. Records are a special type of document and shall be controlled in accordance with requirements in Section 4.2.5.
- (b) Procedures necessary to control the following shall be documented:
 - 1) Review and approval of documents for adequacy prior to issuance;
 - 2) Review, update, and re-approval of documents as necessary;
 - 3) Ensure that changes to documents and the current revision status are identified;
 - 4) Ensure that applicable versions of documents are available at points of use;
 - 5) Ensure that documents remain legible and readily identifiable;
 - 6) Ensure that documents of external origin determined by the organization to be necessary for the planning and operation of the quality management system are identified and their distribution controlled;
 - 7) Prevent deterioration or loss of documents;
 - 8) Prevent the unintended use of obsolete documents and applying appropriate identification if they are retained for any purpose.
- (c) The organization shall ensure that document changes are reviewed and approved by the original approving authority or another designated authority with access to background information on which the organization's decisions are based.
- (d) The organization shall retain at least one copy of obsolete controlled documents for a period corresponding to the device's life cycle, which shall be no less than the retention period required for records.

4.2.5 Control of Records

- (a) Records shall be established and maintained to demonstrate the effective operation of the quality management system and conformity to requirements.
- (b) The organization shall document procedures defining the controls needed for the identification, storage, security and integrity, retrieval, retention period, and disposition of records.
- (c) The organization shall establish and implement methods to protect personal health information contained in records in accordance with applicable statutory requirements.
- (d) All records shall be easily legible, readily identifiable, and retrievable. Any changes to records shall remain identifiable.
- (e) The organization shall retain records for a period corresponding to the device's life cycle. This period shall be at least five years from the date of manufacture and at least two years after release to the market.

5. Management Responsibility

5.1 Management Commitment

Top management shall demonstrate its commitment to the development and implementation of the quality management system and to maintaining its effectiveness through the following:

- (a) Communicate within the organization the importance of meeting customer requirements and applicable statutory requirements;
- (b) Establish the quality policy;
- (c) Ensure that quality objectives are established;
- (d) Conduct management reviews;
- (e) Ensure the availability of resources.

5.2 Customer Focus

Top management shall ensure that customer requirements and applicable statutory requirements relating to the quality management system are determined and fulfilled.

5.3 Quality Policy

Top management shall ensure that the quality policy of the quality management system:

- (a) Is appropriate to the purpose of the organization;
- (b) Includes a commitment to comply with requirements and to maintain the effectiveness of the quality management system;
- (c) Provides a framework for establishing and reviewing quality objectives;
- (d) Is communicated and understood within the organization;

- (e) Is reviewed for continuing suitability.

5.4 Planning

5.4.1 Quality Objectives

- (a) Top management shall ensure that the quality objectives of the quality management system include the necessary elements to meet applicable statutory requirements and product requirements, and that they are established at relevant functions and levels within the organization.
- (b) The quality objectives of the quality management system shall be measurable and consistent with the quality policy.

5.4.2 Planning of the Quality Management System

Top management shall ensure the following:

- (a) The planning of the quality management system is carried out not only to achieve the quality objectives but also to meet the requirements of Section 4.1;
- (b) The integrity of the quality management system is maintained when changes to the quality management system are planned and implemented.

5.5 Responsibility, Authority, and Communication

5.5.1 Responsibility and Authority

- (a) Top management shall ensure that responsibilities and authorities within the organization are defined, documented, and communicated.
- (b) Top management shall document the interrelationships of all personnel who manage, perform, and verify work affecting quality, and shall ensure the authority and independence necessary to perform such work.

5.5.2 Quality Manager

Top management shall appoint a person within the organization who, irrespective of other responsibilities, has the authority and responsibility to perform the following:

- (a) Ensure that the processes needed for the quality management system are documented;
- (b) Report to top management on the performance and effectiveness of the quality management system and on the need for improvement;
- (c) Ensure the promotion of awareness of applicable statutory requirements and quality management system requirements throughout the organization.

5.5.3 Internal Communication

Top management shall ensure that appropriate communication processes regarding the quality management system are established within the organization and that communication regarding the effectiveness of the quality management system is carried out.

5.6 Management Review

5.6.1 General Requirements

- (a) The organization shall document procedures for management review.
- (b) Top management shall review the quality management system at intervals planned in documents to ensure the continuing suitability, adequacy, and effectiveness of the quality control system.
- (c) Management reviews shall evaluate the need for changes to the quality management system, including the quality policy and quality objectives, and shall identify opportunities for improvement.
- (d) Records of management reviews shall be maintained.

5.6.2 Review Inputs

The inputs to management review shall include, but not be limited to, the following:

- (a) Feedback;
- (b) Handling of complaints
- (c) Reports to regulatory authorities;
- (d) Audits;
- (e) Monitoring and measurement of processes;
- (f) Monitoring and measurement of product;
- (g) Corrective actions;
- (h) Preventive actions;
- (i) Follow-up actions from previous management reviews;
- (j) Changes that could affect the quality management system;
- (k) Recommendations for improvement;
- (l) New or revised applicable statutory requirements.

5.6.3 Review Outputs

The outputs of management review shall be recorded and shall include decisions and actions related to the reviewed inputs and the following:

- (a) Improvements needed to maintain the suitability, adequacy, and effectiveness of the

quality management system and its processes;

- (b) Improvement of product related to customer requirements;
- (c) Changes needed to meet new or revised applicable statutory requirements;
- (d) Resource needs.

6. Resource Management

6.1 Provision of Resources

The organization shall determine and provide the resources needed for:

- (a) Implementing the quality management system and maintaining its effectiveness;
- (b) Meeting applicable statutory requirements and customer requirements.

6.2 Human Resources

- (a) Personnel performing work affecting product quality shall be competent on the basis of appropriate education, training, skills, and experience.
- (b) The organization shall establish the competencies required of personnel, provide the necessary training, and establish and document processes to ensure personnel awareness.
- (c) The organization shall perform the following:
 - 1) Determine the competencies needed for all personnel who manage, perform, and verify work affecting product quality;
 - 2) Provide training or take other actions to achieve or maintain the necessary competencies;
 - 3) Evaluate the effectiveness of the actions taken;
 - 4) Ensure that personnel are aware of the relevance and importance of their activities and how they contribute to the achievement of quality objectives;
 - 5) Maintain appropriate records of education, training, skills, and experience.

6.3 Infrastructure

- (a) The organization shall document the infrastructure requirements necessary to ensure conformity to product requirements, prevent product mix-ups, and ensure orderly handling. Where applicable, infrastructure includes:
 - 1) Buildings, workspace, and associated facilities;
 - 2) Process equipment (hardware and software);
 - 3) Supporting services such as transport, communication, or information systems.
- (b) Where maintenance activities of infrastructure, or lack thereof, may affect product quality, the organization shall document the maintenance requirements, including maintenance intervals. Where applicable, these requirements shall apply to equipment used for

manufacturing, work environment control, and monitoring and measurement.

- (c) Records of such maintenance activities shall be maintained.

6.4 Work Environment and Contamination Control

6.4.1 Work Environment

- (a) The organization shall document the requirements for the work environment necessary to ensure conformity to product requirements.
- (b) Where work environment conditions may have an adverse effect on product quality, the organization shall document the requirements for the work environment and procedures for monitoring and controlling such conditions.
- (c) The organization shall perform the following requirements:
 - 1) Where personnel may affect the safety or performance of the medical device through contact with the product or the work environment, define and document requirements for personnel health, cleanliness, and clothing;
 - 2) Ensure that all personnel who temporarily work under special environmental conditions are competent or are supervised by competent personnel.

6.4.2 Contamination Control

- (a) Where applicable, the organization shall plan and document methods for controlling products that are contaminated or potentially contaminated, in order to prevent contamination of the work environment, personnel, or medical devices.
- (b) For sterilized medical devices, the organization shall document requirements for contamination control related to microorganisms or particulates and shall maintain the required cleanliness during assembly or packaging processes.

7. Production Realization

7.1 Planning of Production Realization

- (a) The organization shall plan and develop the processes needed for production realization. Planning of production realization shall be consistent with the other process requirements of the quality management system.
- (b) The organization shall document one or more processes for risk management during production realization, and records of risk management activities shall be maintained.
- (c) Where applicable, the organization shall determine the following in planning production realization:
 - 1) Quality objectives and requirements for the product;
 - 2) The need to establish and document processes, and to provide specific resources for the product, including infrastructure and work environment;

- 3) Specific verification, validation, monitoring, measurement, testing and inspection, handling, storage, distribution, and traceability activities required for the product, along with the criteria for product acceptance;
 - 4) Records necessary to demonstrate that production realization processes and their outputs meet requirements.
- (d) The outputs of such planning shall be documented in a form appropriate to the organization's method of operation.

7.2 Customer-Related Processes

7.2.1 Determination of Requirements Related to the Product

The organization shall determine the following:

- 1) Requirements specified by the customer, including those related to delivery and post-delivery activities;
- 2) Requirements not stated by the customer but necessary for known specified or intended use;
- 3) Applicable statutory requirements related to the product;
- 4) User training necessary to ensure stated performance and safe use of the medical device;
- 5) Any additional requirements determined by the organization.

7.2.2 Review of Requirements Related to the Product

- (a) The organization shall review the requirements related to the product. This review shall be conducted prior to the organization's commitment to supply the product to the customer.
- 1) The requirements for the product are defined and documented;
 - 2) Any contract or order requirements differing from those previously expressed are resolved;
 - 3) Applicable statutory requirements are met;
 - 4) User training determined under Section 7.2.1 shall be feasible or planned to be feasible.
 - 5) The organization has the capability to meet the defined requirements.
- (b) Records of the results of the review and any actions arising from the review shall be maintained.
- (c) Where the customer does not provide documented requirements, the organization shall confirm the customer requirements prior to acceptance.
- (d) When product requirements are changed, the organization shall amend the relevant documents and ensure that relevant personnel are made aware of the changed

requirements.

7.2.3 Communication

- (a) The organization shall plan and document the methods for communicating with customers regarding:
 - 1) Product information;
 - 2) Handling inquiries, including amendments, contracts, or orders;
 - 3) Customer feedback, including complaints;
 - 4) Advisory notices.
- (b) The organization shall communicate with regulatory authorities in accordance with applicable statutory requirements.

7.3. Design and Development

7.3.1 General

The organization shall document procedures for design and development.

7.3.2 Design and Development Planning

- (a) The organization shall plan and control the design and development of the product. Where applicable, the design and development plan shall be maintained and updated as design and development progress.
- (b) The organization shall document the following in the course of design and development planning:
 - 1) The stages of design and development;
 - 2) The reviews required at each stage of design and development;
 - 3) The verification, validation, and design transfer activities appropriate to each stage of design and development;
 - 4) The responsibilities and authorities for design and development;
 - 5) The methods to ensure traceability between design and development inputs and outputs;
 - 6) The necessary resources, including personnel competence.

7.3.3 Design and Development Inputs

- (a) The organization shall determine and maintain records of inputs relating to product requirements. These inputs shall include:
 - 1) Functional, performance, usability, and safety requirements necessary for the

intended use;

- 2) Applicable statutory requirements and standards;
 - 3) Applicable risk management outputs;
 - 4) Information derived from previous similar designs, where applicable;
 - 5) Other requirements essential for the design and development of the product and process.
- (b) Such inputs shall be reviewed and approved for adequacy.
- (c) Product requirements shall be clear, unambiguous, verifiable or validatable, and shall not conflict with other requirements.

7.3.4 Design and Development Outputs

- (a) The design and development outputs shall:
- 1) Meet the design and development input requirements;
 - 2) Provide appropriate information for purchasing, production, and service provision;
 - 3) Include or reference the criteria for product acceptance;
 - 4) Specify the characteristics of the product that are essential for safe and proper use.
- (b) The outputs of the design and development process shall be provided in a form that enables verification against the design and development inputs and shall be approved prior to release.
- (c) Records of the design and development outputs shall be maintained.

7.3.5 Design and Development Review

- (a) Systematic reviews of the design and development shall be conducted at appropriate stages in accordance with planned and documented methods for the purpose of:
- 1) Evaluating the ability of the design and development results to meet the requirements;
 - 2) Identifying and proposing any necessary actions.
- (b) Personnel participating in such reviews shall include not only the persons responsible for the design and development stage under review, but also other relevant experts.
- (c) Records of the results of the reviews and any necessary actions shall be maintained and shall include identification of the design under review, the personnel participating in the review, and the dates of the review.

7.3.6 Design and Development Verification

- (a) Design and development verification shall be performed in accordance with planned and documented methods to ensure that the design and development outputs meet the input

requirements.

- (b) The organization shall document the verification plan, including the verification methods, acceptance criteria, and, where applicable, statistical techniques with justification for sample size.
- (c) If the intended use requires the medical device to be connected to or interfaced with another medical device, the verification shall include confirmation that the design outputs meet the design inputs when so connected or interfaced.
- (d) Records of the verification results, conclusions, and any necessary actions shall be maintained.

7.3.7 Design and Development Validation

- (a) Design and development validation shall be performed, in accordance with planned and documented methods, to ensure that the resulting product meets the requirements for the intended use or specified application.
- (b) The organization shall document the validation plan, including the validation methods, acceptance criteria, and, where applicable, justification for sample size.
- (c) Design validation shall be performed on core product. Core product includes initial production units, batches, or their equivalents. The rationale for the selection of the product used for validation shall be recorded.
- (d) As part of design and development validation, the organization shall perform clinical evaluations in accordance with applicable statutory requirements.
- (e) Medical devices used for clinical evaluation shall not be considered to have been shipped for customer use.
- (f) If the intended use requires the medical device to be connected to or interfaced with another medical device, the validation shall include confirmation that the product requirements for the specified application or intended use are met when so connected or interfaced.
- (g) Validation shall be completed prior to the product's release for customer use.
- (h) Records of the results of validation, the conclusions reached, and any necessary actions shall be maintained.

7.3.8 Design and Development Transfer

- (a) The organization shall document procedures for the transfer of design and development outputs to manufacturing. These procedures shall ensure that the design and development outputs have been verified as suitable for manufacturing before becoming the final production specifications and that manufacturing capability can meet product requirements.
- (b) Records of the results and conclusions of the transfer shall be maintained.

7.3.9 Control of Design and Development Changes

- (a) The organization shall document procedures for controlling design and development changes. The organization shall determine the significance of changes to the function, performance, usability, safety, applicable statutory requirements, and intended use of the medical device.
- (b) Design and development changes shall be identified. Prior to implementation, the changes shall be:
 - 1) Reviewed;
 - 2) Verified;
 - 3) Validated, where applicable;
 - 4) Approved.
- (c) The review of design and development changes shall include evaluation of the effects of the changes on constituent parts, products in manufacturing or already delivered, risk management inputs or outputs, and the production realization processes.
- (d) Records of the changes, the review of the changes, and any necessary actions shall be maintained.

7.3.10 Design and Development File

- (a) The organization shall maintain a design and development file for each medical device model or item.
- (b) This file shall contain or reference the records generated to demonstrate conformity with the design and development requirements and the records of design and development changes.

7.4. Purchasing

7.4.1 Purchasing Process

- (a) The organization shall document procedures to ensure that purchased product conforms to specified requirements.
- (b) The organization shall establish criteria for the evaluation and selection of suppliers. The criteria shall be based on:
 - 1) The supplier's ability to provide product that meets the organization's requirements;
 - 2) The supplier's performance;
 - 3) The effect of the purchased product on the quality of the medical device;
 - 4) Proportionality to risks associated with the medical device.
- (c) The organization shall plan monitoring and re-evaluation of suppliers. The performance of suppliers in meeting purchased product requirements shall be monitored. The results of monitoring shall be provided as input to the supplier re-evaluation process.

- (d) Non-fulfillment of purchasing requirements shall be addressed with the supplier in proportion to the risks associated with the purchased product and compliance with applicable statutory requirements.
- (e) Records of the results of evaluation, selection, monitoring, and re-evaluation of suppliers and of any necessary actions arising from these activities shall be maintained.

7.4.2 Purchasing Information

- (a) Purchasing information shall describe or reference the product to be purchased, including, where appropriate:
 - 1) Product specifications;
 - 2) Requirements for product approval, procedures, processes, and equipment;
 - 3) Requirements for the qualification of supplier personnel;
 - 4) Quality management system requirements.
- (b) The organization shall ensure the adequacy of specified purchasing requirements prior to communication with the supplier.
- (c) Purchasing information shall include, where appropriate, a written agreement that the supplier notify the organization of any changes to the product prior to implementation if such changes may affect the ability of the product to meet specified purchasing requirements.
- (d) The organization shall maintain the relevant purchasing information as documents and records to the extent that traceability is required in accordance with 7.5.9.

7.4.3 Verification of Purchased Product

- (a) The organization shall establish and implement the inspection or other activities necessary to ensure that purchased product meets specified requirements. The extent of verification activities shall be based on the results of supplier evaluation and shall be proportional to the risks associated with the purchased product.
- (b) When the organization becomes aware of any changes to the purchased product, it shall determine whether such changes affect the production realization processes or the medical device.
- (c) If the organization or its customer intends to verify the purchased product at the supplier's premises, the organization shall specify in the purchasing information the intended verification arrangements and the method of product release.
- (d) Records of verification shall be maintained.

7.5 Production and Service Provision

7.5.1 Control of Production and Service Provision

- (a) Production and service provision shall be planned, carried out, monitored, and controlled to ensure that product conforms to specifications. Where appropriate, production control shall include, but not be limited to:
 - 1) Documentation of procedures and methods for production control;
 - 2) Qualification of infrastructure;
 - 3) Implementation of monitoring and measurement of process parameters and product characteristics;
 - 4) Availability and use of monitoring and measuring equipment;
 - 5) Implementation of activities specified for labeling and packaging operations;
 - 6) Implementation of product release, delivery, and post-delivery activities.
- (b) The organization shall provide traceability to the extent required in accordance with 7.5.9 and shall establish and maintain records by medical device or by medical device batch that enable identification of the quantity produced and approved for distribution. These records shall be verified and approved.

7.5.2 Cleanliness of Product

The organization shall document requirements for cleanliness of product or contamination control of product in the following cases. Provided, however, that where the product is cleaned in accordance with 1) or 2), the requirements of 6.4.1 do not apply prior to the cleaning process.

- (a) Product that is cleaned by the organization prior to sterilization or use;
- (b) Product supplied non-sterile that requires a cleaning process prior to sterilization or use;
- (c) Product that cannot be cleaned prior to sterilization or use and for which cleanliness is of significant importance for use;
- (d) Product supplied non-sterile for which cleanliness is of significant importance for use;
- (e) Removal of process agents used during manufacturing from the product.

7.5.3 Installation Activities

- (a) Where applicable, the organization shall document the acceptance criteria for installation of the medical device and for installation verification.
- (b) Where installation by parties other than the organization or the supplier is permitted by the customer, the organization shall provide documented requirements for installation of the medical device and for installation verification.
- (c) Records of installation of the medical device and of installation verification performed by the organization or the supplier shall be maintained.

7.5.4 Servicing Activities

- (a) Where servicing of the medical device is a specified requirement, the organization shall document servicing procedures, reference materials, and reference measurements, where necessary, for performing servicing activities and for verifying that specified requirements are met.
- (b) The organization shall analyze records of servicing activities performed by the organization or the supplier for the purpose of:
 - 1) Determining whether the information should be handled as a complaint;
 - 2) Providing, where applicable, input to the improvement processes.
- (c) Records of servicing activities performed by the organization or the supplier shall be maintained.

7.5.5 Specific Requirements for Sterile Medical Devices

The organization shall maintain records of the parameters of the sterilization process used for each sterilization batch. Sterilization records shall be traceable to each production batch of the medical device.

7.5.6 Validation of Processes for Production and Service Provision

- (a) The organization shall validate any processes for production and service provision where the resulting output cannot be verified by subsequent monitoring or measurement. Validation shall include all processes where deficiencies become apparent only after the product is used or the service is delivered.
- (b) Validation shall demonstrate the ability of the processes to achieve the planned results consistently.
- (c) The organization shall document procedures for process validation that include:
 - 1) Defined criteria for review and approval of the processes;
 - 2) Qualification of equipment and personnel;
 - 3) Use of specific methods, procedures, and acceptance criteria;
 - 4) Statistical techniques, where applicable, including justification for sample size;
 - 5) Requirements for records;
 - 6) Revalidation, including the criteria for revalidation;
 - 7) Approval of changes to the process.
- (d) The organization shall document procedures for validation of the application of computer software used in production and service provision. Such software applications shall be validated prior to initial use and, where appropriate, validated after changes or software applications have been made. The specific approach and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of

the software, including the impact on product specifications and product performance.

- (e) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.

7.5.7 Specific Requirements for Validation of Sterilization and Sterile Packaging Processes

- (a) The organization shall document procedures for validation of the sterilization processes and the sterile barrier systems.
- (b) The sterilization processes and the sterile barrier systems shall be validated prior to initial use and, where applicable, prior to changes to the product or the process.
- (c) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.

7.5.8 Identification

- (a) The organization shall document procedures for product identification and shall identify the product by suitable means throughout production realization.
- (b) The organization shall identify the status of product with respect to monitoring and measurement requirements throughout production realization. The organization shall maintain identification of the status of product to ensure that only product that has passed the required tests and inspections, or that has been released under an approved concession, is dispatched, used, or installed during all phases of production, storage, installation, and servicing.
- (c) Where required by applicable statutory requirements, the organization shall document a system for assigning a unique device identification (UDI) to the medical device.
- (d) The organization shall document procedures to ensure that medical devices returned to the organization are identified and distinguished from conforming product.

7.5.9 Traceability

7.5.9.1 General Requirements

The organization shall document procedures for traceability. These procedures shall define the scope of traceability and the records to be maintained in accordance with applicable statutory requirements.

7.5.9.2 Specific Requirements for Medical Devices Subject to Traceability

- (a) Where components, materials, or working environment conditions used could cause the medical device not to meet specified safety and performance requirements, records required for traceability shall include records of the components, materials, and working environment conditions used.
- (b) The organization shall require distributors or retailers to maintain records of sales of the

medical device and to make such records available for investigation to ensure product traceability.

- (c) The organization shall maintain records of the name and address of the consignee for shipped product.

7.5.10 Customer Property

Where customer property provided for use or incorporation into the product is under the manufacturer's control or is being used by the manufacturer, the organization shall identify, verify, protect, and safeguard such property. If customer property is lost, damaged, or found to be unsuitable for use, this shall be reported to the customer and records shall be maintained.

7.5.11 Preservation of Product

- (a) The organization shall document procedures to preserve product conformity to requirements during processing, storage, handling, and distribution.
- (b) Preservation shall also apply to components of the medical device.
- (c) When exposed to expected conditions and hazards during processing, storage, handling, and distribution, the organization shall protect the product from alteration, contamination, or damage by the following means:
 - 1) Designing and constructing appropriate packaging and transportation containers;
 - 2) Documenting requirements for any special conditions needed where packaging alone does not provide preservation.
- (d) Where special conditions are necessary, such conditions shall be controlled and recorded.

7.6. Control of Monitoring and Measuring Equipment

- (a) The organization shall determine the monitoring and measurement activities to be performed, and the monitoring and measuring equipment required, to demonstrate that the product meets specified requirements.
- (b) The organization shall document procedures to ensure that monitoring and measurement activities are carried out in a manner consistent with the monitoring and measurement requirements.
- (c) Where necessary to ensure valid results, measuring equipment shall:
 - 1) Be calibrated or verified, or both, at specified intervals or prior to use, against measurement standards traceable to international or national measurement standards; Where no such standards exist, the basis used for calibration or verification shall be recorded;
 - 2) Be adjusted or re-adjusted as necessary. Such adjustments or re-adjustments shall be recorded.

- 3) Be identified to enable the calibration status to be determined;
 - 4) Be safeguarded from adjustments that would invalidate the measurement result;
 - 5) Be protected from damage and deterioration during handling, maintenance, and storage.
- (d) The organization shall calibrate or verify the equipment in accordance with documented procedures.
- (e) When equipment is found not to conform to requirements, the organization shall assess the validity of previous measurement results. The organization shall take appropriate action regarding the equipment and any product affected. Records of the results of calibration and verification shall be maintained.
- (f) When computer software is used in monitoring or measuring the requirements specified, the organization shall document procedures for validation of the application of computer software. The software shall be validated prior to initial use and, where appropriate, revalidated after changes to the software or its application. The specific approach and activities related to software validation and revalidation shall be proportionate to the risks associated with the use of the software, including the impact on product specifications and product performance.
- (g) Records of the results of validation, the conclusions reached, and any necessary actions resulting from the validation shall be maintained.

8. Measurement, Analysis and Improvement

8.1 General Requirements

- (a) The organization shall plan and implement the monitoring, measurement, analysis, and improvement processes needed:
- 1) To demonstrate conformity of the product;
 - 2) To ensure conformity of the quality management system;
 - 3) To maintain the effectiveness of the quality management system.
- (b) This shall include determination of the methods, including statistical techniques, and the extent of their use.

8.2 Monitoring and Measurement

8.2.1 Feedback

- (a) As one of the measurements of the effectiveness of the quality management system, the organization shall collect and monitor information relating to whether customer requirements have been met.
- (b) The methods for obtaining and using this information shall be documented.
- (c) The organization shall document procedures for the feedback process. The feedback process shall include provisions for gathering data from production as well as post-

production activities.

- (d) Information gathered in the feedback process shall be used as potential input to risk management in order to monitor and maintain the product requirements and the production realization or improvement processes.
- (e) Where applicable statutory requirements require the organization to collect information from post-production activities, review of that information shall be part of the feedback process.

8.2.2 Handling of Complaints

- (a) The organization shall document procedures for timely handling of complaints in accordance with applicable statutory requirements. These procedures shall include, at a minimum, the following requirements and responsibilities:
 - 1) Receiving and recording information;
 - 2) Evaluating information to determine whether feedback constitutes a complaint;
 - 3) Investigating complaints;
 - 4) Determining whether the information must be reported to the appropriate regulatory authorities;
 - 5) Handling complaint-related product;
 - 6) Determining the need for correction or corrective action.
- (b) If any complaint is not investigated, the justification for not conducting the investigation shall be documented. All results of corrections and corrective actions arising from the complaint handling process shall be documented.
- (c) Where an investigation determines that activities external to the organization caused the complaint, relevant information shall be exchanged between the organization and the external parties.
- (d) Records of complaint handling shall be maintained.

8.2.3 Reporting to Regulatory Authorities

- (a) Where complaints are subject to adverse event reporting or advisory notice reporting in accordance with applicable statutory requirements, the organization shall document procedures for reporting such complaints to the regulatory authorities.
- (b) Records of reports submitted to regulatory authorities shall be maintained.

8.2.4 Internal Audit

- (a) The organization shall conduct internal audits at planned intervals to determine whether the quality management system:
 - 1) Conforms to the planned and documented arrangements, the requirements of this

GMP, the quality management system requirements established by the organization, and the applicable statutory requirements;

2) Is effectively implemented and maintained.

- (b) The organization shall document procedures that define the responsibilities and requirements for planning and conducting audits, and for recording and reporting audit results.
- (c) The audit program shall be planned, taking into consideration the status and importance of the processes and areas to be audited, as well as the results of previous audits. The audit criteria, scope, frequency, and methods shall be defined and recorded. Auditors shall be selected and audits conducted to ensure objectivity and impartiality of the audit process. Auditors shall not audit their own work. Records of the audit and audit results, including the processes and areas audited and the conclusions reached, shall be maintained.
- (d) Management responsible for the areas being audited shall ensure that necessary corrections and corrective actions are taken without undue delay to eliminate detected nonconformities and their causes. Follow-up activities shall include the verification of the actions taken and the reporting of the results of verification.

8.2.5 Monitoring and Measurement of Processes

The organization shall apply suitable methods for monitoring and, where applicable, measurement of the quality management system processes. These methods shall demonstrate the ability of the processes to achieve the planned results. When the planned results are not achieved, appropriate correction and corrective action shall be taken to ensure conformity of the product.

8.2.6 Monitoring and Measurement of Product

- (a) The organization shall monitor and measure the characteristics of the product to verify that product requirements have been met. This shall be carried out at appropriate stages of the production realization process in accordance with the planned and documented arrangements and documented procedures.
- (b) Records demonstrating conformity with the acceptance criteria shall be maintained. The identity of the person authorizing product release shall be recorded. Where applicable, the test equipment used for measurement activities shall be identified and recorded.
- (c) Product shall not be released, nor shall service be provided, until the planned and documented activities have been satisfactorily completed.
- (d) For medical devices subject to traceability, the organization shall identify and record the identity of personnel performing all inspections or tests.

8.3 Control of Nonconforming Product

8.3.1 General

- (a) The organization shall ensure that nonconforming product is identified and controlled to prevent its unintended use or delivery. The organization shall document procedures that define the controls and related responsibilities and authorities for dealing with nonconforming product, including identification, documentation, segregation, evaluation, and disposition.
- (b) Evaluation of nonconformities shall include investigation into any external party responsible for the nonconformity and determination of whether notification is required.
- (c) Records of the nonconformity, including the evaluation, investigation, the basis for the decisions made, and all actions taken in response, shall be maintained.

8.3.2 Actions in Response to Nonconforming Product Detected Prior to Delivery

- (a) The organization shall deal with nonconforming product in one or more of the following ways:
 - 1) Taking action to eliminate the detected nonconformity;
 - 2) Taking action to preclude its original intended use or application;
 - 3) Authorizing its use, release, or acceptance under concession.
- (b) The organization shall ensure that concessions are granted only when justified, approved, and compliant with applicable statutory requirements. Records shall be maintained to identify acceptance under concession and the person authorizing the concession.

8.3.3 Actions in Response to Nonconforming Product Detected After Delivery

- (a) When nonconforming product is detected after delivery or use, the organization shall take appropriate action regarding the effects or potential effects of the nonconformity. Records of the actions taken shall be maintained.
- (b) The organization shall document procedures for issuing advisory notices in accordance with applicable statutory requirements. These procedures shall be capable of being implemented at any time. Records of the actions related to advisory notices shall be maintained.

8.3.4 Rework

- (a) The organization shall perform rework in accordance with documented procedures that consider the potential adverse effects of the rework on the product. These procedures shall be subject to the same review and approval as the original procedures.
- (b) After completion of the rework, the product shall be verified to ensure that it meets the applicable acceptance criteria and statutory requirements.

- (c) Records of the rework shall be maintained.

8.4 Analysis of Data

- (a) The organization shall document procedures to determine, collect, and analyze appropriate data to demonstrate the suitability, adequacy, and effectiveness of the quality management system. These procedures shall include the determination of appropriate methods, including statistical techniques and the extent of their application.
- (b) Analysis of data shall include data generated from the results of monitoring and measurement and from other relevant sources, and shall include, at a minimum, the following inputs:
 - 1) Feedback;
 - 2) Conformity to product requirements;
 - 3) Process and product characteristics and trends, including opportunities for improvement;
 - 4) Suppliers;
 - 5) Audits;
 - 6) Service reports, where applicable.
- (c) Where analysis of data shows that the quality management system is not suitable, adequate, or effective, the organization shall use this analysis as input for improvement as required in 8.5.
- (d) Records of the results of data analysis shall be maintained.

8.5 Improvement

8.5.1 General Requirements

The organization shall identify and implement any changes necessary to ensure and maintain the ongoing suitability, adequacy, and effectiveness of the quality management system, as well as the safety and performance of medical devices, through the use of the quality policy, quality objectives, audit results, post-marketing surveillance, data analysis, corrective and preventive actions, and management review.

8.5.2 Corrective Action

- (a) The organization shall take action to eliminate the causes of nonconformities in order to prevent their recurrence.
- (b) Corrective actions required shall be taken without undue delay. Corrective actions shall be proportionate to the effects of the nonconformities encountered.
- (c) Documented procedures shall define requirements for:
 - 1) Reviewing nonconformities (including customer complaints);

- 2) Determining the causes of nonconformities;
 - 3) Evaluating the need for action to ensure that nonconformities do not recur;
 - 4) Planning and documenting the required actions and implementing them, including document changes where applicable;
 - 5) Verifying that corrective actions do not adversely affect the safety and performance of the medical device or compliance with applicable statutory requirements;
 - 6) Reviewing the effectiveness of the corrective actions taken.
- (d) Records of all investigation results and actions taken shall be maintained.

8.5.3 Preventive Action

- (a) The organization shall determine preventive actions to eliminate the causes of potential nonconformities in order to prevent their occurrence. Preventive actions shall be proportionate to the potential impacts of such issues.
- (b) Documented procedures shall define requirements for:
 - 1) Determining potential nonconformities and their causes;
 - 2) Evaluating the need for action to prevent the occurrence of nonconformities;
 - 3) Planning and documenting the required actions and determining and implementing such actions, including document changes where applicable;
 - 4) Verifying that preventive actions do not adversely affect the safety and performance of the medical device or compliance with applicable statutory requirements;
 - 5) Reviewing the effectiveness of preventive actions taken, where applicable.
- (c) Records of the results of all investigations and actions taken shall be maintained.

[Annex 3]

Criteria for Assessment of Digital Medical Device Software

(Related to Article 5)

1. Software Development Process

1.1 Planning

1.1.1 Planning for Design and Development of Digital Medical Device Software

- (a) The organization shall establish a design and development plan to conduct design and development process activities appropriate to the scope, scale, and software safety class of the software system of the digital medical device to be developed. This plan shall define or reference all development life cycle models and shall be maintained and updated as design and development progress.
- (b) The organization shall document the following in the course of design and development planning:
 - 1) The processes used for design and development, including standards, methods, and tools;
 - 2) The responsibilities and authorities for design and development;
 - 3) Outputs of activities and tasks (including documentation);
 - 4) Traceability among customer requirements, software system requirements, software item requirements, tests, and the risk control measures implemented in the digital medical device;
 - 5) Software configuration management and change management, including configuration items such as software of unknown provenance (SOUP) and development support software;
 - 6) Methods for resolving issues identified in the outputs and activities of each life cycle phase;
 - 7) Methods to ensure traceability between design and development inputs and outputs;
 - 8) The necessary resources, including personnel competence.

1.1.2 Verification Planning for Digital Medical Device Software

- (a) The organization shall include or reference the following verification information in the digital medical device software development plan:
 - 1) Outputs required for verification;
 - 2) Verification activities required for each life cycle activity;
 - 3) Milestones indicating which outputs are to be verified;
 - 4) Acceptance criteria for verification of outputs.

- (b) The organization shall include or reference a plan for integrating software items of the digital medical device (including SOUP) and performing tests during the integration process in the digital medical device development plan.

1.1.3 Validation Planning for Digital Medical Device Software

The organization shall establish and document a validation plan for design and development. The validation plan shall include the following:

- (a) The scope of validation, related activities, and any existing constraints;
- (b) Validation criteria and validation methods;
- (c) The environment and tools for performing validation;
- (d) Qualifications of personnel performing validation and the required prerequisite training.

1.1.4 Establishment of Maintenance Plan for Digital Medical Device Software

The organization shall establish a maintenance plan to perform the activities and tasks of the maintenance process. This plan shall include the following:

- (a) Procedures for receiving, documenting, evaluating, resolving, and tracking feedback arising after release of the digital medical device;
- (b) Criteria for determining which feedback requires action;
- (c) Use of the risk management process;
- (d) Use of the problem-resolution process for analyzing and resolving issues that arise after distribution of the digital medical device;
- (e) Use of the digital medical device configuration management process to control changes to the existing digital medical device software system;
- (f) Procedures for evaluating and implementing upgrades, bug fixes, patches, and obsolescence-related updates of software of unknown provenance (SOUP).

1.2 Requirements Analysis

1.2.1 Definition and Documentation of Software System Requirements

- (a) The manufacturer shall define and document the software system requirements for each software system of the digital medical device.
- (b) Where applicable, the manufacturer shall include the following in the software system requirements:
 - 1) Customer-specified requirements;
 - 2) Requirements necessary for the stated or intended use, even if not specified by the customer;
 - 3) Functional and performance requirements;

- 4) Inputs to and outputs from the software system;
 - 5) Interfaces between the software system and other systems;
 - 6) Software-based alarms, warnings, and operational messages;
 - 7) Security requirements;
 - 8) User interface requirements implemented in the software;
 - 9) Data definitions and database requirements;
 - 10) Installation and acceptance requirements for software deployed to operational and maintenance organizations;
 - 11) Requirements related to operation and maintenance methods;
 - 12) IT-network-related requirements;
 - 13) User maintenance requirements;
 - 14) Deployment requirements;
 - 15) Regulatory requirements;
 - 16) Any additional requirements determined by the organization.
 - 17) Risk control measures.
- (c) Where the customer does not provide documented requirements, the organization shall confirm the customer requirements prior to acceptance.

1.2.2 Updating Software System Requirements

- (a) When software system requirements are changed, the organization shall update the related documents and ensure that the relevant personnel are made aware of the changed requirements.
- (b) When updating existing requirements, including software system requirements, the organization shall use the risk management process to re-evaluate activities such as risk analysis and risk control.
- (c) When updating existing requirements, including software system requirements, the organization shall ensure that they are appropriately re-evaluated and updated through requirements analysis activities.

1.2.3 Verification of Software System Requirements

- (a) Prior to committing to supply the device to the customer, the organization shall perform requirements verification and shall ensure the following:
 - 1) Device requirements are defined and documented;
 - 2) Any contract or order requirements differing from those previously expressed are resolved;
 - 3) Applicable statutory requirements are met;

- 4) User training is possible or planned to be made possible;
- 5) The organization has the capability to meet the specified requirements.
- (b) The organization shall verify and document the software system requirements, including the following:
 - 1) Whether risk control elements are included when implementing the requirements;
 - 2) Whether any conflicts exist between requirements;
 - 3) Whether clear terminology has been used;
 - 4) Whether test results and criteria are described using recognized terminology;
 - 5) Whether unique identifiers are used;
 - 6) Whether traceability to system requirements or other sources is ensured.
- (c) Records of verification results and any actions taken based on the verification shall be maintained.

1.3 Design and Development

1.3.1 Software Design and Development Inputs

- (a) When preparing the software development plan, the organization shall refer to the software system requirements as inputs for development.
- (b) The organization shall determine and maintain records of inputs related to software requirements. These inputs shall include the following:
 - 1) Functional, performance, usability, and safety requirements necessary for the intended use;
 - 2) Applicable statutory requirements and standards;
 - 3) Applicable risk management outputs;
 - 4) Information derived from previous similar designs, where applicable;
 - 5) Other requirements essential to the design and development of the digital medical device and processes.
- (c) Inputs to the design and development process shall be reviewed for appropriateness and approved.

1.3.2 Software Design and Development Outputs

- (a) The organization shall determine and maintain records of outputs related to software requirements. These outputs shall include the following:
 - 1) Meet the design and development input requirements;
 - 2) Provide appropriate information for purchasing, production, and service provision;
 - 3) Include or reference the acceptance criteria for the digital medical device;

- 4) Specifying the characteristics of the device essential for safe and proper use.
- (b) Outputs of the design and development process shall be provided in a form that enables verification against the design and development inputs and shall be approved prior to release.

1.3.3 Software Architecture Design

- (a) The organization shall describe the architecture of the software system or software items and shall document the software system requirements using the architecture.
- (b) The organization shall develop and document the architecture of interfaces between software items and external components (both software and hardware), as well as between software items.
- (c) Where software items include software of unknown provenance (SOUP), the organization shall specify the functional and performance requirements essential to the intended use of the SOUP, as well as the hardware and software requirements.
- (d) The organization shall identify the separations between software items that are essential for risk control and shall describe the methods used to ensure that such separations are effective.
- (e) The organization shall evaluate the capability of the architectural design to meet the requirements and shall identify and specify any necessary actions.
- (f) The organization shall verify and document the architecture of the software system and software items, including the requirements of 1.3.1 and the following. Personnel participating in verification shall include not only those responsible for the design but also other experts.
 - 1) Whether the software system or software item requirements, including those related to risk control, are implemented using the software system or software item architecture;
 - 2) Whether the architecture of the software system or software items can support interfaces between software items and between software items and hardware;
 - 3) Whether the architecture of the software system or software items can support the operation of software of unknown provenance (SOUP).
- (g) The organization shall maintain records of verification, including the verification methods, acceptance criteria, and justification for sample size, along with any statistical techniques used. The records shall identify the design under review, the personnel involved in the verification, and the date of verification.

1.3.4 Detailed Software Design

- (a) The organization shall decompose the software system or software items into software units.
- (b) Where applicable, the organization shall include the following additional acceptance

criteria for software units in the design:

- 1) Proper event sequencing;
 - 2) Data and control flow;
 - 3) Planned resource allocation;
 - 4) Fault handling (fault definition, detection, and recovery);
 - 5) Initialization of variables
 - 6) Self-diagnostics;
 - 7) Memory management and memory overflow;
 - 8) Boundary conditions.
- (c) The organization shall verify and document the detailed design, including the requirements of 1.3.1 and 1.3.2, and the following, to enable implementation of each software unit. Personnel participating in the verification shall include not only those responsible for the design but also other experts.
- 1) Whether the software architecture has been implemented using the detailed design;
 - 2) Whether interfaces between software units and interfaces between software units and external components (hardware or software) are implemented using the detailed design;
 - 3) Whether the detailed design is consistent with the software architecture.
- (d) The organization shall maintain records of verification, including the verification methods, acceptance criteria, and justification for sample size, along with any statistical techniques used. The records shall identify the design under review, the personnel involved in the verification, and the date of verification.

1.3.5 Implementation of Software Units

- (a) The organization shall implement each software unit.
- (b) Before integrating software units into larger software items, the organization shall establish acceptance criteria and ensure that the software units meet those criteria.
- (c) The organization shall establish strategies, methods, and procedures for verifying software units. Where verification is performed by testing, the organization shall evaluate the adequacy of the test procedures.
- (d) The organization shall verify the software units and document the results. Personnel participating in verification shall include not only those responsible for the design but also other experts.
- (e) The organization shall maintain records of verification, including the verification methods, acceptance criteria, and justification for sample size, along with any statistical techniques used. The records shall identify the design under review, the personnel involved in the verification, and the date of verification.

1.3.6 Design and Development Transfer

- (a) The organization shall document procedures for the transfer of design and development outputs to manufacturing. These procedures shall ensure that the design and development outputs have been verified as suitable for manufacturing before becoming the final production specifications and that manufacturing capability can meet device requirements.
- (b) Records of the results and conclusions of the transfer shall be maintained.

1.3.7 Control of Design and Development Changes

- (a) The organization shall document procedures for controlling design and development changes. The organization shall determine the significance of changes to the function, performance, usability, safety, applicable statutory requirements, and intended use of the medical device.
- (b) Design and development changes shall be identified. Prior to implementation, the changes shall be reviewed, verified, and approved. Validation shall be included where applicable.
- (c) Review of design and development changes shall include evaluation of the impact on components, devices in manufacturing or already delivered, risk management inputs or outputs, and the requirements of 1.1.1.
- (d) Records of the changes, the review of the changes, and any necessary actions shall be maintained.

1.4 Testing

1.4.1 Software Integration

- (a) The organization shall integrate software units in accordance with the integration plan.
- (b) The organization shall verify and document the process and results of integrating software units into the software system or software items in accordance with the integration plan. Personnel participating in the verification shall include not only those responsible for the design but also other experts.
- (c) The organization shall maintain records of verification, including verification methods, acceptance criteria, and justification for sample size, along with any statistical techniques used. The records shall identify the personnel involved and the verification date.

1.4.2 Software Integration Testing

- (a) The organization shall evaluate the adequacy of the integration test procedures.
- (b) The organization shall test the software system or software items resulting from integration of the software units in accordance with the integration plan and shall document the results.
- (c) Through integration testing, the organization shall confirm that the software system or

software items resulting from integration of the software units function as intended.

- (d) When integrating software units, the organization shall perform appropriate regression testing to demonstrate that defects have not been introduced into previously integrated software systems or software items.
- (e) The organization shall maintain integration test records, including test results (conformity/nonconformity, list of deviations), records for repeated testing, and the identity of the tester. The records shall identify the personnel involved in the verification and the verification date.
- (f) The organization shall feed anomalies identified during software integration and integration testing into the software problem-resolution process.

1.4.3 Software System Testing

- (a) The organization shall evaluate the adequacy of the verification strategy and test procedures.
- (b) The organization shall establish and perform test configurations—expressed as input values, expected outputs, pass/fail criteria, and procedures—in software system testing to address all digital medical device requirements.
- (c) The organization shall feed anomalies identified during software system testing into the software problem-resolution process.
- (d) For changes that arise during software system testing, the organization shall:
 - 1) Repeat testing as appropriate and perform revised or additional tests to verify that the changes made to resolve issues are effective.
 - 2) Perform tests to demonstrate that no unintended side effects have been introduced.
 - 3) Perform risk-management activities for the change.
- (e) The organization shall evaluate software system test results, including the following:
 - 1) Verification that all digital medical device requirements have been tested, or confirmation that untested requirements have been addressed.
 - 2) Records demonstrating traceability between digital medical device requirements and tests or other verification activities.
 - 3) Confirmation that test results meet the required pass/fail criteria.
- (f) The organization shall maintain software system test records, including the following:
 - 1) References to test-case procedures showing the required functions and expected results;
 - 2) Test results (pass/fail, list of nonconformities);
 - 3) Version of the software tested;
 - 4) Appropriate hardware and software test setup;
 - 5) Appropriate test tools;

- 6) Date of testing;
- 7) Identification of personnel responsible for conducting the test and recording the results.

1.4.4 Validation

- (a) Validation shall be performed according to planned and documented methods to ensure that the resulting device meets the requirements for its intended use or specified application.
- (b) The organization shall document a validation plan that includes the validation methods, acceptance criteria, and, where applicable, the rationale for sample size.
- (c) Design validation shall be performed on representative devices. Representative devices include initial production units, batches, or equivalent devices. The rationale for selecting devices used for validation shall be documented.
- (d) As part of design and development validation, the organization shall conduct a clinical evaluation in accordance with applicable regulatory requirements.
- (e) A digital medical device used for clinical evaluation shall not be considered as shipped for customer use.
- (f) If, in its intended use, the digital medical device is required to be connected or interfaced with another medical device or digital medical device, validation shall include confirmation that the device requirements for the specified application or intended use are met when so connected or interfaced.
- (g) Validation shall be completed before the device is released for customer use.
- (h) Records of the validation results, conclusions, and any necessary actions shall be maintained.

1.5 Distribution

1.5.1 Software Distribution for System-Level Use

- (a) The organization shall complete all verification activities and evaluate their results before distributing the digital medical device software.
- (b) The organization shall document all known residual risks.
- (c) The organization shall assess all known residual risks to ensure that they do not contribute to unacceptable risk.
- (d) The organization shall document the version of the digital medical device software being distributed.
- (e) The organization shall document the procedures and environment used to prepare the digital medical device software for distribution.
- (f) The organization shall ensure that all digital medical device software development plan (or maintenance plan) activities and tasks are completed in accordance with the relevant

documentation.

1.5.2 Software Record Retention

- (a) The organization shall record and retain the following:
 - 1) Software and configuration items
 - 2) Documentation
- (b) The retention period shall be the longer of the digital medical device software lifetime defined by the organization or the period specified by applicable regulatory requirements.
- (c) The organization shall establish procedures to verify that the digital medical device software has been reliably distributed without alteration or unauthorized change. Such procedures shall take into account the production and handling of media containing the software, including duplication, media labeling, packaging, protection, storage space, and distribution.

1.6 Maintenance

1.6.1 Establishment of Maintenance Plan

The organization shall establish a maintenance plan that includes the following items to conduct maintenance process activities and tasks.

- (a) Procedures for receiving, documenting, evaluating, resolving, and tracking feedback;
- (b) Criteria for determining which feedback requires action;
- (c) Use of the risk management process;
- (d) Use of the problem-resolution process for analyzing and resolving issues that occur after distribution of the digital medical device software;
- (e) Use of the configuration management process for managing changes to the digital medical device software;
- (f) Procedures for evaluating and implementing updates, defect corrections, patches, and retirement of software of unknown provenance (SOUP).

1.6.2 Documentation and Evaluation of Feedback

- (a) The organization shall monitor feedback on distributed digital medical device software.
- (b) The organization shall document and evaluate feedback to determine whether any problems exist in the distributed digital medical device software. All identified problems shall be recorded in a problem report. A problem report shall include actual or potential adverse events and deviations from specifications.
- (c) The organization shall evaluate each problem report to determine its impact on the safety of the distributed digital medical device software and to identify the changes necessary for problem resolution.

1.6.3 Use of Software Problem Resolution Process

The organization shall use Section 2.4 to address problem reports.

2. Life Cycle Support Processes

2.1 Risk Management

2.1.1 Software Risk Management Plan

- (a) The organization shall document one or more processes for risk management during realization of digital medical device software, and records of risk management activities shall be maintained.
- (b) The organization shall include or reference in the digital medical device development plan the planning necessary to perform the activities and tasks required under the risk management process for software items of the digital medical device, including SOUP.
- (c) Where applicable, the organization shall include the following procedures in the risk management plan:
 - 1) Identification of defect categories that may be introduced based on the programming techniques adopted for the software system or item;
 - 2) Documentation of evidence demonstrating that the identified defects do not contribute to unacceptable risk.

2.1.2 Software Risk Analysis and Evaluation

- (a) The organization shall identify hazards related to the software system or item that were identified during the medical device risk analysis activities under ISO 14971.
- (b) The organization shall identify potential hazardous situations associated with the software system or item that contribute to hazardous situations and, where applicable, shall consider potential hazardous situations including the following:
 - 1) Incorrect or incomplete functional specifications;
 - 2) Software defects in the identified software system or item functions;
 - 3) Failures or unexpected outcomes caused by software of unknown provenance (SOUP);
 - 4) Hardware failures or other software defects that may cause unexpected software behavior;
 - 5) Reasonably foreseeable misuse.
- (c) Where failures or unexpected outcomes caused by software of unknown provenance (SOUP) constitute potential hazards that may contribute to a hazardous situation, the organization shall, at a minimum, evaluate the list of all known issues for the SOUP components used in the digital medical device to determine whether such issues could initiate a sequence of events leading to a hazardous situation. This evaluation shall be based on the list of issues provided by the software of unknown provenance (SOUP)

supplier.

- (d) The organization shall document in the risk management file the potential hazardous situations of the software system or item that affect hazardous situations.
- (e) The organization shall analyze changes to software within the digital medical device, including software of unknown provenance (SOUP), to determine:
 - 1) Whether additional potential hazardous situations are found to contribute to hazardous situations;
 - 2) Whether additional software systems or items require risk control measures.
- (f) The organization shall analyze changes to the software system or item, including software of unknown provenance (SOUP), to determine whether such changes may affect existing risk control measures.

2.1.3 Software Risk Control

- (a) Where a software system or item can affect a hazardous situation, the organization shall define and document risk control measures for each software system or item as documented in the risk management file.
- (b) Where risk control measures are implemented as part of the functions of a software system or item, the organization shall perform the following:
 - 1) Include the risk control measures in the software requirements of the digital medical device;
 - 2) Assign a software safety classification, based on the risk controlled by the risk control measure, to each software system or item that contributes to implementation of the risk control measure;
 - 3) Develop the software items in accordance with subparagraph 1).
- (c) The organization shall verify the implementation of each documented risk control measure and shall document the verification.
- (d) The organization shall determine whether new hazardous situations have arisen and shall review the risk control measures.

2.1.4 Ensuring Traceability for Software Risk Management

The organization shall adequately document the traceability of hazards related to the software system or item, including the following:

- (a) From the hazardous situation to the software item;
- (b) From the software system or item to the specific software cause;
- (c) From the software cause to the risk control measure;
- (d) From the risk control measure to the verification of the risk control measure.

2.1.5 Performance of Software Risk Management

The organization shall perform the risk management activities defined in Sections 2.1.1, 2.1.3, and 2.1.4 based on Section 2.1.2.

2.1.6 Performance of Risk Management for Legacy Software

- (a) Legacy software shall either comply with Annex 3 or demonstrate conformity as presented in Section 2.1.6.
- (b) When legacy software is used, the organization shall evaluate all feedback—internal or from users—related to incidents or events associated with the legacy software, including post-production information, and shall comply with a risk management process in accordance with ISO 14971.
- (c) The organization shall perform risk management activities related to the continued use of legacy software by considering the following elements:
 - 1) Integration of the legacy software into the overall medical device architecture;
 - 2) Continued effectiveness of risk control measures implemented as part of the legacy software;
 - 3) Identification of hazardous situations associated with continued use of the legacy software;
 - 4) Identification of potential causes in the legacy software that contribute to hazardous situations;
 - 5) Definition of risk control measures for each potential cause in the legacy software that contributes to hazardous situations.
- (d) For legacy software, the manufacturer shall perform a gap analysis of valid outputs.
 - 1) The organization shall assess the continued validity of the valid outputs.
 - 2) Where gaps are identified, the organization shall evaluate whether the risks arising from missing activities and outputs can be reduced.
 - 3) Based on this evaluation, the organization shall determine the activities to be performed and the outputs to be generated, and shall produce, at a minimum, software system test records.
- (e) Gap closure activities
 - 1) The organization shall establish and execute a plan to generate the identified outputs. Where possible, the organization may generate the required outputs using objective evidence.
 - 2) The plan shall use the problem-resolution process under Section 2.4 to address issues identified in the legacy software and its outputs.
 - 3) Changes to the legacy software shall be performed in accordance with Section 1.6.
- (f) The organization shall document the version of the legacy software together with the

justification for its continued use.

2.2 Control of Outsourced Processes

2.2.1 Outsourcing Management Process

- (a) Where the organization outsources devices that affect the conformity requirements of the digital medical device, the organization shall ensure that the outsourced devices are monitored and controlled.
- (b) The organization shall retain responsibility for compliance with this GMP, customer requirements, and applicable statutory requirements for outsourced devices.
- (c) Control of outsourced devices shall be proportionate to the associated risks and to the capability of the contracted supplier to meet the requirements of the purchasing process, and shall include a written quality agreement.
- (d) The organization shall plan monitoring and re-evaluation of suppliers.
- (e) The organization shall establish criteria for evaluating and selecting suppliers, and such criteria shall be based on:
 - 1) The supplier's capability to provide devices that meet the organization's requirements;
 - 2) The supplier's performance;
 - 3) The effect of the outsourced device on the quality of the software;
 - 4) Proportionality to the risks associated with the software.
- (f) The organization shall plan monitoring and re-evaluation of suppliers. The organization shall monitor the performance of suppliers that provide outsourced devices to ensure that the requirements for the outsourced devices are met. The results of monitoring shall be provided as inputs to the supplier re-evaluation process.
- (g) Non-fulfillment of outsourcing requirements shall be addressed with the supplier, proportionate to the risks associated with the outsourced device and compliance with applicable regulatory requirements.
- (h) Records of the results of evaluation, selection, monitoring, and re-evaluation of suppliers and of any necessary actions arising from these activities shall be maintained.

2.2.2 Outsourcing Information

- (a) Where applicable, the organization shall describe or reference outsourcing information, including:
 - 1) Device specifications;
 - 2) Requirements for device approval, procedures, processes, and equipment;
 - 3) Requirements for the qualification of supplier personnel;
 - 4) Software quality management system requirements.

- (b) Before communicating with the supplier, the organization shall ensure the adequacy of the specified outsourcing requirements.
- (c) Where applicable, the organization shall include a written agreement requiring the supplier to notify the organization of changes to devices that meet the organization's outsourcing requirements, prior to implementing changes that may affect the functionality of the outsourced device.
- (d) The organization shall maintain documentation and records of relevant outsourcing information to the extent required for traceability.

2.2.3 Verification of Outsourced Devices

- (a) The organization shall establish and perform inspections or other activities necessary to ensure that outsourced devices conform to specified requirements. The extent of verification activities shall be proportionate to the risks associated with the outsourced device, based on the results of supplier evaluation.
- (b) When the organization becomes aware of any changes to the outsourced device, it shall determine whether such changes affect the device realization process or the software.
- (c) Where the organization or its customer intends to verify outsourced devices at the supplier's premises, it shall specify the intended verification activities and the release arrangements for the devices within the outsourcing information.
- (d) Records of verification shall be maintained.

2.3 Configuration Management

2.3.1 Configuration Management Plan for Digital Medical Devices

- (a) The organization shall include or reference configuration management information for the digital medical device in the development plan, including:
 - 1) Safety classification, types, categories, or the list of items to be controlled;
 - 2) Software-related configuration management activities and tasks included in the digital medical device;
 - 3) Organizations responsible for performing software-related configuration management activities included in the digital medical device;
 - 4) Relationships with other organizations responsible for software-related development or maintenance included in the digital medical device;
 - 5) The point at which items are placed under configuration control;
 - 6) Points at which the problem-resolution process shall be applied;
- (b) The organization shall plan for configuration items to be under configuration control prior to verification of the configuration items.
- (c) Items requiring control include tools, items, or settings used for software-related development included in the digital medical device, and these items may affect the

software.

2.3.2 Configuration Identification for Digital Medical Devices

- (a) The organization shall establish a plan to uniquely identify configuration items and their versions in order to control configuration items in accordance with Section 2.3.1.
- (b) The organization shall document configuration items for each software of unknown provenance (SOUP) used, including the standard library and information such as the title, manufacturer, and unique SOUP identifier.

2.3.3 Configuration Control for Digital Medical Devices

- (a) The organization shall identify approved change requests that affect the distributed digital medical device.
- (b) The organization shall change and control configuration items identified in accordance with Sections 2.3.1 and 2.3.2 only on the basis of approved change requests.
- (c) The organization shall implement changes as specified in the documentation associated with the change request.
- (d) The organization shall identify and perform all activities that must be repeated as a result of the change, including changes to the software safety classification of the software system or item.
- (e) The organization shall verify the change, including repeating any verification invalidated by the change.
- (f) The organization shall maintain records of the dependencies and relationships among change requests, related problem reports, and the approvals of those change requests.

2.3.4 Record Retention for Digital Medical Devices

The organization shall retain a retrievable record history of controlled configuration items, including the system configuration.

2.3.5 Change Management

- (a) The organization shall analyze the impact of each change request on the organization, the distributed digital medical device software, and systems interfacing with it.
- (b) The organization shall evaluate and approve change requests that will modify the distributed digital medical device software.
- (c) The organization shall identify and perform the activities in Sections 1 and 2 that must be repeated as a result of the change.
- (d) The organization shall distribute the modified digital medical device software in accordance with Section 1.5.

2.4 Problem Resolution Process

(a) Preparation of problem reports

The manufacturer shall prepare a report for each problem detected in the software. Each problem report shall include additional information that may assist in resolving the problem (e.g., affected devices, affected supporting accessories) and a description of the problem's significance (e.g., its impact on performance, safety, or security).

(b) Problem investigation

The manufacturer shall perform the following:

- 1) Investigate the problem and identify the cause, where possible;
- 2) Evaluate safety-related issues using risk management (Section 2.1);
- 3) Document the results of the investigation and evaluation;
- 4) The manufacturer shall generate a change request to resolve the problem, or shall document the rationale if no problem-resolution activities are necessary.

(c) Notification to relevant departments

The manufacturer shall inform the relevant departments that a problem exists.

(d) Use of change management process

The manufacturer shall approve and implement all change requests in accordance with the requirements of change management (Section 2.3.5).

(e) Record maintenance

The manufacturer shall maintain records of the problem reports and of the problem-resolution activities, including verification. The manufacturer shall update the risk management file as appropriate.

(f) Analysis of problem trends

The manufacturer shall analyze problem reports to identify trends.

(g) Verification of software problem resolution

The manufacturer shall verify the problem resolution to determine:

- 1) Whether the problem has been resolved and the problem report has been closed;
- 2) Whether negative trends have been reversed;
- 3) Whether the change request has been implemented in the appropriate software and activities;
- 4) Whether additional problems have emerged.

(h) Contents of test documentation

The manufacturer shall include the following information in the test documentation when testing, re-testing, or performing regression testing of software items and the system after changes:

- 1) Test results;

- 2) Detected anomalies;
- 3) Software version tested;
- 4) Relevant hardware and software test configurations;
- 5) Relevant test tools;
- 6) Date of testing;
- 7) Identity of the tester.

[Annex 4]

Criteria for AI Control Measures Assessment for Digital Medical Devices (Related to Article 5)

1. General Requirements

1.1 AI Control Measures

- (a) The organization shall determine the necessary AI control measures for the quality management of AI/ML software systems or items included in digital medical devices and shall apply such measures throughout the organization.
 - 1) Management responsibility, including management involvement, policy establishment, and implementation;
 - 2) Risk management, including identification, evaluation, and mitigation of potential risks of AI/ML software;
 - 3) Governance structure, including responsibilities, decision-making, and approval procedures;
 - 4) Data handling, including quality control of training data and data de-identification measures;
 - 5) Design and implementation of AI models;
 - 6) Development of AI/ML software systems combining training data and AI models;
 - 7) Operation and monitoring, including periodic accuracy verification of AI/ML software.
- (b) AI control measures defined by the organization shall include the following:
 - 1) Process inputs, including, where applicable, outputs from processes performed prior to the process input stage and other materials recorded in the document control system within the quality control system;
 - 2) Procedures for performing activities within the process;
 - 3) Process outputs, including the outputs generated from the processes performed.
- (c) The determined AI control measures may be defined as activities within the existing software life cycle processes of the quality management system or as independent software life cycle processes. In either case, the measures shall be documented, execution records shall be retained, and outputs shall be documented.
- (d) Where certain requirements are not applicable due to the activities performed by the organization or the characteristics of the software, the organization may exclude such requirements. Provided, however, that the organization shall record the justification and the basis for determining each requirement to be not applicable.

1.2 Management Responsibility

- (a) Top management shall demonstrate its commitment to the development and implementation of AI control measures and to maintaining their effectiveness through the following:
 - 1) Establishment of an AI policy;
 - 2) Establishment of AI objectives;
 - 3) Conduct of reviews.
- (b) Top management shall ensure that the AI Policy:
 - 1) Is appropriate to the purpose of the organization;
 - 2) Includes a commitment to meeting requirements and maintaining the effectiveness of the AI/ML software system;
 - 3) Provides a framework for establishing and reviewing AI objectives;
 - 4) Is communicated within the organization;
 - 5) Is reviewed for continuing suitability.
- (c) Top management shall ensure that AI Objectives include what is necessary to meet applicable regulatory requirements and product requirements, and that they are established at relevant functions and levels within the organization.
- (d) AI Objectives shall be measurable and consistent with the quality policy.
- (e) Top management shall conduct management reviews that include the following:
 - 1) Documentation of procedures for management review related to AI control measures;
 - 2) Review of AI control measures at documented and planned intervals to ensure their continuing suitability, adequacy, and effectiveness;
 - 3) Evaluation of the need for changes and opportunities for improvement of AI control measures, including the AI policy and AI objectives.
- (f) Records of management review shall be documented and maintained.

1.3 Resource Management

- (a) The organization shall determine and provide the resources needed for:
 - 1) Implementation of AI control measures and maintenance of their effectiveness;
 - 2) Meeting applicable regulatory requirements and customer requirements.
- (b) Personnel performing tasks related to AI control measures shall be competent based on appropriate education, training, skills, and experience.
- (c) The organization shall establish the competencies required for personnel involved in the operation of AI control measures, provide necessary training, and document processes to ensure personnel awareness.

- (d) The organization shall implement the following for the operation of AI control measures:
 - 1) Determine the competencies needed for personnel performing work that affects product quality;
 - 2) Provide training or implement other actions to achieve or maintain the necessary competence;
 - 3) Evaluate the effectiveness of the actions taken;
 - 4) Ensure that personnel are aware of the relevance and importance of their activities and how they contribute to the achievement of quality objectives;
 - 5) Maintain appropriate records of education, training, skills, and experience.

2. Risk Management

- (a) A risk management plan for AI/ML software systems or items included in digital medical devices shall be established and implemented.
- (b) Risk management for AI/ML software systems or items included in digital medical devices shall meet the requirements of Annex 2, Section 7.1.

3. Governance Structure

- (a) The organization shall establish the ethical principles and rules that must be implemented internally as follows:
 - 1) Adopt and organize laws, regulations, policies, standards, and guidelines related to medical artificial intelligence, and establish internal guidance and rules to be implemented;
 - 2) Clearly document the organization's roles and responsibilities throughout the life cycle of artificial intelligence systems.
- (b) The organization shall establish an artificial intelligence governance structure appropriate to the size of the organization and to the AI/ML software systems or items included in the digital medical device:
 - 1) Structuring the organization to manage the implementation of ethical principles and rules;
 - 2) Where applicable, structuring the organization to include external experts (e.g., physicians, nurses, data scientists, clinical or quality professionals, and relevant academic experts).
- (c) The organization shall manage and oversee the following to ensure proper implementation of the artificial intelligence governance structure:
 - 1) Compliance with ethical principles and rules to be implemented internally;
 - 2) Monitoring of the target performance of AI/ML software systems or items included in the digital medical device;

- 3) Decisions on the retirement of AI/ML software systems or items included in the digital medical device;
- 4) Documentation of records related to the implementation of the artificial intelligence governance structure.

4. Reliability Assurance Planning

The organization shall, where applicable, plan and implement the necessary activities to reduce the uncertainty of AI/ML system output results, including the following elements:

- (a) Establishment of a virtual testing environment using simulators or equivalent tools;
- (b) Establishment of a consultative framework to determine the expected outputs of AI/ML software systems or items included in the digital medical device;
- (c) Establishment of a user evaluation group to verify the explanation or interpretation of expected outputs of AI/ML software systems or items included in the digital medical device.

5. Management of Training Data for AI/ML Functions

- (a) The organization shall perform the necessary data collection and processing activities, including the following elements, to provide safe and reliable AI/ML functions:
 - 1) Detailed information management to support clear understanding and utilization of data;
 - 2) Recording and management of data sources;
 - 3) Identification and inspection of anomalies in the data, where applicable.
- (b) Where applicable, the organization shall perform the necessary activities for the safety and security of training data, including the following elements:
 - 1) Defense against attacks such as data poisoning and data leakage;
 - 2) Mitigation of bias in training data.

6. Development of AI Models Related to AI/ML Functions

- (a) When using open-source libraries, the organization shall perform risk management related to their use and shall document the results.
 - 1) Verification of the stability of open-source libraries, including use of actively maintained libraries;
 - 2) Verification of license compliance for open-source libraries in use;
 - 3) Verification of compatibility and security vulnerabilities of open-source libraries in use.
- (b) Where applicable, the organization shall perform the necessary activities to provide the safety and reliability of AI models related to AI/ML functions, including the following

elements.

- 1) A model specification describing the mechanism, performance, and precautions of the AI model;
- 2) Analysis and mitigation of bias in the AI model;
- 3) Establishment of defense measures against attacks on the AI model, such as model extraction and model evasion;
- 4) Provision of explanations for the inference results of the AI model.

7. Development of Systems Related to AI/ML Functions

The organization shall perform the necessary activities to ensure the safety and reliability of software systems or items related to AI/ML functions included in digital medical devices, including the following elements.

- 1) Provision of alert functions in the event of a problem in the artificial intelligence system;
- 2) Application of security techniques to enhance the security of the artificial intelligence system;
- 3) Mitigation of bias caused by source code and user interfaces, where applicable;
- 4) Establishment and notification of evaluation metrics for performance degradation of the artificial intelligence system, where applicable.

8. Operation and Monitoring Related to AI/ML Functions

The organization shall perform the necessary activities to ensure the safety and reliability during the operation and monitoring of AI/ML functions, including the following elements.

- 1) Provision of descriptions, such as purpose, scope, constraints, and disclaimers, to guide the proper use of the artificial intelligence system;
- 2) Establishment of traceability measures for the decision-making of the artificial intelligence system, such as system logs, where applicable.

[Annex 5]

Product Groups for Digital Medical Devices

(Related to Articles 4, 6, and 7)

1. Digital Medical Device Software

Number	Product group
1	Includes artificial intelligence and machine learning (AI/ML) functions
2	Does not include artificial intelligence and machine learning (AI/ML) functions

2. Medical Device Hardware

Number	Product group
1	Machinery
2	Instruments
3	Supplies
4	Dental materials
5	In vitro diagnostic medical device machinery
6	In vitro diagnostic medical device reagents

[Annex 6]

Selection of Core Products

(Article 7)

1. Where two or more products are applied for, the core product shall be selected in the following order for each product group of the relevant manufacturing site or manufacturer.
 - (a) Products that include artificial intelligence and machine learning (AI/ML) functions
 - (b) Products with the highest applicable classification
 - (c) Products with the highest production or import performance
2. Guidelines for selecting the core product
 - (a) Where multiple model names exist within the same product item, the product to be assessed shall be selected by comprehensively considering product characteristics, structure, raw materials, and other relevant factors.
 - (b) If the core product belonging to the highest classification level has no production or import performance, the product with the highest production or import performance among products of the next classification level shall be selected.
 - (c) If both the classification and production performance of the products under review are identical, the applicant shall select the core product in consultation with the head of the agency entrusted with certification-related duties.

[Annex 7]

Issuance and Management of Certificate of Conformity Determination

(Article 8 (8), Article 9, and Article 10)

1. The certificate of conformity determination for digital medical devices shall be issued in the name of the head of the agency entrusted with certification-related duties.
2. Items and Instructions for Completing the Certificate of Conformity Determination
 - (a) General Principles
 - 1) Each item of the conformity recognition certificate shall be presented in both Korean and English.
 - 2) Printing paper specification: 130 g white, A4 (210 × 297 mm)
 - (b) Required entries
 - 1) Recognition number

① Agency code – ② Assessment type – ③ Serial number

① Agency code: Name of the agency entrusted with certification-related duties.

② Assessment type: The assessment type shall be indicated using up to six digits.

Assessment type	A	B	C	D
1st digit	Manufacture	Import		
2nd digit	Initial assessment	Assessment for change	Periodic assessment	
3rd digit	Alternative assessment	Not alternative assessment		
4th digit	Standalone digital medical device software	Embedded digital medical device software	Medical device hardware	Medical device hardware + Embedded digital medical device software
5th digit	AI/ML function	Class I digital medical device	For export	For clinical use
6th digit	Initial issuance	Reissuance		

- ③ Serial number: A sequential number assigned in the order of assessment receipt
- 2) Name of business / License number: State the business name, business type (manufacturing or import), and license number as stated on the manufacturing/import business license.
 - 3) Business address: State the address as shown on the manufacturing/import business license; for importers, state only the address of the place of business.
 - 4) Name of manufacturing site: State the name of the manufacturing site of the legal manufacturer (where applicable) and the manufacturer.
 - 5) Address of manufacturing site: State the location of the legal manufacturer (where applicable) and the manufacturer.
 - 6) Date of issuance: State the date of issuance of the conformity recognition certificate.
 - 7) Product group: Indicate according to Annex 5.
 - 8) Expiration date: Indicate according to Article 9 of the text.
 - 9) GMP mark: Print according to Annex 8.
 - 10) Official seal and personal seal: Print one of each clearly, reflecting the appropriate colors.
 - 11) Changes and administrative actions: Indicate the assessment date, assessment type, transfer/acquisition, and other relevant matters.
 - 12) Attachments: Describe the interrelationships within the quality management system and identify each attachment page by indicating the recognition number (No.) at the top left corner.
 - 13) Page numbering: When an attachment of the conformity recognition certificate exists, indicate the page number at the top right corner (e.g., “Page 1 of 2” when the attachment consists of two pages and the current page is the first).

[Annex 8]

Mark for Conformity Determination Assessment

(Related to Article 12)

1. Design of the mark for conformity determination assessment

(a) Design



(b) Size ratio: width × height = 1 × 0.83

(c) Color code: Pantone 2736CVC

2. Methods and criteria for marking

- (a) The mark for conformity determination assessment shall be applied based on the size and color specified in item (a), and may be used in various sizes (with the same proportions) and colors suitable for the characteristics of the product and its packaging materials; provided that the design of the mark shall not be altered.
- (b) The marking method for the conformity determination assessment described in item (a) may be applied to the container, outer case, external packaging, and/or insert package of the product in accordance with the labeling requirements under Article 22 of the Digital Medical Products Act and Article 33 of the Enforcement Rule of the Act.

[Form 1]

(1/8)

Application for Conformity Determination Assessment for Digital Medical Devices			
Receipt number			
Type of business	☐ Manufacturing ☐ Import	Business license number	
Name of business	Korean: English:		
Representative	Korean: English:	Quality manager	Name: Phone number:
Address	Korean: English: (☎) (FAX) (E-MAIL)		
Name/address of manufacturing site subject to assessment	Legal manufacturer: (Name) (Location)		
	Manufacturer: (Name) (Location)		
Assessment type	☐ Initial assessment ☐ Assessment for change ☐ Periodic assessment ☐ Alternative assessment		
	☐ Standalone digital medical device software ☐ Embedded digital medical device software ☐ Medical device hardware ☐ Medical device hardware + Embedded digital medical device software ☐ Class I digital medical device ☐ Medical device hardware for clinical investigation ☐ Digital medical device for export ※ Fill in only if applicable.		

Product	Product group	☐ Standalone digital medical device software	AI/ML function	☐ Included
		☐ Embedded digital medical device software		☐ Not included
		☐ Medical device hardware	☐ Machinery	☐ Instruments
			☐ Supplies	☐ Dental materials
☐ IVD machinery	☐ IVD reagents			
On-site inspection method		☐ In-person ☐ Remote		
Preferred date of on-site inspection		Year Month Day		
Pursuant to Article 7 (1) of the Good Manufacturing Practice for Digital Medical Devices, I hereby apply for conformity determination assessment as stated above. Year Month Day Applicant (Signature or Seal) To: Minister of Food and Drug Safety				
※ Required documents Documents required for the application for conformity determination assessment under Article 8				Fee
				To be prescribed separately

210 mm × 297 mm [Standard paper 60 g/m² (Recycled)]

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Submission Status	Required Documents	Remarks (file name, etc.)
	1. Application for conformity determination assessment for medical devices	
	2. Information on digital medical device software subject to conformity determination under the GMP	
	3. Information on the facilities, equipment, and devices of the manufacturer, etc. (including the manufacturer of the digital medical device intended for import)	
	4. Organization chart and quality manual (including the quality policy) in accordance with the GMP	
	5. Document control procedures and list of documents in accordance with the GMP	
	6. Procedures and test reports related to finished product testing (e.g., final release inspection) of the core product	
	7. Process flow diagrams, purchasing and outsourcing procedures, names of suppliers (including contracted suppliers), and scope of work for the core products of each product group under Annexes 5 and 6 for a manufacturer or manufacturing site;	
	8. Device Master Records for core products of each product group under Annexes 5 and 6, and procedures related to cybersecurity against electronic intrusion for a manufacturer or manufacturing site.	

※ To be filled in only for digital medical device software

(3/8)

Submission Status	Required Documents	Remarks (file name, etc.)
	1. Application for conformity determination assessment for medical devices	
	2. Copy of the manufacturing (import) business license or conditional manufacturing (import) business license for medical devices (excluding medical device hardware for initial assessment or investigational use)	
	2-a. Overview of the manufacturing site (including the name of the site and the address of each facility; and, if multiple sites exist, the names of all manufacturing sites), the organization chart, number of employees, and medical devices manufactured	
	2-b. Status of facilities for each manufacturing site subject to assessment (including floor plans of work areas, test laboratories, and storage areas; lists of facilities and equipment; cleanroom information, if applicable; and procedures related to monitoring and measuring equipment)	
	2-c. Quality manual of the manufacturing site (including the scope of the quality control system, documented procedures and corresponding reference documents, description of interactions among processes, and details of exclusions or non-applicable items with their justification)	
	2-d. Procedures and test reports related to finished product testing for the core product group of the manufacturing site (including evidence demonstrating sterilization, where the product is sterile).	
	2-e. Purchasing and outsourcing procedures for the core product group of the manufacturing site, names of major suppliers (including contracted suppliers), and scope of work.	
	2-f. Device Master Records for the core product group (including descriptions of specific manufacturing processes such as sterilization or software, as applicable), and procedures for validation of sterilization, where applicable.	
	2-g. Checklist for Annex 2 criteria of the manufacturing site	
	2-h. Declaration of conformity to Annex 2 criteria of the manufacturing site	
	3. Process flow diagrams for the core products by type in accordance with Annexes 5 and 6	

※ To be filled in only for medical device hardware

(4/8)

Submission Status	Required Documents	Remarks (file name, etc.)
	1. Application for conformity determination assessment for medical devices	
	2. Where another manufacturer or importer submits a valid certificate of conformity determination under this GMP for the relevant manufacturing site or manufacturer	
	3. Where a manufacturer or importer of medical devices (including in vitro diagnostic medical devices) under the Medical Device Act or the In Vitro Diagnostic Medical Devices Act submits a valid conformity recognition certificate for the relevant manufacturing site or manufacturer issued in accordance with the Good Manufacturing Practice for Medical Devices or the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices	
	4. Where, pursuant to Article 4 (1) 2 (b), the relevant manufacturing site holds and submits a valid conformity recognition certificate issued under the Good Manufacturing Practice for Medical Devices or the Good Manufacturing Practice for In Vitro Diagnostic Medical Devices, and the certificate covers a product group included in the product groups listed in Annex 5	
	5. Where, pursuant to the text of Article 4 (1) 2 (d), a copy of the quality management system conformity recognition certificate issued by the regulatory authority or an agency delegated by the regulatory authority for a manufacturing site whose location has changed, along with the on-site inspection results (including any follow-up actions based on the inspection results), is submitted	
	6. Where a copy of the MDSAP conformity recognition certificate and the assessment results are submitted, including, where nonconformities were identified, the nonconformity report issued by the audit organization (AO) and the corrective and preventive action plan or results that were submitted by the manufacturing site to the AO and confirmed by the AO as compliant	
	7. Process flow diagrams for core products for each product group under Annexes 5 and 6	

※ Fill in only for alternative assessment

Interrelation within the Quality Management System												
Category	Manufacturing process flow											
	1	2	3	4	5	6	7	8	9	10	11	12
In-house or supplier (specify region or country, if overseas)												
Legal manufacturer / manufacturer												
GMP criteria	Detailed GMP requirements						Interrelation of the quality control system					
Annex 2												
4. Quality Management System	4.1 General Requirements											
	4.2 Documentation Requirements											
5. Management Responsibility	5.1 Management Commitment											
	5.2 Customer Focus											
	5.3 Quality Policy											
	5.4 Planning											
	5.5 Responsibility, Authority, and Communication											
	5.6 Management Review											
6. Resource Management	6.1 Provision of Resources											
	6.2 Human Resources											
	6.3 Infrastructure											
	6.4 Work Environment and Contamination Control											

7. Production Realization	7.1 Planning of Production Realization							
	7.2 Customer-Related Processes							
	7.3 Design and Development							
	7.4 Purchasing							
	7.5 Production and Service Provision							
	7.6 Control of Monitoring and Measuring Equipment							
8. Measurement, Analysis and Improvement	8.1 General Requirements							
	8.2 Monitoring and Measurement							
	8.3 Control of Nonconforming Product							
	8.4 Analysis of Data							
	8.5 Improvement							

Interrelation within the Quality Management System												
Category	Manufacturing process flow											
	1	2	3	4	5	6	7	8	9	10	11	12
In-house or supplier (specify region or country, if overseas)												
Legal manufacturer / manufacturer												
GMP criteria	Detailed GMP requirements						Interrelation of the quality control system					
Annex 3												
1. Life Cycle Processes	1.1 Planning											
	1.2 Requirements Analysis											
	1.3 Design and Development											
	1.4 Testing											
	1.5 Distribution											
	1.6 Maintenance											
2. Life Cycle Support Processes	2.1 Risk Management											
	2.2 Control of Outsourced Processes											
	2.3 Configuration Management											
	2.4 Problem Resolution Process											

(7/8)

Interrelation within the Quality Management System												
Category	Manufacturing process flow											
	1	2	3	4	5	6	7	8	9	10	11	12
In-house or supplier (specify region or country, if overseas)												
Legal manufacturer / manufacturer												
GMP criteria	Detailed GMP requirements						Interrelation of the quality control system					
Annex 4												
1. General Requirements	1.1 AI Control Measures											
	1.2 Management Responsibility											
	1.3 Resource Management											
2. Risk Management												
3. Governance Structure												
4. Reliability Assurance Planning												
5. Management of Training Data for AI/ML Functions												
6. Development of AI Models Related to AI/ML Functions												
7. Development of Systems Related to AI/ML Functions												
8. Operation and Monitoring Related to AI/ML Functions												

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Summary Table of Manufacturing Sites and Manufacturers						
Information on manufactured items						
Product name (Product group name)	Product code	License number	Presence of AI/ML functions	Class	Production / Import performance	Status as core product
a						
b						
c						
d						
e						
f						

※ This section shall be filled out only when multiple items are held.

[Form 2]

(Front)

Recognition number (No.):

디지털의료기기 제조 및 품질관리기준 적합판정서 (Certificate of GMP)

- Company Name of Applicant
/ License No.
- Company Address of Applicant
- Name of Manufacturer
- Address of Manufacturer
- Product Group
- Core Product



디지털의료기기 제조 및 품질관리기준에 적합함을 인정합니다.

(We hereby certify that the above manufacturer complies with Korea Good Manufacturing Practices of Digital Medical Devices for the Product Group listed above)

Date of Issue: . . .

Date of Expiration: . . .

Minister of Food and Drug Safety

Seal

210 mm × 297 mm [Standard paper 60 g/m² (Recycled)]

Changes (Changes History Records of GMP Certificate)	
Date	Description

Recognition number (NO.)

Interrelation within the Quality Management System												
Category	Manufacturing process flow											
	1	2	3	4	5	6	7	8	9	10	11	12
In-house or supplier (specify region or country, if overseas)												
Legal manufacturer / manufacturer												
GMP criteria	Detailed GMP requirements						Interrelation of the quality control system					
Annex 2												
4. Quality Management System	4.1 General Requirements											
	4.2 Documentation Requirements											
5. Management Responsibility	5.1 Management Commitment											
	5.2 Customer Focus											
	5.3 Quality Policy											
	5.4 Planning											
	5.5 Responsibility, Authority, and Communication											
	5.6 Management Review											
6. Resource Management	6.1 Provision of Resources											
	6.2 Human Resources											
	6.3 Infrastructure											
	6.4 Work Environment and Contamination Control											
7. Production Realization	7.1 Planning of Production Realization											
	7.2 Customer-Related Processes											
	7.3 Design and Development											
	7.4 Purchasing											
	7.5 Production and Service Provision											
	7.6 Control of Monitoring and											

	Measuring Equipment							
8. Measurement, Analysis and Improvement	8.1 General Requirements							
	8.2 Monitoring and Measurement							
	8.3 Control of Nonconforming Product							
	8.4 Analysis of Data							
	8.5 Improvement							

Recognition number (NO.)

Annex 3								
1. Life Cycle Processes	1.1 Planning							
	1.2 Requirements Analysis							
	1.3 Design and Development							
	1.4 Testing							
	1.5 Distribution							
	1.6 Maintenance							
2. Life Cycle Support Processes	2.1 Risk Management							
	2.2 Control of Outsourced Processes							
	2.3 Configuration Management							
	2.4 Problem Resolution Process							

Recognition number (NO.)

Annex 4								
1. General Requirements	1.1 AI Control Measures							
	1.2 Management Responsibility							
	1.3 Resource Management							
2. Risk Management								
3. Governance Structure								
4. Reliability Assurance Planning								
5. Management of Training Data for AI/ML Functions								
6. Development of AI Models Related to AI/ML Functions								
7. Development of Systems Related to AI/ML Functions								
8. Operation and Monitoring Related to AI/ML Functions								

[Form 3]

Report on the Results of Conformity Determination Assessment for Digital Medical Devices			
Type of business	☐ Manufacturing ☐ Import	Business license number	
Name of business		Representative	
		Quality manager	
Address	(☎) (FAX)		
Assessment type	☐ Initial assessment ☐ Assessment for change ☐ Periodic assessment ☐ Alternative assessment		
	☐ Standalone digital medical device software ☐ Embedded digital medical device software ☐ Medical device hardware ☐ Medical device hardware + Embedded digital medical device software ☐ Class I digital medical device ☐ Medical device hardware for clinical investigation ☐ Digital medical device for export ※ Fill in only if applicable.		
Method of assessment	☐ On-site inspection ☐ Remote inspection		
Product	Product type (AI/ML)	☐ Standalone digital medical device software (☐ Included ☐ Not included) ☐ Embedded digital medical device software (☐ Included ☐ Not included) ☐ Medical device hardware + Embedded digital medical device software (☐ Included ☐ Not included)	
	Product group	☐ Medical device hardware (☐ Machinery ☐ Instruments ☐ Supplies ☐ Dental materials ☐ IVD machinery ☐ IVD reagents)	
Assessment team	Affiliation	Name	
	Agency entrusted with		

	certification-related duties	
	Expert	
Date of assessment (YYYY/MM/DD)	 -	
Assessment result	☐ Conforming ☐ Additional actions required (by . . .) ☐ Nonconforming	
Pursuant to Article 8 (7) of the Good Manufacturing Practice for Digital Medical Devices, the results of the conformity determination assessment are hereby reported as stated above. Year Month Day Head of the Agency Entrusted with Certification-related Duties		
		Seal
※ Attachments: One copy of the Conformity Determination Assessment Sheet for Digital Medical Devices		

210 mm × 297 mm [Standard paper 60 g/m² (Recycled)]

Facility information of the manufacturing site				
Contact information of the responsible assessment department				
Number of employees subject to assessment			Working hours (Shift hours, etc.)	
Status of related certifications	Certification body	Certification criteria	Scope of certification	Expiration date
On-site inspection date	Year month day - year month day			
Information on previous assessment (Fill in only if applicable)	Date of assessment			
	Audit organization			
	Auditor(s)			
	Assessment criteria and scope			
	Assessment result			
	Action required			
Required actions and remarks				

Interrelation within the Quality Management System												
Category	Manufacturing process flow											
	1	2	3	4	5	6	7	8	9	10	11	12
In-house or supplier (specify region or country, if overseas)												
Legal manufacturer / manufacturer												
GMP criteria		Detailed GMP requirements						Assessment details				
Annex 2												
4. Quality Management System		4.1 General Requirements										
		4.2 Documentation Requirements										
5. Management Responsibility		5.1 Management Commitment										
		5.2 Customer Focus										
		5.3 Quality Policy										
		5.4 Planning										
		5.5 Responsibility, Authority, and Communication										
		5.6 Management Review										
6. Resource Management		6.1 Provision of Resources										
		6.2 Human Resources										
		6.3 Infrastructure										
		6.4 Work Environment and Contamination Control										
7. Production Realization		7.1 Planning of Production Realization										
		7.2 Customer-Related Processes										
		7.3 Design and Development										
		7.4 Purchasing										
		7.5 Production and Service Provision										
		7.6 Control of Monitoring and Measuring Equipment										
8. Measurement, Analysis and Improvement		8.1 General Requirements										
		8.2 Monitoring and Measurement										
		8.3 Control of Nonconforming Product										
		8.4 Analysis of Data										
		8.5 Improvement										

Interrelation within the Quality Management System												
Category	Manufacturing process flow											
	1	2	3	4	5	6	7	8	9	10	11	12
In-house or supplier (specify region or country, if overseas)												
Legal manufacturer / manufacturer												
GMP criteria		Detailed GMP requirements						Assessment details				
Annex 3												
1. Life Cycle Processes		1.1 Planning										
		1.2 Requirements Analysis										
		1.3 Design and Development										
		1.4 Testing										
		1.5 Distribution										
		1.6 Maintenance										
2. Life Cycle Support Processes		2.1 Risk Management										
		2.2 Control of Outsourced Processes										
		2.3 Configuration Management										
		2.4 Problem Resolution Process										

Interrelation within the Quality Management System												
Category	Manufacturing process flow											
	1	2	3	4	5	6	7	8	9	10	11	12
In-house or supplier (specify region or country, if overseas)												
Legal manufacturer / manufacturer												
GMP criteria		Detailed GMP requirements						Assessment details				
Annex 4												
1. General Requirements		1.1 AI Control Measures										
		1.2 Management Responsibility										
		1.3 Resource Management										
2. Risk Management												
3. Governance Structure												
4. Reliability Assurance Planning												
5. Management of Training Data for AI/ML Functions												
6. Development of AI Models Related to AI/ML Functions												
7. Development of Systems Related to AI/ML Functions												
8. Operation and Monitoring Related to AI/ML Functions												

[Form 4]

Periodic Report on the Results of Conformity Determination Assessment for Digital Medical Devices (Standalone Digital Medical Device Software)						
Assessment period	 - (months)					
Assessment history	Category		Total	Conforming	Additional action required	Nonconforming
Standalone digital medical device software	Initial	Manufacture				
		Import				
	Change	Manufacture				
		Import				
	Periodic	Manufacture				
		Import				
	Total					
Pursuant to Article 14 (1) of the Good Manufacturing Practice for Digital Medical Devices, the results of the conformity determination assessment for standalone digital medical device software are hereby reported as stated above. Year Month Day Head of the Agency Entrusted with Certification-related Duties Seal						
※ Attachment: One copy of the detailed list of results of conformity determination assessment for digital medical devices						

210 mm × 297 mm [Standard paper 60 g/m² (Recycled)]

Periodic Report on the Results of Conformity Determination Assessment for Digital Medical Devices (Embedded Digital Medical Device Software)						
Assessment period	 - (months)					
Assessment history	Category		Total	Conforming	Additional action required	Nonconforming
Embedded digital medical device software	Initial	Manufacture				
		Import				
	Change	Manufacture				
		Import				
	Periodic	Manufacture				
		Import				
	Total					
Pursuant to Article 14 (1) of the Good Manufacturing Practice for Digital Medical Devices, the results of the conformity determination assessment for embedded digital medical device software are hereby reported as stated above. Year Month Day Head of the Agency Entrusted with Certification-related Duties Seal						
※ Attachment: One copy of the detailed list of results of conformity determination assessment for digital medical devices						

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Periodic Report on the Results of Conformity Recognition Assessments for Digital Medical Devices (Medical Device Hardware)						
Assessment period	. . . - . . . (months)					
Assessment history	Category		Total	Conforming	Additional action required	Nonconforming
Medical device hardware	Initial	Manufacture				
		Import				
	Change	Manufacture				
		Import				
	Periodic	Manufacture				
		Import				
	Total					
Pursuant to Article 14 (1) of the Good Manufacturing Practice for Digital Medical Devices, the results of the conformity recognition assessment for the medical device hardware are hereby reported as stated above. Year Month Day Head of the Agency Entrusted with Certification-related Duties Seal						
※ Attachment: One copy of the detailed list of the results of conformity recognition assessments for digital medical devices						

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Periodic Report on the Results of Conformity Recognition Assessments for Digital Medical Devices (Embedded Digital Medical Device Software + Medical Device Hardware)						
Assessment period	 - (months)					
Assessment history	Category		Total	Conforming	Additional action required	Nonconforming
Digital medical device (Embedded digital medical device software + medical device hardware)	Initial	Manufacture				
		Import				
	Change	Manufacture				
		Import				
	Periodic	Manufacture				
		Import				
	Total					
	Pursuant to Article 14 (1) of the Good Manufacturing Practice for Digital Medical Devices, the results of the conformity recognition assessment for the digital medical device are hereby reported as stated above. Year Month Day Head of the Agency Entrusted with Certification-related Duties					
Seal						
※ Attachment: One copy of the detailed list of the results of conformity recognition assessments for digital medical devices						

210 mm × 297 mm [Standard paper 60 g/m² (Recycled)]

[Form 5]

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List of Conformity Determination Assessment Results for Digital Medical Devices (Standalone Digital Medical Device Software)

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List of Conformity Recognition Assessment Results for Digital Medical Devices (Embedded Digital Medical Device Software + Medical Device Hardware)

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